STATE COMMON ENTRANCE TEST CELL, MUMBAI

Information Brochure for Registration, Counseling Document Verification, Preference Form Filling and Admission Process

NEET-PG 2026

PROCEDURE FOR SELECTION AND ADMISSION TO MEDICAL POST-GRADUATE COURSES (MD / MS / DIPLOMA) AT GOVERNMENT / GOVERNMENT-AIDED / CORPORATION MEDICAL COLLEGES FOR MAHARASHTRA STATE QUOTA (50%) AND UNAIDED PRIVATE / MINORITY / Private Health Sciences University Medical Colleges in the State of Maharashtra

OFFICE OF COMMISSIONER, STATE CET CELL, MAHARASHTRA STATE, MUMBAI
8th Floor, New Excelsior Building, A. K. Nayak Marg, Fort, Mumbai - 400 001 (M.S.)
Tel No.: +91-22- 22016157/59/53/34/19/28
Email ID: cetcell@mahacet.org WEBSITE: http://www.mahacet.org

Admission Process for NEET- PG 2026
Clarification

1. The Draft of this Information Brochure was prepared by the Directorate of Medical Education & Research, Mumbai.
2. The aforesaid Draft of the Information Brochure was approved by Medical Education & Drugs Department, Government of Maharashtra vide letter No. MED-1026/C.R.342/26/Edu-2, dated 13/10/2026.
3. The aforesaid Approved Information Brochure was forwarded by the Directorate of Medical Education & Research, Mumbai, to the State CET Cell by letter No. DMER/NEET-PG-2026/Information Brochure /_____, dated: 14/10/2026 and Soft Copy of the same was also forwarded to the State CET Cell by e-mail dated __ /__ /2026.
4. This State CET Cell, **without making any change whatsoever** in the aforesaid Information Brochure, which has been approved by the Medical Education & Drugs Department, Government of Maharashtra and that has been further sanctioned by the Admissions Regulating Authority, has published the same on the State CET Cell website, which is www.mahacet.org. This is to once again to clarify that the State CET Cell **has not at all made any change whatsoever** in the Information Brochure so approved and sanctioned by the aforesaid Authorities.

NEET-PG 2026

PROCEDURE FOR SELECTION AND ADMISSION TO MEDICAL POST-GRADUATE COURSES (MD / MS / DIPLOMA) AT GOVERNMENT / GOVERNMENT-AIDED / CORPORATION MEDICAL COLLEGES FOR MAHARASHTRA STATE QUOTA (50%) AND UNAIDED PRIVATE / MINORITY / Private Health Sciences University Medical Colleges in the State of Maharashtra

IMPORTANT INFORMATION AT A GLANCE

1	Declaration of NEET-PG 2026 Rank	:	24/09/2026
2	Online registration, application form filling and uploading of Documents	:	Candidate should regularly visit www.mahacet.org
3	Publication of list of applicants	:	
4	Publication of Provisional Common State Merit list	:	
5	Grievance period for any corrections in application form	:	
6	Publication of Final Common State Merit list	:	
7	Last date of joining of Round 1	:	
8	Online preferences (choices) filling process for Round 2	:	
9	Declaration of list of selected candidates for Round 2	:	
10	Last date of joining to respective colleges for Round 2	:	
11	Online registration, application form filling and uploading of Documents for Round 3	:	
12	Online preferences (choices) filling process for Round 3	:	
13	Declaration of list of selected candidates for Round 3	:	
14	Last date of Joining to respective colleges for Round 3	:	
15	Online preferences (choices) filling process for Online Stray Vacancy Round	:	
16	Declaration of list of selected candidates for Online Stray Vacancy Round(s)	:	
17	Last date of Joining to respective colleges for Online Stray Vacancy Round	:	
18	Cutoff date of admission process as per NMC guideline	:	

19	**Certificates / Documents to be uploaded and produced at the time physical document verification** i. Online downloaded Application form for State NEET-PG 2026 ii. Copy of downloaded NEET-PG 2026 Admit Card iii. Any Photo ID proof (Aadhar Card/Driving License, PAN Card, Passport) iv. NEET-PG 2026 Mark sheet v. Nationality Certificate / valid passport or School Leaving Certificate of HSC / 12th Std. indicating the nationality of the candidate as "Indian" vi. MBBS degree / Passing certificate. vii. Internship completion certificate from University or the Head of the Institution. Internship completion should not be later than 30/09/2026. viii. Permanent / Provisional Registration certificate of Maharashtra Medical Council or other State Medical Councils in India / NMC. ix. Certificate from Head of Institute showing that the Medical College/ Institute from which the candidate has passed MBBS examination is recognized by National Medical Commission. x. Medical Fitness Certificate. (As per Annexure – M) xi. Copy of Receipt of online fee payment for Rs. 3000/-. **If applicable**, Caste certificate, Caste validity certificate, Non-Creamy Layer Certificate, EWS eligibility Certificate, For Person with Disability (PWD) Candidates – Medical Disability Certificate as per Annexure-D, selection letter of All India Quota of Govt. Medical Colleges / AIIMS / Central Government Institute / letter from Dean / Principal stating that candidate was admitted for MBBS course under 15% all India quota of Govt. Medical Colleges / AIIMS / Central Government Institute, NOC (for in-service candidates), Orphan Certificate form Competent Authority.

Table of Contents

Sr. No.	Title	Page No.
1.	Introduction & Clarification	1-2
2.	Definitions	3
3.	Competent Authority	3
4.	Authority	4
5.	Grievance Redressal Authority	4
6.	List of Medical Post-graduate courses	4
7.	Distribution of Pg Medical Seats In (7.1) Government / Corporation / Government Aided Medical Colleges, (7.2) Unaided Private And Minority Medical Colleges And (7.3) Maharashtra Private Health Sciences Universities	4
8.	Eligibility Criteria For NEET-PG 2026 Medical Post-graduate Courses	8
9.	Online Registration, Administrative Fees, Security Deposit, Uploading Documents & Preparation of Provisional Merit list	14
10.	Online Document Uploading Process & the List of Documents for Uploading	19
11.	Common State Merit List	22
12.	Online Preference Filling Process and Selection Process by Cap Computerised Round	23
13.	Seat Distribution Chart	36
14.	Fees	37
15.	Conditions to be satisfied by candidate after selection	38
16.	Cancellation & Refund	39
17.	Conduct & Discipline	39
18.	Penalty & Social Responsibility services	40

ANNEXURES

A	Definitions	42
B	List of Degree Post-graduate Medical Courses with Code Numbers	45
C	Constitutional Reservation	46
D	Persons With Disability (PWD) Reservation & Proforma of Certificate	49
E	List of Medical Colleges/Institutes where admission to the Medical Post-graduate courses will be done along with college code Numbers.	64
F	List of Undergraduate Medical Colleges	66
G	General Instructions for filling Online Application Form	68
H	Specimen Copy of Online Application Form 2026	69
I	Specimen Copy of Preference Form	72
J	Internship Completion Certificate	73
K	Proforma for Resignation of Admission to Medical PG course	74
L	Status Retention Form	75
M	Medical Fitness Certificate	76
N	Scrutiny Form	77
O	Guidelines for granting admission in NRI quota	78
P	Government Resolution regarding cancellation of social responsibility service for the students who have passed MBBS degree, dated: 23-07-2026	85
Q	Maharashtra Professional Education Institutions (Regulation of Admissions to the first year of the full time Professional Post Graduate Medical and Dental Courses) Rules, 2026, dated: 05-10-2026	88
R	Government Resolution for Common Counselling for admission to PG courses	98
S	Government Letter No.MED-1026/C.R.342/26/Edu-2, dated 13/10/2026 for approval to NEET-PG Information Brochure 2026	101
T	Hon'ble Supreme court order Dated 16/12/2021 in Special Leave to Appeal (C) No(s).10487/2021	102
U	Government Resolution for Eligibility Criteria for In-service Medical officers serving Under Directorate of Health Services.	106
V	Government Resolution regarding procedures followed at Post-graduate Admission Process & Maharashtra Government Notification, Medical Education and Drugs department, No.PGM-1006/ 3207/CR-362/06/EDU-2, dated 08th, January 2007.	133
W	Government Resolution for declaring Commissioner, State CET Cell as a competent Authority for admission at Government / Corporation and Government Aided institution from State of Maharashtra	145
X	Government Resolution regarding Private Unaided Medical Institution shall not demand Bank Guarantee equivalent to fee amounting to next academic year(s) at the time of admission and Bond Service shall not be imposed after completion of Post-graduate course	149
Y	MCI Gazette Notification No. MCI-18(1)/2018-Med./100818, dated: 5th April 2018	153
Z	G.R. No. Orphan – 2022/C.R. 122/Ka-03 dated 6th April 2023 regarding Orphan reservation	165
AA	General Administration Department Government Resolutions no. RAD/4019/C.R. 31/16-A, dated 31st May 2021 for EWS Category Reservation	175
CC	NMC / erstwhile MCI Gazette of India, dated 20/02/2018	187
DD	Ministry of Home Affairs, Govt. of India, Gazette Notification dated 4th March 2021 & Hon'ble Supreme Court Order W.P.(C) No. 891 of 2021 regarding eligibility of OCI Candidates- relevant pages	190
EE	National Medical Commission Circular dated 24/07/2023	197
FF	SEBC Reservation	198
GG	Director Medical Education & Research Letter No. DMER-11011/9/2022-CETIT dated 06/06/2023	209
HH	Government Resolution no. Misc-2024/C.R 75 (Part – 1) / Reservation – 5 dated 02/07/2026 six-month period to submit the caste validity certificate for admission & Government Circular CBC-2025/C.R 131 MVK Dated 04/09/2026 three month period to submit the caste validity certificate for admission	214
II	Maharashtra Unaided Private Professional Educational Institution (Regulation of Admissions and Fees) Act, 2015 and (Amendment) Act, 2026	218
JJ	The Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (No. VIII of 2024) & The Maharashtra Private Universities (establishment and regulation) (third amendment) Act 2026 (No XXX of 2026)	248

COMMISSIONERATE, STATE CET CELL MAHARASHTRA

PROCEDURE FOR SELECTION AND ADMISSION TO MEDICAL POST-GRADUATE COURSES (MD / MS / DIPLOMA) AT GOVERNMENT / GOVERNMENT-AIDED / CORPORATION MEDICAL COLLEGES FOR MAHARASHTRA STATE QUOTA (50%) AND UNAIDED PRIVATE / MINORITY / Private Health Sciences University Medical Colleges in the State of Maharashtra: NEET-PG 2026

1. INTRODUCTION:

1.1 STATE CET ACT:

1.1.1 The Government of Maharashtra has passed the "Maharashtra Unaided Private Professional Educational Institution (Regulation of Admissions and Fees) Act, 2015 and (Amendment) Act, 2026". As per the act, the State Government has published the rules in Maharashtra Government Gazette No. CET 1215/C.R.412/ 15/Edu-2, dated: 19/01/2017, and Amendments published by Government of Maharashtra from time to time. **(Annexure – Q).**

1.1.2 As per Government Resolution No. CET 3516/C.R.478/16/Edu-2 dated: 20/02/2018, the admissions to all Medical Post-graduate Degree / Diploma Courses i.e. MD/MS/PG Diploma, (excluding admissions done by Central Government / Directorate General of Health Services, New Delhi) should be as per merit of NEET-PG through Combined Counselling / Centralized admission process. This is inclusive of Institutional Quota / NRI Quota **(Annexure – R)**.

1.1.3 As per Government Resolution No. CET 3518/C.R.32/18/Edu-2, dated: 29/01/2018, admissions for various Post-graduate courses at all Government / Corporation / Government aided Medical Colleges situated in the State of Maharashtra for State Quota Seats is being carried out in accordance with the procedure laid down through this Government Resolution and on the basis of directions / decisions given by Hon'ble Court in various court orders **(Annexure – V)**.

1.1.4 Government of Maharashtra has given approval for NEET-PG 2026 Information Brochure as per Letter No. MED-1026/C.R.342/26/Edu-2, dated 13/10/2026(**Annexure – S).**

1.1.5 Instructions in this information brochure regarding admission process are liable to change based on any order / instruction / rules / directions by National Medical Commission (NMC) / Central Government / State Government / Hon'ble Supreme Court and Hon'ble High Court from time to time.

1.2 CLARIFICATION:

NEET-PG is an eligibility-cum-ranking examination prescribed as a single entrance examination to various MD/MS and PG Diploma Courses as per section 61(2) of the National Medical Commission Act, 2019 read with section 10 (D) of Indian Medical Council Act, 1956.

No other Entrance Examination, either at State or institution level, shall be valid for entry to MD/MS/PG Diploma Courses for academic session 2026-27. Qualifying NEET-PG is mandatory for entry to various MD/MS/PG Diploma Courses in the State of Maharashtra.

1.2.1 **SCOPE OF NEET-PG 2026: -** NEET-PG 2026 shall be single eligibility cum entrance examination for admission to various Post-graduate Medical Courses for the academic session 2026-27, which will include the following.

- All India 50 % Quota Seats for MD/MS/PG Diploma Courses.
- State Quota seats for MD/MS/PG Diploma Courses in Government/ Corporation and Government Aided Medical Colleges situated in the State of Maharashtra.
- MD/MS/PG Diploma Courses Seats at All Unaided Private and Minority Medical Colleges/Institution situated in the State of Maharashtra.
- MD/MS/PG Diploma Courses Seats at the Private Health Science Universities Medical Colleges established under "The Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (No. VIII of 2024) & The Maharashtra Private Universities (establishment and regulation) (third amendment) Act 2026 (No XXX of 2026)"

1.2.2 For admission to 2026-2027 academic session, online **NEET-PG 2026** examination has been conducted by NBE, Authority appointed by Government of India, New Delhi.

- The validity of result of **NEET-PG 2026** shall be only for current admissions session i.e. 2026-27, for MD/MS/PG Diploma courses and cannot be carried forward for the next session of admission for MD/MS/PG Diploma courses.

1.2.3 In the state of Maharashtra, the Government of Maharashtra has established **"ADMISSION REGULATING AUTHORITY AND STATE COMMON ENTRANCE TEST CELL"** as per the provisions of the "Maharashtra Unaided Private Professional Educational Institution (Regulation of Admissions and Fees) Act, 2015 and (Amendment) Act, 2026", (herein after "the act").

1.2.4 The allocation of seats for MD/MS/PG Diploma courses for academic year 2026-2027 in various Medical Institutions / Medical colleges under ambit of PG course Regulations shall be undertaken as per procedure prescribed in Post-graduate Medical Education Regulations published by the NMC.

1.2.5 **For admission to Medical Post-graduate courses at all Government / Corporation / Government aided / Unaided Private and Minority medical colleges (Excluding Deemed University) in the State of Maharashtra for State Quota, including institutional quota, State Merit list of eligible candidates will be prepared by the Competent Authority of the State of Maharashtra on the basis of NEET-PG 2026 examination.**

1.2.6 The list of medical colleges / Institutions conducting post-graduate medical courses where admission will be carried out by State CET Cell for academic year **2026-27** is listed in **(Annexure 'E')**. The procedure adopted by State CET Cell will be called as "Procedure for Selection and Admission to Medical Post-graduate courses (MD / MS / DIPLOMA) at Government / Government-aided / Corporation Medical Colleges for Maharashtra State quota (50%) and Unaided Private / Minority / Private Health Sciences University Medical Colleges in the State of Maharashtra" through merit list of NEET-PG 2026.

1.2.7 This procedure is applicable only to the seats at disposal of Competent Authority, State CET Cell, for Government / Corporation / Government aided / Unaided Private and Minority Medical colleges in the academic year 2026-2027. **No promise is implied therein for subsequent years and no expectations should be based on this procedure for future**.

2. DEFINITIONS of important terms are given in **Annexure "A"**

3. COMPETENT AUTHORITY:

The Commissioner, State CET Cell, Mumbai has been designated as Competent Authority for selection and admissions at (i) Government / Corporation / Government Aided Medical colleges and (ii) Unaided Private & /Minority Medical colleges for the year 2026-2027, as per provisions of section 2(e) and section 10 of the "Maharashtra Unaided Private Professional Educational Institution (Regulation of Admissions and Fees) Act, 2015 and (Amendment) Act, 2026" **(Annexure – II)** and Government Resolution No. MED-1015/CR 396/15/Edu-2, dated: 16/12/2015 (for Government / Corporation Medical Colleges) **(Annexure – W).**

These admissions will be done on the available post-graduate seats at disposal of Competent Authority in State Quota Seats of Government / Corporation / Government Aided / State Quota seat for Central Government / Unaided Private & Minority Medical Colleges from the State of Maharashtra. The Competent Authority will supervise and control the selection process by implementing these procedures.

The Competent Authority will issue necessary executive instructions for implementation of these procedures and provide relevant information to be published or communicated. The Competent Authority will declare time-table, details of the date(s) of various procedures relating to admission process, in consultation with Nodal officer.

4. AUTHORITY:

4.1 Nodal Officer: Director of Medical Education and Research, Mumbai will act as Nodal Officer to advise and assist this admission process.

4.2 Document verification:

Document Verification will be carried out on the instructions given by the Competent Authority in respect of Online / Offline (physical) Document verification process.

5. GRIEVANCE REDRESSAL AUTHORITY (IN GENERAL)

As per section 9 of the Act, any grievance regarding the admission process will be dealt by the Commissioner, State CET Cell.

6. LIST OF MEDICAL POST-GRADUATE COURSES:

The list of available Medical Post-graduate Degree/Diploma courses along with code numbers are given in **Annexure- "B".**

7. DISTRIBUTION OF PG MEDICAL SEATS IN (7.1) GOVERNMENT / CORPORATION / GOVERNMENT AIDED MEDICAL COLLEGES, (7.2) UNAIDED PRIVATE AND MINORITY MEDICAL COLLEGES AND (7.3) MAHARASHTRA PRIVATE HEALTH SCIENCES UNIVERSITIES

7.1 **Government/Corporation/Government Aided Medical Colleges:**

7.1.1 The seats available for admission to Medical Post-graduate courses through NEET-PG 2026 will be from Institutions located in the State Maharashtra i.e. Government / Corporation medical colleges and the State quota seats of the Central Government and Government Aided institutions.

7.1.2 The seats available for admission to medical Post-graduate courses will be distributed as 50% to All India Quota & remaining 50 % to the State Quota. From the State quota, 20% of Seats in post-graduate degree & diploma courses from State Government / Corporation / Government Aided Medical Colleges will be reserved for In-service candidates in the State Government services, who have served for at

least 3 years in remote and/or difficult areas as per **Annexure "U"**. For In-service quota reservation, any change made by Government from time to time will be applicable. The additional weightage for In-service candidates will be given as per clause 9 (IV) & (VII) of Post-graduate Medical Regulation 2000 of NMC / erstwhile MCI and as per Public Health Department Government Resolution No. MMO-2019/C.R.165/Service-3, dated 19th March 2019 and G.R issued in this regard from time to time. 5% of available seats in Post-graduate courses in Government / Corporation / Government Aided institutions will be reserved for Person with Disability (PWD) candidates as per **Annexure "D"**. 1% of available post-graduate seats are reserved for Orphan category candidate as per **Annexure "Z"**. There will be constitutional reservation applicable in Available State quota seats, (after excluding All India Quota) as mentioned in **Annexure "C".** The parallel (Horizontal) reservation will be applicable for In-service quota seats, PWD quota seats and Orphan quota seats in Government / Corporation / Government Aided institutions.

7.1.3 All India quota seats in Government/Corporation medical colleges (i.e. 50% seats of the intake capacity) for post-graduate courses will be filled by the Competent Authority appointed by the Ministry of Health and Family Welfare, Government of India, through merit list of All India NEET-PG 2026.

7.1.4 The seat position for Maharashtra State Quota admissions under NEET-PG 2026 of Government and Corporation Medical Colleges will be displayed on the website **www.mahacet.org** in due course.

7.1.5 The institute wise, course wise Intake Capacity of the seats will be as per Post-graduate Regulation of NMC and Maharashtra University Health of Sciences (MUHS), Nashik.

7.1.6 The seats available will be filled in, on the basis of State Merit list of NEET-PG 2026. There will be Constitutional / SEBC / EWS/ Person with disability (PWD) / Orphan reservation in these seats as per Government orders issued from time to time **(Annexure "C, D, Z, AA & FF").**

7.1.7 As per G.R. No. Orphan – 2022/C.R. 122/Ka-03 dated 6th April 2023 of Women and Child Development Department, One percent of available post-graduate seats are reserved for Orphan category candidate **(Annexure "Z").**

7.1.8 **EWS CATEGORY RESERVATION:** 10% seats of the available State Quota seats shall be reserved for candidate belonging to EWS category. **(Annexure "AA").**

7.1.9 **SEBC (Socially & Educationally Backward Classes) Reservation:** 10% seats of the available seats under State Quota shall be reserved for candidate belonging to SEBC category. This reservation will be subject to outcome of W.P. No. 3468/2024 in Hon'ble High Court Mumbai and any other future court cases in this regard. **(Annexure "FF").**

7.1.10 AIQ seats will not be reverted back to the respective States after the completion of AIQ Round 2 in compliance of the Order dated 16/12/2021 in Special Leave to Appeal (C) No(s).10487/2021 before the Hon'ble Supreme Court of India **(Annexure "T").**

7.1.11 If the seats reserved for State In-service quota in the particular Constitutional reserve category remain unfilled on account of unavailability of candidate(s) after inter-se, as per rules amongst In-service candidates, the remaining seat(s) shall be included in the respective Constitutional reserve category and these seats will be distributed to non-in-service candidates using NEET-PG 2026 merit list.

7.1.12 Post-graduate seats left unfilled in an academic year, shall not be carried forward to the next or subsequent academic year. The last date of joining MD/MS/Diploma courses is as per the guidelines of NMC / erstwhile MCI Gazette of India, dated 20/02/2018 **(Annexure-CC)** & the orders of the Hon'ble Supreme Court of India in W.P. (C) 76/2005 and W.P. 314/328 of 2015, dated 18/01/2016 (Ashish Ranjan and other V/s Union of India). The academic year will start as per the guidelines from NMC.

7.1.13 The validity of All India Rank based on result of **NEET-PG 2026** shall be only for current admission session i.e. 2026-27 for MD/MS/Diploma courses and cannot be carried forward for the next session of admission for MD/MS/Diploma Courses.

7.2 **Unaided Private and Minority Medical Colleges:**

7.2.1 The post-graduate seats of Unaided Private & Minority Medical Colleges from State of Maharashtra will be filled through Online CAP only by State Competent Authority on the basis of merit of NEET-PG 2026.

7.2.2 The seats available for admission to Post-graduate Medical Courses shall be as stipulated by the appropriate authority and declared by Government from time to time.

7.2.3 In unaided Private medical Colleges and Minority Medical Colleges 50% seats are State CET Cell quota seats and remaining 50% seats are Institutional quota seats including NRI quota seats. All these seats shall be filled by the Competent Authority State CET Cell through NEET-PG 2026. 50 % Institutional Quota seats will be filled on ALL India Basis out of which maximum 15% of the seats may be filled in, from the NRI candidates.

7.2.4 In unaided private institutions, constitutional reservation is 25% of total sanctioned intake as per the Maharashtra Government Notification Medical Education Drugs department, No. PGM-1006/3207/CR-362/06/EDU-2, dated 8th January 2007 as mentioned in **Annexure "C"**.

7.2.5 **SEBC (Socially & Educationally Backward Classes) Reservation:** 10% seats of the available seats under State Quota (excluding Minority Institutions) shall be reserved for candidate belonging to SEBC category. This reservation will be subject to outcome of W.P. No. 3468/2024 in Hon'ble High Court Mumbai and any other future court cases in this regard. **(Annexure "FF").**

7.2.6 The institute wise availability of the seats will be as per Post-graduate Regulation of NMC and MUHS, Nashik.

7.2.7 The seats available at disposal of Competent Authority for admission to medical post-graduate courses through NEET-PG 2026 are inclusive of Institutional Quota from Unaided Private (including Minority) Medical Colleges as decided by concerned Authorities. The subject wise and college wise seat position will be made available on the website www.mahacet.org in due course.

7.2.8 Post-graduate seats left unfilled in an academic year shall not be carried forward to the next or subsequent academic year. The last date of joining MD/MS/Diploma courses is as per the guidelines of NMC / erstwhile MCI Gazette of India, dated 20/02/2018 **(Annexure - CC)** & the orders of the Hon'ble Supreme Court of India in W.P (C) 76/2005 and W.P.314/328 of 2015 dated 18/01/2016 (Ashish Ranjan and other V/s Union of India). The academic year will start as per the guidelines from NMC.

7.2.9 The validity of all India rank based on result of **NEET-PG 2026** shall be only for current admission session i.e. 2026-27 for MD/MS/Diploma courses and cannot be carried forward for the next session of admission for MD/MS/Diploma Courses.

7.3 **MAHARASHTRA PRIVATE HEALTH SCIENCES UNIVERSITIES:** The process for admission to Health Sciences Universities established under 'The Maharashtra Private Universities (establishment and regulation) Act 2023' and 'The Maharashtra Private Universities (establishment and regulation) (third amendment) Act 2026' will be as follows **(Annexure JJ)**:

7.3.1 Admission in the university shall be made strictly on the basis of merit.

7.3.2 Admissions in Universities for Health Science Courses shall be made on the basis of National Eligibility cum Entrance Test (NEET) or any other entrance test as declared by the Central or State Government from time to time.";

7.3.3 Seats for admission in the university, for the students belonging to Scheduled Castes, Scheduled Tribes, De-notified Tribes *(Vimukta Jatis)*, Nomadic Tribes, Other Backward Classes, Special Backward Category and Economically Weaker Sections (EWS), Socially and Educationally Backward Classes (SEBC)" and students with disability, shall be reserved as per the policy of the State Government.

7.3.4 Out of the total approved intake capacity, forty per cent. of the seats shall be reserved for the students having domiciled in the State of Maharashtra.

7.3.5 The admissions shall be made through a common counselling process as decided by the concerned regulatory body."

7.3.6 Candidates admitted at any college under these universities are not eligible for any Government Scholarship from any department.

7.3.7 The Fees for the colleges under these universities will be decided by Fees Fixation Committee constituted by the respective university as specified under section No 42 (1) the Maharashtra Private Universities (establishment and regulation) Act 2023'.

8. ELIGIBILITY CRITERIA FOR NEET-PG 2026 MEDICAL POST-GRADUATE COURSES:

8.1 Candidate must be an **Indian National.** Nationality Certificate issued by District Magistrate or Additional District Magistrate or Chief Metropolitan Magistrate or valid passport or School Leaving Certificate of HSC/12th Std. indicating the nationality of the candidate as "Indian" shall constitute the proof of nationality.

Non-Resident Indians (NRI) are not eligible for any other seat except NRI quota seats in Unaided Private and Private Minority Medical Colleges, subject to fulfillment of NRI status and other relevant eligibility criteria. (Annexure – O)

Non-Resident Indians (NRI) are eligible only for maximum 15% NRI Quota seats in the Unaided Private/Minority medical colleges.

Overseas Citizen of India (OCI) candidates will be eligible for State Quota seats of Government /Corporation/Government Aided/Private unaided colleges under Competent Authority, State CET Cell for Academic Year 2026-27 provided such candidates should have obtained the OCI status before 04/03/2021 and must have completed M.B.B.S. course from Medical college situated in the state of Maharashtra and such candidate will also be covered by relevant general eligibility. (Annexure- DD).

8.2 All candidates, who have passed final M.B.B.S degree course examination from the college situated in Maharashtra State and completed one year internship training by 30th September, 2026 from a recognized medical college **(Annexure-F)** included in the Schedule as per provisions of the NMC act, 2019 and the repealed Indian Medical Council Act, 1956 are eligible. The Medical College should have been affiliated to the Maharashtra University of Health Sciences or Medical College affiliated to Deemed University as per University Grant Commission Act of 1956 under section 13/A, situated in the State of Maharashtra. The candidate who has obtained provisional or permanent registration either from the National Medical Commission (NMC)/ erstwhile MCI or Maharashtra Medical Council (MMC) or other state Council will be eligible for registration for NEET-PG 2026.

8.3 A) The candidates who are domiciled in the State of Maharashtra and who have obtained admission under 15% All India quota of Government Medical Colleges / AIIMS / Central Government Institutions for MBBS course in a medical college / institution situated outside Maharashtra State and thereby have obtained the degree from a university situated outside the State of Maharashtra will also be eligible for selection process of NEET-PG 2026. Such candidates should submit (i) certificate from the Dean of respective medical college stating that the candidate was admitted under 15% All India Quota of Government Medical College / AIIMS / Central Government Institutions for MBBS course, and (ii) Candidate's Domicile certificate of Maharashtra State by virtue of residence.

B) In unaided Private Medical Colleges and Minority Medical Colleges, 50% seats are State CET Cell quota seats and remaining 50% seats are Institutional quota seats including NRI quota seats. All these seats shall be

filled by the Competent Authority State CET Cell through NEET-PG 2026. 50 % Institutional Quota seats will be filled on ALL India Basis out of which maximum 15% of the seats may be filled in, from the NRI candidates.

C) A candidate who has passed the qualifying examination from an institution Outside the State of Maharashtra and Overseas Citizen of India (OCI) candidate who has obtained the Overseas Citizen of India status on or before the 4th March 2021 & has passed the qualifying examination from an institution Outside the State of Maharashtra, shall be eligible only for the Institutional Quota Seats. **(Annexure – Q)**

D) Candidates who have passed MBBS examination from foreign University are eligible only for Institutional quota seats for NEET-PG 2026 admission process under Competent Authority, State CET Cell. **(Annexure – Q)**

8.4 The Candidate must be medically fit. **(Annexure-M)**

8.5 All Candidates desirous to take admission for MD/MS/PG Diploma courses under State quota or Institutional quota must have appeared for NEET-PG 2026 and declared eligible by the Competent Authority of NEET-PG 2026, Government of India, New Delhi.

8.6 **To be eligible for selection:**

8.6.1 To be eligible for selection to Medical Post-graduate courses a candidate belonging to **General Category and EWS category** must secure minimum of marks at 50th percentile and candidate belonging to **constitutional reservation category and constitutional reservation category with Person with disability (PWD) claim** must secure minimum of marks at 40th percentile in NEET-PG 2026. Person with disability (PWD) from general category and EWS category must secure minimum of marks at 45th percentile in NEET-PG 2026.

8.6.2 A candidate who fails to obtain the minimum eligibility percentile /marks as prescribed in regulations shall not be admitted to any Post-graduate courses in the said academic year 2026-2027.

8.6.3 However, the eligibility criteria decided by NMC / Government of India if revised will be applicable from time to time.

8.7 The NMC /Maharashtra Medical Council / Other State Medical Council registration is mandatory for NEET-PG 2026 qualifying candidates. Registration certificate should be produced at the time of document verification process. A candidate without registration certificate will be held ineligible for admission.

8.8 **Candidates belonging to Backward Classes (Including SEBC) / EWS must have claimed so in his online registration for Maharashtra State quota, failing which such a claim will not be entertained subsequently.** Candidate belonging to above **Categories** should produce **Caste Certificate, Caste Validity Certificate and Non-Creamy Layer Certificate / EWS eligibility certificate (wherever applicable) up to the last date of registration. If the candidate fails to upload any of the above-mentioned documents, he/she shall be considered under Open category provided he/she fulfills the eligibility criteria of NEET-PG 2026 for Open category. These documents may be verified at any stage of the admission process, including Document Verification process. The candidate will have to produce the above-mentioned certificates during physical verification.**

Also, in view of Hon'ble Supreme Court order dated 06/09/2017 in CA 11234- 48 of 2017, it is mandatory to submit Caste Validity Certificate.

However as per Government Resolution no. Misc-2024/C.R 75 (Part – 1) / Reservation – 5 dated 02/07/2026, candidates belonging to SEBC and OBC Category can produce his/her Caste Validity certificate up to six months from the date of application for CVC, failing which his/her admission will stand cancelled and he/she will be responsible for the same. Similarly, as per Government Circular no. CBC-2025/C.R 131 MVK Dated 04/09/2026, candidates belonging to SC, VJ/DTA, NT-B, NT-C & NT-D Category can produce his/her Caste Validity certificate up to three months from the date of publication of this Government Circular. **(Annexure HH)**

- Candidates belonging to **EWS category will be required to upload Eligibility certificate for Economically Weaker Section in prescribed format issued by Concerned Authority, Government of Maharashtra for academic year 2026-27 (Annexure – "AA"),** at the time of registration. Candidate who fails to produce above said certificates will be considered as **Open Category Candidate** provided he/she fulfills the eligibility criteria of NEET-PG 2026.
- **Please Note: Certificates produced for claiming EWS reservation should be in "STATE GOVERNMENT FORMAT" only (as given in Annexure "AA"). Certificates in CENTRAL GOVERNMENT FORMATS will NOT BE ACCEPTABLE**

8.9 Reserve category/EWS candidate must claim his category at the time of registration. A candidate belonging to a respective category must have all original documents up to the last date of registration which can be verified at any stage of admission process.

8.10 **A Candidate belonging to 'Creamy Layer' amongst the categories (VJ) DT-A, NT-B, NT-C, NT-D, OBC, SEBC and SBC must note that the provision of reservation is NOT applicable to him / her. A candidate claiming benefit of reservation under these categories will be required to produce Non-Creamy Layer Certificate as specified in the Government Resolutions from time to time. The certificate in prescribed Proforma stating that it is valid up to 31/03/2027 or later.**

8.11 **Candidates who have passed post-graduate diploma course** will be eligible for admission to **post-graduate degree course in the same subject only** through NEET-PG 2026. (For exception, refer to clause No. 8.15.7)

8.12 The candidate has to fulfill qualifications and eligibility criteria as notified by Central Government /NMC from time to time.

8.13 **Eligibility for In-Service Candidates:**

8.13.1 Eligibility for in-Service candidates will be as per criteria laid down by the Public Health Department of State of Maharashtra for In-service Medical Officers. As per Public Health Department Government Resolution No. MMO-2019/C.R.165/Service-3, dated: 19th March 2019, Government Resolution of Medical Education & Drugs Department No. MED1020/C.R.No.90/20/Edu-2, dated: 26/09/2022 and or any Government Resolution issued from time to time **(Annexure-U)**

8.13.2 In–Service candidate desirous to claim In-Service quota seat shall obtain No Objection Certificate from their establishment for admission process.

8.13.3 In service quota candidate must have appeared for NEET-PG 2026, and declared eligible by Competent Authority, Government of India, New Delhi.

8.14 Candidates for post-graduate medical courses shall be selected strictly on the basis of their NEET-PG merit. However as per clause 9 (IV) & (VII) of NMC/erstwhile MCI PG regulation 2000, in determining the merit of eligible In-Service candidates under Government/Public authority, weightage in the marks may be given by Public Health Department as an incentive at the rate of up to 10% of marks obtained for each year of service in remote and/or difficult areas maximum of 30% of marks obtained in NEET-PG

2026. The remote and difficult areas shall be as notified by Government of Maharashtra from time to time. The decision in this regard taken by The Directorate, Public Health Department, Government of Maharashtra will be final.

In-service candidates, who have obtained additional weightage marks for three years permanent service in prescribed areas, shall be considered for post-graduate seat allotment on In-service quota reserved seats only as per merit and preferences. If such In-service candidates opt for general (Non In-service) quota seats, additional weightage marks will not be considered for such candidates and they will be allotted seats only on the basis of **NEET-PG 2026** marks **(Annexure – U)**.

In-service candidate will also be covered by relevant general eligibility criteria.

8.15 **Non-eligibility of Candidate:** The following candidates are not eligible for admission process through NEET-PG 2026.

8.15.1 **NRI candidates are not eligible for seats in Government/Corporation Medical Colleges, State quota of Central Government Medical Colleges/Government aided colleges/State CET Cell quota seats (including Institutional quota) of Unaided Private and Minority Medical Colleges. However, they are eligible for NRI quota seats of Unaided Private and Minority Medical Colleges.**

8.15.2 Foreign national candidates (Except OCI candidates who have received OCI status on or before the 4th March 2021) are not eligible for any seat through this process, in the State of Maharashtra.

8.15.3 **Candidates who have not appeared for NEET-PG 2026 conducted by Competent Authority, Government of India, New Delhi.**

8.15.4 Candidates who are not completing internship on or before 30th September 2026.

8.15.5 Candidates who have not obtained NMC / Maharashtra Medical Council / Other State Medical Council registration before the last date of registration for the CAP round process.

8.15.6 Candidates who had been admitted to PG course through State quota in previous two academic years and has resigned/left/not

joined which **resulted in lapse of a seat**. However, candidates who have paid a penalty as per clause 20.1, 20.2 and 20.7 before start of registration process for A.Y. 2026-27 shall be eligible for admission to A.Y. 2026-27.

8.15.7 Candidates who are previously registered and are pursuing / have completed the PG degree course or have obtained PG degree are not eligible for admission through NEET-PG 2026. This prohibition will apply to Post-graduate admission in Government/ Corporation / Government Aided Medical College(s) only. However, candidates who have completed PG course in one broad specialty is eligible for any other broad specialty only in Private Unaided Medical College(s)as per Hon'ble High Court Order Dated 02/04/2018 in W.P. No.2388 of 2018 and Government of Maharashtra Letter No. WPM-1318/C.R. 122/18 /EDU-2, Dated 27/03/2018.

8.15.8 Candidates who are registered for PG diploma and pursuing the course.

9. There shall be no admission of students in respect of any academic session beyond **cut-off date as prescribed by NMC** for post-graduate courses under any circumstances. The University shall not register any student admitted beyond the said date.

10. The NMC may direct that, any student identified as having obtained admission after the last date for closure of admission be discharged from the course of study or any medical qualification granted to such a student shall not be a recognized qualification for the purpose of The National Medical Commission Act, 2019. The institution which grants admission to any student after the last date specified for the same shall also be liable to face such action as may be prescribed by NMC.

11. ONLINE REGISTRATION, ADMINISTRATIVE FEES, SECURITY DEPOSIT, UPLOADING DOCUMENTS & PREPARATION OF PROVISIONAL MERITLIST

Admission process of **NEET-PG 2026** State Quota Seats will be carried out as per Gazette Notification No. MCI-18(1)/2018-Med./100818, dated 5th April 2018 **(Annexure "Y")**

11.1 The Competent Authority shall issue Notice regarding schedule of online registration and submission of online Application from eligible candidates for the preparation of provisional state merit list for admission to post-graduate courses of state quota seats in State of Maharashtra. Candidate who has appeared for NEET-PG 2026, and desirous for admission to state quota seats of Maharashtra state, should submit online application form which will be made available on website "www.mahacet.org". The

candidates will be required to submit **prescribed online application form (ANNEXURE "H" Specimen Copy of online application). The online Application Form will be common for Government / Corporation / Government Aided and Unaided Private / Minority Institutions and all the seats available under Competent Authority.**

In-Service candidates who wish to seek admission for the post-graduate courses shall apply online at par with other Non In-Service candidates and claim In-service quota. The candidate claiming in-service quota seat must claim in the online application form.

11.2 In-Service candidates may kindly note that online registration and submission of online application of NEET-PG 2026 does not confirm any automatic right to secure a post-graduate seat from In-service quota. The selection and admission are subject to the fulfillment of eligibility criteria as prescribed by concerned establishment i.e. Director of Health Services Government of Maharashtra. Competent Authority shall not be responsible, if such in-service candidates are refused for admission on account of non-eligibility of In-service candidature under In-service Quota.

11.3 Cost of online application form fee of NEET-PG 2026 is Rs. 3000/-. This application fee is **NOT REFUNDABLE**; hence candidates are advised to go through the Information Brochure and ascertain the eligibility before paying fee. It is the sole responsibility of candidate to ascertain online payment of fees within prescribed period, failing which online application will be rejected.

Along with Application form fee of Rs. 3000/-, each and every candidate will have to pay Refundable security deposit as shown in the following table.

Table 1: Deposit for admission through NEET-PG 2026

Type of Candidate	Candidate seeking admission at Govt. Institution (1)	Candidate seeking admission at Govt. or Private Institution (2)
Candidate without constitutional reservation	Rs. 25,000/-	Rs. 1,00,000/-
Candidate with constitutional reservation	Rs. 12,500/-	Rs. 1,00,000/-

Candidate paying deposit as per column (1) will be allowed to fill preferences of Government / Corporation / Government Aided Institutes only. Candidate paying deposit as per column (2) will be allowed to fill preferences of all the institutions i.e. Government / Corporation / Government Aided Institutes and Unaided Private / Minority institutes. Candidate should decide well in advance regarding payment of deposit. No

extension will be allowed for payment of deposit after the last date of registration.

This deposit will be utilized at the end of round 3 and subsequent rounds as described below and as shown in **Table 2**.

Refundable security deposit will be refunded at the end of the admission process of **NEET-PG 2026** to the same account /card of the candidate from which payment had been made. This is applicable to those candidates who have joined the allotted college or if candidate did not get any seat during the entire process of counselling.

Refundable security deposit will be forfeited where:

- a candidate has been allotted a seat in round 3 or subsequent rounds and does not report at allotted college to complete the admission process, or
- a candidate has resigned up to round 3 or subsequent rounds after joining (Including the candidate who has filled SRF in Round 1)
- if the admission gets cancelled due to any reason e.g. in case the candidate gives wrong information at the time of registration on the basis of which a seat may be allotted and later cancelled by the admission authorities at the time of reporting or fails to produce the required documents at the time of admission.

Following conditions will be applied for this refundable security deposit.

Table 2: Scheme of Refundable Security Deposit

Round	**Candidate Status**	**Refundable Security Deposit Status**
Position at the end of round 2 allotment	Candidate Joined either during Round 1 or Round 2	Deposit will be kept as deposit for remaining rounds
	Candidate allotted a seat in Round 2, but did not join the course	Deposit will be forfeited
	Candidate not allotted a seat in Round 2	Deposit will be kept as deposit for remaining rounds
Round 3	Candidate Allotted & Joined during Round 3	Deposit will be transferred to the same account/card of the candidate from which payment had been made at the end of the entire admission process
	Candidate Allotted & not Joined during Round 3	Deposit will be forfeited
	Candidate not allotted a seat in Round 3	Deposit will be kept as deposit for remaining rounds

Online stray vacancy Round	Candidate Allotted & Joined during online Stray vacancy Round	Deposit will be transferred to the same account/card of the candidate from which payment had been made at the end of the entire admission process
	Candidate Allotted & not Joined during online Stray vacancy Round	Deposit will be forfeited
	Candidate not allotted a seat in online Stray vacancy Round	Deposit will be kept as deposit for remaining rounds (if any) or Deposit will be transferred to the same account/card of the candidate from which payment had been made at the end of the entire admission process
If a candidate provides any false information in the application form.		Deposit will be forfeited

If deposit of a candidate is forfeited at the end of Round 2, such a candidate if wishes to participate in Round 3 and further Round(s), he/she will have to register again for Round 3 by paying Application form fee of Rs. 3000/-, and the necessary deposit as stated in the above table again.

11.4 Online application Form will be made available and will be notified in due course by State CET Cell. Before filling Online Application form, candidate should download information brochure of NEET-PG 2026 and read the same carefully. The Applicants must possess the required criteria and educational qualification as mentioned in the Information Brochure of NEET-PG 2026.

Online application form filling process:

The details of online form submission process will be published in Notice and made available on website www.mahacet.org as mentioned below.

'**Apply Online for NEET-PG 2026**' Link will be available on website www.mahacet.org. Click on the above Link.

a) Application form link will be displayed. Click on Application form link.

b) Instruction page will be displayed. Carefully read the Instructions for filling online form **(Annexure "G")**. After reading Instructions, applicant has to click NEXT button to go to actual Online Application form **(Annexure "H" a specimen copy of online application form)**

c) Candidate should fill required information in application form along with active mobile number and email address. Candidate will receive OTP on registered Mobile Number & Email address for facilitating registration for NEET-PG 2026.

d) Candidate should fill all the entries in application form.

e) System will validate required fields before allowing him / her to submit.

f) Before submission of Application Form, the candidate should read carefully the conditions given under "**Declaration by the Candidate.**" Candidate should agree to the below given conditions, before submitting the application form.

"**Declaration by the candidate"**

i) I hereby solemnly and sincerely affirm that each and every statement made and the entire information given by me in the application form is true and correct.

ii) I have not concealed any material information, however if any information submitted herein is found fraudulent, incorrect or untrue. I understand that I am liable to criminal prosecution and I also agree to forgo my seat in Medical Post-graduate course. I also understand that my selection and admission to the course is also liable to be cancelled.

iii) I have carefully read the rules & regulations of NEET-PG 2026 brochure and I agree to abide by them. Hereby accept in entire the legality, validity and correctness of these rules. I understand by submitting this application I have accepted the correctness, validity and/or justifiability of all these and that had I not accepted the correctness and validity of these rules, I would not have submitted this application and further that it will not be open hereinafter to challenge and/or question validity and/ or correctness of any rule or part thereof.

iv) I undertake to submit all the required original certificates at the time of physical document verification process as well as at the time of admission to a course / college as per the rules, failing which I understand that my claim for selection shall not be granted.

If candidates agreed for aforesaid conditions, then only he should click the "I Agree" Button so that his application form will be accepted.

g) During submission the system will ask **"Password"** to the candidate.

h) Eligible Candidate will be able to submit the form. **There is provision to make changes in the Application Form before Click on Submit Button. Candidate should verify the correctness of entries made in application form. There is no provision to make changes in the application form once Submit Button is clicked.**

i) After submission of form candidate has to pay non-refundable online prescribed fee Rs. 3000/- and deposit as per rule no. 11.3 through payment gateway provided for it.

j) Candidate should take printout of Receipt of online fee payment and the deposit.

k) **'Log In'** Link will be available on website **www.mahacet.org** to verify the application Form.

l) Candidate should **login** with Application No. (User Name) and his/her unique password to download the printout of Application Form. Candidate has to preserve the downloaded printout of Application Form for subsequent use.

m) Applicants need not send copy of Application Form or any document to this office.

n) Please note that if you commit any mistake in filling the online Application Form, it cannot be corrected by this office. The office will take no responsibility of any kind for such applications.

Candidate should preserve the:
(i) Receipt of online fee payment.
(ii) Copy of downloaded Online application form
(iii) Downloaded copy of Information Brochure for subsequent use.

o) **Uploading of Documents**: After successful online payment, Candidate has to upload scan copy of required documents in due course before the day of admission.

12. ONLINE DOCUMENT UPLOADING PROCESS & THE LIST OF DOCUMENTS FOR UPLOADING:

12.1 Online document uploading will be on the same website and on his/her username and password.

12.2 Candidate has to upload all the relevant documents along with self-attested copies of the same on this site under following head as listed below.

List of Document

i. Online downloaded Application form of State NEET-PG 2026
ii. Copy of downloaded NEET-PG 2026 Admit Card
iii. Any Photo ID proof (Driving License/PAN Card/Passport)
iv. Copy of downloaded NEET-PG 2026 result/Mark sheet.
v. Nationality certificate or valid passport or School Leaving Certificate of SSC/HSC, indicating the nationality of the candidate as "Indian"

vi. M.B.B.S. Degree/Passing Certificate

vii. Internship Completion Certificate from University / Head of the Institution, or Certificate indicating the date of completion of Internship from the head of the institution. (as per **Annexure – J**)

viii. Permanent/provisional registration certificate of Maharashtra Medical Council or other State Medical Councils in India or NMC.

ix. Certificate from Head of Institute stating that the Medical College / Institute from which the candidate has passed MBBS examination is recognized by NMC/erstwhile Medical Council of India.

x. Medical Fitness Certificate (as per **Annexure – M**)

xi. Copy of Receipt of online fee payment of Rs. 3000/- and deposit.

If applicable...

xii. Caste Certificate

xiii. Caste Validity Certificate.

xiv. Non-Creamy Layer Certificate {for (VJ) DT -A, NT-B, NT-C, NT-D, OBC, SEBC & SBC Candidates} issued by appropriate authority as specified in the Government Resolutions from time to time and should be valid up to 31/03/2027 or later.

xv. EWS candidates should produce eligibility certificate in prescribed format issued by appropriate authority, for academic year 2026-27.

xvi. All India Quota / AIIMS / Central Government Institutes selection letter / letter from Dean/Principal stating that the Candidate was admitted for MBBS under 15% All India Quota of Govt. Medical Colleges / AIIMS / Central Government Institution from All India Entrance Examination. (Refer Rule No.8.3)

xvii. For Persons with disability (PWD) Candidates - Medical Disability Certificate from certificate issuing authority.

xviii. NOC from Directorate of Health Services (for In-service candidates)

xix. Orphan Certificate from appropriate authority.

xx. NRI documents as per "Annexure O"

12.3 **For Constitutional reservation category candidates: Ear-Marking -** Reserved category candidate entitled to admission on the basis of merit in an open category seat will have the option of taking admission either against his/her respective category seat or on an open category seat. If he/she opts for the reserved category, he/she will be deemed to have been admitted as an open category candidate and not as reserved category candidate. One seat in the college where he/she was eligible for admission against open seat shall be earmarked for a candidate belonging to the respective reserved category. Such earmarked seat will be made available immediately to the successive reserved category candidate from the same category merit.

12.4 **Document verification process**

The Candidate will have to report at the allotted center / college with her/his Original Documents for physical document verification or as decided by the Competent Authority. The candidate should report personally **(proxy not allowed)** to the respective allotted Centre / College, for the physical Document Verification or as per decided by the Competent Authority.

Note:

1) Reserved Category candidates who do not have Caste Validity Certificate at the time of online registration process, will be considered as Open merit candidates subject to fulfilling eligibility for open category. However as per Government Resolution no. Misc-2024/C.R 75 (Part – 1) / Reservation – 5 dated 02/07/2026, candidates belonging to SEBC and OBC Category can produce his/her Caste Validity certificate up to six months from the date of application for CVC, failing which his/her admission will stand cancelled and he/she will be responsible for the same and as per Government Circular no. CBC-2025/C.R 131 MVK Dated 04/09/2026, candidates belonging to SC, VJ/DTA, NT-B, NT-C & NT-D Category can produce his/her Caste Validity certificate up to three months from the date of publication of this Government Circular **(Annexure – HH).**
2) (VJ)DT-A, NT-B, NT-C, NT-D, OBC, SEBC and SBC category candidates who do not have Non-Creamy Layer Certificate (valid up to 31/03/2027 or later) at the time of registration process will be considered as Open Merit candidates subject to fulfilling eligibility for open category.
3) EWS candidates who do not have EWS Eligibility Certificate, for academic year **2026-27** at the time of registration process will be considered as open merit candidates subject to fulfilling eligibility.
4) Applicants belonging to SBC: The person belonging to Special Backward Class (SBC) is to be considered as OBC candidate and such candidate will be required to produce Non-Creamy Layer Certificate (valid up to 31/03/2027 or later).

12.5 **Cut-off date for the eligibility**: The eligibility of the candidate shall be determined and/or decided for all purposes including for applicability of all these Rules and Regulations by considering the last date of registration as the cutoff date. It is made abundantly clear that if a candidate is found

ineligible up to the last date of registration process, in terms of these Rules and Regulation, and if such an ineligible candidate acquires the requisite eligibility after the aforesaid cutoff date (i.e. the last date of registration), such subsequent acquisition of eligibility will not make an ineligible candidate eligible for any purpose whatsoever for the purpose of admission.

12.6 **PUBLICATION OF LIST OF APPLICANTS:** On the basis of information submitted by the candidate(s) through online application, a list of applicants for Round 1 and Round 3 will be prepared by the Competent Authority. This list will be published on the website of State CET Cell as per constitutional and/or specified reservation including In-service & Minority Status claimed by the candidate(s). However, the eligibility and final assigned category of candidate(s) will be subject to physical document verification at the time of document verification process.

12.7 **For In-Service candidates:** The list of applicants who are In-Service candidates will be forwarded to the respective establishment to decide the In-service quota eligibility and awarding incentive marks as per rule no 8.14 and clause 9 from P.G. Regulation 2000 of NMC (erstwhile MCI). All the In-service applicants of **NEET-PG 2026** should remain in contact with Directorate of Health Services (DHS) Authority for completing the formalities of Eligibility status of In-service applicants.

13. COMMON STATE MERIT LIST

13.1 After receipt of the additional incentive marks with Eligibility Status of NEET-PG 2026 In-Service candidates as prescribed in clause 9 (IV) & (VII) of PG Regulation 2000 of NMC/ erstwhile MCI from the Directorate of Health Services (DHS) Government of Maharashtra and as per clause 8.14, the Competent Authority will prepare and publish the Common State Merit List for Round 1 and Round 3 on website of State CET Cell as per schedule.

13.2 Grievance period (For correction in application form only): After publication of Provisional Common State Merit list, there will be a grievance period for corrections in the application form. The process for correction during the grievance period will be as prescribed by the Competent Authority. After this Grievance period, the Final Common State Merit List will be published on website of State CET Cell as per schedule. No changes in the application form will be entertained after publishing the final merit list.

14. ONLINE PREFERENCE FILLING PROCESS AND SELECTION PROCESS BY CAP COMPUTERISED ROUND: The details of State Quota seat matrix available for counselling and Schedule of online preference form filling process will be published in due course.

14.1 Admission to post-graduate courses for academic year 2026-27, will be done online by way of filling of the online "Preference Form" on www.mahacet.org (**Annexure- I**). There will not be any offline Preference Form filling process. Eligible merit listed candidates can fill online preference / choice form for Round-1, Round-2, Round-3 and Online Stray Vacancy Round separately. Candidate will be allowed to fill preferences of Government / Corporation / Government Aided and / or Private Unaided / Minority Institutions depending upon the deposit amount the candidate has paid during registration. Seat allocation shall be made centrally at a later date on the basis of NEET-PG 2026 merit in the State of Maharashtra, and preferences exercised by the candidate. The candidate can fill online preference form multiple times before clicking submit button for Round-1, Round-2, Round-3 and Online Stray Vacancy Round. Once submit button is clicked, there is no provision to change the preference(s). For allocation of seat(s) during Round-1, Round-2, Round-3 and Online Stray Vacancy Round(s), preferences filled for Round-1, Round-2, Round-3 and Online Stray Vacancy Round will be considered respectively. **These preferences will not be carried forward for subsequent round(s) except Online Stray Vacancy round preferences, which will be used for selection of subsequent Online Stray Vacancy round(s) if any**. Those candidates who are responsible for lapse of PG seat for last two years are not permitted to apply for online preference filling process. However, candidates who have paid a penalty as per clause 20.1, 20.2 and 20.7 before start of registration process for A.Y. 2026-27 shall be eligible for admission to A.Y. 2026-27.

14.2 There shall be four or more Online CAP rounds of selection of candidates depending on the availability of vacant seats. The selection will be on the basis of merit and the preferences submitted by the candidate(s). The preferences of courses and colleges once entered online shall be final and irrevocable for the respective round. This final data shall be used in selection process of respective round(s).

14.3 **The Subject & College combination code** is a four-digit number with **S or I or N suffix,** specific for each college & Subject combination. Candidate should fill minimum one preference and maximum as desired. It is not compulsory to fill all Preferences. The first two digit of the code indicates specific college / institution and last two digit indicates particular subject and suffix **S** indicates State quota (Government / Corporation Colleges & 50% each in Private Colleges/ Minority Colleges), **I** suffix indicates 35% Institutional quota in Private Colleges/ Minority Colleges and **N** suffix indicates 15% NRI quota in Private Colleges/ Minority Colleges.

Government/Corporation/State quota seats of central Government colleges: All seats will be under State Quota and will have suffix 'S'. In Private and Minority Medical Colleges each preference code will have S/I/N suffix for e.g.:

Code No.	Medical College	Subject Name	Quota
0101S	GGMC, Mumbai	MD Medicine	State
1701S	GMC, Chhatrapati Sambhajinagar	MD Medicine	State
3301S	MIMER Talegoan Pune	MD Medicine	State
3301I	MIMER Talegoan Pune	MD Medicine	Institutional
3301N	MIMER Talegoan Pune	MD Medicine	NRI
3106S	K. J. Somaiya, Mumbai	MS Surgery	State
3106I	K. J. Somaiya, Mumbai	MS Surgery	Institutional
3106N	K. J. Somaiya, Mumbai	MS Surgery	NRI

Candidates are directed to fill the suffix carefully, as the fee structure of each quota is different.

14.4 **For preparing the preferences, the required College Codes & Subject Codes are given in Annexure-B and Annexure-E**. For some of these codes the seat(s) may not be available during Round 1. In the subsequent rounds, some seats may become available on account of increased seats. ***Therefore, candidates who desire to opt for these seats can exercise the preference in the online preference form system for these seats in respective round(s) considering eventuality of availability of such seats in subsequent rounds.***

14.5 The candidate should verify the fee structure of State/ Institutional / NRI Quota Seats prescribed by Fee Regulating Authority, before filling online preferences. The **FEE STRUCTURE** of Private and Minority medical colleges is available on website - www.mahafra.org

14.6 The allotment of seats is based on the Preferences submitted by the candidate for the same college and same subject with the different suffix like 'S'/'I'/'N'.

14.7 It is recommended that candidates who wish to give Preference in same subject in the same college should give preferences considering fee structure in the sequence of first 'S' quota then 'I' quota and finally 'N' quota as per his/her order of Preference.

Note 1: Candidate who is NRI or ward of NRI must claim NRI Status in online application form and should give preferences with suffix 'N'.

Note 2: Candidates who are Not NRI or ward of NRI can give preferences for NRI quota seats in preference form with suffix 'N'. If seats remain vacant after allotting to NRI candidates, then it will be allotted as per merit to any eligible candidate who has given preference(s) for NRI seats with suffix N.

14.8 Candidate should fill his/her most preferred subject and college code as preference no. 1 followed by his next choice as preference no. 2 and so on. While filling the subject and college codes, four-digit number with specific suffix should be entered in five boxes of NEET-PG 2026 preference form.

14.9 Candidate must be very careful while filling the online preference form. Candidate can fill minimum one preference or any desired number of preferences for Round 1, Round-2, Round-3 and Online Stray Vacancy Round of NEET-PG 2026.

14.10 If a candidate does not fill preferences for any of the round(s), i.e. Round-1, Round-2, Round-3 and Online Stray Vacancy Round, then it is assumed that the candidate is not interested in that particular round of selection. No seat will be allocated to such candidate in that round. **Preferences of any of the previous Round(s) will not be carried forward for subsequent round(s) except the preferences filled for Online Stray Vacancy Round which may be carried forward for subsequent Online Stray Vacancy Round(s) if any.**

If a candidate does not give preference for a particular code (Government / Corporation / Private); then it means that he/she is not interested / desiring to take that PG seat. Candidate should note that there will be no change / addition / deletion in his/her list of preferences at later date / stage for that particular round.

14.11 **Selection Process (Refer Table No. 3 – Scheme of admission for State Quota seats NEET-PG 2026)**

14.11.1 For selection to Post-graduate Degree/Diploma course(s), candidates who have cleared NEET-PG 2026 are eligible. All such candidates will have to register during the stipulated period as per the Notice for NEET-PG 2026 admission process for the State Quota seats available with Commissioner State CET Cell. Candidate can register before Round 1 and Round 3. Once registered, that registration will be valid for all subsequent rounds.

14.11.2 There shall be four or more Online CAP rounds of selection of candidates depending on the availability of vacant seats during subsequent round(s). The selection will be on the basis of merit and the preferences submitted by the candidate. Candidate will fill fresh choices for Round-1, Round-2, Round-3 and Online Stray Vacancy Round separately. The choices filled for each round will be valid for that round only. Choices filled for respective round(s) will not be carried forward for any subsequent round(s) except the preferences filled for Online Stray Vacancy Round which may be carried forward for subsequent Online Stray Vacancy Round(s) if any. While filling the online preference(s), candidates may kindly note that NEET-PG 2026 merit list will be operated from NEET-PG 2026 rank number one onwards in each round of selection. The online data of preferences of all candidates will be centrally processed at a later date for the selection of candidates for MD/MS/PG Diploma Courses.

14.11.3 **The selection list will be prepared as per NEET-PG 2026 rank and on the basis of Preferences given by candidates in Preference form.** Based on preferences given, the seats will be allotted on merit and the allotment will be displayed on website of State CET Cell **'www.mahacet.org'.** All the candidates to whom a seat has been allotted in Round 1 on the basis of Merit-cum-Preference will have to join the college and course so allotted, within prescribed period as per schedule by

completing the requisite formalities. (i.e. submission of all original documents and a set of attested photocopies of each document as per the list given in NEET-PG 2026 Information Brochure and payment of requisite fees in respective institution) otherwise his/her selection will stand cancelled for that round.

14.11.4 The list of candidates selected for MD/MS/PG Diploma Courses shall be displayed at the website i.e. **www.mahacet.org** as per schedule. List of selected candidates will also be sent to all concerned colleges. The candidate will have to report at the allotted college with his/her original documents for physical verification and admission. The candidate should report personally **(proxy not allowed)** to the respective allotted college; they should pay requisite fee and submit all original documents at respective allotted college.

14.11.5 **Status Retention:** In case if a candidate to whom a seat has been allotted in the first round and who has joined the college accordingly, is satisfied with the allotment, such a candidate may submit a Status-Retention Form (**Annexure-L**) in the given format on or before the prescribed date with the Dean/Principal of the College where such a seat has been allotted to such a candidate. The Dean/Principal of every Medical College in which admissions are so made in terms of these rules, may appoint an appropriate Officer to receive such Status Retention Forms. Upon receipt of such Status Retention Forms, an acknowledgement in writing shall be issued immediately to the concerned candidate(s) by the officer appointed by the Dean/Principal of the concerned college. It is mandatory for every such candidate submitting a Status Retention Form to insist for issuance of acknowledgement thereof and to preserve such acknowledgement till the present admission process is finally concluded. In absence of such an acknowledgement, the claim of submission of Status Retention Form within the prescribed time shall not be entertained. Candidate who has submitted status retention form will not be eligible for remaining subsequent round(s).

It is hereby made clear that the period provided for submission of Status Retention Form is crucial and vital. This period shall not be extended for any reason whatsoever. Submission of the Status Retention Form is an irrevocable and irreversible act for the candidate submitting such Status Retention Form. It is made clear that under no circumstances whatsoever, a candidate will be allowed to submit a Status Retention Form after the aforesaid last date. Under any circumstances whatsoever, a candidate who has submitted a Status Retention Form shall not be allowed to withdraw the same. All the candidates therefore, should take the note of this before submission of such a Status Retention Form.

Names of all the candidates who have submitted the Status Retention Form as above within the prescribed time and the seats occupied by them will be removed out of consideration for the remaining admission process for academic year 2026-27. Candidate joined during Round-1, and fills Status Retention form will be considered as Status Retention during Round-2 and "Free Exit" available for Round-1 selected candidates will not be applicable for such candidate.

It is hereby made abundantly clear that shifting on account of a better choice given by a candidate in Round-2, will be affected only and only if such a candidate is found entitled for 'change of Course' or a 'change of College'. Mere possibility of a 'change in category' on account of availability of seat in the same college and/or same course in Round-2 will not amount to "betterment" as such and therefore, no shifting will be affected in such an eventuality. Such a 'change in category' will include inter-alia change from reserved category to open category or vice-versa. The shift in such betterment shall be compulsory and mandatory for Round-2, except those who have filled Status Retention Form. Once status retention is submitted then there is no provision to withdraw or cancel the status retention.

14.11.6 All the institutions should inform the joining of the candidates and vacancies arising due to non-joining of the candidates and cancellations/status retention at their institutions after the last date of reporting of respective rounds, immediately to Maharashtra State CET Cell through online College feedback module.

The academic year will start as per the guidelines from NMC.

14.11.7 **Round-1 Process:**

If the candidate joins his/her Round-1 seat and wants to upgrade his/her allotted seat, then he/she shall NOT fill Status Retention Form and will have to fill fresh choice(s) for Round-2.

If a Candidate joins and is satisfied with the seat allotted in Round-1 and is not willing for up-gradation in Round-2, he/she can fill Status Retention Form. Such a candidate will not be considered for any of the further round(s) during the admission process of NEET-PG 2026. However, such a candidate can resign from the allotted seat before the prescribed/stipulated date and avail free exit (available only in Round-1). Such a candidate will be eligible for Round-2.

If the candidate is selected in Round-1 of counselling and does not report at the allotted institute, this will be considered as 'free exit' (option available only in Round-1). No new registration is required. However, such a candidate may participate again in Round-2 after logging in with his/her earlier Registration details and filling fresh preference(s). His/her selection of Round-1 stands cancelled. The seat so allotted, to such a candidate who does not join, will be presumed to be a vacant seat as on the last date of joining and such a vacant seat will be allotted in Round-2 of the admission process.

14.11.8 **Round-2 Process**:

Available Seats for Round-2:

i. Seats not allotted during Round-1.
ii. Seats vacant due to non-joining / cancellation by candidate(s) allotted in Round-1.
iii. Seats available due to up-gradation of candidate(s), who have been allotted during Round-1 and joined the seat.

Following types of Candidates are eligible for seat allotment in Round-2:

a) Registered candidates who did not fill choices in Round-1.
b) Registered candidates who participated in Round-1 but did not get any seat allotted in Round 1.
c) Registered candidates, whose seat allotted in Round 1 got cancelled during the document verification due to his/her invalid/wrong claim on reporting for admission to the selected Institute, but candidate is otherwise eligible for selection with change in the invalid/wrong claim. For such a candidate, selection during first round will not be valid and he/she will be eligible only on available seats during Round 2 with corrected claim.
d) Candidates who have reported/joined at allotted institute during the joining period of Round-1 of allotment and have not filled Status Retention Form.
e) Candidate who does not join the allotted seat during Round-1.
f) Candidate who has joined and resigned up to the last date of joining for Round-1.

Candidate(s) will have to fill fresh choices for Round-2. Round-1 choices will be considered as null & void. If a candidate is not interested to participate in Round-2, he/she should not fill preferences for Round-2 and such a candidate who has joined during Round-1, will retain his/her Round-1 seat.

The allotment of seat for Round-2 will be as per the merit and preference(s) filled by the candidates for Round-2.

- **If a candidate joined during Round-1, is upgraded in Round-2, his/her allotted seat of Round-1 will be available in Round-2 and allotted as per merit in the same round. It is mandatory for the candidate to join the seat allotted in Round-2.**
- **If a candidate joined during Round-1 and does not get upgraded in Round-2 (no seat is allotted during Round-2), he/she will retain allotted seat of Round-1. Such a candidate will not get free exit after allotment of Round-2.**
- **Candidate with no seat in hand at the end of Round-2, will be eligible for further Round(s).**
- **Candidate allotted a seat during Round-2, if does not join the allotted seat, such a candidate will not be eligible for subsequent**

round(s) and his/her deposit will be forfeited. If such a candidate wishes to apply for Round 3, he/she will have to register again by paying online registration fee and deposit as per rule no. 11.3.

Following types of Candidates are not eligible for seat allotment in Round-2:

- Candidates who have joined Round-1 allotted seat and filled Status Retention Form.
- Candidates who have not filled fresh preferences.

If a candidate is selected during Round-2, he/she will have to join the college / seat allotted during Round 2.

- If a Candidate joins and is not satisfied with the seat allotted in Round-2 and is willing for up-gradation in Round-3, he/she **SHOULD NOT** fill the Status Retention Form. Such a candidate will have to fill fresh preferences for Round 3 but fresh registration will not be required.
- If a Candidate joins and is satisfied with the seat allotted in Round-2 and is not willing for up-gradation in Round-3, he/she can fill Status Retention Form. Such a candidate will not be considered for any of the further round(s) during the admission process of NEET-PG 2026. However, if such a candidate resigns from the allotted seat before the prescribed/stipulated date, his/her deposit will be forfeited. If such a candidate wishes to apply for Round 3, he/she will have to register again by paying online registration fee and deposit as per rule no. 11.3.
- If a candidate does not join the selected seat during Round-2, he/she will not be eligible for further round(s) of selection and his/her deposit will be forfeited. If such a candidate wishes to apply for Round 3, he/she will have to register again by paying online registration fee and deposit as per rule no. 11.3

14.11.9 **Round 3 Process:**

Available Seats for Round 3:

i. Seats not allotted during Round-2.
ii. Seats vacant due to non-joining / cancellation by candidate(s) allotted in Round-2.

Following types of Candidates are eligible for seat allotment in Round 3:

a) Registered candidates who did not fill choices in Round 1 & Round 2.

b) Registered candidates who participated in Round 1 & Round 2 but did not get any seat allotted in Round 1 & Round 2.
c) Candidates who have joined in Round 2 but have not filled Status Retention Form
d) Candidates who have registered in Round 3.

Candidate(s) will have to fill fresh preferences for Round 3. All previous preferences will be considered as null & void. Seats remained vacant on account of non-availability of candidates for PWD quota, In-service quota and Orphan quota will be allotted to eligible candidates during Round 3 process as per **NEET-PG 2026** Information Brochure rules. Accordingly, the Candidates are required to keep this aspect also in mind while filling up the preference(s) for Round 3.

Candidates not eligible for Round 3:

- Candidates who have joined seat up to Round 2 and have filled Status Retention Form in State Counselling process.
- Candidates who have joined seat in Round 1, Round 2 and Round 3 of All India Quota seats.

If a candidate is selected during Round 3, he/she will have to join the college / seat allotted during that round. Candidate selected during Round 3 will not be eligible for subsequent Online Stray Vacancy round(s) of State Counselling Process.

After the allotment of seat in Round 3 the candidate will not be eligible to participate in any further rounds of State Counselling Process. Names of joined candidates up to Round 3 will be informed to MCC.

14.11.10 **Online CAP Stray Vacancy Round Process:**

After Round 3, subsequent Online Stray Vacancy Round(s) will be conducted if seat(s) remain vacant.

Available Seats for Online CAP Stray Vacancy Round:

- Seats not allotted during Round 3.
- Seats vacant due to non-joining of candidate(s) allotted in Round 3.

Eligible Candidates:

- Candidates who have registered & filled online preference form previously but not been allotted a seat till Round 3.

Candidates not eligible:

- Candidates who have joined seat in Round 1, Round 2 and

hold a seat up to Round 3 and freshly allotted a seat in Round 3.

- Candidates who have joined and hold a seat up to Round 3 of All India Quota process.

Note –

- No new registration will be done for this Round.
- **Candidate will have to fill fresh choices for CAP Online Stray Vacancy Round. Same preferences will be utilized for subsequent CAP Online Stray Vacancy Round(s) if any.**
- Allotment of seat will be done Online by running software.

14.11.11 **As per National Medical Commission Circular No. N-P018(20)/5/2023-PGMEB-NMC/044351, dated: 24/07/2023, there will not be Institutional Level Stray Vacancy Round for Medical Post-graduate Courses. All the admissions of Medical Post-graduate courses will be done by Online CAP Rounds only. (Annexure – EE)**

14.12 **In-Service vacant seats**: If these seats become available, will be filled by State CET CELL as per rules of state quota. For filling these seats, no fresh preference(s) will be called from the candidates. These seats will be added to the seat matrix and allotted as per the preferences (choices) already exercised by the eligible candidate(s) during online preference filling system for Round 3 and subsequent Online Stray Vacancy round(s).

14.13 **PWD vacant seats:** If the seats reserved for the person with disabilities in a particular category remain unfilled on account of unavailability of candidates the seats shall be included in the annual sanctioned seats for the respective category and allotted as per the preferences (choices) already exercised by the eligible candidate(s) during online preference filling system for Round 3 and subsequent Online Stray Vacancy round(s).

14.14 **Orphan vacant seats:** If the seats reserved for Orphan in a particular category remain unfilled on account of unavailability of candidates the seats shall be included in the annual sanctioned seats for the respective category and allotted as per the preferences (choices) already exercised by the eligible candidate(s) during online preference filling system for Round 3 and subsequent Online Stray Vacancy round(s).

Table No. 3: Scheme of admission for State Quota seats NEET PG 2026
For Govt and Pvt Institutions – Selection for each CAP round will be online

Sr. No	Filling of Online Application form	Round	Preference form filling	Seat Matrix	If a seat is allotted		If a seat is not allotted
					Status of joined candidates for next/future rounds	Status of not joined candidates	
I)	**Application form I**	• Declaration of list of applied candidates • Declaration of Merit list of applied candidates along with category					
	Application form fee: Rs. 3000/- and deposit as per rule no. 11.3	CAP Round 1	Filling of Online preference form I	All available seats	• Not Filled SRF#: eligible for Round 2, need to fill Online Preference form II • SRF Filled: Not eligible for Round 2 • Resigned after joining up to prescribed date: eligible for Round 2, need to fill Online preference form II	Eligible for round 2, need to fill Online preference form II	Eligible for round 2, need to fill Online preference form II
		CAP Round 2	Filling of Online preference form II • Mandatory to fill Online preference form II, if candidate wish to participate in Round 2. • Preferences from Online preference form I will not be carried forward.	SRF seats excluded	• Not Filled SRF: Eligible for further rounds, need to fill Online Preference form III • SRF Filled: Not eligible for Round 3 • Resigned up to prescribed date of 2nd round after joining (Including the candidates who have filled SRF in Round I): Deposit will be forfeited. If wish to participate in further rounds, need to do fresh registration with payment of application form fee & deposit as per rule no. 11.3. Need to fill Online Preference form III	Deposit forfeited & not eligible for further rounds. If wish to participate in further rounds, need to do fresh registration with payment of application form fee & deposit as per rule no. 11.3. Need to fill online preference form III.	Eligible for Round 3, no fresh registration required for such candidates. Need to fill online preference form III.

- If a Seat is allotted during Round 1 & joined during Round 1, such a candidate if fills Online Preference form II and if no seat is allotted in round 2, then candidate is holding Round 1 seat, such a candidate will be eligible for further rounds. If wish to participate in further rounds, he shall fill fresh preferences of Round 3.
- Candidate joined during round 1 and not filling Online Preferences form II will be having status of round 1 at the end of round 2. Will be eligible for further rounds. If wish to participate in further rounds, he shall fill fresh preferences of Round 3.

 # SRF: Status Retention Form

II)	**Application form II**	• Filling of online application form for fresh candidates, and those who have resigned allotted seat upto prescribed date of round 2 after joining/Not reported upto Round 2 and wish to participate in further rounds • Declaration of list of applied candidates. • Declaration of combined Merit list which includes eligible Application form I and Application form II candidates					
	Application form fee: Rs. 3000/- and deposit as per rule no. 11.3	CAP Round 3 (Candidate whose name appears in the list of joined candidates at the end of Round 3 for AIQ seats are Not Eligible for this round & further rounds)	Filling of Online preference form III for all candidates (Application form I and Application form II) • Mandatory to fill Online preference form III, if candidate wish to participate in Round 3.	SRF seats excluded	• Joined: Not eligible for any further rounds • Resigned after joining Round 3: Not eligible for any further rounds. • Lapse of seat due to Resignation after joining Round 3 seat: Liable for penalty as per Rule no. 20 and not eligible for any further rounds. • Candidate whose name appears in the list of joined candidates at the end of Round 3 will be communicated to MCC	Deposit forfeited & Not eligible for further rounds	Eligible for further round(s). Need to fill Online preference form IV
Online Stray Vacancy Round(s) for Government / Corporation / Government Aided Institutions & Private Unaided / Minority Institutions							
		CAP Online Stray Vacancy Round(s)	Filling of Online preference form IV • Mandatory to fill Online preference form IV, if candidate wish to participate in Online Stray Vacancy Round. • Preferences from Online preference form III will not be carried forward.	Seats with joined status excluded	• Joined: Not eligible for further rounds (if any) • Resigned after joining Stray Vacancy round seat: Liable for penalty as per Rule no. 20 and not eligible for further rounds (if any)	Not eligible for further rounds (if any) liable for penalty as per Rule no. 20 and not eligible for further rounds (if any)	Eligible for further rounds (if any)
• No New Registration / Payment option for Online Stray Vacancy Round • Allotment of seats 'Online" by running software • Eligible candidates who are not holding any seat can only participate in Online Stray Vacancy Round(s)							

15. SEAT DISTRIBUTION CHART:

15.1 The seat distribution of State quota seats for Government/Corporation/ Central Government Institutions / Unaided Private and Minority medical colleges (excluding All India quota) for NEET-PG 2026 as per information submitted by college will be made available on website www.mahacet.org.

15.2 The seats reserved for person with disability (PWD) candidates and In-service quota seats will be shown in the chart. The college-wise, subject-wise and category-wise seat distribution also will be available on website. It should be noted that eligible category candidates can avail open seat by virtue of merit. Category seats, if at all remain unclaimed by a particular category candidate, are made available to other categories & to open category candidates as per inter-se category round procedure.

Seat distribution chart is subject to change as per instructions of NMC / Transfer of PG Teacher / affiliation from university etc.

15.3 All the Courses are affiliated to The Maharashtra University of Health Sciences, Nashik except Post-graduate Courses at Tata Memorial Hospital & BARC, which are affiliated to Homi Bhabha National Institute (HBNI) Mumbai (Central Deemed University).

15.4 **Person with disability (PWD):**

15.4.1 As per Medical Council of India, New Delhi amendment notification No: No. MCI-34(41)/2018-Med./170045 dated 5th February, 2019, five (5%) seats of annual sanctioned intake capacity shall be filled up by candidates with specified benchmark disabilities contained in the schedule to the Rights of Persons with Disabilities Act, 2016. The guidelines for admission of persons with Specified Disabilities published by Medical Council of India, New Delhi regarding PWD eligibility from time to time will be applicable (**Annexure – D**).

The specified disability categories as mentioned in the rights of persons with Disability Act 2016 are as follows.

1. Physical disability
2. Intellectual disability
3. Mental behavior disability
4. Disability caused due to chronic illness
5. Multiple disabilities

15.4.2 Candidate should have marked as PWD in the online NEET-PG application form, failing which claim will not be granted. Candidate is required to submit the proof of his/her disability by way of a certificate issued by certificate issuing authority i.e. one

of the specified boards as declared by MCC in the year 2026. Certificate issued by any other authority will not be accepted.

15.4.3 **Instructions to Person with Disability Candidates:** All qualified Persons with Disability PWD (PH) Category Candidates of **NEET-PG 2026** are advised to get themselves examined at any one of specified Medical Board as declared by MCC to obtain Disability PWD (PH) Certificate in advance. Candidates, who have attended any one of these Medical Boards, should submit / upload the disability certificate as per the prescribed format during online uploading of certificates for document verification process. The list of medical examination boards will be declared on website of State Cet Cell.

15.5 Constitutional reservation in all the Government/Municipal Corporation colleges and State quota seats of Central Government and Government Aided Institution and colleges / Unaided private Medical Institutions will be as per NEET-PG 2026 Information Brochure.

16. Fees: -

I) The fees for Government and Municipal Corporation Medical Colleges for Academic Year **2026-27** is as below according to:

- GR. No. AMC-1007/628/CR.148/07/Edu-02 Mantralaya Dated 1st March, 2011
- Director Medical Education & Research Letter No. DMER-11011/9/2022-CETIT dated 06/06/2023 **(Annexure – GG)**
  - Tuition fees Rs. 1,67,300/- per year + (development Fee 5,000)
  - Admission fees Rs. 1,500/-
  - Gymkhana fees Rs. 500/-
  - Hostel fees Rs. 4,000/- per year

II) The Fees for Central Government Institutions, who have opted for post-graduate admission process, are as follows:

Sr. No.	Name of the College/Institution	Fees For Academic 2026-27	Remark
1	All India Institute of Physical Medicine and Rehabilitation, Haji Ali Park, K. Khadye Marg, Mahalaxmi, Mumbai.	University fees as per MUHS fees and Rs.10,000/- as refundable deposit	Penalty for non-Completion of course & Lapse of PG seat Rs.20,00,000/-
2	Tata Memorial Centre, Parel.	Total fee 1,05,500/-	Penalty for lapse of seats Rs 10,00,000/- & Bond: 1 year/25 lakhs
3	Bhabha Atomic Research Centre, Anushakti Nagar.	Total fee 75,500/-	
4	Mahatma Gandhi Institute of Medical Sciences, Sevagram, Dist. Wardha.	Total fee 4,95,250/-	Penalty for non-Completion of course & Lapse of PG seat Rs.20,00,000/- & 1 year bond or Rs.50,00,000/- Bond penalty

III) The fees for Unaided Private and Minority medical colleges for Post-graduate admissions through NEET-PG 2026 is as decided by Fee Regulating Authority. (Subject to revision by the Fee Regulating Authority). **For fees of Private and Minority Medical Colleges, refer to** www.mahafra.org.

17. CONDITIONS TO BE SATISFIED BY CANDIDATE AFTER SELECTION:

17.1 A candidate will have to pay the prescribed fees (i.e. tuition + deposit + others) in the form of separate Demand Drafts from any Nationalised or Scheduled Commercial Bank or other instruments as prescribed by Competent Authority from time to time, (One for tuition fees and another for other fees) in favor Dean/Principal of concerned institution. He/she must deposit all relevant original certificates / documents in the concerned institution.

The fees for Government and Municipal Corporation Medical Colleges, Central Government Institutions / Medical Colleges who opt for Post-graduate admission to PG courses through NEET-PG 2026 is as prescribed by Government from time to time.

17.2 The candidate will have to work as a Resident, under the Residency scheme, prescribed vide GR No.MED-1059/2116/CR-10/96/EDU, dated 31st Jan. 1996 and as amended from time to time. The candidate should have permanent MMC / NMC registration.

17.3 **District Residency Programme:** As per "Post-Graduate Medical Education Regulations, 2023", All post-graduate students pursuing M.D./M.S. in broad specialties in all medical colleges/institutions under the purview of the National Medical Commission shall undergo a compulsory residential rotation of three months in District Hospitals/ District Health System as a part of the course curriculum. Such rotation shall take place in the 3rd or 4th or 5th semester of the post-graduate programme. In the case of those students who have taken admission after completion of the Diploma in the relevant Speciality, the District Residency Programme shall take place in the third semester only. Similarly, the post-graduate diploma students shall undergo the District Residency Programme in the third semester. This rotation shall be termed as 'District Residency Programme' (DRP) and the post-graduate medical student undergoing training shall be termed as a 'District Resident'

18. CANCELLATION AND REFUND:

18.1 Candidate who has confirmed his/her admission may cancel it on or before prescribed date which will b**e declared by Competent Authority, by submitting** an application to the concerned Dean/Head of the institution. **(As per Annexure-K).**

18.2 Refund of fees by the college after change of college, course or cancellation of admission:

a) On or before prescribed date Rs. 1500/- (Rs. One Thousand Five Hundred only) to be deducted and rest of the fees to be refunded.

b) After prescribed date - No refund.

18.3 **If a candidate expires** or becomes unfit to undergo PG course as per NMC Norms and decided by notified Medical Board within 3 months from the date of admission, full refund shall be made.

19. CONDUCT AND DISCIPLINE:

19.1 Failure of the candidate in making full and correct statements in the application form and/or suppression of any information would lead to disqualification of the candidate, even at later date. Such a candidate will be debarred from the entire selection process.

19.2 It is responsibility of every candidate to submit proper documents. Any attempt to submit documents which are not genuine will lead to cancellation of the admission of the candidate, forfeiture of the fees, deposits and expulsion of the candidate from the college by the Competent Authority or by his authorized official. The name of such candidate(s) shall be deleted from the State Merit List and he/she will not be eligible for further rounds of the selection process and will be debarred from the selection process. If deemed fit even criminal proceeding may be initiated by the Competent Authority against such candidates/ their parents.

19.3 If any candidate / authorized representative or person accompanying is found obstructing the counselling and / or admission process, or trying to influence in unlawful manner/creating nuisance, the candidate shall be liable for disqualification from the process of selection and appropriate legal action will be taken. The decision taken by the Competent Authority in this respect shall be final and binding.

19.4 The admission once granted is valid only if the allotted Post-graduate teacher and the Dean are satisfied about regularity, diligent pursuance of studies by the student as well as good conduct.

19.5 All candidates selected for admission shall be subject to the disciplinary rules of the Institution, MUHS, Nashik, NMC and Government.

19.6 Concerned admitting University shall take the decision regarding eligibility, enrollment and registration and granting of the term of selected candidates. The selection of a candidate by the Competent Authority at a later date does not place any onus to accord approval for grant of term.

19.7 Canvassing directly or indirectly for the allotment of seat would disqualify the candidate for admission. Influencing the staff by unfair means, will lead to cancellation of allotted seat and such candidate will also face disqualification for admission during next academic year.

19.8 A candidate selected for post-graduate course will not be allowed to change subject/college/institute on mutual basis as per the NMC rules / MUHS regulations.

19.9 In case of dispute in the matter of allotment of seat / course / institution or any other matter pertaining to the provisional selection or cancellation of admission, the decision of the Competent Authority shall be final and binding.

19.10 All the terms and conditions of Unaided Private / Minority Medical Colleges will be applicable and mandatory to follow by the selected candidate.

19.11 Before submitting the online preference form the candidates should go through the **website** of every **unaided private / Minority Medical College,** to know about their terms and conditions for admission.

19.12 **Legal Jurisdiction:** All disputes pertaining to the conduct of examination and selection process shall fall within the jurisdiction of courts in Mumbai only.

20. PENALTY & SOCIAL RESPONSIBILITY SERVICE:

For Government / Corporation / State quota of central Government Colleges.

20.1 Candidate who has joined for post-graduate course either through All India Post-graduate quota or through NEET-PG 2026 state quota should complete Junior residency tenure, failing which he/she will be required to pay non-refundable Rs. 10,00,000/- (Rupees Ten Lacs Only) for non-completion of Junior residency tenure. However, this is not applicable to the candidates of NEET-PG 2026 resigning the PG admission before prescribed date, which will be notified in due course.

20.2 Any candidate admitted either through All India Post-graduate quota or through NEET-PG 2026 state quota responsible for lapse of post-graduate medical seat will have to pay non-refundable additional penalty of Rs. 10,00,000/- (Rupees Ten Lacs Only). Such candidate will not be eligible for admission through State Quota for subsequent two academic years, i.e. NEET-PG 2027 & 2028.

20.3 The selected candidates who do not report or do not join their allotted seat in the last round of the admission process thereby resulting in lapse of seat, shall not be eligible for admission for subsequent two years i.e. NEET-PG 2027 and NEET-PG 2028 admission process.

20.4 As per Government Resolution (G.R. No. MED 1010/CR-184/10/Ed-2, dated: 28th May 2010, and any G.R issued in this regard from time to time), candidate joining seat of Government / Municipal Corporation colleges for admission to Post graduation Courses either through All India Post-graduate quota or through NEET-PG 2026 state quota will be required to sign a bond to serve the Government of Maharashtra or local self-government or Defence services for a period of one year **(Social responsibility service)**, failing which he/she will be required to pay Rs. 50,00,000/- (Rupees Fifty Lacs only) for the default.

20.5 The candidates who have passed post-graduate MD/MS/Diploma from Government / Corporation colleges, have to complete social responsibility service (bond) from either of the institution i.e. Government of India or its undertaking institute (situated within Maharashtra State) / Defence services / Maharashtra State services or its undertaking / local self-government bodies and their undertaking situated in the state of Maharashtra as per MEDD G.R. No. CET 3518/C.R.32/18/Edu-2, Dated: 29/01/2018 **(Annexure - V).**

As per MEDD G.R. No. MED1020/CR90/20/EDU-2, dated: 26/09/2022, In-service candidates who have completed the post-graduate course on reserved In-service quota seat will have to complete one-year compulsory social responsibility service (bond) in any Government Medical College in the State of Maharashtra in addition to the Bond service applicable to such candidates under Directorate of Health Services **(Annexure – U)**.

20.6 As per Government Circular No. CET 3518/C.R.182/18/Edu-2, Dated: 19/05/2018 Private Unaided Medical Institution(s) shall not demand Bank Guarantee equivalent to the fee amounting to next academic year(s) at the time of admission and Bond Service shall not be imposed after completion of Post-graduate course from the admitted candidates by Private Unaided Institutions **(Annexure - X).**

20.7 Any candidate resigning a seat from Unaided Private / Minority Medical College after the prescribed date will have to pay three year's fees as a penalty.

21. Any issue not dealt here-in above will be dealt with, when arising, fully and finally by the Competent Authority. Any amendment made by NMC / erstwhile Medical Council of India (MCI) / Central Government / State Government / Hon'ble Supreme Court and Hon'ble High Court from time to time, will be implemented.

*** *** ***

ANNEXURE "A"

DEFINITIONS

Unless the context other requires,

(a) **"Act"** means the Maharashtra Unaided Private Professional Educational Institution (Regulation of Admissions and Fees) Act, 2015 and (Amendment) Act, 2026;

(b) **"Competent Authority"** means the Commissioner of State CET appointed by the Government under section 10, for conducting CET through **CAP** for the admissions into Private Professional Educational Institutions;

(c) **"Admission Reporting Institution"** means an institution where the Candidate shall report for confirmation for admission by submission of documents and payment of fees;

(d) **"Application Form"** means the Online Application Form, as may be specified by the Competent Authority and required to be filled up by the candidates for admission to the Courses as defined in clause (g);

(e) **"CAP Seats"** means the seats filled in through the Centralized Admission Process carried out by the Competent Authority;

(f) **"Common Entrance Test (CET)"**, means the eligibility-*cum*-ranking examination prescribed as the single central entrance examination, known as the National Eligibility-*cum*-Entrance Test (NEET-PG) or the National Eligibility-*cum*-Entrance Test (NEET-MDS), conducted by the National Board of Examinations under section 14 of The National Medical Commission Act, 2019 (No. 30 of 2019) or section 14 of The National Dental Commission Act, 2023 (No. 21 of 2023), respectively, for the purpose of admissions to MD or MS or Post-graduate Diploma and MDS or Post-graduate Diploma Professional Educational Courses as the case may be;

(g) **"Courses"** means the full time Professional Post Graduate Medical and Dental Courses, as the case may be, conducted in the State of Maharashtra as per the approval of the National Medical Commission (NMC) or the National Dental Commission (NDC) and affiliated to the concerned University;

(h) **"Eligible Candidates"** means the candidates who are eligible for admission to Courses as defined in clause *(g)*;

(i) **"EWS"** means Economically Weaker Section include person who are not covered under the scheme of reservation for SCs, STs, and OBCs and whose family has gross annual income below Rs. 8,00,000/- as per Government resolution of General Administration Department ROD-4019/C.R 31/ 16-A Dated 12 February 2019;

(j) **"Foreign Medical Graduate"** shall have the same meaning as defined in the National Medical Commission (Foreign Medical Graduate Licentiate) Regulations, 2021;

(k) **"Foreign Student"** means a student who is not a citizen of India;

(l) **"Internship"** means the compulsory rotating internship to be completed as per rules or regulations of the National Medical Commission (NMC) or the National Dental Commission (NDC) and the Maharashtra Medical Council (MMC) or the Maharashtra State Dental Council (MSDC) and the concerned University, as the case may be;

(m) **"Inter-se-Merit"** means the order of merit in respect of various classes, categories and candidature types, determined on the basis of the NEET-PG or NEET-MDS ranking in accordance with these rules;

(n) **"Institutional Quota"** means the seats available for admission in accordance with the percentage specified in the Schedule, which are to be filled on all India rank basis by the Competent Authority from amongst the eligible candidates including Outside Maharashtra Candidates, Non-resident Indians, Overseas Citizens of India and Foreign Medical Graduates as declared by the State Government or the appropriate authority, from time to time;

(o) **"Minority Educational Institution"** means a Private Professional Educational Institution notified as such by the State Government, established and administered for and by the persons belonging to the minority community, domiciled in the State of Maharashtra, having a right to do so under clause (1) of article 30 of the Constitution of India;

(p) **"Management"** means the managing committee or the governing body, by whatever name called, of the Private Professional Educational Institution to which the affairs of such Institution are entrusted and where such affairs are entrusted to any person, by whatever name or designation called, includes such person;

(q) **"Minority Quota"** means the seats earmarked in the minority institution for the students belonging to the respective Minority Community within the State;

(r) **"MUHS"** means the Maharashtra University of Health Sciences established under sub-section (*1*) of section 3 of the Maharashtra University of Health Sciences Act, 1998 (Mah. X of 1999);

(s) **"Nodal Officer"** means the Director of the Medical Education and Research;

(t) **"Non-Resident Indian (NRI)"** "Non-Resident Indian (NRI)" shall have the same meaning as assigned to it under the Income Tax Act, 2025 and has been issued a Non-Resident Indian certificate accordingly by an Indian Mission or Post abroad and includes his child or ward as defined in the Guardians and Wards Act, 1890;

(u) **"Orphan"** means a child— (i) who is without biological or adoptive parents or legal guardian; or (ii) whose legal guardian is not willing to take, or capable of taking care of the child; as defined in Juvenile Justice (Care and Protection of Children) act 2015;

(v) **"Overseas Citizen of India (OCI)"** means a candidate or a person registered as an Overseas Citizen of India as declared by the Central Government under section 7A of the Citizenship Act 1955, and includes Persons of Indian Origin (PIO).

(w) **"Private Professional Educational Institution"** means any college, school, institute, institution or other body, by whatever name called, conducting any professional course or courses approved or recognized by the appropriate authority and affiliated to any university, but shall not include,

i. any such institution established, maintained or administered by the Central Government, any State Government or any local authority;

ii. institution declared to be a deemed university under section 3 of the University Grants Commission Act, 1956; or

iii. a university to which the provisions of the University Grants Commission (Establishment and Maintenance of Private Universities) Regulations, 2003 are applicable;

iv. any private health sciences university established under "The Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (No. VIII of 2024) & The Maharashtra Private Universities (establishment and regulation) (third amendment) Act 2026 (No XXX of 2026)"

(x) **"Professional Education"** means any educational course of study declared and notified as such, from time to time by the Government which includes a course leading to the award of an Under Graduate or Post-Graduate degree, diploma, by whatever name called and recognized by the appropriate authority;

(y) **"Registration"** means the registration of the qualification either with the NMC or the NDC or the Maharashtra Medical Council (MMC) or the Maharashtra State Dental Council (MSDC) or any other State Medical or Dental Council, as the case may be, after completing one year compulsory rotating internship;

(z) **"Regulating Authority"** means the Admissions Regulating Authority under section 7 or the Fees Regulating Authority under section 11, as the case may be;

(aa) **"Regulations"** means the regulations framed by the Regulating Authorities;

(bb) **"Sanctioned intake"** means the total number of seats sanctioned or approved by the appropriate authority for admitting candidates in a single academic year in each professional course of study or discipline in a Private Professional Educational Institution at the appropriate level of entry;

(cc) **"SEBC"** means Socially & Educationally Backward Classes;

(dd) **"Unaided Institution"** means Private Professional Educational Institution, which is not receiving aid or grant-in-aid from the Central Government, the State Government or the local authority;

(ee) **"University"** shall have the same meaning as assigned to it in clause (f) of section 2 of the University Grants Commission Act, 1956;

ANNEXURE "B"

LIST OF DEGREE / DIPLOMA POST-GRADUATE MEDICAL COURSES
WITH CODE NUMBER

Sr. No.	Subject	Code Number
1.	MD Medicine	01
2.	MD Dermatology, Venereology & Leprosy/DVL	02
3.	MD Chest & TB/Respiratory medicine	03
4.	MD Psychiatry	04
5.	MD Paediatrics	05
6.	MS Surgery	06
7.	MS Orthopedics	07
8.	MS E.N.T./Otorhinolaryngology	08
9.	MS Ophthalmology	09
10.	MD Radiology/Radiodiagnosis	10
11.	MD Anesthesia	11
12.	MS OBGY	12
13.	MD Radiotherapy/Radiation Oncology	13
14.	MD Anatomy	14
15.	MD Physiology	15
16.	MD Pharmacology	16
17.	MD Microbiology	17
18.	MD P.S.M./Community Medicine	18
19.	MD Forensic Medicine	19
20.	MD Pathology	20
21.	MD Biochemistry	21
22.	MD Transfusion Medicine/ Immuno Haematology & Blood Transfusion	22
23.	MD Physical Medicine & Rehabilitation	23
24.	MD Palliative Medicine	24
25.	MD. Nuclear Medicine	25
26.	MD. Emergency Medicine	26
27.	MD. Geriatrics	27
28.	D.V.D.	28
29.	D.P.M.	29
30.	D.C.H.	30
31.	D.M.R.D.	31
32.	D.M.R.T. /D. Medical Radiotherapy	32
33.	D.A.	33
34.	D.G.O.	34
35.	D.P.H./Community Medicine	35
36.	D.F.M.	36
37.	D.T.C.D.	37
38.	D. Ortho.	38
39.	D.O.R.L.	39
40.	D. Opthal.	40
41.	D.C.P. (Pathology)	41
42.	D.D. (Diabetology)	42

ANNEXURE "C"
CONSTITUTIONAL RESERVATION

1) The candidates recognized by the State of Maharashtra as belonging to the following Backward Classes, shall alone be eligible to claim admissions as against the seats reserved for such backward class categories. The constitutional reservation at Government/ Corporation Institutes and Private Unaided Institutes is as mentioned below.

Category		Reservation Quota	
		Reservation from available State quota at Government Institute	Reservation from sanctioned intake Private Unaided Institutions/Colleges
A	Scheduled Castes and Scheduled Caste converts to Buddhism (SC)	13.0 percent	6.5 percent
B	Scheduled Tribes (ST)	7.0 Percent	3.5 percent
C	Vimukta Jati (VJ) DT-A	3.0 percent	1.5 percent
D	Nomadic Tribes NT-B	2.5 percent	1.25 percent
E	Nomadic Tribes NT-C	3.5 percent	1.75 percent
F	Nomadic Tribes NT-D	2.0 percent	1.0 percent
G	Other Backward Classes (OBC) including SBC	19.0 percent	9.5 percent
	Total	**50.0 percent**	**25.0 percent**

i. In Government institution, constitutional reservation is as per MEDD GR. No. CET 3518/C.R.32/18/Edu-2 dated 29/01/2018 (Annexure - V)

ii. **In Private unaided institutions constitutional reservation is 25 percent of total sanctioned intake as per the Maharashtra Government Notification, Medical Education and Drugs department, No.PGM-1006/3207/CR-362/06/EDU-2, dated 08th, January 2007.**

iii. **SEBC (Socially & Educationally Backward Classes) Reservation:** In Government / Corporation / Private Unaided Institutions (excluding Minority Institutions), 10% seats of the available seats under State Quota shall be reserved for candidate belonging to SEBC category. This reservation will be subject to outcome of W.P. No. 3468/2024 in Hon'ble High Court Mumbai and any other future court cases in this regard. **(Annexure "FF")**

iv. **EWS CATEGORY RESERVATION:** 10% seats of the available State quota seats in Government/Corporation Medical Colleges shall be reserved for candidate belonging to EWS category. **(Annexure "AA").** This reservation will be applicable for private unaided institutions (excluding minority institutions) only if central Government / respective council increase existing seats under EWS scheme.

2) Candidates belonging to aforesaid Reserved categories will be required to submit the Caste Certificate and the Caste/Tribe Validity Certificate.

3) Caste certificate issuing authority: Caste certificate stating that the caste is recognized under a particular backward class category in Maharashtra state is issued by Sub-Divisional Magistrate/Executive Magistrate/Metropolitan Magistrate in Maharashtra state.

4) **The Caste/Tribe validity Certificate issuing Authorities are as follows:**

   a) For Candidates belonging to Scheduled Caste, Scheduled Caste converts to Buddhism, Vimukta Jati, Nomadic Tribes1, 2 & 3, Other Backward Class and SEBC, Caste Validity Certificate is issued by **Divisional Caste Certificate Scrutiny Committee of respective Divisional Social Welfare Office** (Konkan, Pune, Nashik, Chhatrapati Sambhaji Nagar, Amravati and Nagpur).

   b) For Candidates belonging to Scheduled Tribe the Tribe Validity Certificate is issued by Director/Deputy Director, **Tribe Certificate Scrutiny Committee of respective Region** (Konkan, Pune, Nashik, Chhatrapati Sambhaji Nagar, Amravati and Nagpur).

   c) However as per Government Resolution no. Misc-2024/C.R 75 (Part – 1) / Reservation – 5 dated 02/07/2026, candidates belonging to SEBC and OBC Category can produce his/her Caste Validity certificate up to six months from the date of application for CVC, failing which his/her admission will stand cancelled and he/she will be responsible for the same. Similarly, as per Government Circular no. CBC-2025/C.R 131 MVK Dated 04/09/2026, candidates belonging to SC, VJ/DTA, NT-B, NT-C & NT-D Category can produce his/her Caste Validity certificate up to three months from the date of publication of this Government Circular **(Annexure – "HH").**

5) ***The candidate should have claimed the constitutional reservation in the original application form.*** The candidate claiming constitutional reservation must upload original **caste validity certificate up to the last date of registration, failing which the category claim will not be granted.**

6) **NON-CREAMY LAYER**

A candidate belonging to 'Creamy Layer' amongst the categories (C) to (G) and SEBC must note that the provision of reservation is NOT applicable to him/her. A candidate claiming benefit of reservation under the categories (C) to (G) and SEBC above will be required to produce Non-Creamy Layer Certificate as specified in the Government resolution No.CBC-10/2008/CR-697/VJNT-1, dated 24th June, 2013. The certificate should be **valid up to 31/03/2027 or later**. The Non-Creamy Layer Certificate is issued by Sub-Divisional Officer/Deputy Collector/Collector of the district.

However, such a Non-Creamy Layer Certificate must be uploaded up to the last date of registration, failing which the category claimed will not be granted.

Applicants belonging to Special Backward Class:

N.B.: As per the Maharashtra Government ACT NO. XXX of 2006 dated 1st August 2006 the candidate belonging to the Special Backward Category shall be considered from and out of their respective original / parent Reserved Category such as Other Backward Classes.

7) Inter-se-merit amongst the reserved categories shall be operated during the allotment process of CAP Round 3 and subsequent rounds, if necessary, against the unfilled reserved categories seats as per merit and choice of the reserved categories candidates.

The seats remaining vacant from various categories shall be filled in during inter-se-merit admission process as follows:

a) From among the candidates of their respective group from the Inter-se State Merit List of that particular group where the vacancies exist–

A – The groups are as follows -

GROUP - I
(i) Scheduled Castes and Schedule Caste converted to Buddhism (S.C.) (ii) Scheduled Tribes including those living out-side specified area (S.T.)
GROUP - II
(i) Vimukta Jati (VJ)(DT-A) (ii) Nomadic Tribes (NT-B)
GROUP - III
(i) Nomadic Tribes (NT-C) (ii) Nomadic Tribes (NT-D) (iii) Other Backward Classes (OBC) including SBC

(b) If the seats still remain vacant, then the seats will be filled, from among the candidates of all the categories mentioned above from the all categories combined merit list.

(c) If the seats still remain vacant then the seats will be filled from among the candidates of the common merit list.

B – The seats remaining vacant of EWS and SEBC category will be filled from among the candidates of the Common merit list.

8) **Ear-Marking:** Reserved category candidate entitled to admission on the basis of merit in an open category seat will have the option of taking admission either against his/her respective category seat or on an open category seat. If he/she opts for the reserved category, he/she will be deemed to have been admitted as an open category candidate and not as reserved category candidate. One seat in the college where he/she was eligible for admission against open seat shall be earmarked for a candidate belonging to the respective reserved category. Such earmarked seat will be made available immediately to the successive reserved category candidate from the same category merit.

Admission under constitutional reservation seat will be governed by the Maharashtra Schedule Castes, Scheduled Tribes, Denotified Tribes (Vimukta Jatis), Nomadic Tribes, Other Backward Classes and Special Backward Category Regulation of Issuance and Verification of Caste Certificate Act, 2000 (Mah. Act No. XXIII of 2001).

ANNEXURE "D"
PERSONS WITH DISABILITY (PWD) RESERVATION

Office of ADG (ME)
Ph. No.011-23062493
Fax No. 011-23061907
Email: adgme@nic.in

GOVERNMENT OF INDIA
DIRECTORATE GENERAL OF HEALTH SERVICES
NIRMAN BHAWAN, NEW DELHI-110108

By E-mail//Urgent
Date.18.02.2019

F.No U-12021/ 05/ 2018- MEC(Part)

To,

Directors Medical Education of states/ Principals/ Deans of Medical Institutions designated as Disability Centres

Sub: - Guidelines issued by BOG, MCI regarding admission of PwD students and format of Certificate of Disability to be issued to students- reg.

Sir,

I am directed to say that Board of Governors in Supersession of Medical Council of India has issued **Guidelines regarding admission of students with "Specified Disabilities" under the Rights of Persons with Disabilities Act, 2016 vide Gazette Notification No. MCI-34(41)/2018-Med./170045 dated 5th February, 2019** (Notification enclosed as **ANNEXURE-I**). The extent of "specified disability" in a Person with Disability (PwD candidate) shall be assessed in accordance with these guidelines for the purpose of issuing Disability Certificate and at the time of admission in the college.

A List of Disability Centres which have been designated as PwD Centres to issue Disability Certificates by this Directorate is being attached as **ANNEXURE-II**. Further, a format of **Disability Certificate** is being enclosed herewith **(as ANNEXURE-III)** which has to be provided to the PwD candidates, specifying the Name of the Disability, Range of Disability and whether the PwD candidate is **Eligible/ Not Eligible** for admission to Medical Courses. A Notice regarding this has already been uploaded on the website of Medical Counselling Committee(www.mcc.nic.in) for the information/ knowledge & benefit of PwD candidates.

You are requested to do the needful to examine and issue Disability Certificates to PwD candidates, so that they can avail the benefit of 5% PwD reservation earmarked by Ministry of Social Justice & Empowerment for 21 Benchmark Disabilities given under Rights of Persons with Disability Act 2016,

This issues with the approval of competent authority.

Yours Faithfully,

(Prof. (Dr.) B. Srinivas)
Assistant Director General (ME)
Tel. 23062493, Fax-23061907
E-Mail:- adgme@nic.in

Copy to:
1. PS to JS(ME)
2. PS to DGHS
3. PS to Chairman, MCC

CERTIFICATE OF DISABILITY

(As per Gazette Notification No. MCI-34(41)/2018-Med./170045 dated 5th February, 2019 for admission to Medical Courses in All India Quota)

Certificate No._____ **Dated**_____

Recent Passport Size Photograph of the candidate duly attested by the issuing authority

Name of the Designated Disability Centre (as per ANNEXURE):

_____

This to certify that Dr. / Mr. / Ms._____

Aged_____ **Years Son/ Daughter of Mr.**_____

R/o _____

_____

NEET Roll No._____, **Rank No.**_____ , **has the following**

Disability (Name of the Specified Disability) _____

and has Permanent Physical Impairment(PPI) with the Disability Range (in percentage)

of_____ **(in words)** _____ **(in Figures).**

- **Please tick on the "Specified Disability"**
  (Assessment may be done on the basis of Gazette of India, Extraordinary, Part-II, Section 3 Sub-section(ii), Ministry of Social Justice and Empowerment)

S/No.	Disability Type	Type of Disability	Specified Disability
1.	**Physical Disability**	A. Locomotor Disability	a. Leprosy cured person, b. Cerebral Palsy, c. Dwarfism, d. Muscular Dystrophy, e. Acid attack Victims, f. others such as Amputation, Poliomyelitis
		B. Visual Impairment	a. Blindness b. Low Vision
		C. Hearing Impairment	a. Deaf b. Hard of hearing
		D. Speech & Language Disability	a. Organic/ Neurological causes
2.	**Intellectual Disability**		a. Specific Learning Disabilities(Perceptual disabilities, Dyslexia, Dyscalculia, Dyspraxia & Developmental Aphasia b. Autism Spectrum Disorders
3.	**Mental Behaviour**		a. Mental illness
4.	**Disability caused due to**	a. Chronic Neurological Conditions	i. Multiple Sclerosis ii. Parkinsonism
		b. Blood Disorders	i. Haemophilia, ii. Thalassemia, iii. Sickle Cell Disease
5.	**Multiple Disabilities including Deaf Blindness**		More than one of the above specified disabilities

- **Conclusion:** He/ She is **Eligible/ Not Eligible** for admission in Medical/ Dental courses as per the MCI/ DCI Guidelines subject to his being otherwise medically fit.

Sign & Name_____ **Sign & Name**_____ **Sign & Name**_____

(Concerned Specialist) **(Concerned Specialist)** **(Concerned Specialist)**

Medical Counselling Committee

रजिस्ट्री सं० डी० एल०-33004/99 REGD. NO. D. L.-33004/99

भारत का राजपत्र
The Gazette of India

असाधारण
EXTRAORDINARY
भाग III—खण्ड 4
PART III—Section 4
प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 101] नई दिल्ली, शुक्रवार, मार्च 15, 2019/माघ 24, 1940
No. 101] NEW DELHI, FRIDAY, MARCH 15, 2019/MAGHA 24, 1940

भारतीय आयुर्विज्ञान परिषद के अधिक्रमण में शासी बोर्ड

अधिसूचना

नई दिल्ली, 13 मार्च, 2019

सं.भा.आ.प.-18(1)/2018-मेड./187262.—भारतीय आयुर्विज्ञान परिषद् (अधिनियम, 1956(1956 का 102) की धारा 33 द्वारा प्रदत्त शक्तियों का इस्तेमाल करते हुए, भारतीय आयुर्विज्ञान परिषद् के अधिक्रमण में शासी बोर्ड, "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" में पुन: संशोधन करने के लिए केंद्र सरकार की पूर्व स्वीकृति से एतद्वारा निम्नलिखित विनियम बनाती है, नामत:-

1. (i) ये विनियम, "स्नातकोत्तर चिकित्सा शिक्षा (संशोधन) विनियमावली, 2019" कहे जाएंगे।
(ii) ये सरकारी राजपत्र में उनके प्रकाशन की तारीख से प्रवृत्त होंगे।

2. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली,2000" के "स्नातकोत्तर छात्रों का चयन" शीर्षक के अंतर्गत खंड 9 (5) को निम्नलिखित रूप में प्रतिस्थापित किया जाएगा :-

परंतु यह भी कि सरकारी या सरकारी सहायता प्राप्त उच्च शैक्षिक संस्थानों में वार्षिक स्वीकृत प्रवेश क्षमता की 5% सीटें, स्नातकोत्तर चिकित्सा पाठ्यक्रमों में दाखिले के लिए 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' की मेरिट सूची के आधार पर, विकलांग व्यक्तियों के अधिकार अधिनियम, 2016 के उपबंधों के अनुसार बैंचमार्क विकलांगताओं वाले अभ्यर्थियों द्वारा भरी जाएंगी। इस उद्देश्य के लिए, विकलांग व्यक्तियों के अधिकार अधिनियम, 2016 की अनुसूची में दी गई"विनिर्दिष्ट विकलांगता" परिशिष्ट 'III' में संलग्न की गई है और विनिर्दिष्ट विकलांगता के साथ, चिकित्सा पद्धति में पाठ्यक्रम में पढ़ने वाले अभ्यर्थियों की पात्रता, परिशिष्ट 'IV' के अनुसार होगी। यदि किसी श्रेणी विशेष में, विकलांग व्यक्तियों के लिए आरक्षित सीटें,अभ्यर्थियों की अनुपलब्धता के कारण खाली रह जाती हैं तो ये सीटें, संबंधित श्रेणी के लिए वार्षिक स्वीकृत सीटों में शामिल की जानी चाहिए।

किसी शैक्षिक वर्ष के लिए स्नातकोत्तर पाठ्यक्रम में दाखिले का पात्र बनने की दृष्टि से किसी अभ्यर्थी के लिए यह आवश्यक होगा कि वह उस शैक्षिक वर्ष के लिए आयोजित "स्नातकोत्तर पाठ्यक्रमों के लिए राष्ट्रीय पात्रता व प्रवेश परीक्षा" में 50 वें पर्सेंटाइल पर न्यूनतम अंक प्राप्त करें। तथापि, अनुसूचित जातियों, अनुसूचित जनजातियों और अन्य पिछड़ा वर्ग से संबंधित अभ्यर्थियों के संबंध में न्यूनतम अंक 40वें पर्सेंटाइल पर होंगे। विकलांग व्यक्तियों के अधिकार अधिनियम,2016 के अंतर्गत विनिर्दिष्ट बैंचमार्क विकलांगताओं वाले अभ्यर्थियों के संबंध में न्यूनतम अंक, सामान्य श्रेणी के लिए 45वें पर्सेंटाइल पर और अ.जा./ अ.ज.जा./ अ.पि.व. के लिए 40वें पर्सेंटाइल पर होंगे।

डॉ- आर.के. वत्स, महासचिव

[विज्ञापन -III/4/असाधारण/579/18]

पाद टिप्पणी : प्रधान विनियमावली नामत:"स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" दिनांक 7 अक्तूबर, 2000 को भारत के राजपत्र के भाग III, खंड 4 में प्रकाशित की गई थी और इसे भारतीय आयुर्विज्ञान परिषद् की दिनांक 03/03/2001,06/10/2001, 16/03/2005, 23/03/2006,20/10/2008, 25/03/2009, 21/07/2009, 17/11/2009, 09/12/2009,16/04/2010, 08/12/2010, 27/12/2010 09/02/2012,27/02/2012, 28/03/2012, 17/04/2013, 01/02/2016, 17/06/2016, 08/08/2016, 31/01/2017, 11/03/2017, 06/05/2017, 27/06/2017 31/07/2017, 20/02/2018, 05/04/2018, और 23/01/2019 की अधिसूचनाओं के अंतर्गत संशोधित किया गया था ।

परिशिष्ट - III

(विनियम 9 (5) देखें)

"विनिर्दिष्ट विकलांगता" धारा 2 के खंड (घ ग) के संबंध में अनुसूची संलग्न की जाती है, जिसमें निम्नलिखित उल्लेख किया गया हैं :

1. शारीरिक विकलांगता

क. गतिक विकलांगता (मस्कुलोस्केल्टल या तंत्रीय प्रणाली या दोनों की वेदना के परिणामस्वरूप स्वयं और वस्तुओं को लाने ले जाने से जुड़े प्रभेदी क्रियाकलाप करने में किसी व्यक्ति की असमर्थता), जिसमें निम्नलिखित शामिल हैं:-

1 (क) "कुष्ठ रोग मुक्त व्यक्ति" से कोई ऐसा व्यक्ति अभिप्रेत है, जो कुष्ठ रोग से मुक्त हो गया है, परंतु निम्नलिखित से पीडित है-

(i) हाथों और पैरों में संवेदन की कमी और आंख तथा पलक में संवेदन की कमी या आंशिकघात परंतु किसी अभिव्यक्त विरूपता के बिना;

(ii) अभिव्यक्त विरूपता और आंशिकघात परंतु उन्हें सामान्य आर्थिक क्रियाकलाप में लगने में समर्थ बनाने के लिए उनके हाथों और पैरों में पर्याप्त गतिकता वाले व्यक्ति;

(iii) अत्यधिक शारीरिक विरूपता और अधिक आयु जो उसे कोई लाभप्रद व्यवसाय आरंभ करने से रोकती हो, और "कुष्ठ रोग मुक्त" अभिव्यक्ति का अर्थ तदनुसार लगाया जाएगा;

ख. "प्रमस्तिष्कीय पक्षाघात" से अभिप्रेत है - आमतौर पर जन्म से पहले, के दौरान, या जन्म के शीघ्र पश्चात होने वाली, मस्तिष्क के एक या अधिक विनिर्दिष्ट क्षेत्र को पहुंची क्षति के कारण शरीर के संचलन और मांसपेशियों के समन्वय को प्रभावित करने वाली गैर-प्रभावी तंत्रिका संबंधी स्थिति का एक समूह;

ग. "बौनापन" से अभिप्रेत है- एक मेडिकल या आनुवंशिक स्थिति जिसके परिणामस्वरूप किसी वयस्क की ऊंचाई 4 फीट 10 इंच (147 सेंटीमीटर) या इससे कम हो;

घ. "मांसपेशीय डिस्ट्राफी" से अभिप्रेत है- आनुवंशिक मांसपेशी रोग का एक ऐसा समूह जो उन मांसपेशियों को कमजोर करता है, जो मानव शरीर का संचालन करती है, और बहुल डिस्ट्राफी वाले व्यक्तियों के पास उनके जीन्स में गलत और गायब सूचना होती है जो उन्हें ऐसे प्रोटीन्स बनाने से रोकती है, जिनकी स्वस्थ मांसपेशियों के लिए आवश्यकता होती है। इसके लक्षण हैं- प्रगामी स्कैल्टन मांसपेशी की कमजोरी, मांसपेशी प्रोटीन्स में दोष और मांसपेशियों के कोशाणुओं तथा ऊतकों की मृत्यु।

ङ. "तेजाब प्रहार पीडित" से अभिप्रेत है- तेजाब या इसी प्रकार के संक्षारक पदार्थ फेंके जाने से हिंसक प्रहार के कारण कोई विरूपित व्यक्ति।

ख. चाक्षुष क्षति-

(क) "नेत्रहीनता" से अभिप्रेत है- एक ऐसी स्थिति, जहां किसी व्यक्ति में सर्वोत्तम सुधार के पश्चात भी निम्नलिखित में से कोई स्थिति हो :

(i) दृष्टि का पूर्ण अभाव; या

(ii) सर्वोत्तम संभव सुधार के साथ बेहतर आंख में 3/6 से कम या 10/200 से कम (स्नेलन) चाक्षुष तीक्ष्णता हो; या

(iii) दृष्टि के क्षेत्र की वह सीमा, जो 10 डिग्री से कम का कोण कक्षांतरित करती हो।

(ख) "निम्न दृष्टि" से एक ऐसी स्थिति अभिप्रेत है, जहां किसी व्यक्ति में निम्नलिखित में से कोई स्थिति हो, नामत:

(i) सर्वोत्तम संभव सुधारके साथ बेहतर आंख में अधिक से अधिक चाक्षुष तीक्ष्णता 6/18 या 20/60 से कम, 3/60 तक या 10/200 (स्नेलन) हो; या

(ii) दृष्टि के क्षेत्र की वह सीमा, जो 40 डिग्री से कम 10 डिग्री तक का कोण कक्षांतरित करती हो।

(ग) श्रवण क्षति-

(क) "बधिर" से ऐसे व्यक्ति अभिप्रेत है, जिन्हें दोनों कानों में वाक् फ्रीक्वेंसीज में 70 डीबी श्रवण क्षति हो;

(ख) "कम सुनने वाला" से ऐसा व्यक्ति अभिप्रेत है, जिसे दोनों कानों में वाक् फ्रीक्वेंसीज में 60 डीबी से 70 डीबी की श्रवण क्षति हो।

(घ) "वाक् और भाषा विकलांगता" से अभिप्रेत है- आंगिक या तंत्रिका संबंधी कारणों से वाक् और भाषा के एक से अधिक संघटकों को प्रभावित करने वाली स्वरयंत्र उच्छेदन या वाचाघात जैसी स्थितियों से उत्पन्न एक स्थायी विकलांगता।

2. बौद्धिक विकलांगता एक ऐसी स्थिति है, जिसके लक्षण हैं- बौद्धिक कार्यचालन (तर्कणा, ज्ञानार्जन, समस्या समाधान) और अनुकूली व्यवहार दोनों में महत्वपूर्ण सीमा, जो दिन प्रति दिन के सामाजिक और व्यावहारिक कौशलों की एक रेंज कवर करती है, जिसमें निम्नलिखित शामिल हैं :

(क) "विनिर्दिष्ट ज्ञानार्जन विकलांगताएं" से अभिप्रेत है ऐसी स्थितियों का एक विजातीय समूह, जिसमें भाषा, बोली जाने वाली या लिखित, प्रोसेसिंग में कोई ऐसी कमी है, जो समझने, बोलने, पढ़ने, लिखने, हिज्जे करने या गणितीय परिकलन करने में एक कठिनाई के रूप में स्वयं को अभिव्यक्त कर सकती है और इसमें बोधात्मक विकलांगताएं, डिस्लेक्सिया, डिस्ग्राफिया, डिस्कलकूलिया, डिस्प्राक्सिया और विकासात्मक वाचाघात जैसी स्थितियां शामिल हैं;

(ख) "आत्म विमोह स्पेक्ट्रम विकृति" से अभिप्रेत है- जीवन के पहले तीन वर्षों में अलग प्रकार से प्रकट होने वाली एक तंत्रिका- विकासात्मक स्थिति जो व्यक्ति की संसूचित करने, रिश्ते समझने और अन्य के साथ जोड़ने की योग्यता को पर्याप्त रूप से प्रभावित करती है और असामान्य या अपरिवर्तनीय धार्मिक कृत्यों या व्यवहारों के साथ बार-बार संबद्ध है।

3. मानसिक व्यवहार- "मानसिक रोग" से अभिप्रेत है- विचारण, मनोदशा, अवबोधन, अभिमुखीकरण या स्मरण शक्ति, जो जीवन की सामान्य मांगे पूरी करने की योग्यता या वास्तविकता को स्वीकार करने की योग्यता, व्यवहार, निर्णय को भारी मात्रा में क्षति पहुंचाती है परंतु इसमें ऐसी मंदता शामिल नहीं है जो किसी व्यक्ति के मस्तिष्क के अवरोध या अपूर्ण विकास की एक स्थिति है, जिसका विशेष लक्षण, बुद्धि की उप-असामान्यता है।

4. निम्नलिखित के कारण विकलांगता-

(क) चिरकालिक तंत्रिका संबंधी स्थितियां, जैसे-

(i) "बहुल ऊतक दृढ़न" से अभिप्रेत है- एक प्रदाहक, तंत्रिका प्रणाली रोग, जिसमें मस्तिष्क और रीढ़ की हड्डी की तंत्रिका कोशिकाओं के अक्षतंतुओं के आस-पास की मेरूमज्जा आच्छादन क्षतिग्रस्त हो जाते हैं, जिसके परिणामस्वरूप डिमाइलोएशन हो जाता है और एक दूसरे के साथ संचारित करने के लिए मस्तिष्क और रीढ़ की हड्डी में तंत्रिका कोशिकाओं की क्षमता प्रभावित हो जाती है;

(ii) "पार्किन्सन रोग" से अभिप्रेत है- मस्तिष्क के आधारीय गंगलिया के विकार और तंत्रिका संचारी डोपामाइन की किसी कमी के साथ जुड़ी, मुख्यत: मध्य आयु वाले और बुजुर्गों को प्रभावित करने वाली, ट्यूमर, मांसपेशी की दृढ़ता और धीमी, अस्पष्ट गति के लक्षणों वाली तंत्रीय प्रणाली का एक प्रगामी रोग।

(ख) रक्त विकृति-

(i) "अधिरक्तस्राव" से अभिप्रेत है- एक वंशानुगत रोग, जो आमतौर पर केवल पुरूषों को प्रभावित करता है परंतु महिलाओं द्वारा अपने पुरूष बच्चों में संचारित किया जाता है जिनके लक्षण हैं- रक्त की सामान्य जमाव क्षमता की क्षति या हानि, जिससे किसी अवयस्क को घातक रक्तस्राव हो सकता है;

(ii) "थालासीमिया" से अभिप्रेत है- वंशानुगत विकृतियों का एक ऐसा समूह, जिसके लक्षण है- हिमोग्लोबिन की घटी हुई मात्रा या उसका अभाव।

(iii) "सिकल सैल रोग" से अभिप्रेत है- चिरकालिक रक्ताल्पतता, कष्टदायक परिणामों और संलग्न ऊतक तथा अंग क्षति के कारण विभिन्न जटिलताओं के लक्षण वाली एक हेमोलाइटिक विकृति; "हेमोलाइटिक" लाल रक्त की कोशिका झिल्ली के नष्टीकरण से संबंधित है, जिसके परिणामस्वरूप हेमोग्लोबिन निकलता है।

5. बधिर, नेत्रहीनता सहित बहुल विकलांगताएं (ऊपर विनिर्दिष्ट विकलांगताओं में से एक से अधिक) जिससे एक ऐसी स्थिति अभिप्रेत है, जिसमें किसी व्यक्ति को श्रवण और चाक्षुष क्षति का संयोजन हो सकता है, जिसके कारण गंभीर संसूचन, विकासात्मक और शैक्षिक समस्याएं हो सकती हैं।

6. कोई अन्य श्रेणी, जो केंद्र सरकार द्वारा अधिसूचित की जाए।

टिप्पणी: विकलांग व्यक्तियों के अधिकार अधिनियम, 2016 की अनुसूची में किए जाने वाले किसी संशोधन के परिणामस्वरूप उपर्युक्त अनुसूची में संशोधन हो जाएगा।

परिशिष्ट - "IV"

आधुनिक चिकित्सा पद्धति में स्नातकोत्तर पाठ्यक्रमों में दाखिले के संबंध में 'विकलांग व्यक्तियों के अधिकार अधिनियम, 2016' के अंतर्गत "विशिष्ट विकलांगताओं"वाले छात्रों के दाखिले से संबंधित दिशानिर्देश

टिप्पणी:

1. "विकलांगता का प्रमाणपत्र", 15 जून, 2017 को सामाजिक न्याय एवं अधिकारिता मंत्रालय, [विकलांग व्यक्ति (दिव्यांगजन) सशक्तीकरण विभाग] द्वारा भारत के राजपत्र में अधिसूचित विकलांग व्यक्तियों के अधिकार नियमावली, 2017 के अनुसार जारी किया जाएगा।
2. किसी व्यक्ति में "विशिष्ट विकलांगता" की सीमा, 5 जनवरी, 2018 को सामाजिक न्याय एवं अधिकारिता मंत्रालय, [विकलांग व्यक्ति (दिव्यांगजन)सशक्तीकरण विभाग] द्वारा भारत के राजपत्र में अधिसूचित "विकलांग व्यक्तियों के अधिकार अधिनियम, 2016 (2016 का 49) के अंतर्गत शामिल किए गए किसी व्यक्ति में विशिष्ट विकलांगता की सीमा आंकने के उद्देश्य के लिए दिशानिर्देश" के अनुसार आंकी जाएगी।
3. विशिष्ट विकलांगता वाले व्यक्तियों के लिए आरक्षण का लाभ प्राप्त करने की दृष्टि से विकलांगता की न्यूनतम डिग्री 40%(बैंचमार्क विकलांगता) होनी चाहिए।
4. "शारीरिक रूप से विकलांग" (शा.वि.) शब्द के बजाए 'विकलांग व्यक्ति' (वि.व्य.) शब्द का इस्तेमाल किए जाएगा।

क्र.सं.	विकलांगता प्रकार	विकलांगताओं का प्रकार	विनिर्दिष्ट विकलांगता	विकलांगता की रेंज		
				मेडिकल पाठ्यक्रम के लिए पात्र, विकलांग व्यक्ति कोटा के लिए पात्र नहीं	मेडिकल पाठ्यक्रम के लिए पात्र, विकलांग व्यक्ति कोटा के लिए पात्र	मेडिकल पाठ्यक्रम के लिए पात्र नहीं
1.	शारीरिक विकलांगता	क. विनिर्दिष्ट विकलांगताओं सहित गतिक विकलांगता (क से च)	क. कुष्ठ रोग से मुक्त व्यक्ति*	40% से कम विकलांगता	40-80%विकलांगता : 80% से अधिक विकलांगता वाले व्यक्तियों को भी मामला दर मामला आधार पर अनुमति दी जा सकती है और उनकी कार्यात्मक सक्षमता, सहायक उपकरणों, यदि इनका इस्तेमाल किया जा रहा है, की सहायता से, यह देखने के लिए, निर्धारित की जाएगी कि क्या इसे 80% से नीचे लाया गया	80% से अधिक विकलांगता
			ख. प्रमस्तिष्कीय पक्षाघात**			
			ग. बौनापन			
			घ. मांसपेशीय डिस्ट्राफी			
			ङ. तेजाब के प्रहार से पीड़ित			
			च. अन्य***जैसे अंगविच्छेदन, पोलियोम्येलाइटिस आदि			

					है और क्या उनके पास ऐसी पर्याप्त चालक योग्यता है, जो यह पाठ्यक्रम जारी रखने और संतोषजनक ढंग से पूरा करने के लिए आवश्यक है।	
			* ऊंगलियों, हाथों में संवेदन की क्षति, अंगविच्छेद और आंखों की अंतर्ग्रस्तता पर ध्यान दिया जाना चाहिए तथा तदनुरूपी अनुशंसाएं देखी जानी चाहिए। **दृष्टि, श्रवण की संज्ञानात्मक कार्य की क्षति पर ध्यान दिया जाना चाहिए और तद्नुरूपी अनुशंसाएं देखी जानी चाहिए। ***चिकित्सा पाठ्यक्रम के लिए पात्र माने जाने के लिए दोनों हाथों का, अक्षुण्ण संवेदनाओं, पर्याप्त शक्ति और गति के रेंज के साथ अक्षुण्ण होना आवश्यक है।			
		ख. दृष्टि क्षति (*)	क. नेत्रहीनता ख. निम्न दृष्टि	40% से कम विकलांगता	-	40% के बराबर या इससे अधिक विकलांगता
		ग. श्रवण क्षति@	क. बहरा ख. कम सुनाई देना	40% से कम विकलांगता	-	40% के बराबर या इससे कम विकलांगता
			(*) 40% से अधिक की दृष्टि क्षति/ दृष्टि विकलांगता वाले व्यक्तियों को स्नातकोत्तर चिकित्सा शिक्षा में पढ़ने के लिए पात्र बनाया जा सकता है और इस शर्त के अधीन आरक्षण दिया जा सकता है कि दृष्टि विकलांगता को आधुनिक निम्न दृष्टि सहायक उपकरण जैसेकि टेलीस्कोप/ मैग्नीफायर इत्यादि की सहायता से 40% के बैंचमार्क से कम के स्तर तक लाया जाए। @ 40% से अधिक की श्रवण विकलांगता वाले व्यक्तियों को स्नातकोत्तर चिकित्सा शिक्षा में पढ़ने के लिए पात्र बनाया जा सकता है और इस शर्त के अधीन आरक्षण दिया जा सकता है कि श्रवण विकलांगता को सहायक उपकरणों की सहायता से 40% के बैंचमार्क से कम के स्तर तक लाया जाए। इसके अलावा, व्यक्ति के पास 60%से अधिक का वाक् विवेक स्कोर होना चाहिए।			
		घ.वाक् एवं भाषा विकलांगताएं$	आर्गनिक/तंत्रीय कारण	40% से कम विकलांगता	-	40% के बराबर या इससे कम विकलांगता
		$ वाक् बुद्धिमता प्रभावित (एसआईए) वाले व्यक्ति स्नातकोत्तर पाठ्यक्रमों में पढ़ने के लिए पात्र होंगे, बशर्ते वाक् बुद्धिमता प्रभावित (एसआईए) स्कोर 3 (तीन) से अधिक न हो, जोकि 40% या उससे कम हो । वाचाघात वाले व्यक्ति स्नातकोत्तर पाठ्यक्रमों में पढ़ने के लिए पात्र होंगे, बशर्ते कि वाचाघात लब्धि (एक्यू) 40% या उससे कम हो ।				
2.	बौद्धिक विकलांगता		क. विशिष्ट ज्ञानार्जन विकलांगताएं (बोधात्मक	# वर्तमान में एसपीएलडी की गंभीरता आंकने के लिए कोई मात्राकरण पैमाना नहीं है, इसलिए 40% का कट ऑफ, मनमाना है और इसके लिए अधिक साक्ष्य की आवश्यकता है।		

			विकलांगताएं, डिस्लेक्सिया, डिस्केलकुलिया, डिस्प्राक्सिया और विकासात्मक एफासिया)#	40% से कम विकलांगता	40% के बराबर या इससे अधिक विकलांगता और 80% के बराबर या इससे कम विकलांगता। परंतु चयन, रिमेडिएशन सहायता प्राप्त प्रौद्योगिकी/उपकरणों/ विशेषज्ञ पैनल द्वारा किए गए अवसंरचनात्मक परिवर्तनों की सहायता से मूल्यांकन की गई ज्ञानार्जन सक्षमता पर आधारित होगा।	80% से अधिक या गंभीर स्वरूप या पर्याप्त संज्ञानात्मक/ बौद्धिक विकलांगता
			ख. आत्म-विमोह स्पैकट्रम विकृति	विकलांगता का अभाव या मामूली विकलांगता अस्परजर सिंड्रोम (आईएसएए के अनुसार 40%-60% तक की विकलांगता) जहां व्यक्ति को किसी विशेषज्ञ पैनल द्वारा स्नातकोत्तर के लिए उपयुक्त माना जाता है।	मानसिक बीमारी की मौजूदगी या सीमा स्थापित करने की उद्देश्य परक पद्धति के अभाव के कारण संस्तुत नहीं किया गया। तथापि, आरक्षण/कोटे के लाभ पर, विकलांगता आंकने की बेहतर पद्धतियां विकसित कर लिए जाने के पश्चात विचार किया जा सकता है।	60% से अधिक विकलांगता या संज्ञानात्मक/ बौद्धिक विकलांगता और/ या यदि व्यक्ति, विशेषज्ञ पैनल द्वारा स्नातकोत्तर पाठ्यक्रम जारी रखने के लिए अनुपयुक्त बताया गया है।
3.	मानसिक व्यवहार		मानसिक रोग	विकलांगता का अभाव या मामूली विकलांगता: 40% से कम (आईडीईएएस के अंतर्गत)	मानसिक बीमारी की मौजूदगी या सीमा स्थापित करने की उद्देश्य परक पद्धति के अभाव के कारण संस्तुत नहीं किया गया। तथापि, आरक्षण/कोटे के लाभ पर, विकलांगता आंकने की बेहतर पद्धतियां विकसित कर लिए जाने के पश्चात विचार किया जा सकता है।	40% के बराबर या इससे अधिक विकलांगता या यदि व्यक्ति को अपनी ड्यूटियां करने के लिए अनुपयुक्त माना जाता है। "मेडिसिन में प्रैक्टिस करने के लिए फिटनेस" की परिभाषा के लिए मानक तैयार किए जाए जिनका जैसे कि भारत के अलावा

						अन्य देशों के अनेक संस्थानों द्वारा इस्तेमाल किए जाते हैं।
4.	आगे उल्लेखित के कारण विकलांगता	क. चिरकालिक तंत्रिका संबंधी स्थितियां	i. बहुल ऊतक दृढ़न ii. पार्किनसोनिज्म	40% से कम विकलांगता	40%-80% विकलांगता	80% से अधिक विकलांगता
		ख. रक्त विकृतियां	i. हीमोफीलिया ii. थैलिसीमिया iii. सिक्कल सैल रोग	40% से कम विकलांगता	40%-80% विकलांगता	80% से अधिक विकलांगता
5.	मूक बधिरता सहित बहुल विकलांगताएं		उपर्युक्त में से एक से अधिक विनिर्दिष्ट विकलांगताएं	उपर्युक्त में किसी की मौजूदगी के संबंध में अलग अलग मामलों की अनुशंसाओं में निर्णय लेते समय उपर्युक्त सभी नामत: बहुल विकलांगता के एक घटक के रूप में दृष्टि, श्रवण, वाक् और भाषा विकलांगता, बौद्धिक विकलांगता और मानसिक रोग विकलांगता पर विचार किया जाना चाहिए जब किसी व्यक्ति में एक से अधिक असमर्थकारी स्थिति मौजूद है, उत्पन्न होने वाली विकलांगता की संगणना करने के लिए, भारत सरकार द्वारा जारी की गई संबंधित राजपत्र अधिसूचना द्वारा अधिसूचित संयोजनकारी फार्मूले की अनुशंसा की जाती है: $$क + \left[ख \frac{(90-क)}{90} \right]$$ (जहां क = विकलांगता के % का उच्च मूल्य और ख = विकलांगता के % का निम्न मूल्य जो भिन्न-भिन्न विकलांगताओं के लिए परिकलित किया गया हो। इस फार्मूले का इस्तेमाल बहुल विकलांगताओं वाले मामलों में किया जाए और व्यक्ति विशेष के मामले में मौजूद विशिष्ट विकलांगताओं के अनुसार दाखिले और/या आरक्षण के संबंध में अनुशंसा की जाए।	

BOARD OF GOVERNORS IN SUPER SESSION OF MEDICAL COUNCIL OF INDIA

NOTIFICATION

New Delhi, the 13th March, 2019

No. MCI-_18(1)/2018-Med./187262.—In exercise of the powers conferred by Section 33 of the Indian Medical Council Act, 1956 (102 of 1956), the Board of Governors in Super-session of Medical Council of India with the previous sanction of the Central Government, hereby makes the following Regulations to further amend the "Postgraduate Medical Education Regulations, 2000", namely: -

1. (i) These Regulations may be called the "Postgraduate Medical EducationRegulations(Amendment), 2019.

   (ii) They shall come into force from the date of their publication in the Official Gazette.

2. In the "Postgraduate Medical Education Regulations, 2000", under the heading of "**Selection of Postgraduate Students**" clause 9 (5) shall be substituted as under:-

   Provided further that 5% of the annual sanctioned intake capacity in Government or Government aided higher educational institutions shall be filled up by candidates with benchmark disabilities in accordance with the provisions of the Rights of Persons with Disabilities Act, 2016, based on the merit list of 'National Eligibility-cum-Entrance Test' for admission to Postgraduate Medical Courses. For this purpose, the "Specified Disability" contained in the

Schedule to the Rights of Persons with Disabilities Act, 2016 is annexed in Appendix 'III' and the eligibility of candidates to pursue a course in medicine with specified disability shall be in accordance with Appendix 'IV'. If the seats reserved for the persons with disabilities in a particular category remain unfilled on account of unavailability of candidates, the seats should be included in the annual sanctioned seats for the respective Category.

In order to be eligible for admission to Postgraduate Course for an academic year, it shall be necessary for a candidate to obtain minimum of marks at 50thpercentile in the 'National Eligibility-Cum-Entrance Test for Postgraduate courses' held for the said academic year. However, in respect of candidates belonging to Scheduled Castes, Scheduled Tribes, and Other Backward Classes, the minimum marks shall be at 40th percentile. In respect of candidates with benchmark disabilities specified under the Rights of Persons with Disabilities Act, 2016, the minimum marks shall be at 45th percentile for General Category and 40th percentile for SC/ST/OBC.

DR. R.K. VATS, Secy. General

[ADVT.-III/4/Exty./579/18]

Footnote: The Principal Regulations namely, "Postgraduate Medical Education Regulations, 2000" were published in Part III, Section 4 of the Gazette of India on 7th Oct., 2000 and amended vide Medical Council of India Notification dated 03/03/2001; 06/10/2001; 16/03/2005; 23/03/2006; 20/10/2008; 25/03/2009; 21/07/2009; 17/11/2009; 09/12/2009; 16/04/2010; 08/12/2010; 27/12/2010; 09/02/2012; 27/02/2012; 28/03/2012; 17/04/2013; 01/02/2016; 17/06/2016; 08/08/2016; 31/01/2017; 11/03/2017; 06/05/2017; 27/06/2017, 31/07/2017, 20.02.2018, 05.04.2018& 23.01.2019

Appendix III

(Refer Regulation 9(5))

A SCHEDULE is annexed regarding, "SPECIFIED DISABILITY" clause (zc) of section 2, that states as under,

1. Physical disability

A. Locomotor disability (a person's inability to execute distinctive activities associated with movement of self and objects resulting from affliction of musculoskeletal or nervous system or both), including—

(a) "leprosy cured person" means a person who has been cured of leprosy but is suffering from—

(i) loss of sensation in hands or feet as well as loss of sensation and paresis in the eye and eye-lid but with no manifest deformity;

(ii) manifest deformity and paresis but having sufficient mobility in their hands and feet to enable them to engage in normal economic activity;

(iii) extreme physical deformity as well as advanced age which prevents him/her from undertaking any gainful occupation, and the expression "leprosy cured" shall construed accordingly;

(b) "cerebral palsy" means a Group of non-progressive neurological condition affecting body movements and muscle coordination, caused by damage to one or more specific areas of the brain, usually occurring before, during or shortly after birth;

(c) "dwarfism" means a medical or genetic condition resulting in an adult height of 4 feet 10 inches (147 centimeters) or less;

(d) "muscular dystrophy" means a group of hereditary genetic muscle disease that weakens the muscles that move the human body and persons with multiple dystrophy have incorrect and missing information in their genes, which prevents them from making the proteins they need for healthy muscles. It is characterized by progressive skeletal muscle weakness, defects in muscle proteins, and the death of muscle cells and tissue; (e) "acid attack victims" means a person disfigured due to violent assaults by throwing of acid or similar corrosive substance.

B. Visual impairment—

(a) "blindness" means a condition where a person has any of the following conditions, after best correction—

(i) total absence of sight; or

(ii) visual acuity less than 3/60 or less than 10/200 (Snellen) in the better eye with best possible correction; or

(iii) limitation of the field of vision subtending an angle of less than 10 degree.

(b) "low-vision" means a condition where a person has any of the following conditions, namely:—

(i) visual acuity not exceeding 6/18 or less than 20/60 upto 3/60 or upto 10/200 (Snellen) in the better eye with best possible corrections; or

(ii) limitation of the field of vision subtending an angle of less than 40 degree up to 10 degree.

C. Hearing impairment -

(a) "deaf" means persons having 70 DB hearing loss in speech frequencies in both ears;

(b) "hard of hearing" means person having 60 DB to 70 DB hearing loss in speech frequencies in both ears;

D. "speech and language disability" means a permanent disability arising out of conditions such as laryngectomy or aphasia affecting one or more components of speech and language due to organic or neurological causes.

2. Intellectual disability, a condition characterized by significant limitation both in intellectual functioning (reasoning, learning, problem solving) and in adaptive behavior which covers a range of every day, social and practical skills, including—

(a) "specific learning disabilities" means a heterogeneous group of conditions wherein there is a deficit in processing language, spoken or written, that may manifest itself as a difficulty to comprehend, speak, read, write, spell, or to do mathematical calculations and includes such conditions as perceptual disabilities, dyslexia, dysgraphia, dyscalculia, dyspraxia and developmental aphasia;

(b) "autism spectrum disorder" means a neuro-developmental condition typically appearing in the first three years of life that significantly affects a person's ability to communicate, understand relationships and relate to others, and is frequently associated with unusual or stereotypical rituals or behaviours.

3. Mental behaviour,— "mental illness" means a substantial disorder of thinking, mood, perception, orientation or memory that grossly impairs judgment, behaviour, capacity to recognize reality or ability to meet the ordinary demands of life, but does not include retardation which is a condition of arrested or incomplete development of mind of a person, specially characterized by subnormality of intelligence.

4. Disability caused due to—

(a) chronic neurological conditions, such as—

(i) "multiple sclerosis" means an inflammatory, nervous system disease in which the myelin sheaths around the axons of nerve cells of the brain and spinal cord are damaged, leading to demyelination and affecting the ability of nerve cells in the brain and spinal cord to communicate with each other;

(ii) "parkinson's disease" means a progressive disease of the nervous system marked by tremor, muscular rigidity, and slow, imprecise movement, chiefly affecting middle-aged and elderly people associated with degeneration of the basal ganglia of the brain and a deficiency of the neurotransmitter dopamine.

(b) Blood disorder—

(i) "haemophilia" means an inheritable disease, usually affecting only male but transmitted by women to their male children, characterized by loss or impairment of the normal clotting ability of blood so that a minor would may result in fatal bleeding;

(ii) "thalassemia" means a group of inherited disorders characterized by reduced or absent amounts of haemoglobin.

(iii) "sickle cell disease" means a hemolytic disorder characterized by chronic anemia, painful events, and various complications due to associated tissue and organ damage; "hemolytic" refers to the destruction of the cell membrane of red blood cells resulting in the release of hemoglobin.

5. Multiple Disabilities (more than one of the above specified disabilities) including deaf blindness which means a condition in which a person may have combination of hearing and visual impairments causing severe communication, developmental, and educational problems.

6. Any other category as may be notified by the Central Government.

Note: Any amendment to the Schedule to the RPWD Act, 2016, shall consequently stand amended in the above schedule.

Appendix "IV"

Guidelines regarding admission of students with "Specified Disabilities" under the Rights of Persons with Disabilities Act, 2016 with respect to admission in Postgraduate Courses in Modern Medicine

Note 1. The "Certificate of Disability" shall be issued in accordance with the Rights of Persons with Disabilities Rules, 2017 notified in the Gazette of India by the Ministry of Social Justice and Empowerment [Department of Empowerment of Persons with Disabilities (*Divyangjan*)] on 15th June 2017.

2. The extent of "specified disability" in a person shall be assessed in accordance with the "Guidelines for the purpose of assessing the extent of specified disability in a person included under the Rights of Persons with Disabilities Act, 2016

(49 of 2016)" notified in the Gazette of India by the Ministry of Social Justice and Empowerment [Department of Empowerment of Persons with Disabilities (*Divyangjan*)] on 4th January 2018.

3. The minimum degree of disability should be 40% (Benchmark Disability) in order to be eligible for availing reservation for persons with specified disability.

4. The term 'Persons with Disabilities' (PwD) is to be used instead of the term 'Physically Handicapped' (PH).

<table>
<tr><th rowspan="2">S. No.</th><th rowspan="2">Disability Type</th><th rowspan="2">Type of Disabilities</th><th rowspan="2">Specified Disability</th><th colspan="3">Disability Range</th></tr>
<tr><th>Eligible for Medical Course, Not Eligible for PwD Quota</th><th>Eligible for Medical Course, Eligible for PwD Quota</th><th>Not Eligible for Medical Course</th></tr>
<tr><td rowspan="8">1.</td><td rowspan="8">Physical Disability</td><td rowspan="7">A. Locomotor Disability, including Specified Disabilities (a to f).</td><td>a. Leprosy cured person*</td><td rowspan="7">Less than 40% disability</td><td rowspan="7">40-80% disability.
Persons with more than 80% disability may also be allowed on case to case basis and their functional competency will be determined with the aid of assistive devices, if it is being used, to see if it is brought below 80% and whether they possess sufficient motor ability as required to pursue and complete the course satisfactorily.</td><td rowspan="7">More than 80%</td></tr>
<tr><td>b. Cerebral Palsy**</td></tr>
<tr><td>c. Dwarfism</td></tr>
<tr><td>d. Muscular Dystrophy</td></tr>
<tr><td>e. Acid attack victims</td></tr>
<tr><td>f. Others*** such as Amputation, Poliomyelitis, etc.</td></tr>
<tr><td colspan="5">* Attention should be paid to loss of sensations in fingers and hands, amputation, as well as involvement of eyes and corresponding recommendations be looked at.
** Attention should be paid to impairment of vision, hearing, cognitive function etc. and corresponding recommendations be looked at.
*** Both hands intact, with intact sensations, sufficient strength and range of motion are essential to be considered eligible for medical course.</td></tr>
<tr><td rowspan="2">B. Visual Impairment (*)</td><td>a. Blindness</td><td rowspan="2">Less than 40% disability</td><td rowspan="2">-</td><td rowspan="2">Equal to or More than 40% Disability</td></tr>
<tr><td>b. Low vision</td></tr>
<tr><td rowspan="3">C. Hearing impairment@</td><td>a. Deaf</td><td rowspan="2">Less than 40% Disability</td><td rowspan="2">-</td><td rowspan="2">Equal to or more than 40% Disability</td></tr>
<tr><td>b. Hard of hearing</td></tr>
<tr><td colspan="5">(*) Persons with Visual impairment / visual disability of more than 40% may be made eligible to pursue Postgraduate Medical Education and may be given reservation, subject to the condition that the visual disability is brought to a level of less than the benchmark of 40% with advanced low vision aids such as telescopes / magnifier etc.
@ Persons with hearing disability of more than 40% may be made eligible to pursue Postgraduate Medical Education and may be given reservation, subject to the condition that the hearing disability is brought to a level of less than the benchmark of 40% with</td></tr>
</table>

			the aid of assistive devices. In addition to this, the individual should have a speech discrimination score of more than 60%.			
		D. Speech & language disability$	Organic/ neurological causes	Less than 40% Disability	-	Equal to or more than 40% Disability
		$ Persons with Speech Intelligibility Affected (SIA) shall be eligible to pursue postgraduate courses, provided Speech Intelligibility Affected (SIA) score shall not exceed 3(three), which is 40% or below. Persons with Aphasia shall be eligible to pursue postgraduate courses, provided Aphasia Quotient (AQ) is 40% or below.				

S. No.	Disability Type	Type of Disabilities	Specified Disability	Disability Range		
				Eligible for Medical Course, Not Eligible for PwD Quota	Eligible for Medical Course, Eligible for PwD Quota	Not Eligible for Medical Course
2.	Intellectual disability		a. Specific learning disabilities (Perceptual disabilities, Dyslexia, Dyscalculia, Dyspraxia & Developmental aphasia)#	# Currently there is no Quantification scale available to assess the severity of SpLD, therefore the cut-off of 40% is arbitrary and more evidence is needed.		
				Less than 40% Disability	Equal to or more than 40% disability and equal to or less than 80%. But selection will be based on the learning competency evaluated with the help of the remediation/assisted technology/aids/infrastructural changes by the Expert Panel	More than 80% or severe nature or significant cognitive/intellectual disability
			b. Autism spectrum disorders	Absence or Mild Disability, Asperger syndrome (disability of upto 60% as per ISAA) where the individual is fit for postgraduate course by an expert panel	Currently not recommended due to lack of objective method to establish presence and extent of mental illness. However, the benefit of reservation/quota may be considered in future after developing better methods of disability assessment.	More than 60% disability or presence of cognitive/intellectual disability and/or if the person is unfit for pursuing postgraduate course by an expert panel
3.	Mental behaviour		Mental illness	Absence or mild Disability: less than 40% (under IDEAS)	Currently not recommended due to lack of objective method to establish presence and extent of mental illness. However, the benefit of reservation/quota may be considered in future after developing better methods of disability assessment.	Equal to or more than 40% disability or if the person is unfit to perform his/her duties. Standards may be drafted for the definition of "fitness to practice medicine", as are used by several institutions of countries other than India.

S. No.	Disability Type	Type of Disabilities	Specified Disability	Disability Range		
				Eligible for Medical Course, Not Eligible for PwD Quota	Eligible for Medical Course, Eligible for PwD Quota	Not Eligible for Medical Course
4.	Disability caused due to	a. Chronic Neurological Conditions	i. Multiple Sclerosis	Less than 40% Disability	40-80% disability	More than 80%
			ii. Parkinsonism			
		b. Blood Disorders	i. Haemophilia	Less than 40% Disability	40-80% disability	More than 80%
			ii. Thalassemia			
			iii. Sickle cell disease			
5.	Multiple disabilities including deaf blindness		More than one of the above specified disabilities	Must consider all above while deciding in individual cases recommendations with respect to presence any of the above, namely, Visual, Hearing, Speech & Language disability, Intellectual Disability, and Mental Illness as a component of Multiple Disability. Combining Formula as notified by the related Gazette Notification issued by the Govt. of India $a + \left[\frac{b(90-a)}{90} \right]$ (where a= higher value of disability % and b=lower value of disability % as calculated for different disabilities) is recommended for computing the disability arising when more than one disabling condition is present in a given individual. This formula may be used in cases with multiple disabilities, and recommendations regarding admission and/or reservation made as per the specific disabilities present in a given individual		

Uploaded by Dte. of Printing at Government of India Press, Ring Road, Mayapuri, New Delhi-110064
and Published by the Controller of Publications, Delhi-110054.

MANOJ KUMAR VERMA Digitally signed by MANOJ KUMAR VERMA Date: 2019.03.15 22:29:13 +05'30'

ANNEXURE "E"

List of Medical Colleges/Institutes where admission to the Medical Post-graduate courses will be done along with college code Numbers

GOVERNMENT/CORPORATION/ UNAIDED PRIVATE/MINORITY COLLEGES

Sr.No	Name of the college	Govt./Corp. /Pvt.	Code Numbers
1.	Grant Govt. Medical College, Byculla, Mumbai	**Govt.**	**01**
2.	Seth G.S. Medical College, Parel, Mumbai	**Corp.**	**02**
3.	Lokmanya Tilak Medical College, Sion, Mumbai	**Corp.**	**03**
4.	Topiwala National Medical College, Mumbai Central, Mumbai	**Corp.**	**04**
5.	Hinduhridaysamrat Balasaheb Thackeray Medical College & Dr. R. N. Cooper Municipal General Hospital, Juhu, Mumbai	**Corp.**	**05**
6.	Rajiv Gandhi Medical College & Chhatrapati Shivaji Maharaj Hospital, Thane	**Corp.**	**06**
7.	B. J. Govt. Medical College, Pune	**Govt.**	**07**
8.	Pimpri Chinchwad Muncipal Corporation, Pune	**Corp.**	**08**
9.	Dr. V.M. Govt. Medical College, Solapur	**Govt.**	**09**
10.	Govt. Medical College, Miraj	**Govt.**	**10**
11.	R.C.S.M. Government Medical College, Kolhapur	**Govt.**	**11**
12.	Shri. Bhausaheb Hire Govt. Medical College, Dhule	**Govt.**	**12**
13.	Govt. Medical College, Nagpur	**Govt.**	**13**
14.	Indira Gandhi Govt. Medical College, Nagpur	**Govt.**	**14**
15.	Shri Vasantrao Naik Govt. Medical College, Yavatmal	**Govt.**	**15**
16.	Govt. Medical College, Akola	**Govt.**	**16**
17.	Govt. Medical College, Chhatrapati Sambhajinagar	**Govt.**	**17**
18.	Shri. Shankarrao Chavan Govt. Medical College, Nanded	**Govt.**	**18**
19.	Swami Ramanand Teerth Rural Medical College, Ambajogai	**Govt.**	**19**
20.	Government Medical College, Latur	**Govt.**	**20**
21.	Government Medical College, Near T B Hospital, Ramnagar, Chandrapur	**Govt.**	**21**
22.	Government Medical College, Near Indira Gandhi Stadium, Nehru Chowk, Gondia	**Govt.**	**22**
23.	Maharashtra Post-graduate Institute of Medical Education & Research, Nashik	**Govt.**	**23**
24.	Mahatma Gandhi Institute of Medical Sciences, Sevagram, Wardha	**Govt. Aided**	**24**
25.	Tata Memorial Hospital, Mumbai	**Central Govt.**	**25**

Sr.No	Name of the college	Govt./Corp. /Pvt.	Code Numbers
26.	All India Institute of Physical Medicine & Rehabilitation, Haji Ali, Mumbai	**Central Govt.**	**26**
27.	ESI-PGIMSR HOSPITAL, Andheri, Mumbai	**Central Govt.**	**27**
28.	Bhabha Atomic Research Centre, Trombay, Mumbai	**Central Govt.**	**28**
29.	Bombay Hospital Institute of Medical Sciences, Mumbai	**Pvt.**	**29**
30.	Sancheti Institute of Orthopedics & Rehabilitation, Pune	**Pvt.**	**30**
31.	Sanjeevan Medical Foundation's ENT Post-graduate Institute, Miraj	**Pvt.**	**31**
32.	Post-graduate Institute of Swasthiyog Pratishthan, Miraj.	**Pvt.**	**32**
33.	K. J. Somaiya Medical College, Sion, Mumbai	**Pvt.**	**33**
34.	Smt. Kashibai Navle Medical College & General Hospital, Narhe, Pune	**Pvt.**	**34**
35.	MIMER's Talegaon General Hospital, Talegaon Dabhade, Pune	**Pvt.**	**35**
36.	Maharashtra Institute of Medical Sciences & Research, Vishwanathpuram, Latur	**Pvt.**	**36**
37.	Terna Medical College & Hospital, Nerul, Navi Mumbai	**Pvt.**	**37**
38.	M.V.P. Samaja's Medical College, Nashik	**Pvt.**	**38**
39.	A.C.P.M. Medical College, Dhule	**Pvt.**	**39**
40.	Dr. Panjabrao Alias Bhausaheb Deshmukh Memorial Medical College, Shivaji Nagar, Amravati -444 603.	**Pvt.**	**42**
41.	Dr. Ulhas Patil Medical College, Gat No. 315, 316, 321 & 305 apart, Jalgaon – Bhusawal Road, Jalgaon Kh., Tal. & Dist. Jalgaon-425 309	**Pvt.**	**43**
42.	M.M. Patel Public Charitable Trust's Ashwini Rural Medical College, Hospital & Research Centre, At. Post- Kumbhari, Tal. & Dist. Solapur – 413 003	**Pvt.**	**44**
43.	B.K.L. Walawalkar Rural Medical College, Tal. Chiplun Dist. Ratnagiri	**Pvt.**	**45**
44.	S.M.B.T. Institute of Medical Sciences & Research, Tal. Igatpuri, Dist. Nashik	**Pvt.**	**46**
45.	JIIU's Indian Inst. Of Med. Sciences & Research, At. Warudi, Post. Gevrai Bazar, Tal. Badnapur, Dist. Jalna	**Pvt.**	**47**
46.	Vedanta Institute of Medical Sciences, Village- Saswand, At & Post – Dhundalwadi, Tal.- Dahanu, Dist.- Palghar	**Pvt.**	**48**
47.	Government Medical College, Jalgaon	**Govt.**	**49**
48.	Government Medical College, Baramati	**Govt.**	**50**
49.	Post-graduate Institute of Medical Sciences, (P.G.I.M.S), Nerul, Navi Mumbai	**Corp.**	**51**

List of Medical Colleges/Institutes under Private Health Sciences Universities

Sr.No	Name of the college	Code Numbers
1.	Padmashri Dr. Vithalrao Vikhe Patil Foundation's Medical College Ahmednagar	**40**
2.	N.K.P. Salve Institute of Medical Sciences & Research Center and Lata Mangeshkar Hospital, Nagpur	**41**

ANNEXURE "F"
List of Undergraduate Medical Colleges

College of applicant's graduation institute

Sr. No.	Name & Full Address of the Colleges	Govt. / Pvt.	Telephone No. / Fax No.
1.	Grant Govt. Medical College, J.J. Hospital Compound, Byculla, Mumbai 400008	Govt.	Tel: : (022) 23735555, 23731144 Fax : (022) 23735599 Email:gmcjjh@bom7.vsnl.net.in
2.	Lokmanya Tilak Medical College, Sion, Mumbai- 400 022.	Corp.	Tel : (022) 24076381/88 Fax : (022) 24076100/24031202 Email:itmm@bom5.vsnl.net.in
3.	Seth G. S. Medical College, Parel, Mumbai- 400 012.	Corp.	Tel: (022) 24136051 Fax:(022) 24143435 Email:gsmcie@bom5.vsnl.net.in
4.	Topiwala National Medical College, Mumbai Central, Mumbai- 400 008.	Corp.	Tel: (022) 23081490-99 Fax:(022) 23072663 Email:nairdent@bom3.vsnl.net.in
5.	K. J. Somaiya Medical College & Research Center, Somaiya Ayurvihar Complex, Eastern Highway, Sion, Mumbai- 400 022.	Pvt.	Tel :(022)24091817/24020933 Fax :(022) 24091855 Email:somaijya@bom3.com
6.	Mahatma Gandhi Mission's Medical College, Sector - 18, Kamothe, Navi Mumbai- 410 209.	Pvt.	Tel :(022)27423404/27421723/27420320 Fax : (022) 27420320 Email:mgmmc@vsnl.com
7.	Pad. Dr. D. Y. Patil Medical College, Vidyanagar, Sector-7, Nerul, Navi Mumbai.	Pvt.	Tel : (022) 27709227 / 27709218 Fax : (022) 27708150 / 27709576
8.	Terna Medical College & Hospital, Sector-12, Telase II, Nerul, Navi Mumbai- 400 706.	Pvt.	Tel : (022) 27720563 /27721442 Fax : (022) 27716314 /27611442 Email:tpct@roltanet.com
9.	Vedanta Institute of Medical Sciences, Vedantaa Hospital and Research Center, Village- Saswand, At & Post – Dhundalwadi, Tal.- Dahanu, Dist.- Palghar	Pvt.	Tel:-02528-266200, 201,202,203, 204 Email : info@vedantaa.institute
10.	Rajiv Gandhi Medical College & Chh. Shivaji Maharaj Hospital, Kalwa, Dist.- Thane- 400 65.	Corp.	Tel: (022) 25348790 / 25347784 Fax:(022) 25372776 / 25348790, Email: rgmckalwa@hotmail.com
11.	B. J. Medical College, Pune- 411 001.	Govt.	Tel: (020) 26128000 / 26126010 Fax: (020) 26126868 Email: bjmcpune@vsnl.net
12.	Pad. Dr. D. Y. Patil Medical College for Womens, Opp. H.A. Factory, Pimpri, Pune - 411 018.	Pvt.	Tel : (020) 27420605 / 27420307 Fax : (020) 27420439
13.	Maharashtra Institute of Medical Education & Research Medical College, Talegaon General Hosp. Talegaon Dhabade, Pune- 410 507.	Pvt.	Tel : (02114) 228532 / 227938 Fax : (02114) 223916 Email: mimer@pn3.vsnl.net.in
14.	Dr. D. Y. Patil Education Soc. Medical College, Kasba Bawda, Kolhapur- 416 006.	Pvt.	Tel : (0231) 2601235-36 Fax : (0231) 2601238 Email: dymedkop@pn3.vsnl.net.in
15.	Dr. Vaishampayam Memorial Medical College, In front of District Court, Solapur- 413 003.	Govt.	Tel: (0217) 2319161 / Fax:(0217) 2310766 Email: dean@pn3.vsnl.net.in
16.	Government Medical College, Pandharpur Road, Miraj, Dist-Sangli-416 410.	Govt.	Tel: (0233) 2232091-99/2231158 Fax:(0233) 2231959 Email: gmcmiraj@vsnl.com
17.	Krishna Institute of Medical Sciences, Near Dhebewade Road, Karad, Dist- Satara - 415 110.	Pvt.	Tel : (02164) 241555 / 241558 Fax : (02164) 242170
18.	Rural Medical College, Post- Loni, Tal-Shrirampur, Dist- Ahamednagar - 413 736.	Pvt.	Tel : (02422) 273600 / 273600 Fax : (02422) 273413
19.	Dr. Vasantrao Pawar Medical College, Hospital & Research Center, Vasantdada Nagar, Adgaon, Dist. Nashik- 422 003	Pvt.	Tel: (0253) 2303802, 2303923-25 Fax:(0253) 2303716 / 2303930. Email: dean@drvasantaopawarmedicalcollege.com
20.	Shri. Bhausaheb Hire Govt. Medical College, Mumbai-Agra Highway, Chhakarbardi Campus, Near Residency Park, Dhule - 424 301.	Govt.	Tel: (02562) 239407 / 2 39207 Fax:(02562) 239207 / 239106 Email: deangmcdhule@gmail.com
21.	A.C.P.M. Medical College, HutatmaShri. Shirishkumar Nagar, Opp. Jawahar Soot Girni, Sakri Road, Dhule- 424 001.	Pvt.	Tel : (02562) 2200317/ 2201798 Fax : (02562) 2202027 Email: dr.vcp2000@usa.net
22.	Bharti Vidyapeeth Medical College, Katraj, Dhankawadi, Pune - 411 043	Pvt.	Tel : (020) 24373226 / 24362516 Fax : (020)
23.	Armed Forces Medical College, Pune	Central Govt.	Tel.- (020) 26820028 - 26306009 Fax- (020) 26820028
24.	Rajarshi Chhatrapati Shahu Maharaj Govt. Medical College, Kolhapur – 416 002	Govt.	Tel.- (0231) 2641 583, 2645 279 Fax- (0231) 2645 279, 2644 042

25.	Padmashri Dr. Vithalrao Vikhe Patil Foundations Medical College opp. Govt. Milk Dairy, Vilad Ghat, Post – MIDC, Ahmednagar - 414111	Pvt.	Tel – (0241) – 2778042 / 2777059 Fax – (0241) – 2779782 Email: gayke@rediffmail.com, vikhepatilfoundationnagar@indiatims.com
26.	Government Medical College, Hanuman Nagar, Nagpur- 440 003.	Govt.	Tel: (0712) 2750700 / 2743588 / 2701580 Fax: (0712) 2744489 Email: ukeyin@yahoo.co.in
27.	Indira Gandhi Medical College, Central Avenue Road, Nagpur- 440 018.	Govt.	Tel: (0712) 2728621-27/ 2725274 / 2770929 Fax: (0712) 2728028 Emai- igmc@satyam.net.in
28.	Government Medical College, Near T B Hospital, Ramnagar, Chandrapur 442401	Govt.	Tel: (0712) 252522 Fax: (0712) 2728028 Email- gmcchandrapur@gmail.com
29.	Government Medical College Near Indira Gandhi Stadium, Neharu Chowk, Gondia	Govt.	Tel: (07182) 238098 Fax: gmcgondiya@gmail.com Email- gmcgondiya@gmail.com
30.	N.K.P. Salve Institute of Medical Sci. & Research Center &Lata Mangeshkar Hospital, Near CRPF Camp, Digdoha Hills, Higan Road, Nagpur- 440 019.	Pvt.	Tel.- (07104) 236290-91 Fax- (07104) 232905 Email- nkpsims1@rediffmail.com
31.	Jawaharlal Nehru Medical College, Sawangi (Meghe), Wardha - 442 002.	Pvt.	Tel : (07152) 243542 / 245937 - 68 Fax : (07152) 244254
32.	Dr. Panjabrao Alias Bhausaheb Deshmukh Memorial Medical College, Shivaji Nagar, Amaravati-444 603.	Pvt.	Tel. - (0721) 2662303 / 2662323 Fax- (0721) 2660263 Email- drpdmmc@rediffmail.com
33.	Shri. Vasantrao Naik Govt. Medical College, Yavatmal- 445 001.	Govt.	Tel- (07232) 242456 / 240843 / 243504 Fax - (07232) 244148 Email- vngmclib@nagpur.dot.net.in
34.	M.G.I.M.S. Medical College, Sevagram, Wardha	Govt. Aided	Tel.- (07152) 284241 - 55 Fax- (07152) 284333 - 244179
35.	Govt. Medical College, Akola	Govt.	Tel - (0724) 2431960 / 2437078 Fax - (0724) 2437078 Email - acadgmca@hotmail.com
36.	Government Medical College, Pawan Chakki Road, Chhatrapati Sambhajinagar - 431 001.	Govt.	Tel - (0240) 2402412-16 Fax- (0240) 2402018 Email- deangmc@bom4.vsnl.net,in
37.	Government Medical College, Vazirabad, Nanded- 431 601.	Govt.	Tel- (02462) 235711-15 Fax- (02462) 235717 Email- gmcnanded@rediffmail.com
38.	Swami Ramanand Teerth Rural Medical College, Ambajogai, Dist- Beed - 431 517.	Govt.	Tel- (02446) 247031/247060 248438 / 247106 Fax -(02446) 247132 Email- kdchavan@sancharnet.in
39.	Maharashtra Institute Of Medical Sci. Research (Medical College & Hosp.) Vishwanathpuram, Ambajogai Road, Latur-413 512.	Pvt.	Tel.- (02382) 227422-24 Fax- (02382) 227246 Email:mitpune.maeerpune@gems.vsnl.net.in
40.	Mahatma Gandhi Missions medical College, N-6, CIDCO, Chhatrapati Sambhajinagar-431 003.	Pvt.	Tel.- (0240) 2483401 / 482236 Fax- (0240) 2484445 Email:mgmstpa@bom4.vsnl.net.in
41.	Government Medical College, Civil Hospital Campus, Latur- 412 513.	Govt.	Tel – (02382) – 247676 / 249292 Fax – (02382) – 249292
42.	R.C.S.M. Govt. Medical College, CPR. Hospital Compound, Dasara Chowk, Kolhapur - 416002	Govt.	Tel : (0231) 2641583 Fax : (0231) 2645279 Email: rcsmlib@yahoo.in
43.	Medical College Out of Maharashtra State		
44.	Any Other Government/Corporation Medical College/ Institution where undergraduate batch is completing internship by 30/09/2026.		
45.	Any other private medical college/ institute where undergraduate batch is completing internship by 30/09/2026.		

ANNEXURE "G"

General Instructions for filling online application Form

1.	Click Here - Process flow for NEET-PG - 2026
2.	Applicant should have a valid Email Id.
3.	Before filling Online Application Form Download INFORMATION BROCHURE and read the same carefully. Candidates ascertain the eligibility before filling application form and paying fees.
4.	Candidate should note the password given by Him/Her and keep in safe custody. It is necessary for further login. Safe custody of the password is the responsibility of candidate.
5.	Please note that if a candidate commits any mistake in filling the online Application Form, it cannot be corrected by this office. The Office will take no responsibility of any kind for such forms.
6.	The Applicant must possess the required criteria and education qualification as mentioned in the Information Brochure.
7.	Applicant email id and mobile number will be used for OTP based registration process and further correspondence.
8.	After reading above instructions to fill Online Application Form, the Applicant has to click Next button to display Online Application Form.
9.	Candidate should Login with Application No. (User Name) and his/her Unique Password **and verify the correctness of entries made in application form. There is provision to make changes in the Application Form before confirmation. There is no provision to make changes in the application form after confirmation. Candidate can pay registration fee online via Credit card / Debit Card or Internet banking. Online payment should be done tile last date stated in the Notice.**
10.	Candidate have to make Payment through Online Payment Gateway.
11.	After successful Payment, candidate should upload required Documents before the scheduled date. The candidate should pre-scan the documents, name it and keep ready on the desk. Instructions For the Image Upload is as follows • Size of each document must be less than 200 kb. • Width (Horizontal) of document must be GREATER THAN 400px • Height (Vertical) of document must be GREATER THAN 600px. • Document must be in .jpg or .jpeg Format only. **<u>Note</u> = To resize image, Open it in Paint. Click on <'Resize'>, select Pixels and specify Horizontal and Vertical values. Don`t use percentage.**
12.	**Office will do Online Scrutiny of uploaded Documents. Candidate who has not uploaded required document will not be considered for Admission Process. Or will not be eligible for constitutional reservation.**
13.	Applicant need not send copy of application form or any document to this office. However, candidate may take print out application form for His/Her subsequent use / record.

ANNEXURE "H"

Specimen Copy of Online Application form NEET-PG 2026.

GOVERNMENT OF MAHARASHTRA

State Common Entrance Test Cell, Maharashtra State

CET-CELL APPLICATION DETAILS

Application No:	221000002
Session Name:	NEET-PGM-2022 (ROUND 1)

NEET-PG DETAILS

NEET Roll No.: रोल नंबर :	1111111111	NEET Application No.: अर्ज क्र.:	22222222	Date Of Birth: जन्मतारीख :	05-02-1990
All India NEET - PG 2022 Rank : अखिल भारतीय NEET - PG 2022 रँक :	1	NEET Marks: नीट गुण :	501		

PERSONAL INFORMATION

Full name of Candidates (As per NEET Score Card): उमेदवाराचे नाव :	LAKHAN WATHORE
Wheather your name is changed or updated after 10th or equilent qualification or after marriage ?: दहावीनंतर किंवा पात्रतेनंतर किंवा लग्नानंतर तुमचे नाव बदलले किंवा अद्ययावत केले आहे का ?:	NO

Father's Name: वडिलांचे नाव:	LAKHAN	Mother's Name: आईचे नाव :	REKHABAI	Gender: लिंग :	MALE
Date Of Birth: जन्मतारीख :	05-02-1990	Mobile: भ्रमणध्वनी	9765572248	Email-ID: ई-मेल :	LAKHANWATHORE05@GMAIL.COM
Alternate Contact No: अतिरिक्त भ्रमणध्वनी :	1212121212	Aadhar Card No.: आधार कार्ड क्र.:	121212121213		

PERMANENT ADDRESS (स्थायी पत्ता)

Address Line 1 : पत्ता ओळ 1:	LINE 1	Address Line 2 : पत्ता ओळ 2:	LINE 2	Address Line 3 : पत्ता ओळ 3:	LINE 3
City: शहर :	LINE	State: राज्य :	ASSAM	District: जिल्हा :	CACHAR
Taluka: तालुका :	DALU	Pin Code: पिन कोड :	788111		

PRESENT ADDRESS (वर्तमान पत्ता)

Address Line 1 : पत्ता ओळ 1:	LINE 4	Address Line 2 : पत्ता ओळ 2:	LINE 5	Address Line 3 : पत्ता ओळ 3:	LINE 6
City: शहर :	LINE 7	State: राज्य :	BIHAR	District: जिल्हा :	BEGUSARAI
Taluka: तालुका :	KHAGARIA	Pin Code: पिन कोड :	848201		

RESERVATION

Does the Candidate want to Apply as NRI Candidate? : उमेदवाराला अनिवासी भारतीय उमेदवार म्हणून अर्ज करायचा आहे का ?:	YES

Candidate is NRI Himself / Herself: उमेदवार स्वत एनआरआय आहे का ?:	NO	Candidate is Ward of NRI : उमेदवार हा अनिवासी भारतीयाचा पाल्य आहे का ?:	YES

07-09-2022 08:15:PM 1

Nationality of the Candidate : उमेदवाराचे राष्ट्रीयत्व :			INDIAN		
Category Of the Candidate: उमेदवाराची श्रेणी :			OPEN		
Are you a Person With Disability (PWD)? : तुम्ही दिव्यांग आहात का (अपंग व्यक्ती):	YES	Is the candidate an orphan ? उमेदवार अनाथ आहे का ?:	NO	Do you want to claim Minority Quota ? तुम्हाला अल्पसंख्याक कोट्याचा दावा करायचा आहे का ?:	NO

INSERVICE QUOTA

Whether applying for Inservice Quota?: इन्सर्व्हिस कोट्यासाठी अर्ज करत आहे का ?:			YES
A) Specify the Establishment: स्थापना निर्दिष्ट करा:	DMER	B) If Yes, then write the Date of Joining Permanent Service (DD/MM/YYYY): जर होय, तर कायम सेवेत सामील होण्याची तारीख लिहा :	07-09-2022
Posting address and details of the Permanent Service: पोस्टिंग पत्ता आणि कायम सेवेचा तपशील :	F	Have you obtained NOC from respective Establishment: तुम्ही संबंधित आस्थापनेकडून एनओसी घेतली आहे का ?:	YES
Noc Issuing Date : एनओसी जारी करण्याची तारीख :	02-05-2022	Is any Departmental Enquiry is initiated/Pending: कोणतीही विभागीय चौकशी सुरू/प्रलंबित आहे का :	YES
Departmental Enquiry: विभागीय चौकशी :	FFF		

PREVIOUS COLLEGE INFORMATION

Date of passing final MBBS Degree Examination: अंतिम एमबीबीएस पदवी परीक्षा उत्तीर्ण होण्याची तारीख :	01-01-2015	Aggregate Percentage % of Marks Obtained in MBBS Degree: एमबीबीएसपदवीमध्ये प्राप्त गुणांची एकूण टक्केवारी :	65	Date of Internship On or Before 31/07/2022: इंटर्नशिपची तारीख 31/07/2022 रोजी किंवा त्यापूर्वी	10-01-2020
Whether the Candidate is Admitted and is Pursuing MCI Recognise Diploma Course ?: उमेदवार प्रवेशित आहे की नाही आणि एमसीआय मान्यताप्राप्त पीजी डिप्लोमा कोर्स करीत आहे का ?:				COMPLETED	
Subject of Diploma डिप्लोमा विषय :				D.T.C.D.	
Whether the Candidate is Admitted and is pursuing MCI Recognise PG Degree Course ?: उमेदवार प्रवेशित आहे की नाही आणि एमसीआय मान्यताप्राप्त पदवी अभ्यासक्रम चेत आहे की नाही :				COMPLETED	
Subject of Degree: पदवीचा विषय :				NUCLEAR MEDICINE	
Whether the Candidate has passed MBBS Degree from College situted in Maharashtra State/AIIMS/Central Govt. Institutation ?: उमेदवाराने महाराष्ट्र राज्य / एम्स / केंद्र सरकार मध्ये स्थित महाविद्यालयातून एमबीबीएस पदवी उत्तीर्ण केली आहे की नाही.:				YES	
Select College Type:: कॉलेज प्रकार निवडा :				AIIMS OR CENTRAL GOVT INSTITUTION	
Name of the Medical College: भारताबाहेरील किंवा महाराष्ट्राबाहेरील वैद्यकीय महाविद्यालयाचे नाव :				FFF	

Name of the University: विद्यापीठाचे नाव भारताबाहेर किंवा महाराष्ट्र राज्याबाहेर :	**FFF**
Whether the Candidate has passed MBBS Degree under 15% All India Quota/AIIMS/Central Govt. Institute from Medical College Outside Maharashtra State ?: उमेदवाराने महाराष्ट्र राज्याबाहेरील वैद्यकीय महाविद्यालयातून 15% अखिल भारतीय कोटा / एम्स / केंद्र सरकार संस्थेअंतर्गत एमबीबीएस /एमबीबीएस पदवी उत्तीर्ण केली आहे का ?:	**YES**

DETAILS OF BOND SERVICE

Has the candidate completed Bond Service or Candidate has Paid Bond penaltyin case Candidate has completed MBBS degree from Government College/Corporation College उमेदवाराने बॉड सेवा पूर्ण केली आहे किंवा उमेदवाराने शासकीय महाविद्यालय / महानगरपालिका महाविद्यालयातून एमबीबीएस पदवी पूर्ण केली असल्यास त्याने बॉड दंड भरला आहे ::	**NOT APPLICABLE**

PREVIOUS ATTEMPT OF NEET-PG

Details of Previous NEET PG Attempted by the Candidate: मागील PG चे तपशील NEET PG उमेदवाराने प्रयत्न केला :	**2018**

MEDICAL COUNCIL REGISTRATION

Has Candidate Registered with MCI/MMC/Other State Medical Council: MCI/MMC/इतर राज्य वैद्यकीय परिषदेत उमेदवार नोंदणीकृत आहे :	**APPLIED**	Medical Council Registration No. / Receipt No वैद्यकीय परिषद नोंदणी क्रमांक / पावती क्र :	**HHHHH**

SECURITY DEPOSITE

Do you want to Apply For which of the following seat? : तुम्हाला खालीलपैकी कोणत्या जागेसाठी अर्ज करायचा आहे ?:	**PRIVATE SEATS**	Security deposit amount: सुरक्षा जमा रक्कम :	**0 /-**

REQUIRED DOCUMENTS

SR. NO.	DOCUMENT NAME	STATUS
1	Application Form for State NEET-PG-2022	NOT UPLOADED
2	Admit Card of NEET-PG-2022	NOT UPLOADED
3	Any Original Photo ID (Aadhaar Card/Driving Licence/Pan Card/Passport)	NOT UPLOADED
4	NEET-PG-2022 Statement of Marks	NOT UPLOADED
5	Nationality Certificate/Valid Indian Passport or H.S.C (or Equivalent) School Leaving Certificate	NOT UPLOADED
6	Internship Completion Certificate/likely to be completed on 31/07/2022	NOT UPLOADED
7	MBBS Degree/Passing Certificate	NOT UPLOADED
8	Permanent/Provisional Registration MMC/MCI/Receipt of Application	NOT UPLOADED
9	Certificate from Head of institute showing that the Medical College/Institute from which the candidate has passed MBBS examination is recognized by Medical Council of India	NOT UPLOADED
10	Medical Fitness Certificate (Annexure - M)(As per NEET PG-2022 Information Brochure)	NOT UPLOADED

ANNEXURE "I"

Specimen Copy of Online Preference Form

GOVERNMENT OF MAHARASHTRA

State Common Entrance Test Cell, Maharashtra State

Personal Details		CET-CELL Application Details	
Name:	Karuna Narayan Morajkar	Application No:	H7YYY88
Mobile No.:	+91 7738303070	Session Name:	NEET-PGM-2022 (ROUND 1)

NEET-PGD Details					
NEET Roll No.:	HHR78789NN	NEET Application No.:	LLAWE7877	Date Of Birth:	01/01/1987
NEET Rank:	34	NEET Marks:	67		

Preference No.	Preference Code	College Name	Subject	Quota
1	0101S	Grant Medical College	MD Medicine	STATE
2	0201S	Seth G.S. Medical College	MD Dermatology	STATE
3	0402S	Lokmanya Tilak Medical College	MD Chest & TB / Respiratory medicine	STATE
4	0401I	Topiwala National Medical College	MD Psychiatry	INSTITUTE
5	0403I	Hinduhridaysamrat Balasaheb Thackeray Medical College and Dr.R.N. Cooper Municipal General Hospital	MD Peadiatrics	INSTITUTE
6	0302S	Rajiv Gandhi Medical College and Chhatrapati Shivaji Maharaj Hospital	MS Surgery	STATE
7	0303N	B.J. Medical College	MS Orthopedics	NRI
8	0304N	Pimpri Chinchwad Municipal Corporation Postgraduate Institute	MS E.N.T./Otorhinolaryngology	NRI
9	0504I	Dr.V.M. Medical College	MS Ophthalmology	INSTITUTE
10	0502I	Govt. Medical College	MD Radiology	INSTITUTE
11	0203S	R.C.S.M. Government Medical College	MD Anesthesia	STATE
12	0204N	Shri. Bhausaheb Hire Govt. Medical College	MS OBGY	NRI
13	1002N	Govt. Medical College	MD Radiotherapy	NRI
14	0602N	Indira Gandhi Govt. Medical College	MD Anatomy	NRI
15	0604N	Shri Vasantrao Naik Govt. Medical College	MD Physiology	NRI
16	0101I	Govt. Medical College	MD Pharmacology	INSTITUTE
17	0202I	Govt. Medical College	MD Microbiology	INSTITUTE
18	0303S	Govt. Medical College	MD P.S.M./Community Medicine	STATE
19	0204I	Swami Ramanand Teerth Rural Medical College	MD Forensic Medicine	INSTITUTE
20	0204S	Government Medical College	MD Pathology	INSTITUTE

ANNEXURE – "J"

Internship Completion Certificate

(Certificate to be issued by the Dean of Parent College)

This is to certify that Dr..... was/is a Bonafide student of this college. He/She passed his/her final MBBS examination held in ..... from .....University. He/she has done internship training from .....to.....

Or

He/she is doing internship training from ..... to .....

Seal/Stamp of the College **Signature of Dean/Principal**

Date : / /

Place : _____

ANNEXURE – "K"

Proforma for Resignation of admission to Medical Post-graduate Courses 2026-2027

To,
The Commissioner,
State CET CELL,
8th Floor, New Excelsior Building, A. K. Nayak Marg,
Fort, Mumbai – 400 001

(Through Dean/Principal)

Sub: Resignation of Post-graduate Admission.

Respected Sir,

I, Dr. _____ SML No._____has been admitted for _____ PG course in the subject of _____ at _____ on _____ under _____ category.

Now I wish to resign the above mentioned PG admission for following reasons:

(1) I have secured admission to PG course through other Competent Authority (Course _____ Institute _____). OR

(2) I wish to resign it for personal reasons.

I hereby tender my voluntary resignation. I am abide by the rules and regulations regarding fees, bond and penalty conditions, as per NEET-PG 2026 brochure.

Thanking you

Yours faithfully,

Date:

Place: **Signature of the Candidate**

Name and Address of the candidate:	**For Office use only:**
.....	Amount Paid Rs. .....
.....	Amount deducted Rs. .....
.....	Amount refunded Rs. .....
Pin Code:	Cheque No. & Date .....
Tel No.:	Bank Particulars .....

Note:

This blank form to be Xeroxed and to be filled in triplicate, one copy to be sent to the Competent Authority by the college, one copy to be retained by the college, one copy to be retained by the candidate.

ANNEXURE "L"

Status Retention Form

NEET-PG 2026

Candidate's Name : _____SML.No _____Roll.No. : _____

Institute / College _____ Course: _____

To,
The Commissioner,
State CET Cell,
8th Floor, New Excelsior Building, A. K. Nayak Marg,
Fort, Mumbai – 400 001

Sir/Madam,

I, Dr._____ wish to retain the seat allotted to me at _____ for _____ Course for the academic year 2026.

DECLARATION

I am fully aware that after submitting this Status Retention Form, I will not be considered for any subsequent rounds of selection process for the year 2026. I also declare that I will not ask for reconsideration of my name for further selection process.

Date :

Place : **Signature of Candidate**

Submitted for necessary action

Date :

Place : **Signature of Dean /Principal (with seal)**

Note:

This blank form to be Xeroxed and to be filled in triplicate, one copy to be sent to the Competent Authority by the college, one copy to be retained by the college, one copy to be retained by the candidate.

ANNEXURE – "M"

✂.....

CERTIFICATE OF MEDICAL FITNESS

This is to certify that I have conducted clinical examination of Dr. ..... who is desirous of admission to Medical Post-graduate Courses.

He/she has not given any personal history of any disease incapacitating him/her to undergo the professional course. Also, on clinical examination it has been found that he/she is medically fit to undergo the medical post-graduate course (NEET-PG 2026).

(1) Absence of any incapacitating and /or progressive systematic disease/disorder / condition,
(2) Absence of any disability of upper limb/s,
(3) Absence of any major visual/auditory disability,
(4) Absence of psychosis/neurosis/mental retardation,
(5) Ability to maintain erect posture,
(6) Reasonable manual dexterity.

Address of the Registered Medical Practitioner	Signature
	Name
	Registration No.
Date	Seal of Registered Medical Practitioner

✂.....

Note:

A candidate must be medically fit to undergo the Medical Post-graduate Courses (NEET-PG 2026) applied for. The medical fitness must be certified by a Registered Medical Practitioner in the prescribed Proforma, as given above on a **Letterhead.**

ANNEXURE – "N"

Government of Maharashtra

COMMISSIONERATE, COMMON ENTRANCE TEST CELL, MUMBAI

NEET-PG 2026– Document Verification Process

SCRUTINY FORM

Scrutiny Center :

Candidate's Name : _____NEET RANK NO.: _____

Category: _____ NEET Roll No.: _____ NEET PERCENTILE MARKS : _____

Signature of Candidate

(Arrange the set of original certificates and one set of attested photocopies separately in the order given below for verification)

(For Office Use only)

Remarks:

Eligible : Yes / No

If NO, reason(s) _____

_____

Any other remarks: _____

_____

_____

_____

Name & Signature of Scrutiny Officer

- ☐ Online downloaded application form for State NEET-PG 2026
- ☐ Copy of downloaded Admit Card for NEET-PG 2026
- ☐ Any Photo ID proof (Aadhar Card/Driving Licence, Pan Card, Passport)
- ☐ Copy of downloaded NEET-PG 2026 Statement of Mark
- ☐ Nationality Certificate / Valid Passport or HSC School Leaving Certificate
- ☐ Domicile Certificate of State of Maharashtra
- ☐ Internship Completion Certificate
- ☐ MBBS degree / passing Certificate
- ☐ Permanent Registration MMC/NMC/Receipt of Application
- ☐ Certificate from Head of Institute showing that the Medical College/ Institute from which the candidate has passed MBBS examination is recognized by National Medical Commission
- ☐ Medical Fitness Certificate

If applicable

- ☐ Caste Certificate
- ☐ Caste Validity Certificate
- ☐ Non-creamy Layer Certificate valid up to 31/03/2027 or later (DT(VJ), NT1, NT2, NT3, OBC, SBC & SEBC)
- ☐ Domicile Certificate of Maharashtra (MBBS outside Maharashtra) for 15% AIQ Candidates
- ☐ Certificate from Dean for 15% AIQ Candidates
- ☐ Disability Certificate (for PWD candidates)
- ☐ EWS eligibility certificate for A.Y 2026-27

Signature of Scrutiny Clerk

APPLICABLE FOR RESERVED CATEGORY CANDIDATES (EAR-MARKING)

In pursuance of the "Ear-Marking Rule" of NEET-PG 2026 Brochure, I hereby exercise my option and opt for _____ seat as and when I am entitled to admission on the basis of merit in an open category seat, as per my Preference form.

Date: / /2026 **Signature of Candidate**

ANNEXURE -"O"

Guidelines for granting admission in NRI quota, to be followed Strictly, while granting admissions to Health Science courses.

"जनहिताय सर्वदा"

महाराष्ट्र शासन

उच्च व तंत्र शिक्षण विभाग,

४ था मजला, मंत्रालय (विस्तार), मादाम कामा मार्ग, हुतात्मा राजगुरु चौक, मुंबई - ४०० ०३२.

दूरध्वनी क्र. ०२२०४०९३५ Email ID: tashi4-hted@mah.gov.in

क्र.प्रवेश-२०२५/प्र.क्र.१०२/तांशि-४ दिनांक : २६ जून, २०२५

प्रति,

१) आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष, महाराष्ट्र राज्य, मुंबई
२) संचालक, उच्च शिक्षण संचालनालय, महाराष्ट्र राज्य, पुणे
३) संचालक, तंत्र शिक्षण संचालनालय, महाराष्ट्र राज्य, मुंबई
४) संचालक, कला संचालनालनय, महाराष्ट्र राज्य, मुंबई

विषय:- महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ मधील "अनिवासी भारतीय" (NRI) च्या व्याख्येमध्ये करण्यात आलेल्या सुधारणेबाबत..

महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ मधील "अनिवासी भारतीय" (NRI) च्या व्याख्येमध्ये सुधारणा करण्यासाठी "महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) (सुधारणा) अध्यादेश, २०२५ हा दि.२५.०६.२०२५ रोजी प्रख्यापित करण्यात आलेला आहे. सदर अध्यादेशाची मराठी व इंग्रजी प्रत सोबत जोडली आहे.

"अनिवासी भारतीय" (NRI) च्या व्याख्येमध्ये उपरोक्तप्रमाणे करण्यात आलेली सुधारणा विद्यार्थी, पालक, सर्व संबंधित शैक्षणिक संस्था व इतर संबंधित घटक यांच्यापर्यंत पोहचविणे आवश्यक आहे. तरी, सदर सुधारणेसंदर्भातील माहिती सर्व संबंधित घटकांपर्यंत पोहचण्याच्या अनुषंगाने सदरहू सुधारणेस व्यापक प्रसिध्दी देण्यात यावी. तसेच, या अनुषंगाने पुढील आवश्यक ती कार्यवाही तात्काळ करावी.

(संतोष खोरगडे)
सह सचिव, महाराष्ट्र शासन

प्रत पुढील तात्काळ आवश्यक कार्यवाहीस्तव अग्रेषित:-

१) प्रधान सचिव, कृषि व पदुम विभाग, मंत्रालय, मुंबई
२) सचिव, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, मंत्रालय, मुंबई

प्रत माहितीस्तव अग्रेषित :-

१) मा.मंत्री (उच्च व तंत्र शिक्षण) यांचे खाजगी सचिव, मंत्रालय, मुंबई
२) मा.राज्यमंत्री (उच्च व तंत्र शिक्षण) यांचे खाजगी सचिव, मंत्रालय, मुंबई
३) मा.अपर मुख्य सचिव, उच्च व तंत्र शिक्षण यांचे स्वीय सहायक, मंत्रालय, मुंबई
४) प्रधान सचिव (विधि व न्याय विभाग) यांचे स्वीय सहायक, मंत्रालय, मुंबई
५) सहसचिव / उप सचिव (तंशि/मशि/विशि) यांचे स्वीय सहायक, मंत्रालय, मुंबई
६) निवडनस्ती (तांशि-४)

RNI No. MAHBIL /2009/35530

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग चार

वर्ष ११, अंक १३] बुधवार, जून २५, २०२५/आषाढ ४, शके १९४७ [पृष्ठे ३, किंमत : रुपये २३.००

असाधारण क्रमांक ३५

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम.

अनुक्रमणिका

सन २०२५ चा महाराष्ट्र अध्यादेश क्रमांक ६.—महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रदेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ यात आणखी सुधारणा करण्यासाठी अध्यादेश.	पृष्ठे १-३

उच्च व तंत्र शिक्षण विभाग

मंत्रालय, मादाम कामा मार्ग, हुतात्मा राजगुरू चौक, मुंबई ४०० ०३२,
दिनांक २५ जून २०२५.

MAHARASHTRA ORDINANCE No. VI OF 2025.

AN ORDINANCE

FURTHER TO AMEND THE MAHARASHTRA UNAIDED PRIVATE PROFESSIONAL EDUCATIONAL INSTITUTIONS (REGULATION OF ADMISSIONS AND FEES) ACT, 2015.

सन २०२५ चा महाराष्ट्र अध्यादेश क्रमांक ६.

महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ यात आणखी सुधारणा करण्यासाठी अध्यादेश.

ज्याअर्थी, राज्य विधानमंडळाच्या दोन्ही सभागृहांचे अधिवेशन चालू नाही ;

आणि ज्याअर्थी, यात यापुढे दिलेल्या प्रयोजनांकरिता, महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ यात आणखी सुधारणा करण्यासाठी महाराष्ट्राच्या राज्यपालांनी तात्काळ कार्यवाही करणे जीमुळे आवश्यक व्हावे अशी परिस्थिती अस्तित्वात असल्याबद्दल त्यांची खात्री पटली आहे; २०१५चा महा. २८.

त्याअर्थी, आता, भारताच्या संविधानाच्या अनुच्छेद २१३ च्या खंड (१) द्वारे प्रदान केलेल्या अधिकारांचा वापर करून, महाराष्ट्राचे राज्यपाल, याद्वारे, पुढील अध्यादेश प्रख्यापित करीत आहेत :–

संक्षिप्त नाव व प्रारंभ.

१. (१) या अध्यादेशास, महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) (सुधारणा) अध्यादेश, २०२५, असे म्हणावे.

(२) तो, तात्काळ अंमलात येईल.

सन २०१५ चा महाराष्ट्र अधिनियम क्रमांक २८ याच्या कलम २ ची सुधारणा.

२. महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ याच्या कलम २ मधील, खंड (ढ) ऐवजी, पुढील खंड दाखल करण्यात येईल :– २०१५ चा महा. २८.

"(ढ) "अनिवासी भारतीय (एनआरआय)" याचा अर्थ, जी व्यक्ती, आयकर अधिनियम, १९६१ याच्या कलम ६ च्या पोट-कलम (६) अन्वये व्याख्या केल्याप्रमाणे, "सर्वसाधारण रहिवासी नाही" आणि त्यानुसार जिला, विदेशातील भारतीय राजदूतावासाकडून किंवा केंद्राकडून अनिवासी भारतीय प्रमाणपत्र देण्यात आले आहे ती व्यक्ती, असा आहे आणि त्यात, पालक आणि पाल्य अधिनियम, १८९० अन्वये व्याख्या केल्याप्रमाणे, तिच्या बालकाचा किंवा पाल्याचा समावेश होतो;". १९६१ चा ४३. १८९० चा ८.

निवेदन

महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ (२०१५ चा महा. २८) यामध्ये महाराष्ट्र राज्यातील विनाअनुदानित खाजगी व्यावसायिक शिक्षण संस्थांमधील प्रवेशाचे व शुल्काचे विनियमन करण्यासाठी आणि त्याच्याशी संबंधित किंवा तदानुषंगिक बाबींसाठी तरतूद केली आहे.

२. या अधिनियमामध्ये, इतर गोष्टींबरोबरच, अनिवासी भारतीय (एनआरआय) कोट्याअंतर्गत व्यावसायिक शैक्षणिक पाठ्यक्रमांमध्ये प्रवेशासाठी जागांचे वाटप करण्याची तरतूद केली आहे. उक्त अधिनियमाच्या कलम २ च्या खंड (ढ) मध्ये "अनिवासी भारतीय (एनआरआय)" या संज्ञेची व्याख्या केली आहे.

३. खरे अनिवासी भारतीय उमेदवार, महाराष्ट्र राज्यातील अनिवासी भारतीय (एनआरआय) कोट्याअंतर्गत व्यावसायिक शैक्षणिक पाठ्यक्रमांमध्ये प्रवेश मिळविण्याच्या संधीपासून अनेकदा वंचित राहत असल्याचे निदर्शनास आले आहे. म्हणून, उक्त अधिनियमातील अनिवासी भारतीय (एनआरआय) या संज्ञेच्या व्याख्येत सुयोग्य सुधारणा करणे इष्ट आहे, असे वाटते, जेणेकरून ही व्याख्या, पी. ए. इनामदार या प्रकरणात माननीय सर्वोच्च न्यायालयाने निर्धारित केलेल्या कायद्याशी सुसंगत असावी, ज्यामध्ये असे देखील प्रतिपादन केले आहे की,–

"जे लोक इतर देशांमध्ये स्थलांतरित झालेले आहेत, त्या भारतीय वंशाच्या लोकांची, त्यांच्या मुलांना त्यांच्या स्वतःच्या देशात राहून केवळ शिक्षणच मिळत नाही तर, भारतीय सांस्कृतिक मूल्यांशीदेखील ते पुन्हा जोडले जात असल्याने, त्यांच्या मुलांना त्यांच्या स्वतःच्या देशात परत आणण्याची इच्छा असते. त्यांच्या मुलांच्या शिक्षणावर ते इतरत्र खर्च करणार असलेला पैसा त्यांच्या स्वतःच्या मातृभूमीपर्यंत पोहोचावा अशी-देखील त्यांची इच्छा असते. आमच्या मते, १५% पेक्षा अधिक नसलेले अशा जागांचे मर्यादित आरक्षण, दोन शर्तींच्या अधीन राहून व्यवस्थापनाच्या स्वेच्छानिर्णयानुसार, अनिवासी भारतीयांना (एनआरआय) उपलब्ध करून देता येईल. प्रथम, अशा जागांचा वापर केवळ अनिवासी भारतीयांना (एनआरआय) आणि त्यांच्या मुलांसाठी किंवा पाल्यांसाठी प्रामाणिकपणे झाला पाहिजे. दुसरे म्हणजे, या कोट्यात, गुणवत्तेला पूर्णपणे फाटा देऊ नये.".

४. २०२५-२०२६ या शैक्षणिक वर्षांसाठी महाराष्ट्र राज्यातील विविध व्यावसायिक शैक्षणिक पाठ्यक्रमांची प्रवेश प्रक्रिया लवकरच सुरू होईल. म्हणून, उक्त अधिनियमामध्ये तात्काळ सुधारणा करणे इष्ट आहे, असे वाटते.

५. राज्य विधानमंडळाच्या दोन्ही सभागृहांचे अधिवेशन चालू नाही आणि उपरोक्त प्रयोजनांसाठी महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ यात आणखी सुधारणा करण्याकरिता, महाराष्ट्राच्या राज्यपालांनी तात्काळ कार्यवाही करणे जीमुळे आवश्यक व्हावे अशी परिस्थिती अस्तित्वात असल्याबद्दल त्यांची खात्री पटली आहे, म्हणून, हा अध्यादेश प्रख्यापित करण्यात येत आहे.

मुंबई,
दिनांक २४ जून २०२५.

सी. पी. राधाकृष्णन,
महाराष्ट्राचे राज्यपाल.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

बी. वेणुगोपाल रेड्डी,
शासनाचे अपर मुख्य सचिव.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष ११, अंक २०] बुधवार, जून २५, २०२५/आषाढ ४, शके १९४७ [पृष्ठे ३, किंमत : रुपये २७.००

असाधारण क्रमांक ४७

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्राख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधी व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) (Amendment) Ordinance, 2025 (Mah. Ord. No. VI of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

(Translation in English of the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) (Amendment) Ordinance, 2025 (Mah. Ord. VI of 2025), published under the authority of the Governor).

HIGHER AND TECHNICAL EDUCATION DEPARTMENT

Mantralaya, Madam Cama Marg, Hutatma Rajguru Chowk,
Mumbai 400 032, dated the 25th June 2025.

MAHARASHTRA ORDINANCE No. VI OF 2025.

AN ORDINANCE

further to amend the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015.

WHEREAS both Houses of the State Legislature are not in session;

AND WHEREAS the Governor of Maharashtra is satisfied that circumstances exist which render it necessary for him to take immediate action further to amend the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015, for the purposes hereinafter appearing ;

Mah. XXVIII of 2015.

NOW, THEREFORE, in exercise of the powers conferred by clause (*1*) of article 213 of the Constitution of India, the Governor of Maharashtra is hereby pleased to promulgate the following Ordinance, namely :—

Short title and commencement.

1. (*1*) This Ordinance may be called the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) (Amendment) Ordinance, 2025.

(*2*) It shall come into force at once.

Amendment of section 2 of Mah. XXVIII of 2015.

2. In section 2 of the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015, for clause (*n*), the following clause shall be substituted, namely :— Mah. XXVIII of 2015.

"(*n*) "Non-Resident Indian (NRI)" means, a person who is "not ordinary resident" as defined under sub-section (*6*) of section 6 of the Income Tax Act, 1961 and has been issued a Non-Resident Indian certificate accordingly by an Indian Mission or Post abroad and includes his child or ward as defined in the Guardians and Wards Act, 1890 ;". 43 of 1961. 8 of 1890.

STATEMENT

The Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015 (Mah. XXVIII of 2015), provides for regulation of admissions and fees by Unaided Private Professional Educational Institutions in the State of Maharashtra and for matters connected therewith or incidental thereto.

2. The Act, *inter-alia*, provides for allocation of the seats for admission to professional educational courses under the Non-Resident Indian (NRI) quota. The term "Non-Resident Indian (NRI)" is defined in clause (*n*) of section 2 of the said Act.

3. It is observed that, the genuine NRI candidates are often deprived of the opportunity to seek admission in professional educational courses under the Non-Resident Indian (NRI) quota in the State of Maharashtra. Therefore, it is considered expedient to amend the definition of the term "Non-Resident Indian (NRI)" in the said Act, with a view to bring the same in consonance with the law laid down by the Hon'ble Supreme Court in the case of P. A. Inamdar, wherein it has been observed that–

"It was also pointed out that people of Indian origin, who have migrated to other countries, have a desire to bring back their children to their own country as they not only get education but also get reunited with Indian cultural ethos by virtue of being here.They also wish the money which they would be spending elsewhere on education of their children should rather reach their own motherland. A limited reservation of such seats, not exceeding 15%, in our opining, may be available to NRIs depending on the discretion of the management subject to two conditions. First, such seats should be utilized *bona fide* by the NRIs only and for their children or wards. Secondly, within this quota, the merit should not be given a complete go-by.".

4. The process for admission to various professional educational courses in the State of Maharashtra for the academic year 2025-2026 will start in the immediate future. It is, therefore, considered expedient to amend the said Act, immediately.

5. As both Houses of the State Legislature are not in session and the Governor of Maharashtra is satisfied that circumstances exist which render it necessary for him to take immediate action further to amend the Maharashtra Unaided Private Professional Educational Institutions (Regulation Admissions and Fees) Act, 2015, for the purposes aforesaid, this Ordinance is promulgated.

Mumbai,
Dated the 24th June 2025.

C. P. RADHAKRISHNAN,
Governor of Maharashtra.

By order and in the name of the
Governor of Maharashtra,

B. VENUGOPAL REDDY,
Additional Chief Secretary to Government.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

ANNEXURE -"P"

Government Resolution regarding cancellation of social responsibility service for the students who have passed MBBS degree

वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम पूर्ण केल्यानंतर करावयाच्या सामाजिक दायित्व सेवेची अट रद्द करणेबाबत.

महाराष्ट्र शासन
वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन निर्णय क्रमांक.एमईडी १०२६/प्र.क्र.२३९/२६/शिक्षण-२
गो.ते.रुग्णालयाची नवीन इमारत,९ वा मजला,गो.ते. रुग्णालय संकुल,
लोकमान्य टिळक मार्ग,नवीन मंत्रालय,मुंबई ४०० ००१
दिनांक:- २३/०७/२०२६

संदर्भ-:
१. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१००६/सीआर-५/०६/शिक्षण-२, दिनांक ३१/०७/२००६.
२. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१००७/सीआर-४९०/०७/शिक्षण-२, दिनांक ०८/०२/२००८.
३. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक डब्ल्यूपीएम-१०११/प्र.क्र.३५२/११/शिक्षण-२, दिनांक ०४/०४/२०१२.
४. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक मुमंस-३३१६/प्र.क्र.३१/१६/शिक्षण-२, दिनांक २५/१०/२०१६.
५. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१०१५/प्र.क्र.२४१/१५/शिक्षण-२, दिनांक २२/०९/२०१७.
६. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१०१७/प्र.क्र.१७१/१७/शिक्षण-२, दिनांक १२/१०/२०१७.
७. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१०१७/प्र.क्र.१७१/१७/शिक्षण-२, दिनांक २४/११/२०१७.
८. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१०१६/प्र.क्र.३४५/१६/शिक्षण-२, दिनांक ०५/०१/२०१८.
९. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१०१७/प्र.क्र.४५५/१७/शिक्षण-२, दिनांक १२/०६/२०१८.
१०. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक एमईडी-१०२१/प्र.क्र.१२८/२१/शिक्षण-२, दिनांक १३/०६/२०२२.

<u>प्रस्तावना :-</u>

शासकीय/ महानगरपालिकेच्या वैद्यकीय महाविद्यालयांत वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम शिकणा-या तसेच शासन अनुदानित व खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयांत शासनाच्या विविध विभागांकडून देण्यात येणा-या शिष्यवृत्ती प्रतिपूर्ती योजनेचा लाभ घेऊन वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम शिकणा-या विद्यार्थ्यांच्या शिक्षणावर शासनाकडून/महानगरपालिकांकडून मोठ्या प्रमाणावर खर्च केला जातो. विद्यार्थ्यांच्या शिक्षणावर शासन/महानगरपालिका करीत असलेला खर्च हा जनतेकडून आकारण्यात येत असलेल्या कराच्या उत्पन्नातून भागविला

जात असल्याने जनतेच्या ऋणांची काही अंशी परतफेड व्हावी, या उद्देशाने वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम पूर्ण झाल्यानंतर अशा विद्यार्थ्यांकडून शासकीय/स्थानिक स्वराज्य संस्था/संरक्षण दलाची एक वर्षाची सामाजिक दायित्व सेवा पूर्ण करण्याबाबतचे बंधपत्र लिहून घेण्यात येत होते.

तथापि, सद्यस्थितीप्रमाणे राज्यात वैद्यकीय महाविद्यालयांची वाढलेली संख्या, त्यातून दरवर्षी उत्तीर्ण होणारे विद्यार्थी व सदर विद्यार्थ्यांना विहीत कालावधीत सामाजिक दायित्व सेवा उपलब्ध करुन देण्यासाठी असलेली शासनाच्या विविध विभागातील मर्यादित पदसंख्या यांचे व्यस्त प्रमाण विचारात घेता,संबंधित विद्यार्थी/ उमेदवार सामाजिक दायित्व सेवेकरीता पात्र असून देखील त्यांना विहीत वेळेत सामाजिक दायित्व सेवा उपलब्ध करुन देता येत नाही. परिणामी अनेक उमेदवारांना पात्रता असून देखील सामाजिक दायित्व सेवा पूर्ण नसल्यामुळे वैद्यकीय पदव्युत्तर पदवी अभ्यासक्रमास आवश्यक प्रवेश पात्रतेची अट पूर्ण करण्यास अडचणी येत आहेत.

तसेच नव्याने उत्तीर्ण उमेदवार हे वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रमानंतर केवळ पदव्युत्तर पदवी अभ्यासक्रमासाठी पात्र होण्यासाठी सामाजिक दायित्व सेवा पूर्ण करीत असल्याचे निदर्शनास आले आहे. त्यामुळे नियुक्तीच्या ठिकाणी ते पूर्ण क्षमतेने वैद्यकीय सेवा देत नाहीत. सदर उमेदवार हे वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम नुकतेच उत्तीर्ण झालेले असल्याने ते आपत्कालीन सेवा देण्यास देखील पुरेसे सक्षम नसतात.

प्रस्तुत विषयाच्या अनुषंगाने मा. मुख्यमंत्री महोदयांच्या अध्यक्षतेखाली दिनांक ०९/०७/२०२५ रोजी मंत्रिमंडळ सभागृह, विधान भवन, मुंबई येथे आयोजित बैठकीत झालेल्या चर्चेस अनुसरुन, वैद्यकीय पदवी अभ्यासक्रम पूर्ण केल्यानंतर करावयाची एक वर्षाची सामाजिक दायित्व सेवा याबाबत विभागाच्या धोरणाचा पुनर्विचार करुन सदर धोरण रद्द करण्याचा प्रस्ताव सार्वजनिक आरोग्य विभागाने सहमतीसह वैद्यकीय शिक्षण व औषधी द्रव्ये विभागास सादर केला आहे.

उपरोक्त सर्व बाबींचा साकल्याने विचार करुन राज्यातील शासकीय/ महानगरपालिका/ शासन अनुदानित/खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयांतून वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम पूर्ण केल्यानंतर करावयाची एक वर्षाची सामाजिक दायित्व सेवेची अट रद्द करण्याची बाब शासनाच्या विचाराधीन होती. त्यास अनुसरुन शासन खालीलप्रमाणे निर्णय घेत आहे.

<u>शासन निर्णय:-</u>

राज्यातील शासकीय/महानगरपालिका/शासन अनुदानित/खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयांतून वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम पूर्ण केल्यानंतर करावयाची एक वर्षाची सामाजिक दायित्व सेवेची अट याव्दारे रद्द करण्यात येत असून, वैद्यकीय पदवी (एम.बी.बी.एस.) अभ्यासक्रम पूर्ण केल्यानंतरच्या सामाजिक दायित्व सेवेच्या अटीबाबत उपरोक्त संदर्भाधीन विविध शासन निर्णयांतील तरतूदी देखील खालील अटींच्या अधीन राहून याव्दारे अधिक्रमित/ रद्द करण्यात येत आहेत.

i. जे उमेदवार सामाजिक दायित्व सेवेस पात्र असून देखील त्यांना सामाजिक दायित्व सेवेचे अद्यापी वाटप झालेले नाही अथवा काही कारणास्तव त्यांना सामाजिक दायित्व सेवा पूर्ण करता आलेली नाही, अशा उमेदवारांना नव्याने अथवा उर्वरीत कालावधीकरीता सामाजिक दायित्व सेवा पूर्ण करण्याची आवश्यकता राहणार नाही.
ii. सद्यस्थितीत ज्या उमेदवारांची सामाजिक दायित्व सेवा सुरु आहे त्यांना उर्वरीत विहित कालावधीकरीता सामाजिक दायित्व सेवा पूर्ण करणे हे अनिवार्य राहील.
iii. सदर शासन निर्णय निर्गमित होण्याच्या दिनांकापर्यंत ज्या उमेदवारांना ऑनलाईन पोर्टलव्दारे नोंदणी केल्यानंतर सामाजिक दायित्व सेवा उपलब्ध झालेली आहे व त्यानुसार सदर उमेदवार सामाजिक दायित्व सेवेच्या ठिकाणी रुजू झालेला असेल तर त्यास सामाजिक दायित्व सेवा पुर्ण करणे अनिवार्य राहील. तथापि असा

पृष्ठ ३ पैकी २

उमेदवार सामाजिक दायित्व सेवेच्या ठिकाणी रुजू झालेला नसेल तर त्यास सामाजिक दायित्व सेवा पुर्ण करण्याची आवश्यकता राहणार नाही.

iv. सदर शासन निर्णय निर्गमित झाल्याच्या दिनांकापासून कोणत्याही उमेदवारास सामाजिक दायित्व सेवेचे वाटप करण्यात येऊ नये. वैद्यकीय शिक्षण व संशोधन संचालनालयामार्फत वैद्यकीय पदवी अभ्यासक्रमानंतर सामाजिक दायित्व सेवेचे वाटप करण्यासाठी तयार करण्यात आलेले ऑनलाईन पोर्टल तातडीने बंद करण्यात यावे.

v. ज्या उमेदवारांनी सामाजिक दायित्व सेवेबाबत यापूर्वी निर्गमित विविध शासन निर्णयांतील तरतूदीप्रमाणे विहित केलेल्या दंडाच्या रक्कमेचा भरणा करुन सदर सेवेतून सूट मिळविलेली आहे, अशा उमेदवारांना सदर दंडाच्या रक्कमेचा कोणताही परतावा अनुज्ञेय असणार नाही.

३. सदर शासन निर्णय हा महाराष्ट्र शासनाच्या www.maharashra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेतांक २०२६०७२३१७३५००८१५१ असा आहे. हा शासन निर्णय डिजीटल स्वाक्षरीने साक्षांकित करुन निर्गमित करण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

SWAPNA NILESH DESHPANDE

(स्वप्ना देशपांडे)
उप सचिव, महाराष्ट्र शासन

प्रति,

१. मा.राज्यपाल यांचे सचिव,राज्यपाल सचिवालय, राज भवन, मलबार हिल, मुंबई
२. मा.सभापती, महाराष्ट्र विधानपरिषद, मुंबई यांचे सचिव, विधान भवन, मुंबई
३. मा.अध्यक्ष, महाराष्ट्र विधानसभा, मुंबई यांचे सचिव, विधान भवन, मुंबई
४. मा.मुख्यमंत्री यांचे प्रधान सचिव, मंत्रालय, मुंबई
५. मा.मंत्री (वैद्यकीय शिक्षण) यांचे खाजगी सचिव, मंत्रालय, मुंबई
६. मा. मंत्री (सार्वजनिक आरोग्य विभाग) यांचे खाजगी सचिव, मंत्रालय, मुंबई
७. मा.राज्यमंत्री (वैद्यकीय शिक्षण) यांचे खाजगी सचिव, मंत्रालय, मुंबई
८. मा. विरोधी पक्ष नेता, महाराष्ट्र विधानपरिषद यांचे सचिव, विधान भवन, मुंबई
९. मा.विरोधी पक्ष नेता, महाराष्ट्र विधानसभा यांचे सचिव, विधान भवन, मुंबई
१०. मुख्य सचिव, महाराष्ट्र शासन, मंत्रालय, मुंबई
११. प्रधान सचिव, सार्वजनिक आरोग्य विभाग, मंत्रालय, मुंबई यांचे स्वीय सहाय्यक
१२. सचिव, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, मंत्रालय, मुंबई यांचे स्वीय सहाय्यक
१३. महासंचालक, माहिती व जनसंपर्क संचालनालय, मंत्रालय, मुंबई
१४. महालेखापाल -१/२ (लेखा परीक्षा/ लेखा व अनुज्ञेयता), महाराष्ट्र, मुंबई/ नागपूर
१५. आयुक्त, वैद्यकीय शिक्षण, मुंबई
१६. आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष, महाराष्ट्र राज्य, मुंबई
१७. कुलसचिव, महाराष्ट्र आरोग्य विज्ञान विद्यापीठ, नाशिक
१८. संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, मुंबई
१९. संचालक, आरोग्य सेवा संचालनालय,मुंबई
२०. सर्व सहसचिव/उपसचिव/अवर सचिव/कक्ष अधिकारी, वै.शि.व औ.द्र.वि.मंत्रालय, मुंबई
२१. सर्व अधिष्ठाता, शासकीय/ महानगरपालिका वैद्यकीय महाविद्यालये (संचालनालयामार्फत)
२२. सर्व अधिष्ठाता/ प्राचार्य, शासन अनुदानित/ खाजगी विनाअनुदानित वैद्यकीय महाविद्यालये (संचालनालयामार्फत)
२३. निवडनस्ती (शिक्षण-२)

पृष्ठ ३ पैकी ३

ANNEXURE -"Q"

Maharashtra Professional Education Institutions (Regulation of Admissions to the first year of the full time Professional Post Graduate Medical and Dental Courses) Rules, 2026

RNI No. MAHBIL /2009/37831

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग चार-ब

वर्ष १२, अंक १५२] सोमवार, ऑक्टोबर ५, २०२६/आश्विन १३, शके १९४८ [पृष्ठे १०, किंमत : रुपये ९.००

असाधारण क्रमांक ५४६

प्राधिकृत प्रकाशन

महाराष्ट्र शासनाने महाराष्ट्र अधिनियमांन्वये तयार केलेले
(भाग एक, एक-अ आणि एक-ल यांमध्ये प्रसिद्ध केलेले नियम व आदेश यांव्यतिरिक्त) नियम व आदेश.

MEDICAL EDUCATION DEPARTMENT

Gokuldas Tejpal Hospital Complex Building, 9th Floor, New Mantralaya,
Mumbai 400 001, dated the 5th October, 2026.

NOTIFICATION

MAHARASHTRA PROFESSIONAL EDUCATIONAL INSTITUTIONS (REGULATION OF ADMISSIONS) AND UNAIDED PRIVATE PROFESSIONAL EDUCATIONAL INSTITUTIONS (REGULATION OF FEES), ACT 2015.

No. MED-1026/C.R.335/26/Edu-2.— In exercise of the powers conferred by section 23 of the Maharashtra Professional Educational Institutions (Regulation of Admissions) and Unaided Private Professional Educational Institutions (Regulation of Fees), Act, 2015, (Mah. XXVIII of 2015) and in supersession of all earlier notifications, orders or instruments issued in this behalf, the Government of Maharashtra, hereby makes the following rules regulating the admissions to the first year of the full time Professional Post Graduate Medical and Dental Courses in the Unaided Private Professional Educational Institutions in the State of Maharashtra, namely :—

1. *Short title and commencement.*— (1) These rules may be called the Maharashtra Professional Educational Institutions (Regulation of Admission to the first year of the full time Professional Post Graduate Medical and Dental Courses) Rules, 2026.

(2)They shall come into force from the date of publication in the *Maharashtra Government Gazette*.

2. *Definitions.*— (1) In these rules, unless the context otherwise requires,

(*a*) "Act" means the Maharashtra Professional Educational Institutions (Regulation of Admissions) and Unaided Private Professional Educational Institutions (Regulation of Fees) Act, 2015 (Mah. XXVIII of 2015);

(*b*) "Admission Reporting Institution" means an institution where the candidate shall report for confirmation for admission by submission of documents and payment of fees;

(*c*) "Application Form" means the Online Application Form, as may be specified by the Competent Authority and required to be filled up by the candidates for admission to the Courses as defined in clause (*f*);

(*d*) "CAP Seats" means the seats filled in through online centralized admission process carried out by the Competent Authority;

(*e*) "Common Entrance Test (CET)" means the eligibility-*cum*-ranking examination prescribed as the single central entrance examination, known as the National Eligibility-*cum*-Entrance Test (NEET-PG) or the National Eligibility-*cum*-Entrance Test (NEET-MDS), conducted by the National Board of Examinations under section 14 of the National Medical Commission Act, 2019 (30 of 2019) or section 14 of the National Dental Commission Act, 2023 (21 of 2023), respectively, for the purpose of admissions to MD or MS or Post Graduate Diploma and MDS or Post Graduate Diploma Professional Educational Courses, as the case may be;

(*f*) "Courses" means the full time Professional Post Graduate Medical and Dental Courses, as the case may be, conducted in the State of Maharashtra, as per the approval of the National Medical Commission (NMC) or the National Dental Commission (NDC) and affiliated to the concerned University;

(*g*) "eligible candidates" means the candidates who are eligible for admission to Courses as defined in clause (*f*);

(*h*) "Foreign Medical Graduate" shall have the same meaning as defined in National Medical Commission (Foreign Medical Graduate Licentiate) Regulations, 2021;

(*i*) "internship" means the compulsory rotating internship to be completed as per rules or regulations of the National Medical Commission (NMC) or the National Dental Commission (NDC) and the Maharashtra Medical Council (MMC) or the Maharashtra State Dental Council (MSDC) ; and the concerned University, as the case may be;

(*j*) "*inter-se-merit*" means an order of merit in respect of various classes, categories and candidature types, determined on the basis of the NEET-PG or NEET-MDS ranking in accordance with these rules;

(*k*) "institutional quota" means the seats available for admission in accordance with the percentage specified in the Schedule, which are to be filled on all India rank basis by the Competent Authority from amongst the eligible candidates including Outside Maharashtra Candidates, Non-Resident Indians, Overseas Citizens of India and Foreign Medical Graduate as declared by the State Government or the appropriate authority, from time to time;

(*l*) "Minority Quota" means the seats earmarked in the minority institution for the students belonging to the respective Minority Community within the State ;

(*m*) "MUHS" means the Maharashtra University of Health Sciences established under sub-section (*1*) of section 3 of the Maharashtra University of Health Sciences Act, 1998 (Mah. X of 1999) ;

(*n*) "NDC" means the National Dental Commission constituted under the National Dental Commission Act, 2023 (21 of 2023);

(*o*) "NMC" means the National Medical Commission constituted under the National Medical Commission Act, 2019 (30 of 2019);

(*p*) "Non-Resident Indian (NRI)" shall have the same meaning as assigned to it under the Income Tax Act, 2025 and has been issued a Non-Resident Indian certificate accordingly by an Indian Mission or Post abroad and includes his child or ward as defined in the Guardians and Wards Act, 1890;

(*q*) "qualifying examination" means the MBBS or BDS examination, as the case may be, on the basis of which the candidate becomes eligible for admission to the respective Courses;

(*r*) "registration" means the registration of the qualification either with the NMC or the NDC or the Maharashtra Medical Council (MMC) or the Maharashtra State Dental Council (MSDC) or any other State Medical or Dental Council, as the case may be, after completing one year compulsory rotating internship.

(2) Words and expressions used in these rules but not defined hereinabove shall have the same meanings as are respectively assigned to them in the Act.

3. *Invitation for Admission.*— The Competent Authority shall invite online applications in the Application Form from the NEET-PG or NEET-MDS eligible candidates for participating in CAP for seeking admission to the Courses for the respective academic year.

4. *Declaration of Medium, Pattern, Syllabus, Schedule, etc.,*— The Medium, Pattern, Syllabus and Schedule for admission on the basis of NEET-PG or NEET-MDS shall be as per the directions or notifications issued or published, from time to time, by the NMC, the NDC or the National Board of Examination (NBE), as the case may be. The Competent Authority shall declare the CAP Rounds for the respective academic year.

5. *Eligibility for admission.*—

(1) *General conditions.*— The candidate shall,-

(*a*) be an Indian National; except for OCI candidature;

(*b*) be medically fit;

(*c*) have passed the qualifying examination from a Medical or Dental college recognised by the NMC or the NDC, as the case may be;

(*d*) have completed, or is completing compulsory rotating internship on or before the date specified by the NMC or the NDC, as the case may be, for the year in which the NEET-PG or the NEET-MDS examination is held;

(*e*) have obtained registration specified in clause (*r*) of sub-rule (*1*) of rule *2*; and

(*f*) has obtained not less than the minimum percentile at the NEET-PG or the NEET-MDS examination.

(2) *Minimum percentile.*— The candidate shall obtain the minimum percentile of marks or such percentile as may be decided by the NMC or the NDC, in NEET-PG or the NEET-MDS examination, as the case may be, from time to time, as follows, namely :—

(*a*) General category candidate – fifty percentile,

(*b*) Constitutional Reservation category candidate – forty percentile.

(3) *Cut-off date for eligibility.*— The cut-off date for determining the eligibility of candidate for the CAP process shall be the last date of registration for all purposes under these rules. If a candidate is ineligible as on the cut-off date, he shall remain ineligible for all other purposes including admission for the concerned academic year. Any eligibility acquired after the cut-off date shall not be considered for admission for that academic year or for any other purpose whatsoever.

6. *Types of candidature.*— (1) For the purposes of allotment of seats under these rules, the candidate fulfiling the general conditions of eligibility specified in rule 5, shall be eligible for admission under the following respective types of candidature as follows, namely :—

(*a*) Maharashtra State Candidature;

(*b*) Minority Candidature;

(*c*) Non-Resident Indian (NRI) Candidature;

(*d*) Overseas Citizen of India (OCI) Candidature;

(*e*) Outside Maharashtra State (OMS) Candidature ;

(*f*) Foreign Medical Graduate (FMG) Candidature.

(2) *Maharashtra State Candidature.*— The eligible candidate under this type of candidature, shall be, as follows, namely,—

(*a*) who has passed the qualifying examination from an institution situated within the State of Maharashtra ; OR

(*b*) who is domiciled in the State of Maharashtra and,—

(*i*) has obtained admission under the fifteen per cent. All India Quota for the M.B.B.S. or B.D.S. Course in a Government Medical or Government Dental College situated outside the State of Maharashtra and has obtained the degree from a University situated outside the State of Maharashtra; or

(*ii*) has obtained admission for the M.B.B.S. Course in a Medical College of the All India Institutes of Medical Sciences (AIIMS) or in a Central Government Institution.

(3) *Minority Candidature.*— The candidate having eligibility for Maharashtra State Candidature and who is domiciled in the State of Maharashtra, belonging to a particular linguistic or religious minority community from within the State, shall be eligible under this type of candidature for admission to the Minority Quota Seats in the Private Professional Educational Institution belonging to their respective minority community, in the manner as specified in the Schedule.

(4) *NRI Candidature.*— The candidate who fulfils the conditions specified in clause (*p*) of sub-rule (*1*) of rule 2 shall be eligible under this type of candidature :

Provided that, such candidate shall be eligible only for the maximum fifteen per cent of NRI Quota Seats, as specified in the Schedule.

(5) *OCI Candidature.*— The eligible candidate under this type of candidature shall be, as follows, namely,-

(*a*) a candidate who has passed the qualifying examination from an institution situated within the State of Maharashtra and who has obtained the Overseas Citizen of India status on or before the 4th March 2021, shall be eligible for admission under the Maharashtra State Candidature Seats.

(*b*) a candidate who has passed the qualifying examination from an institution outside the State of Maharashtra and who has obtained the Overseas Citizen of India status on or before the 4th March 2021 shall be eligible only for the Institutional Quota Seats.

(6) *Outside Maharashtra State (OMS) Candidature.*— The candidate who has passed the qualifying examination from outside the State of Maharashtra and who is not eligible for Maharashtra State Candidature Seat shall be eligible under this type of candidature:

Provided that, such candidate shall be eligible only for the Institutional Quota Seats as specified in the Schedule appended hereto.

(7) *Foreign Medical Graduates Candidature.*— The candidate who has passed the qualifying examination from outside India, shall be eligible under this type of candidature :

Provided that, such candidate shall be eligible only for the Institutional Quota Seats as specified in the Schedule appended hereto.

7. *Sanctioned intake seats for various Courses.*— The sanctioned intake for the First Year of the Courses shall be as per the approval given by the Appropriate Authority which is competent for giving approval to respective Courses and affiliation given by the respective affiliating University.

8. *Allocation of seats.*— The percentage of seats allocated to various categories of candidates through the CAP, based on merit in the NEET-PG or NEET-MDS examination for admission to the First Year of Post Graduate Medical and Post Graduate Dental Courses, shall be as specified in the Schedule appended hereto, and in accordance with the NMC or the NDC regulations, as the case may be, and in conformity with the policy of the Government. The allocations of seats shall be as follows, namely :—

(*a*) *Maharashtra State Candidature Seats.*— The candidates having Maharashtra State Candidature specified in rule 6 shall be eligible for these seats.

(*b*) *Minority Candidature Seats.*— The candidates having Minority Candidature specified in rule 6 shall be eligible for these seats with the percentage as specified in the Schedule appended hereto. These seats shall be filled in accordance with the provisions of sub-section (*2*) of section 6 of the Act.

(*c*) *Institutional Quota Seats.*— The Competent Authority shall admit eligible candidates in Institutional Quota seats as per the percentage of the sanctioned intake, subject to the following conditions, namely :—

(*i*) the NRI candidates shall be eligible only for maximum fifteen per cent. NRI Seats, to be filled by the Competent Authority, subject to the approval by Admissions Regulating Authority;

(*ii*) if the seats reserved for the NRI quota remains vacant, those vacant seats shall be filled in by the Competent Authority, from the eligible candidates having any other Candidature on the basis of *inter-se-merit* of NEET-PG or NEET-MDS examination, as the case may be.

9. *Preparation of Merit List.*— The merit list for selection to the Post Graduate Medical or Dental Courses shall be prepared on the basis of marks obtained by the candidate at the NEET-PG or NEET-MDS exam in the descending order of the merit of NEET-PG or NEET-MDS respectively.

10. *Centralised Admission Process (CAP).*— (1) The Unaided Private Professional Educational Institution shall admit candidates through the Centralised Admission Process (CAP) as referred in sub-section (*3*) of section 3 of the Act. The stages of CAP shall be as stated below,—

(*a*) display or publication of Information Brochure of Preference Form filling and counselling process for admission to Courses on website;

(*b*) display or publication of Time Schedule for the admission process on website;

(*c*) display or publication of collegewise, subjectwise and categorywise distribution of seats on website;

(*d*) display or publication of allotment of seats for CAP Round-1 by way of computerised process and joining of the candidates at respective institution as per the allotment within stipulated time;

(*e*) display or publication of subsequent computerised round(s), if seats remain vacant on completion of each subsequent CAP Round;

(2) The candidate shall be given a chance to retain a seat that has been allotted, by way of Status Retention Form at the end of each CAP Round. If a candidate accepts the offered seat and they do not want to participate in any further rounds of seat allocation, such candidates shall not be considered in subsequent rounds of admission.

11. *CAP Seats allotment stages and process of allotment.*— Allotment of seats under CAP, shall be made in the following manner,—

(1) *Maharashtra State Candidature.*— The stages of computerised allotments are as follows, namely :—

Stage–I : For all the candidates,—

(*a*) All the candidates belonging to various categories shall be considered for allotment of seats as per their *inter-se-merit*.

(*b*) The minority category candidate shall be considered for allotment in Open Category seats by virtue of their *inter-se-merit* and in Minority Quota seats by virtue of merit in their respective minority community to which the minority institution belongs.

(c) Backward Class Category Candidates shall be considered for allotment in Open

Category seat by virtue of their *inter-se-merit* or in their respective category of reservation, if Open Category seats are not available at their merit.

(*d*) SBC Category Candidates shall be considered for allotment in Open Category seat by virtue of their *inter-se-merit* or in OBC Category of reservation, if Open Category seats are not available at their merit.

(*e*) SEBC Category Candidates shall be considered for allotment in Open Category seat by virtue of their *inter-se-merit* or in SEBC Category seats, if Open Category seats are not available at their merit.

Stage–II : *For respective groups of Backward Class Category Candidates.*— *inter-se-merit* amongst the reserved categories shall be operated during the allotment process of CAP Round 3 and subsequent rounds, if necessary against the unfilled reserved categories seats as per merit and choice of the reserved categories candidates. The seats remaining vacant from various categories shall be filled in during *inter-se-merit* admission process as follows,—

(*a*) The remaining vacant seats shall be filled from among the candidates of their respective group where the vacancies exist, by *inter-se-merit*. The said groups are as follows, namely :—

GROUP – I

(*i*) Scheduled Castes and Schedule Caste converted to Buddhism (S.C.)

(*ii*) Scheduled Tribes (S.T.)

GROUP – II

(*i*) Vimukta Jati (DT) (A)

(*ii*) Nomadic Tribes [NT(B)]

GROUP – III

(*i*) Nomadic Tribes [NT (C)]

(*ii*) Nomadic Tribes [NT (D)]

(*iii*) Other Backward Classes (OBC) including SBC

(*b*) The candidates belonging to SC, ST, VJ/DT(A), NT-B, NT-C, NT-D, SBC, OBC & SEBC categories shall claim the reservation in the original application Form and attach the copies of the Caste Certificate and the Caste Validity Certificate at the time of registration for the CAP process, failing which the category claimed shall not be granted and the candidate shall be treated as the open category candidate.

(*c*) Non-Creamy Layer Certificate.- A candidate belonging to VJ/DT(A), NT-B, NT-C, NT-D, OBC (including SBC) and SEBC shall attach non-creamy layer certificate valid upto 31st March of the following year of the NEET-PG or NEET-MDS examination, at the time of registration for the CAP process, failing which the category claim shall not be granted.

Stage-III : For all Backward Class Category Candidates (Except SEBC).— If the seat reserved for group of Backward Class Category Candidate remains vacant, such seat shall be considered for allotment to the candidate of *inter-se-merit* of all Backward Class Category Candidates taken together.

Stage-IV : If the seat reserved for Backward Class Category Candidate remains vacant, such seat shall be considered for allotment to the candidate of open category by *inter-se-merit*.

Stage-V : For SEBC Category Candidates : If the seat reserved for SEBC Category Candidate remain vacant, such seats shall be considered for allotment to the candidate of open category *inter-se-merit*.

(2) *For Minority Candidature.*— The stages of computerised allotments are as follows, namely:-

(*a*) The minority category candidate shall be considered for allotment in Open Category seats by virtue of their *inter-se-merit* and in Minority Quota seats by virtue of merit in their respective minority community to which the institution belongs.

(*b*) For minority seats, *inter-se-Merit* will be operated during the allotment process of CAP Round 3 and sebsequent rounds if necessary, against the unfilled minority category seats as per merit.

(*c*) Amongst the total seats at Unaided Private Professional Educational Institution, which are declared as "Minority Institutions" by the State Government, the seats distribution shall be as mentioned in Schedule appended hereto.

12. *Selection process through CAP Round.*— The Unaided Private Professional Education Institution shall admit candidates through the online Centralised Admission Process, as below:—

(*a*) There shall be one or more rounds of selection of candidates depending on the availability of vacant seats. The selection shall be on the basis of merit and the preferences submitted by the candidates in their Preference Form. Fresh or separate Preference Form shall be filled by the candidate for each online CAP Round 1, 2, 3 and online Stray Vacancy Round. The choices of Courses and Colleges, once entered in the record or data, after verification by the candidate, shall be final and irrevocable for that particular round only.

(*b*) NEET-PG or NEET-MDS merit list shall be operated from State Merit List. The candidate getting selected in previous round shall be considered for betterment in the subsequent round for online CAP Round 2 and online CAP Round 3 only. Betterment in online CAP Round 3 shall be given only to those candidates who have joined the allotted seat in CAP Round 1 or CAP Round 2. The betterment herein means the higher preference exercised by the candidate. The shift in such betterment shall be compulsory and mandatory except for those who have filled 'Status Retention Form'. Such a candidate who has filled Status Retention Form shall not be considered for any subsequent rounds of selection process for the same academic year. The last date for filling Status Retention Form shall be notified along with the selection list of each CAP Round.

(*c*) After concluding the CAP Round 3, for the subsequent Stray Vacancy Rounds, candidates who have been allotted seats in CAP Round 3 or having joined status up to CAP Round 3 are not eligible for Stray Vacancy Round.

(*d*) A candidate who is selected but does not join the college or cancels the admission after joining shall have Free Exit only in CAP Round 1. Joining shall be compulsory from CAP Round 2 onwards. A candidate who is selected and does not join or cancels the admission before last date of resigning after joining in CAP Round 2 shall be out of the process. Such a candidate shall have to do fresh registration for CAP Round 3 to participate in further process. A candidate who is selected and does not join or cancels the admission before last date of resigning after joining in CAP Round 3 shall be out of further process.

(*e*) It is hereby made abundantly clear that shifting on account of a better choice given by a candidate in any round, shall be effected only and only if such a candidate in the subsequent rounds is found entitled for 'change of Course' or a 'change of college'. Mere possibility of a 'change in Category' on account of availability of seat in the same college or same Course in the further rounds shall not amount to "betterment" as such and therefore, no shifting shall be effected in such an eventuality. Such a 'change in Category' shall include *inter-alia* change from reserved category to open category or *vice-versa*. The shift in such betterment shall be compulsory and mandatory, except those who have filled Status Retention Form.

(*f*) Based on preferences given, the seat shall be allotted on merit and the allotment shall be displayed on website.

(*g*) As per allotment, the candidates shall report alongwith all original certificates and a set of attested photocopies of all requisite documents at allotted college within the prescribed time. The Dean or Principal or any officer duly authorised by him shall verify all the original documents before finalizing the admission.

(*h*) Earmarking for Reserved Category Candidate :-Reserved category candidate entitled to admission on the basis of merit in an open category seat shall have the option of taking admission either against his respective category seat or on an open category seat. If he opts for the reserved category, he shall be deemed to have been admitted as an open category candidate and not as reserved category candidate. In such case the particular seat in the college where he was eligible for admission against open seat shall be earmarked for a candidate belonging to the respective reserved category. Such earmarked seat shall be made available immediately to the successive reserved category candidate from the same category merit during the counselling.

(*i*) Seats that have arisen or fallen vacant after each round shall be made available at the subsequent round of selection on the basis of choices filled by the candidate in the preference form. The vacancy position shall be made available on website before commencement of each round.

(*j*) The *inter-se* Round shall be conducted for remaining vacant seats from the category as per sub-rule (1) of rule 11, if necessary during the allotment process of CAP Round 3 and subsequent Rounds.

(*k*) The cut-off date for the Course shall be as prescribed by the NMC or NDC from time to time.

13. All the admissions to the Medical and Dental Post Graduate Courses shall be done by Competent Authority only through online CAP Rounds including online Stray Vacancy Rounds or subsequent Stray Vacancy Rounds.

14. *Approval of Merit List and the Admitted Candidates List.*— (*1*) After completion of admission process, every Unaided Private Professional Educational Institution shall submit the admission approval proposal to the Admissions Regulating Authority in accordance with the sub-section (*5*) of the section 9 of the Act.

(*2*) The admission approval proposal shall include the list of all candidates admitted which shall have the quota, candidature type, reservation, qualification marks, etc., as well as the required documents of the candidates admitted.

15. *Disqualification for Admission.*— The selected candidates who do not report or do not join their allotted seat in the last CAP Round of the admission process thereby resulting in lapse of seat, shall not be eligible for admission for subsequent two years.

16. *Payment of Fees.*— The fees for the Course shall be paid at the respective college by Demand Draft from any Nationalised or Scheduled Commercial Bank or other instruments as prescribed by Competent Authority from time to time, in favour of Dean or Principal of College, as applicable.

17. *Refund of Fees by the College after change of College or Course or Cancellation of Admission.*— The candidate who has been admitted and desires to cancel the admission shall submit application to the respective college or institute for cancellation of admission. The refund of fees to such candidate admitted in the college shall be made after deduction as under:

(*i*) Before cut-off date as declared by NMC or NDC - Rs. 1500 (Rupees one thousand five hundred only) to be deducted and rest of the fees to be refunded;

(*ii*) On or after cut-off date as declared by NMC or NDC - No refund of fees;

(*iii*) The Dean or Principal of the College shall be responsible for making refund of the fees, after receiving cancellation letter from the candidate.

(iv) If the candidate expires within ninety days from the date of admission, no deduction shall be made.

18. *Change of Course or Institution.*— The change of Course or Institution shall not be permitted after cut-off date of admission on mutual basis as per the NMC regulations or the NDC regulations.

19. *Conduct and Discipline.*—

(*a*) Failure of the candidate in making full and correct statements in the application Form or suppression of any information, shall lead to disqualification of the candidate, even at later date. Such a candidate shall be debarred from the entire selection process.

(*b*) It is responsibility of every candidate to submit genuine documents. Any attempt to submit documents which are not genuine, shall lead to cancellation of the admission of the candidate, forfeiture of the fees, deposits and expulsion of the candidate from the college by the Competent Authority or by his authorised official. The name of such candidate shall be deleted from the State Merit List and such candidate shall not be eligible for further rounds of the selection process and shall be debarred from the selection process.

(*c*) If any candidate or authorised representative or person accompanying is found obstructing the counseling or admission process, or trying to influence in unlawful manner or creating nuisance, the candidate shall be liable for disqualification from the process of selection and appropriate legal action shall be taken against him. The decision taken by the Competent Authority in such matter shall be final and binding.

(*d*) A student during his course of studies, found indulging in antinational activities, unlawful activities or ragging in any form, contrary to the provisions of Acts enforced by the Government, he shall be liable to be expelled from the college by the Dean or Principal of the College.

(*e*) Pursuant to orders in Writ Petition (Civil) No. 656 of 1999, the Hon'ble Supreme Court of India, has directed the Ministry of Human Resources Development, Government of India, to take all necessary steps to curb the menace of ragging and take severe action against the students involved in such activities.

(*f*) As per the provisions of the «Maharashtra Prohibition of Ragging Act, 1999, (Mah. XXXIII of 1999) students indulging in ragging shall be liable to be punished under the Act.

(*g*) The Maharashtra University of Health Sciences, Nashik shall take the decision regarding eligibility, enrolment and registration and granting of the term of selected candidates. The selection of a candidate by the Competent Authority at a later date does not place any onus to accord approval for grant of term.

(*h*) Canvassing directly or indirectly for the allotment of seat shall disqualify the candidate for admission. Influencing the staff by unfair means, shall lead to cancellation of allotted seat and such candidate shall also face disqualification for participation in the subsequent Post graduate Medical or Dental Admission Process.

(*i*) In case of any dispute regarding allotment of seat, course, institution or any other matter pertaining to the provisional selection or cancellation of admission, the decision of the Competent Authority shall be final and binding.

Schedule

(*See* rule 8)

Sr. No.	Type of Institution	Percentage of seats to be filled through the State Common Entrance Test Cell	
		Other than Institutional Quota	Institutional Quota (Including Maximum 15% NRI quota)
(*1*)	(*2*)	(*3*)	(*4*)
	Postgraduate Medical or Dental Courses		
1.	Unaided Private Professional Educational Institutions (excluding Minority Institutions)	50%	50%
2.	Unaided Minority Educational Institutions (for Minority Community, however unfilled seats will be filled by Non-minority candidates.)	50%	50%

By order and in the name of the Governor of Maharashtra,

S. N. DESHPANDE,
Deputy Secretary to Government.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, SMT. MANISHA KUMBHAR, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, SMT. MANISHA KUMBHAR.

ANNEXURE -"R"

Government Resolution for Common Counselling

पदव्युत्तर वैद्यकीय व दंत अभ्यासक्रमांचे प्रवेश एकत्रित समुपदेशनाव्दारे करण्याबाबत

महाराष्ट्र शासन

वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग,

शासन निर्णय क्र. सीईटी -३५१६/ प्र.क्र.४७८ /१६/ शिक्षण-२,

नववा मजला, गोकुळदास तेजपाल रुग्णालय संकुल,

लोकमान्य टिळक मार्ग, नवीन मंत्रालय, मुंबई ४०० ००१,

दिनांक : २०फेब्रुवारी,२०१८

संदर्भ :

१. महाराष्ट्र विनाअनुदानित खासगी व्यावसायिक शिक्षण संस्था (प्रवेश व शुल्क यांचे विनियमन) २०१५,अधिनियम

२. वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग, शासन निर्णय क्र.एमईडी १०१५/प्र.क्र. ३९६/१५/ शिक्षण-२, दिनांक १६.१२.२०१५

३. वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग, शासन अधिसुचना क्र.सीईटी- १२१५ /प्र.क्र. ४१२/१५/ शिक्षण-२, दिनांक १९.०१.२०१७

४. वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग, शासन निर्णय क्र.सीईटी- ३५१७/प्र.क्र. १२०/१७/ शिक्षण-२, दिनांक १३.०४.२०१७

५. भारतीय आयुर्विज्ञान परिषद, नवी दिल्ली यांची अधिसुचना क्रमांक भा.आ.प.-१८(१)/२०१७-मेड/१२८३७१, दिनांक ३१.०७.२०१७

६. भारतीय दंत परिषद, नवी दिल्ली यांची अधिसुचना क्रमांक डीई-८७-२०१७, दिनांक ०१.०९.२०१७

प्रस्तावना : महाराष्ट्र विनाअनुदानित खासगी व्यावसायिक शिक्षण संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम,२०१५ अन्वये राज्यातील सर्व खाजगी विनाअनुदानित शिक्षण संस्थामधील व्यावसायिक अभ्यासक्रमांच्या प्रवेशांचे अनुषंगाने संदर्भ क्रमांक ३ वरील अधिसुचना दिनांक १९.०१.२०१७ अन्वये पदव्युत्तर वैद्यकीय व दंत अभ्यासक्रमांचे प्रवेशनियम घोषीत करण्यात आले आहेत. तसेच, संदर्भ क्रमांक २ वरील दिनांक १६.१२.२०१५ रोजीच्या शासन निर्णयाव्दारे शासकीय व महानगरपालिकेच्या महाविद्यालयातील प्रवेशप्रक्रीया सुध्दा खासगी विनाअनुदानित संस्थांसोबत एक खिडकी पध्दतीने आयुक्त, राज्य सामाईक प्रवेशपरिक्षा कक्ष यांचेमार्फत राबविणेबाबत आदेश निर्गमित करण्यात आले आहेत. संदर्भाधीन क्रमांक ४ वरील शासननिर्णय दिनांक १३.०४.२०१७ अन्वये अखिल भारतीय कोटावगळता उर्वरित जागांवरील राज्यातील वैद्यकीय पदव्युत्तर अभ्यासक्रमांचे सर्व प्रवेश एकत्रित समुपदेशनामार्फत करण्याबाबत निर्णय घेण्यात आला आहे.

D:\GR\GR NEW.docx

संसदेने पारित केलेल्या कायद्याव्दारे स्थापित वैद्यकीय महाविद्यालय, केंद्रशासनाचे वैद्यकीय महाविद्यालय,आणि अभिमत विद्यापीठातील वैद्यकीय पदव्युत्तर अभ्यासक्रमांचे प्रवेश तसेच, शासकीय/महापालिका वैद्यकीय महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या All India Quota यातिल ५० टक्के प्रवेशांकरीता समपुदेशन प्रक्रीया (Common Counselling) ही महासंचालक, आरोग्य सेवा यांच्यामार्फत राबविण्यात येईल अशी भारतीय आयुर्विज्ञान परिषदेच्या संदर्भाधीन क्रमांक ५ वरील दिनांक ३१.०७.२०१७ रोजीच्या अधिसुचनेन्वये प्रसिध्द करण्यात आली आहे. तथापि, इतर सर्व वैद्यकीय महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या सर्व प्रवेशाकरीता समूपदेशन प्रक्रीया ही संबंधित राज्य शासनामार्फत पार पाडण्यात येईल असे उक्त अधिसुचनेत नमूद करण्यात आले आहे.

तसेच, सेंसदीय कायद्याव्दारे स्थापित दंत महाविद्यालय, केंद्रशासनाचे दंत महाविद्यालय आणि अभिमत विद्यापीठांतील दंत पदव्युत्तर अभ्यासक्रमांचे प्रवेश तसेच, शासकीय/महापालिका दंत महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या All India Quota यामधील ५० टक्के प्रवेशांकरीता समपुदेशन प्रक्रीया (Common Counselling) ही महासंचालक, आरोग्य सेवा यांच्यामार्फत राबविण्यात येईल अशी तरतूद भारतीय दंत परिषदेच्या संदर्भाधीन क्रमांक ६ वरील दिनांक ०१.०९.२०१७ रोजीच्या अधिसुचनेन्वये प्रसिध्द करण्यात आली आहे. तथापि, इतर सर्व दंत महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या सर्व प्रवेशाकरीता समूपदेशन प्रक्रीया संबंधित राज्य शासनामार्फत पार पाडण्यात येईल असेही उक्त अधिसुचनेत नमूद करण्यात आले आहे.

भारतीय आयुर्विज्ञान परिषद आणि भारतीय दंत परिषद यांच्या अनुक्रमे दिनांक ३१.०७.२०१७ आणि दिनांक ०१.०९.२०१७ रोजीच्या अधिसुचनेव्दारे करण्यात आलेली तरतूद विचारात घेता, उपरोक्त दिनांक १३.०४.२०१७ रोजीचा शासननिर्णय अधिक्रमित करुन, राज्यातील सर्व वैद्यकीय व दंत महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या प्रवेशप्रक्रीयेच्या अनुषंगाने निर्णय घेण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय :

पदव्युत्तर वैद्यकीय अभ्यासक्रमांच्या प्रवेशप्रक्रीयेसंदर्भातील शासन निर्णय दिनांक १३.०४.२०१७ याव्दारे अधिक्रमित करण्यात येतअसुन पुढीलप्रमाणे सुधारीत आदेश निर्गमित करण्यात येत आहे.

२. केंद्र शासन/महासंचालक, आरोग्य सेवा, नवी दिल्ली यांनी करावयाचे प्रवेश वगळता राज्यातील सर्व वैद्यकीय व दंत पदव्युत्तर पदवी/पदव्युत्तर पदविका अभ्यासक्रमांचे (M.D./ M.S. / PG Diploma / MDS) प्रवेश अनुक्रमे NEET-PG (National Eligibility-cum-Entrance Test-PG व NEET-MDS

(National Eligibility-cum-Entrance Test-MDS) या प्रवेशपरिक्षेतील गुणवत्तेनुसार एकत्रित समुपदेशनाद्वारे / केंद्रीभूत प्रवेश प्रक्रियेद्वारे (Combined Counseling/Centralized Admission Process) करण्यास शासनाची मान्यता प्रदान करण्यात येत आहे. यामध्ये संस्थात्मक कोटा / NRI Quota यांचाही समावेश राहील.

३. वरीलप्रमाणे एकत्रित समुपदेशनाव्दारे प्रवेशप्रक्रीया राबविण्याची जबाबदारी ही आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष यांची राहील.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

(सुरेन्द्र प्र. चानकर)
उप सचिव, महाराष्ट्र शासन

प्रति,
मा. राज्यपाल यांचे सचिव, राज्यपाल सचिवालय, राजभवन, मलबार हिल, मुंबई.
मा.सभापती, महाराष्ट्र विधानपरिषद यांचे सचिव, विधान भवन, मुंबई
मा.अध्यक्ष, महाराष्ट्र विधानसभा यांचे सचिव, विधान भवन, मुंबई
मा. मुख्यमंत्र्यांचे प्रधान सचिव, मंत्रालय, मुंबई.
मा.मंत्री, वैद्यकीय शिक्षण यांचे खाजगी सचिव, मंत्रालय, मुंबई.
मा.विरोधी पक्ष नेता, महाराष्ट्र विधानपरिषद, विधान भवन, मुंबई.
मा.विरोधी पक्ष नेता, महाराष्ट्र विधानसभा, विधान भवन, मुंबई
मा.राज्यमंत्री, वैद्यकीय शिक्षण यांचे खाजगी सचिव, मंत्रालय, मुंबई.
मा.मुख्य सचिव, महाराष्ट्र शासन, मंत्रालय, मुंबई
मा.सचिव, भारत सरकार, आरोग्य व कुटूंब कल्याण मंत्रालय, निर्माण भवन, नवी दिल्ली.
मा.सचिव, भारतीय दंत परिषद, ऐवान-ए-गालिब मार्ग, कोटला रोड, टॅपल लेन, नवी दिल्ली.
मा.सचिव, भारतीय आयुर्विज्ञान परिषद, नवी दिल्ली.
सचिव, वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग, मंत्रालय, मुंबई
संचालक, माहिती व जनसंपर्क संचालनालय, मंत्रालय, मुंबई
आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष, महाराष्ट्र राज्य, मुंबई.
सचिव, प्रवेश नियामक प्राधिकरण, महाराष्ट्र राज्य, मुंबई.
सचिव, शिक्षण शुल्क नियामक प्राधिकरण, महाराष्ट्र राज्य, मुंबई.
सर्व उपसचिव, वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग, मंत्रालय, मुंबई.
संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, महाराष्ट्र राज्य, मुंबई.
संचालक, वैद्यकीय शिक्षण व प्रमुख रुग्णालये (बृहन्मुंबई महानगरपालिका)
कुलसचिव, महाराष्ट्र आरोग्य विज्ञान विद्यापीठ, नाशिक.

D:\GR\GR NEW.docx

अधिष्ठाता/प्राचार्य, सर्व शासकीय व महानगरपालिका वैद्यकीय व दंत महाविद्यालय/सर्व अनुदानित व विनाअनुदानित वैद्यकीय व दंत महाविद्यालये यांना संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई यांच्यामार्फत.
निवड नस्ती (कार्यासन — शिक्षण-२).

ANNEXURE -"S"

Government Letter No.MED-1026/C.R.342/26/Edu-2, dated 13/10/2026 for approval to NEET-PG Information Brochure 2026

महाराष्ट्र शासन

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
गो.ते.रूग्णालय आवार, ९ वा मजला,
लोकमान्य टिळक मार्ग, नवीन मंत्रालय,
मुंबई - ४०० ००१.

क्र.एमईडी-१०२६/प्र.क्र. ३४२/२६/शि-२ दि.१३/१०/२०२६

प्रति,
आयुक्त,
वैद्यकीय शिक्षण, मुंबई

विषय:- शैक्षणिक वर्ष २०२६-२७ करिता वैद्यकीय पदव्युत्तर पदवी (नीट पीजी-२०२६) अभ्यासक्रमाच्या राज्यस्तरीय कोट्याच्या प्रवेश प्रक्रिया माहिती/नियमावली पुस्तिकेस मान्यता देणेबाबत.

संदर्भ:- आपले पत्र क्र.संवैशिवस/नीट-पीजी -२०२६/नियमावली पुस्तिका/२०२६, दिनांक २९/०९/२०२६.

महोदय,

आपल्या संदर्भाधीन पत्राव्दारे सादर करण्यात आलेल्या वैद्यकीय पदव्युत्तर पदवी (नीट पीजी-२०२६) अभ्यासक्रमाच्या राज्यस्तरीय कोट्याच्या प्रवेश प्रक्रियेच्या प्रारूप माहिती पुस्तिकेस याव्दारे मान्यता देण्यात येत आहे. (प्रत संलग्न)

२. वैद्यकीय पदव्युत्तर पदवी अभ्यासक्रमाच्या प्रवेश प्रक्रियेसंदर्भात केंद्र शासन/राज्य शासन/केंद्रिय आयोग/मा.उच्च न्यायालय व मा.सर्वोच्च न्यायालय यांनी वेळोवेळी दिलेले आदेश लागू राहतील.

३. माहिती पुस्तिकेचे प्रुफ रिडींग (Proof Reading) केल्यानंतरच सदर माहिती पुस्तिका प्रसिध्द करण्याकरिता राज्य सामाईक प्रवेश परीक्षा कक्षाकडे पाठविण्यात यावी, ही विनंती.

MANGESH KISAN BAGAL

Digitally signed by MANGESH KISAN BAGAL
DN: cn=IN, o=GOVERNMENT OF MAHARASHTRA, ou=MEDD, 2.5.4.20=5f9f12800dcd629a0c3959067d9...9dcf, postalCode=400032, st=Maharashtra, serialNumber=45ccd68ff42570d0d9c28b01...5437ed01, cn=MANGESH KISAN BAGAL
Date: 2026.10.13 14:09:11 +05'30'

(मं.कि.बागल)
कक्ष अधिकारी, महाराष्ट्र शासन

प्रत:- माहिती तथा आवश्यक कार्यवाहीस्तव,

१. आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष, मुंबई.
२. संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, मुंबई.
३. निवडनस्ती (शिक्षण-२) (माहिती पुस्तिकेच्या छायांकित प्रतीसह).

ANNEXURE -"T"

Hon'ble Supreme court order Dated 16/12/2021 in Special Leave to Appeal (C) No(s).10487/2021

ITEM NO.9 COURT NO.5 SECTION XI-A

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Petition(s) for Special Leave to Appeal (C) No(s).10487/2021

(Arising out of impugned final judgment and order dated 15-12-2020 in WA No.1692/2020 passed by the High Court Of Kerala At Ernakulam)

NIHILA P.P. Petitioner(s)

VERSUS

THE MEDICAL COUNSELING COMMITTEE (MCC) & ORS. Respondent(s)

WITH
W.P.(C) No. 820/2021 (X)
(IA No. 89275/2021 - APPROPRIATE ORDERS/DIRECTIONS,
IA No. 150012/2021 - INTERVENTION/IMPLEADMENT)

Date : 16-12-2021 This petition was called on for hearing today.

CORAM :
HON'BLE MR. JUSTICE L. NAGESWARA RAO
HON'BLE MR. JUSTICE B.R. GAVAI
HON'BLE MRS. JUSTICE B.V. NAGARATHNA

For Petitioner(s) Mr. Roy Abraham Adv
Ms. Reena Roy Adv
Mr. Aditya Koshy Adv
Mr. Himinder Lal AOR

For Respondent(s) Mr. Aishwarya Bhatti, Ld. ASG
Mr. Ashok Panigrahi, Adv.
Mr. B.K. Satija, Adv.
Mr. Adit Khorana, Adv.
Mr. Anil Hooda, Adv.
Mr. Navanjay Mahapatra, Adv.
Mr. Aman Sharma,Adv.
Mr. Gurmeet Singh Makker, AOR

Mr. Gaurav Sharma, AOR
Mr. Prateek Bhatia, Adv
Mr. Dhawal Mohan, Adv

Mr. G. Prakash, AOR
Ms. Priyanka Prakash, Adv.
Ms. Beena Prakash, Adv.
Mr. Anoop R., Adv.

Signature Not Verified
Digitally signed by
Date:

Mr. P. S. Sudheer, AOR
Mr. Bharat Sood, Adv.
Mr. Rishi Maheshwari, Adv.
Ms. Anne Mathew, Adv.
Ms. Shruti Jose, Adv.

UPON hearing the counsel the Court made the following

O R D E R

An affidavit has been filed by Medical Council Committee of Directorate General of Health Services (DGHS), Ministry of Health and Family Welfare and Union of India on 03.12.2021.

It has been stated in the affidavit that DGHS is the designated authority for counselling for 50% All India Quota seats of the contributing States. The competent authority has decided to conduct 4 rounds of All India Quota counseling from the current academic year 2021-2022 for NEET - Under Graduate and Post Graduate as per the modified policy approved by this Court and Government Orders issued from time to time.

The proposed modified scheme of Online 4 rounds of counselling will be in tune with the prevailing norms of counselling (including the fees and security deposit) being followed for Central Institutes/Universities. The silent points of the scheme are as follows:

"a) There will be 04 rounds of Online counselling i.e. AIQ Round I, AIQ Round 2, AIQ Mop-up Round and AIQ Stray Vacancy Round.

b) The seats which were earlier reverted back to

the respective States after the completion of Round 2 of AIQ will continue to be filled in the AIQ Mop-Up Round and AIQ Stray Vacancy Round to be conducted by MCC of DGHS, MoHFW in online mode.

c) The said rounds will only be conducted for the AIQ seats having All India character which are contributed by the States for 15% UG seats and 50% PG seats.

d) Fresh registration of candidates will be allowed in:

AIQ Round 1

AIQ Round 2

AIQ Mop-Up Round.

e) There will be no fresh registration for candidates in the AIQ Stray Vacancy Round.

f) There will be an option for up-gradation and free exit, only in Round 1 of the AIQ counselling.

g) There will not be an option of up-gradation to Mop-up round from round 2.

h) Candidates who have joined the allotted seat in Round 2 and further rounds of counselling will not be allowed to resign and will also be ineligible to take part in further rounds of any type of counselling.

i) Candidates who have not joined the allotted seat in Round 2 will be eligible for further rounds of counselling subject to forfeiture of security

deposit and fresh registration in only mop-up round.

j) The provisions with regard to security deposit, option of free exit and eligibility for participation will be as per the Gazette Notification No.MCI-34(41)/2018-Med./109835 dated 18/05/2018.".

This Court has been informed that the modified schemes shall be implemented for the current year 2021-2022 for admissions to NEET UG and PG.

In view of the aforesaid statement made on behalf of MCC, Directorate of Health Services, nothing remains to be adjudicated in the Special Leave Petition and Writ Petition which are disposed of accordingly. Pending application(s), if any, shall stand disposed of.

(B.Parvathi)
Court Master

(Anand Prakash)
Court Master

ANNEXURE -"U"

Government Resolution for Eligibility Criteria In-service Medical officers service Under Directorate of Health Services.

महाराष्ट्र वैद्यकीय व आरोग्य सेवा गट- अ सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी (In Service Medical Officers) पदव्युत्तर पदवी/ पदविका अभ्यासक्रम प्रवेश सुधारित निवड नियमावली. . .

महाराष्ट्र शासन
सार्वजनिक आरोग्य विभाग
शासन निर्णय क्रमांकः मवैअ-२०२३/प्र.क्र.३०१/सेवा ३
१० वा मजला, संकुल इमारत,
जी.टी. रुग्णालय आवार,मंत्रालय, मुंबई - ४०० ००१.
दिनांक : १९ जुलै, २०२३.

वाचा :

१. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासन निर्णय क्र.एकईडी-१००९/प्र.क्र.२१०/०९/शिक्षण-२, दि.२०.०५.२०१०.
२. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासन निर्णय क्र.एकईडी-१०१०/प्र.क्र.१८४/१०/शिक्षण-२, दि.२८.०५.२०१०.
३. सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र.मवैअ-१०१०/३९०/प्र.क्र.३६६/सेवा-३, दि.१९.०६.२०१०.
४. सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र. मवैअ-१९१०/४६६/प्र.क्र.४११/१०/सेवा-३, दि.०३.०५.२०११.
५. सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र.मवैअ-२०१५/प्र.क्र.८५/सेवा-३, दि.१७.०७.२०१५.
६. सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र.मवैअ-१३१६/प्र.क्र.२५०/सेवा-३, दि.०२.०७.२०१६.
७. सार्वजनिक आरोग्य विभाग, शासन परिपत्रक क्र.मवैअ-१३१६/प्र.क्र.२५०(भाग-२)/सेवा-३, दि.२८.११.२०१६.
८. सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र.मवैअ-२०१७/ प्र.क्र.८५/सेवा-३, दि.२४.११.२०१७.
९. मेडीकल कौन्सिल ऑफ इंडियाची दि.२०.१०.२००८ ची अधिसूचना.
१०. केंद्र शासनाची दि.०५ एप्रिल २०१८ रोजीची अधिसूचना.
११. डॉ. प्रकाश डोके यांच्या अध्यक्षतेखालील समितीचा अहवाल.
१२. सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र. मवैअ-२०१९/प्र.क्र.१६५/सेवा-३, दि.१९.०३.२०१९ (सांकेतांक क्र.२०१९०३१३१०४७१२३४१७)
१३. सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र. मवैअ-२०१९/प्र.क्र.१६५/सेवा-३, दि.१९.०३.२०१९ (सांकेतांक क्र.२०१९०३१३१०४७३५१३१७)
१४. सार्वजनिक आरोग्य विभाग, शासन शुध्दीपत्रक क्र. मवैअ-२०१९/प्र.क्र.१६५(भाग-अ)/सेवा-३, दि.२६.०३.२०२०.

१५.वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग शासन निर्णय क्र. एमईडी-१०२०/प्र.क्र.९०/२०/ शिक्षण-२, दि.२६.०९.२०२२.

१६.सार्वजनिक आरोग्य विभाग, शासन पुरकपत्र क्र. मवैअ-२०१९/प्र.क्र.१६५(अ)/ सेवा-३, दि.११.१०.२०२२.

<u>प्रस्तावना:-</u>

सेवांतर्गत वैद्यकीय अधिकाऱ्यांना पदव्युत्तर पदविका अभ्यासक्रमास प्रवेश मिळण्याच्या अनुषंगाने त्यांचा गुणानुक्रम ठरविण्यासाठी त्यांना तसे गुणांकन/ गुणाधिक्य देण्यासाठी सार्वजनिक आरोग्य विभागांतर्गत असलेल्या राज्यातील सर्व आरोग्य संस्थांचे अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) प्रकारात वर्गीकरण करण्यासाठी दि.२४.११.२०१७ च्या शासन निर्णयान्वये डॉ. प्रकाश डोके, सेवानि. संचालक, आरोग्य सेवा यांच्या अध्यक्षतेखाली समिती गठीत करण्यात आली होती. सदर समितीचा उद्देश भारतीय वैद्यक परीषद (MCI) पोस्ट ग्रॅज्युएट मेडीकल एज्युकेशन रेग्युलेशन, २००० च्या अनुच्छेद ९(१)(बी) प्रमाणे राज्यातील दुर्गम व ग्रामीण क्षेत्रातील संस्थांचे निश्चितीकरण करणे हा होता.

सदर समितीने आरोग्य संस्थांचे वर्गीकरण करताना आदिवासी, नक्षलग्रस्त, डोंगराळ, ग्रामीण व मुख्यालयातील उपलब्ध सोयीसुविधा या बाबी विचारात घेऊन संस्थांना गुण देऊन त्यानुसार सदर संस्थांमध्ये सेवा देणाऱ्या वैद्यकीय अधिकाऱ्यांना प्रतिवर्षी अनुज्ञेय गुणाधिक्याची (Incentive Marks) टक्केवारी निश्चित केली. याअनुषंगाने सार्वजनिक आरोग्य विभागांतर्गत असलेल्या २१६२ आरोग्य संस्थांचे अतिदुर्गम/ दुर्गम व ग्रामीण प्रकारात या विभागाच्या दि.१९.०३.२०१९ च्या शासन निर्णयान्वये वर्गीकरण करण्यात आले. तसेच सदर शासन निर्णयामध्ये नमूद संस्थामध्ये सेवा देणाऱ्या वैद्यकीय अधिकारी यांचेकरीता वाचा क्र.१२ येथे नमूद शासन निर्णयान्वये पदव्युत्तर पदवी/ पदविका अभ्यासक्रमास प्रवेश देण्याकरीता सुधारित निवड नियमावली निश्चित करण्यात आली.

भारतीय आयुर्विज्ञान परीषद (MCI)/ राष्ट्रीय आयुर्विज्ञान आयोग (NMC) यांचे Postgraduate Medical Regulations, २००० मधील कलम ९ नुसार सध्या वैद्यकीय पदव्युत्तर पदविका अभ्यासक्रमांच्या ५० टक्के जागा सेवांतर्गत उमेदवारांकरीता राखीव ठेवण्यात येत होत्या. तथापि, वैद्यकीय पदव्युत्तर

पृष्ठ १३ पैकी २

पदवी अभ्यासक्रमांच्या प्रवेशाकरीता सेवांतर्गत उमेदवारांना आरक्षण लागू करण्याबाबत उक्त विनियमनामध्ये कोणतीही तरतुद नव्हती. तथापि, तामिळनाडू मेडीकल ऑफिसर्स असोसिएशन विरुध्द युनियन ऑफ इंडीया व इतर यासंदर्भात रिट याचिका (सिव्हील) क्र.१९६/२०१८ मध्ये मा. सर्वोच्च न्यायालयाने पदव्युत्तर पदवी अभ्यासक्रमाच्या प्रवेशाकरीता सेवांतर्गत उमेदवारांना आरक्षण लागू करण्याकरीता Postgraduate Medical Regulations, २००० नुसार मनाई करण्यात आलेली नाही, असे स्पष्ट केले आहे. याअनुषंगाने वैद्यकीय शिक्षण व औषधी द्रव्ये विभागाच्या दि.२६.०९.२०२२ रोजीच्या शासन निर्णयान्वये सन २०२२-२३ या शैक्षणिक वर्षापासून राज्यातील शासकीय/ महापालिका वैद्यकीय महाविद्यालयामधील पदव्युत्तर पदवी / पदविका अभ्यासक्रमांच्या प्रवेशाकरीता सेवांतर्गत उमेदवारांसाठी काही अटींच्या अधिन राहून राज्य कोट्यातील २० टक्के जागा राखीव ठेवण्यात आलेल्या आहेत.

महाराष्ट्र राज्य राजपत्रित वैद्यकीय अधिकारी "गट-अ" संघटना (मॅग्मो) तसेच अन्य वैद्यकीय अधिकारी गट-अ यांनी अघोषित संस्थांमध्ये सेवा देत असलेल्या वैद्यकीय अधिकाऱ्यांनाही पदव्युत्तर पदवी अभ्यासक्रमाकरीता राज्य कोट्यातून उपलब्ध होणाऱ्या जागांवर प्रवेश देण्यात यावा, अशी मागणी केली आहे. याअनुषंगाने वाचा क्र.१२ येथील दि.१९.०३.२०१९ येथील शासन निर्णयात आवश्यक त्या सुधारणा करण्याची बाब शासनाच्या विचाराधीन आहे.

शासन निर्णय :-

वाचा क्र.१२ व १४ येथील शासन निर्णय व शुध्दीपत्रक या शासन निर्णयान्वये अधिक्रमित करण्यात येत आहे.

२. राज्याच्या दुर्गम/ अतिदुर्गम, आदिवासी व नक्षलग्रस्त भागांमध्ये वैद्यकीय अधिकारी उपलब्ध व्हावेत याकरीता त्या भागात कार्यरत वैद्यकीय अधिकाऱ्यांना प्रोत्साहन देण्याच्या हेतूने भारतीय वैद्यक परिषदेच्या दि.१७.११.२००९ च्या अधिसूचनेच्या अनुषंगाने शासनाच्या वैद्यकीय शिक्षण व औषधी द्रव्ये विभागाने दि.२०.०५.२०१० चा शासन निर्णय निर्गमित केला आहे. या शासन निर्णयातील तरतूदीनुसार तसेच केंद्र शासनाच्या दिनांक ०५.४.२०१८ च्या अधिसूचनेनुसार सेवांतर्गत वैद्यकीय अधिकाऱ्यांना त्यांच्या

पृष्ठ १३ पैकी ३

अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural), (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट आहे) भागात केलेल्या ०३ वर्षाच्या नियमित सेवेकरीता ३० टक्क्यांच्या मर्यादेत गुणाधिक्य देण्यात येईल. शासनाने नियुक्त केलेल्या डॉ. डोके समितीने शिफारस केल्याप्रमाणे शासन निर्णय दि.१९.०३.२०१९ अन्वये अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) (यामध्ये आदिवासी व नक्षलग्रस्त समाविष्ट आहे) भागातील आरोग्य संस्थांची यादी घोषित केलेली असून त्यात वेळोवेळी केलेल्या सुधारणांनुसार गुणाधिक्य अनुज्ञेय राहील. तथापि, वैद्यकीय शिक्षण व औषधी द्रव्ये विभागाच्या वाचा क्र.१५ येथील दि.२६.०९.२०२२ रोजीच्या शासन निर्णयान्वये पदव्युत्तर पदवी / पदविका अभ्यासक्रमांच्या प्रवेशाकरीता सेवांतर्गत उमेदवारांकरीता राज्य कोट्यातील २० टक्के जागा राखीव ठेवण्यात आल्या आहेत. या कोट्यातून प्रवेश घेणाऱ्या सेवांतर्गत उमेदवारांना घोषित संस्थांमधील किमान ०३ वर्षे सेवा दिल्यास त्या प्रमाणात गुण अनुज्ञेय राहतील. तथापि, सदर आरक्षणाच्या कोट्याव्यतिरिक्त सर्वसाधारण प्रवर्गातून प्रवेशासाठी इच्छुक सेवांतर्गत उमेदवारांना नीट परीक्षेतील गुणांव्यतिरिक्त वेगळे गुणाधिक्य मिळणार नाही.

३. संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई हे सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी एकत्रितरीत्या प्रवेश प्रक्रिया राबवतील. पदव्युत्तर अभ्यासक्रमाच्या प्रवेशासंदर्भात घेण्यात येणाऱ्या प्रवेश परीक्षेसाठी सक्षम प्राधिकारी म्हणून आयुक्त, State CET Cell, मुंबई हे परीक्षा घेणे, परिक्षेचा निकाल जाहीर करणे, सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी राखीव पदव्युत्तर पदविका/ सर्वसाधारण गुणानुक्रमानुसार पदवी/ पदविका अभ्यासक्रमाच्या प्रवेशासाठी उपलब्ध जागांचा महाविद्यालय निहाय तपशिल घोषित करतील.

४. पदव्युत्तर प्रशिक्षणासाठी सेवांतर्गत प्रतिनियुक्ती मिळण्यासाठी खालीप्रमाणे निकष राहतील.

४.१ राष्ट्रीय पात्रता व प्रवेश परिक्षेस (NEET PG) बसण्यास संबंधित उप संचालक, आरोग्य सेवा, परिमंडळ यांची लेखी परवानगी घेणे अनिवार्य आहे. त्यासाठी संबंधित वैद्यकीय अधिकारी यांनी प्रवेश परीक्षेच्या दिनांकाच्या किमान १५ दिवस अगोदर अर्ज विहीत मार्गाने उपसंचालक, कार्यालयाकडे सादर करणे आवश्यक राहील. तसेच राष्ट्रीय पात्रता व प्रवेश परीक्षेला (NEET PG) बसण्यासाठी उप संचालकांची परवानगी

पृष्ठ १३ पैकी ४

न घेता थेट अर्ज करणाऱ्या सेवांतर्गत वैद्यकीय अधिकाऱ्यांना पदव्युत्तर अभ्यासक्रमासाठी कार्यमुक्त केले जाणार नाही.

४.२ वैद्यकीय अधिकाऱ्यांची नियुक्ती सेवावप्रवेश नियमातील तरतुदीनुसार विहित पद्धतीने झालेली असावी, तसेच सेवा कालावधी बंधपत्रित/ अस्थायी / कंत्राटी सेवेचा कालावधी वगळून प्रतीवर्षीच्या राष्ट्रीय पात्रता व प्रवेश परीक्षेच्या(NEET PG) दिनांकास नियमित स्वरुपात किमान ३ वर्षे झालेला असावा.

४.३ वैद्यकीय अधिकाऱ्यांचे वय पदव्युत्तर अभ्यासक्रमाच्या (NEET PG) प्रवेश परीक्षेच्या दिनांकास ४५ वर्षापेक्षा जास्त नसावे.

४.४ नामनिर्देशनाने नियुक्ती झालेल्या वैद्यकीय अधिकाऱ्यांचा परिविक्षाधीन कालावधी प्रवेश परिक्षेच्या (NEET PG) दिनांकास समाधानकारकरीत्या समाप्त करण्यात आलेला असावा. तांत्रिक कारणामुळे ज्या वैद्यकीय अधिकाऱ्यांचा परिविक्षाधीन कालावधी समाप्त केल्याबाबतचे शासनाचे औपचारीक आदेश निर्गमित करण्यात आले नाहीत, परंतु त्यांची ३ वर्षाची समाधानकारक सेवा झाली आहे, अशा उमेदवारांना ते परिविक्षा कालावधी समाप्त करण्यासाठी आवश्यक असलेल्या अटींची पूर्तता करीत असतील तरच त्यांना (NEET PG) प्रवेश परिक्षेस बसण्यास संबंधित उप संचालक, आरोग्य सेवा परिमंडळ हे परवानगी देतील.

४.५ वैद्यकीय अधिकाऱ्यांविरुद्ध विभागीय चौकशी अथवा फौजदारी प्रकरण प्रलंबित/ प्रस्तावित किंवा सुरु असल्यास त्यास (NEET PG) प्रवेश परिक्षेस बसण्यास अपात्र समजण्यात येईल. अशा वैद्यकीय अधिकारी यांना उप संचालक स्तरावरुन प्रवेश परीक्षेस बसण्यास ना हरकत प्रमाणपत्र देण्यात येऊ नये.

४.६ वाचा क्र.१३ येथील दि.१९.०३.२०१९ रोजीच्या शासन निर्णयातील व त्यामध्ये वेळोवेळी करण्यात आलेल्या सुधारणेसह अतिदुर्गम(Remote), दुर्गम (Difficult) व ग्रामीण (Rural) भागातील घोषित आरोग्य संस्थांमध्ये किमान ०३ वर्षे सेवा दिलेल्या तसेच उपरोक्त ४.१ ते ४.५ मधील अटी पूर्ण करणाऱ्या सेवांतर्गत वैद्यकीय अधिकारी यांना वैद्यकीय शिक्षण व औषधी द्रव्ये विभागाच्या वाचा क्र.१५ येथील शासन निर्णयान्वये पदव्युत्तर अभ्यासक्रमाकरीता राखीव ठेवण्यात आलेल्या राज्य कोट्यातील २० टक्के

पृष्ठ १३ पैकी ५

जागांवर प्राधान्याने प्रवेश देण्यात येईल. घोषित आरोग्य संस्थांमधील सर्व पात्र सेवांतर्गत उमेदवारांना प्रवेश दिल्यानंतर राखीव २० टक्के कोट्यातील शिल्लक/ रिक्त राहणाऱ्या जागांवर ज्या वैद्यकीय अधिकाऱ्यांची अघोषित संस्थांमधील नियमित सेवा ही किमान ०३ वर्षे किंवा त्याहून अधिक असेल अशा वैद्यकीय अधिकाऱ्यांना त्यांच्या NEET PG या पदव्युत्तर प्रवेश परीक्षेतील गुणवत्तेनुसार प्रवेश देण्यात येईल. सदर सर्व वैद्यकीय अधिकारी प्रतिनियुक्तीस पात्र राहतील.

५. अतिदुर्गम, दुर्गम व ग्रामीण भागासाठी गुण देण्याचे निकष खालीलप्रमाणे राहतील.

५.१ वाचा क्र. १३ येथील शासन निर्णयान्वये, सेवांतर्गत वैद्यकीय अधिकाऱ्यांना पदव्युत्तर पदविका अभ्यासक्रमास प्रवेश मिळताना गुणाधिक्य देण्यासाठी सार्वजनिक आरोग्य विभागांतर्गत असलेल्या आरोग्य संस्थेचे वर्गीकरण अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) आरोग्य संस्था म्हणून घोषित करण्यात आले आहे.

५.२ वाचा क्र. १३ येथील शासन निर्णयान्वये अतिदुर्गम, दुर्गम व ग्रामीण भागातील आरोग्य संस्था घोषीत करण्यात आलेल्या संस्थांच्या वर्गीकरणानुसार गुणाधिक्य देण्याची तरतूद दि.१९.०३.२०१९ चा शासन निर्णय निर्गमित झाल्याच्या दिनांकापासून लागू राहील व त्यातील निकषानुसार सेवांतर्गत वैद्यकीय अधिकारी यांनी या दिनांकापासून दिलेल्या सेवेसाठी गुणाधिक्य देण्यात यावेत. तथापि, दि.१९.०३.२०१९ रोजीच्या शासन निर्णयापूर्वीच्या सेवेसाठी त्यावेळी अस्तित्वात असलेल्या शासन निर्णयातील आरोग्य संस्थांच्या वर्गीकरणानुसार गुणाधिक्य अनुज्ञेय राहील.

५.३ सदर सेवेची गणना करताना खालील बाबी विचारात घेण्यात याव्यात.

अ. सदर ३ वर्षांचा नियमित सेवा कालावधी हा थेट रुग्णसेवेशी संबंधित असला पाहिजे. म्हणजेच तालुका आरोग्य अधिकारी व अन्य प्रशासकीय पदावरील सेवा उपरोक्त ३ वर्षाच्या कालावधीतून वगळण्यात यावी.

आ. सदर सेवेची गणना करताना अनुज्ञेय असलेली व मंजूर करण्यात आलेली रजा वगळता अनुपस्थितीचा कालावधी ग्राहय धरण्यात येणार नाही.

पृष्ठ १३ पैकी ६

इ. सदर आरोग्य संस्थेमध्ये नियमित पदस्थापनेद्वारे नियुक्त वैद्यकीय अधिकारी यांची सेवाच केवळ विचारात घेण्यात यावी. प्रतिनियुक्ती अथवा अतिरिक्त कार्यभाराद्वारे होणारी पदस्थापना विचारात घेऊ नये.

ई. वैद्यकीय अधिकारी वाचा येथील क्र.१३ च्या शासन निर्णयासोबतच्या प्रपत्रात नमूद असलेल्या घोषित संस्थामध्ये नियमित पदस्थापनेद्वारे कार्यरत असणे आवश्यक आहे. प्रतिनियुक्ती अथवा उसनवारी तत्वावर अन्यत्र सेवा बजावल्यास त्याला केवळ मूळ पदस्थापना घोषित क्षेत्रातील आहे या सबबीखाली अतिरिक्त गुणांकनाचा फायदा घेता येणार नाही.

५.४ राष्ट्रीय पात्रता तथा प्रवेश परीक्षा (NEET PG) प्रक्रियेचा निकाल प्राप्त झाल्यानंतर पात्र उमेदवारांना गुणाधिक्य देण्यासाठी संचालनालय स्तरावर संचालक, आरोग्य सेवा १, मुंबई यांच्या अध्यक्षतेखालील समितीने संबंधित वैद्यकीय अधिकाऱ्यांचा अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) भागातील (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट) सेवाकाल योग्यरित्या तपासून शासन निर्णय दि.१९.०३.२०१९ नुसार दुर्गम, अतिदुर्गम, व ग्रामीण भागात (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट) केलेल्या सेवेबद्दल वरीलप्रमाणे ०३ वर्षासाठी प्राप्त गुणांच्या ३० टक्के मर्यादेत गुणाधिक्य देऊन अशा सेवांतर्गत वैद्यकीय अधिकाऱ्यांची अंतिम गुणवत्ता यादी तयार करावी. तसेच अघोषित संस्थांमधील नियमित ३ वर्षे सेवा झालेल्या सेवांतर्गत वैद्यकीय अधिकारी यांची NEET PG च्या गुणांनुसार गुणवत्ता यादी स्वतंत्ररित्या तयार करण्यात यावी. सदर दोन्ही गुणवत्ता याद्या संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई तसेच आयुक्त, State CET Cell, मुंबई यांना कळवावी.

५.५ शासन निर्णय क्र.मवैअ-२०१९/प्र.क्र.१६५/सेवा-३, दि.१९.०३.२०१९ (सांकेतांक क्र.२०१९०३१३१०४७३५१३१७) मध्ये संस्थांचे वर्गीकरण करण्यात आलेले आहे. या संस्थांव्यतिरिक्त नव्याने संस्था निर्माण झाल्यास त्यांचे वर्गीकरण व यापूर्वी घोषित संस्थांच्या तपासणीअंती त्यांच्या वर्गीकरणामध्ये काही सुधारणा आवश्यक असल्यास, नविन संस्थाच्या

पृष्ठ १३ पैकी ७

वर्गीकरणासाठी / जुन्या संस्थांच्या वर्गीकरणांमध्ये सुधारणा करण्यासाठी आयुक्तालय स्तरावर खालील प्रमाणे समिती गठीत करण्यात येत आहे.

अ. क्र.	पदनाम	
१	आयुक्त, आरोग्य सेवा, मुंबई	अध्यक्ष
२	संचालक, आरोग्य सेवा-१, मुंबई	सदस्य
३	सह संचालक, रुग्णालये (राज्यस्तर)	सदस्य
४	सह संचालक, प्रा.आ. केंद्रे, उपकेंद्रे व दवाखाने (जिल्हास्तर)	सदस्य
५	सह संचालक, अर्थ व प्रशासन	सदस्य सचिव
६	निमंत्रित विशेषज्ञ	सदस्य

या समितीने उपरोक्त नुसार A1/ A2/ A3/ B1/ B2 यातील वर्गीकरण करतांना डॉ. डोके समितीने ठरविलेल्या निकष विचारात घेऊन वर्गीकरण करावे व या वर्गीकरणानुसार गुण अनुज्ञेय राहतील.

६. जे वैद्यकीय अधिकारी सेवांतर्गत २० टक्के कोट्यातून पदव्युत्तर अभ्यासक्रमास प्रवेश मिळण्यास अपात्र ठरतील तथापि त्यांची ५ वर्षाची नियमित सेवा झाली असल्यास व त्यांनी सर्वसाधारण कोट्यात विहीत मार्गाने प्रवेश घेतल्यास ते अध्ययन रजेस पात्र असतील.

७. ज्या वैद्यकीय अधिकाऱ्यांचा घोषित व अघोषित संस्थेमध्ये दिलेल्या नियमित सेवेचा कालावधी ०३ वर्षापेक्षा कमी असेल असे वैद्यकीय अधिकारी सेवांतर्गत पदव्युत्तर अभ्यासक्रमासाठी प्रवेशासाठी अपात्र ठरतील. तसेच ज्या वैद्यकीय अधिकारी यांची नियमित सेवा ३ वर्षापेक्षा जास्त झाली परंतू ते सेवांतर्गत कोट्यात अपात्र ठरले किंवा ५ वर्षापेक्षा कमी सेवा झाली आहे अशा वैद्यकीय अधिकाऱ्यांनी परस्पर पदव्युत्तर अभ्यासक्रमासाठी प्रवेश घेतला तर त्यांना शासनाचे कुठलेही लाभ अनुज्ञेय राहणार नाहीत, तसेच त्यांचा अभ्यासक्रम कालावधी शासकीय सेवेत ग्राह्य न धरता नियमानुसार सदर कालावधी अनधिकृत गैरहजेरी समजून अकार्यदिन म्हणून समजण्यात येईल.

पृष्ठ १३ पैकी ८

८. खाजगी वैद्यकीय महाविद्यालयात प्रवेश घेतला असल्यास महाविद्यालयाचे अनुज्ञेय शुल्क हे संबंधित वैद्यकीय अधिकाऱ्यास भरावे लागेल.

९. ज्या वैद्यकीय अधिकाऱ्यांनी नियमित सेवेत रुजू झाल्यानंतर अथवा तत्पूर्वी एखादया विषयामध्ये पदव्युत्तर पदविका धारण केली असल्यास, अशा वैद्यकीय अधिकाऱ्यांना त्याच विषयाच्या पदव्युत्तर पदवी अभ्यासक्रमासाठी सर्वसाधारण गुणवत्तेनुसार प्रवेश घेता येईल. तसेच एक पदवी असलेल्या उमेदवारांना दुसऱ्या पदवीसाठी किंवा अन्य कोणत्याही पदविकेसाठी नोंदणी देण्यात येणार नाही.

१०. पदव्युत्तर अभ्यासक्रमासाठी निवड झालेल्या उमेदवारांनी पदव्युत्तर पदविका/ पदवी अभ्यासक्रम पूर्ण झाल्यावर, असे वैद्यकीय अधिकारी सार्वजनिक आरोग्य विभागामध्ये (म्हणजेच सार्वजनिक आरोग्य विभागाच्या अखत्यारीतील आरोग्य संस्थांमध्येच) किमान ३ वर्षे सेवा व पदव्युत्तर पदवी पूर्ण झाल्यावर सार्वजनिक आरोग्य विभागाची (म्हणजेच सार्वजनिक आरोग्य विभागाच्या अखत्यारीतील आरोग्य संस्थांमध्येच) किमान ५ वर्षे सेवा करतील असे बंधपत्र (हमीपत्र) अभ्यासक्रमासाठी रुजू होण्यापूर्वी संचालक, आरोग्य सेवा १, मुंबई यांचेकडे भरून देणे आवश्यक राहील. बंधपत्रातील अटी न पाळल्यास सदर वैद्यकीय अधिकाऱ्यांना रु.५०,००,०००/- (रु. पन्नास लक्ष) एवढी किंवा शासन वेळोवेळी विहित करेल एवढी बंधपत्राची रक्कम दंड म्हणून संचालक, आरोग्य सेवा-१, मुंबई यांचेकडे जमा करावी लागेल व असा दंड वसूल करायची जबाबदारी संचालक, आरोग्य सेवा-१, मुंबई यांची राहील.

१०.१ सेवांतर्गत पदव्युत्तर पदवी/ पदविका पूर्ण केल्यानंतर उक्त नमूद बंधपत्र पूर्ण करणे आवश्यक राहील. संबंधित वैद्यकीय अधिकाऱ्यास पदव्युत्तर पदवी करावयाची असल्यास व त्यापूर्वी सेवांतर्गत पदव्युत्तर पदविकेसाठीचा बंधपत्र कालावधी सुरु असल्यास तो कालावधी पूर्ण करणे बंधनकारक राहील. तो बंधपत्र कालावधी पूर्ण न केल्यास मुद्दा क्र.१० मध्ये नमूद दंडात्मक रक्कम भरुनच संबंधित वैद्यकीय अधिकाऱ्यास सेवांतर्गत पदव्युत्तर पदवीसाठी पात्र ठरविण्यात येईल.

१०.२ सेवांतर्गत उमेदवारांना पदव्युत्तर अभ्यासक्रम पूर्ण केल्यानंतर सार्वजनिक आरोग्य विभागांतर्गत द्यावयाच्या बंधपत्रित सेवेव्यतिरिक्त वाचा क्र. १५ येथील शासन निर्णयानुसार

शासकीय वैद्यकीय महाविद्यालयात देखील एक वर्षाची सामाजिक दायित्व सेवा देणे बंधनकारक राहील.

११. परिच्छेद क्र.१० येथे नमूद बंधपत्रानुसार ३ वर्षाची / ५ वर्षाची सेवा देताना त्यापैकी किमान २ वर्षाची सेवा दुर्गम, अतिदुर्गम व ग्रामीण (यामध्ये आदिवासी व नक्षलग्रस्त भागातील आरोग्य संस्था समाविष्ट आहेत) अशा आरोग्य संस्थांमध्ये करणे बंधनकारक राहील.

१२. पदव्युत्तर अभ्यासक्रम पूर्ण केल्यानंतर पदस्थापनेबाबतची कार्यवाही शासन स्तरावरुन करण्यात येईल. संबंधित उमेदवारांना विशिष्ट ठिकाणी नियुक्ती देण्याची मागणी करता येणार नाही. शासन अशा उमेदवाराला ज्या ठिकाणी नियुक्ती देईल, त्या ठिकाणी त्यांना सेवा देणे बंधनकारक राहील.

१३. पदव्युत्तर पदवी / पदविकेकरीता नोंदणी देऊन प्रतिनियुक्ती दिलेल्या तसेच अध्ययन रजेवर गेलेल्या वैद्यकीय अधिकाऱ्यांनी अभ्यासक्रमाकरीता रुजू होवून अभ्यासक्रम पूर्ण न केल्यास / अभ्यासक्रम मध्येच सोडून दिल्यास प्रतिनियक्ती कालावधीत त्यांना देण्यात आलेले वेतन व भत्ते त्यांचे कडून वसूल करण्यात येतील. त्याशिवाय MCI च्या नियम, अटी व शर्तीनुसार दंडाची रक्कमदेखील त्यांना भरावी लागेल. तसेच सदरहू वैद्यकीय अधिकाऱ्यांच्या सेवांतर्गत पदव्युत्तर अभ्यासक्रमाच्या नोंदणीसाठी भविष्यात कोणत्याही परिस्थितीचा विचार केला जाणार नाही.

१४. पदव्युत्तर अभ्यासक्रमाकरीता निवड झालेल्या उमेदवारांची माहिती संबंधित वैद्यकीय महाविद्यालयांना आरोग्य सेवा संचालनालयाकडून दिली जाईल. पदव्युत्तर अभ्यासक्रमाकरीता प्रतिनियुक्ती आदेश प्राप्त होताच संबंधित उमेदवारांनी त्यांना दिलेल्या वैद्यकीय महाविद्यालयात अर्ज करून प्रवेश घेणे आवश्यक राहील.

१५. पदव्युत्तर अभ्यासक्रमाकरीता प्रवेश घेतलेल्या उमेदवारांना अभ्यासक्रम (टर्म) पूर्ण होवून परिक्षेला बसलेल्या उमेदवारांना परीक्षा संपताच संबंधित वैद्यकीय महाविद्यालयांनी तात्काळ कार्यमुक्त करावे. एखादा उमेदवार प्रथम प्रयत्नामध्ये परिक्षेला बसला नाही / उत्तीर्ण झाला नाही अथवा त्या जागेवर दुसऱ्या

पृष्ठ १३ पैकी १०

वैद्यकीय अधिकाऱ्याची प्रतिनियुक्ती झाली नाही, तरीदेखील वैद्यकीय महाविद्यालयांनी उमेदवारांना परीक्षा संपताच कार्यमुक्त करावे.

१६. अभ्यासक्रम पूर्ण करुन संबंधित महाविद्यालयाने कार्यमुक्त केल्यावर पदव्युत्तर पदविका / पदवी च्या अनुषंगाने शासनाकडून सुधारित पदस्थापना मिळेपर्यंत असे वैद्यकीय अधिकारी पूर्वी ज्या परिमंडळात कार्यरत होते त्याच परिमंडळाच्या उप संचालकांनी परिमंडळात तात्पुरती पदस्थापना द्यावी. त्याकरीता उमेदवारांनी परीक्षा होताच संबंधित परिमंडळात हजर होऊन तसा रुजू अहवाल दयावा व त्याची प्रत संचालक, आरोग्य सेवा, मुंबई यांना द्यावी. अन्यथा, त्यांचे वेतन रोखण्यात येईल.

१७. अभ्यासक्रमाच्या कालावधीत उमेदवारांनी शक्यतोवर रजेवर जावू नये. निकडीच्या प्रसंगी रजा घेतल्यास त्याची माहिती संबंधित वैद्यकीय महाविद्यालयाच्या अधिष्ठाता मार्फत संचालक, आरोग्य सेवा-१ मुंबई यांना कळवावी. संबंधित विद्यापीठाच्या पदव्युत्तर अभ्यासक्रमाच्या उपस्थितीच्या नियमानुसार आवश्यक कालावधीच्या अधीन राहून रजा अनुज्ञेय राहील.

१८. पदव्युत्तर अभ्यासक्रमाकरीता आलेल्या वैदयकीय अधिकाऱ्यांना उपलब्धतेनुसार निवासाची व्यवस्था संबंधित महाविद्यालयाने करावी.

१९. पदव्युत्तर पदविका अभ्यासक्रमासाठी निवड झालेल्या सेवांतर्गत वैद्यकीय अधिकाऱ्यांना प्रतिनियुक्तीपूर्वी ज्या कार्यालयातून वेतन आहरीत केले जात होते, त्या कार्यालयाने संबंधित वैद्यकीय अधिकाऱ्यांना सर्व आर्थिक लाभ प्रदान करून व सेवापुस्तक परिपूर्ण करून त्यांना संबंधित उप संचालक, आरोग्य सेवा कार्यालयातील अधिसंख्य पदावर रुजू होण्यासाठी तात्काळ कार्यमुक्त करावे.

२०. वरील नियमातील कोणत्याही नियमाच्या तरतूदीबद्दल वाद निर्माण झाल्यास / अर्थाबद्दल शंका उपस्थित करण्यात आल्यास यासंबंधी सार्वजनिक आरोग्य विभागाचे अपर मुख्य सचिव / प्रधान सचिव / सचिव यांनी दिलेले स्पष्टीकरण अंतिम राहील आणि सर्व संबंधितांवर बंधनकारक राहील.

पृष्ठ १३ पैकी ११

२१. वरील नियमात कोणत्याही वेळेस पूर्वसूचना न देता बदल / सुधारणा करण्याचे अधिकार शासनास राहतील.

२२. आयुर्वेद तसेच दंतशल्यचिकित्सा विद्याशाखेतील पदव्युत्तर अभ्यासक्रमासाठी सुद्धा वरीलप्रमाणे प्रवेश प्रक्रिया राबविण्यात येईल. तथापि, वाचा क्र. १५ नुसार २० टक्के कोट्यातील जागांचे आरक्षण हे केवळ एम.बी.बी.एस. व तद्नंतरची पदविका धारक वैद्यकीय अधिकाऱ्यांकरीताच लागू राहील. गट-अ व गट ब संवर्गामध्ये कार्यरत असलेले आणि आयुर्वेद पदवी धारण करीत असलेले वैद्यकीय अधिकारी तसेच गट ब मधील दंतशल्य चिकित्सक वरील सर्व अटींची पूर्तता करीत असल्यास, दंत तसेच आयुर्वेद विद्याशाखेतील पदव्युत्तर अभ्यासक्रमासाठी आयोजित करण्यात येणाऱ्या सामाईक / (NEET PG) प्रवेश परिक्षेसाठी पात्र असतील.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.mahashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा सांकेतांक २०२३०७१७१६१३१८८२१७ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करून काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

AVINASH SARDAR JADHAV

Digitally signed by AVINASH SARDAR JADHAV
DN: c=IN, o=GOVERNMENT OF MAHARASHTRA, ou=PUBLIC HEALTH DEPARTMENT, 2.5.4.20=77e749a5820964d03e94305adeb0ee2ffb2c5f02efc5b019e8b49dc59175a25c, postalCode=400032, st=Maharashtra, serialNumber=AA8FDCAA7AE61AB4BED501E19D794BD7197874F2989B98780B1607ADCBDFE844, cn=AVINASH SARDAR JADHAV
Date: 2023.07.19 17:31:56 +05'30'

(अ.स.जाधव)
कार्यासन अधिकारी, महाराष्ट्र शासन

प्रत,

१) मा. राज्यपाल यांचे सचिव, राजभवन, मुंबई.
२) मा. मुख्यमंत्री यांचे प्रधान सचिव, मंत्रालय, मुंबई.
३) मा. मंत्री, सार्वजनिक आरोग्य यांचे खाजगी सचिव, मंत्रालय, मुंबई.
४) मा. मुख्य सचिव, मंत्रालय, मुंबई.
५) अपर मुख्य सचिव, सार्वजनिक आरोग्य विभाग, मंत्रालय, मुंबई

पृष्ठ १३ पैकी १२

६) सचिव-२, सार्वजनिक आरोग्य विभाग, मंत्रालय, मुंबई.
७) सचिव, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग यांचे स्वीय सहायक, मंत्रालय, मुंबई.
८) आयुक्त, आरोग्य सेवा, आरोग्य सेवा आयुक्तालय, मुंबई.
९) आयुक्त, State CET Cell, मुंबई.
१०) संचालक, आरोग्य सेवा, आरोग्य सेवा आयुक्तालय, मुंबई.
११) संचालक, वैद्यकीय शिक्षण संचालनालय, मुंबई.
१२) महालेखापाल, महाराष्ट्र- १/२ (लेखा / लेखा व अनुज्ञेयता) मुंबई/ नागपूर.
१३) उप संचालक, आरोग्य सेवा (सर्व परिमंडळे).
१४) जिल्हा शल्य चिकित्सक (सर्व).
१५) जिल्हा आरोग्य अधिकारी (सर्व).
१६) जिल्हा कोषागार अधिकारी (सर्व)
१७) वैद्यकीय अधिक्षक (सर्व)
१८) निवडनस्ती (सेवा-३).

राज्यातील शासकीय वैद्यकीय महाविद्यालयांतील वैद्यकीय पदव्युत्तर अभ्यासक्रमांच्या प्रवेशांसाठी शासनाच्या सेवेतील वैद्यकीय अधिकारी (सेवांतर्गत उमेदवार) यांच्यासाठी आरक्षण ठेवणेबाबत....

महाराष्ट्र शासन

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन निर्णय क्रमांक :- एमईडी १०२०/प्र.क्र.९०/२०/शिक्षण-२,
९वा मजला, गो.ते.रूग्णालय संकुल, लोकमान्य टिळक मार्ग, मुंबई ४०० ००१
दिनांक :-२६/०९/२०२२

वाचा : १. मा.सर्वोच्च न्यायालय, नवी दिल्ली येथे दाखल रिट याचिका (सिव्हिल) क्र.१९६/२०१८ (तामिळनाडु मेडीकल ऑफिसर्स असोसिएशन व इतर विरूध्द भारतीय संघराज्य व इतर) प्रकरणी मा.न्यायालयाचे आदेश दिनांक ३१.०८.२०२०.

२. सार्वजनिक आरोग्य व कुटुंब कल्याण विभाग शासन निर्णय क्रमांक मवैअ- २०१९/प्र.क्र.१६५/ सेवा-३, दिनांक १९/०३/२०१९ (सुधारित निवड नियमावली संबंधी)

३. सार्वजनिक आरोग्य व कुटुंब कल्याण विभाग शासन निर्णय क्रमांक मवैअ- २०१९/प्र.क्र.१६५/ सेवा-३, दिनांक १९/०३/२०१९ (आरोग्य संस्थांचे वर्गिकरण संबंधी)

४. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,शासन निर्णय क्रमांक एमईडी १०१३/प्र.क्र.१३७/१३/शि- २, दिनांक ०६/०१/२०१५.

५.वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासन निर्णय क्रमांक एमईडी १०१३/प्र.क्र.१३७/१३/ शि-२, दिनांक ०२/०७/२०१३.

६. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासन निर्णय क्रमांक एमईडी १०१३/प्र.क्र.१३७/१३/ शि-२, दिनांक २१/०६/२०१३.

७. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासन निर्णय क्रमांक एनओसी- ३०९५/प्र.क्र.३०७/९५/ शिक्षण-१, दिनांक २२/०२/१९९६.

८. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासन निर्णय क्रमांक एमईडी २०९१/प्र.क्र.७३/९१/ एमईडी-४ए, दिनांक २४/१०/१९९१.

९. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासन निर्णय क्रमांक एमईडी २१०८९ /४७३६ /प्र.क्र.४८२ / ८९/एमईडी-४ए, दिनांक ०६/०१/१९९०.

<u>प्रस्तावना :-</u> राज्यातील शासकीय वैद्यकीय महाविद्यालयांमध्ये पदव्युत्तर अभ्यासक्रमांच्या प्रवेशांकरिता राज्य शासनाच्या सेवेतील वैद्यकीय अधिकारी (सेवांतर्गत उमेदवार) यांच्याकरिता जागा राखीव ठेवण्याबाबत "वाचा" येथील क्र.४ ते ९ वरील शासन निर्णयान्वये तरतुदी करण्यात आल्या आहेत. सेवांतर्गत उमेदवारांना गुणाधिक्य देण्याच्या अनुषंगाने सार्वजनिक आरोग्य विभागांतर्गत असलेल्या आरोग्य संस्थांचे अतिदुर्गम / दुर्गम / ग्रामिण प्रकारांमध्ये "वाचा" येथील क्र.३ वरील शासन निर्णयान्वये वर्गीकरण करण्यात आले आहे. तसेच, वैद्यकीय

पदव्युत्तर अभ्यासक्रमांच्या सेवांतर्गत कोट्यातील प्रवेशांकरिता सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी सुधारीत निवड नियमावली "वाचा" येथील क्र.२ वरील शासन निर्णयान्वये प्रसिध्द करण्यात आली आहे.

भारतीय आयुर्विज्ञान परिषद (MCI) / राष्ट्रीय आयुर्विज्ञान आयोग (NMC) यांचे Postgraduate Medical Education Regulations, २००० मधील कलम ९ नुसार सध्या वैद्यकीय पदव्युत्तर पदविका अभ्यासक्रमांच्या ५० टक्के जागा सेवांतर्गत उमेदवारांकरिता राखीव ठेवण्यात येतात. तथापि, वैद्यकीय पदव्युत्तर पदवी अभ्यासक्रमांच्या प्रवेशांकरिता सेवांतर्गत उमेदवारांना आरक्षण लागू करण्याबाबत उक्त विनियमनामध्ये कोणतीही तरतूद नाही. तसेच पदव्युत्तर पदवी अभ्यासक्रमाच्या प्रवेशाकरिता सेवांतर्गत उमेदवारांना आरक्षण लागू करण्याकरिता Postgraduate Medical Education Regulations, २००० नुसार मनाई करण्यात आलेली नाही, असे "वाचा" येथील क्र.१ वर नमूद मा.सर्वोच्च न्यायालयाच्या दिनांक ३१/०८/२०२० रोजीच्या न्यायालयीन निर्णयान्वये स्पष्ट करण्यात आले आहे. त्याप्रमाणेच सदर सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी वैद्यकीय पदव्युत्तर पदवी अभ्यासक्रमांच्या प्रवेशासाठी जागा राखीव ठेवण्यासाठी राज्य शासन सक्षम असल्याचे उक्त न्यायालयीन निर्णयावरून स्पष्ट होते.

सद्यस्थितीत वैद्यकीय पदव्युत्तर पदविका अभ्यासक्रमांच्या बहुतांश जागा ह्या पदव्युत्तर पदवीमध्ये रूपांतरीत करण्यात आल्या आहेत. त्यामुळे सेवांतर्गत वैद्यकीय अधिकाऱ्यांना पदव्युत्तर पदविका अभ्यासक्रमांच्या प्रवेशांकरिता असलेल्या आरक्षणाचा प्रत्यक्षरित्या लाभ मिळत नसल्याचे निदर्शनास आले आहे. सेवांतर्गत वैद्यकीय अधिकारी हे शासनाच्या रूग्णालयांमध्ये सेवा बजावित असून त्यांना पदव्युत्तर पदवीसाठी जागा राखीव ठेवल्यास त्यांचेमधून उपलब्ध होणारे विशेषज्ञांमार्फत राज्यातील सामान्य जनतेस रूग्णसेवा उपलब्ध होणार आहे. सदर बाब विचारात घेऊन शासकीय / महापालिका वैद्यकीय महाविद्यालयातील पदव्युत्तर पदवी आणि पदव्युत्तर पदविका अभ्यासक्रमांच्या प्रवेशाकरिता सेवांतर्गत कोट्याच्या प्रमाणासंदर्भात सुधारीत आदेश निर्गमित करण्याची बाब शासनाच्या विचाराधीन होती.

<u>शासन निर्णय :-</u> सन २०२२-२३ या शैक्षणिक वर्षापासून राज्यातील शासकीय / महापालिका वैद्यकीय महाविद्यालयांमधील पदव्युत्तर पदवी व पदविका अभ्यासक्रमांच्या प्रवेशांकरिता सेवांतर्गत उमेदवारांकरिता २०% जागा राखीव ठेवण्यास शासनाची मान्यता प्रदान करण्यात येत आहे.

२. पदव्युत्तर अभ्यासक्रमांच्या सेवांतर्गत कोट्यांमधील प्रवेशांकरिता प्राप्त करावयाचे गुणाधिक्य आणि सदर कोट्यातील प्रवेशांकरिता सेवांतर्गत उमेदवारांची निवड याकरिता "वाचा" येथील क्र.२ आणि ३ वर नमूद सार्वजनिक आरोग्य विभागाच्या शासन निर्णयांन्वये अथवा त्या विभागामार्फत वेळोवेळी निर्गमित करण्यात येणाऱ्या आदेशांनुसार कार्यवाही करण्यात येईल.

३. राज्यातील शासकीय/महापालिका वैद्यकीय महाविद्यालयांमधील पदव्युत्तर पदवी व पदविका अभ्यासक्रमांच्या प्रवेशांकरिता सेवांतर्गत उमेदवारांकरिता राज्य कोट्यातील २०% जागा राखीव ठेवण्यास खालील अटीच्या अधीन राहून शासनाची मान्यता प्रदान करण्यात येत आहे:-

१) सदर आरक्षणाच्या कोट्याव्यतिरिक्त सर्वसाधारण प्रवर्गातून प्रवेशासाठी इच्छुक सेवांतर्गत उमेदवारांना नीट परीक्षेतील गुणांव्यतिरिक्त वेगळे गुणाधिक्य मिळणार नाही.

२) सेवांतर्गत उमेदवारांनी पदव्युत्तर अभ्यासक्रम पूर्ण केल्यानंतर सार्वजनिक आरोग्य विभागांतर्गत द्यावयाच्या सेवेव्यतिरिक्त त्यांनी शासकीय वैद्यकीय महाविद्यालयात देखील एक वर्षाची सामाजिक दायित्व सेवा देणे बंधनकारक राहील.

पृष्ठ ३ पैकी २

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेताक २०२२०९२६१७०४४६०११३ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

AJIT TUKARAM SASULKAR

Digitally signed by AJIT TUKARAM SASULKAR
DN: cn=IN, o=GOVERNMENT OF MAHARASHTRA, ou=MEDICAL EDUCATION AND DRUGS DEPARTMENT, postalCode=400032, st=Maharashtra, 2.5.4.20=09df106c443b4977e7463358fa58f7366fdb4fe137863b178345a5ead34dbfb12, pseudonym=8433B0910FFD44AC77C267452706D497C6BC73E0, serialNumber=71214F99804ABAAE1EA28D5F794C1BA357889880D0C567C29D02593434095 6DF, cn=AJIT TUKARAM SASULKAR
Date: 2022.09.27 16:02:41 +05'30'

(अजित सासुलकर)
उप सचिव, महाराष्ट्र शासन

प्रत,

१. मा.राज्यपाल यांचे सचिव, राजभवन, मुंबई.
२. मा.मुख्यमंत्र्याचे प्रधान सचिव, मंत्रालय, मुंबई.
३. मा.उपमुख्यमंत्र्यांचे प्रधान सचिव, मंत्रालय, मुंबई.
४. मा.मंत्री (वैद्यकीय शिक्षण) यांचे खाजगी सचिव, मंत्रालय, मुंबई.
५. मा.मंत्री (सार्वजनिक आरोग्य) यांचे खाजगी सचिव, मंत्रालय, मुंबई.
६. अपर मुख्य सचिव, सार्वजनिक आरोग्य व कुटुंब कल्याण विभाग, मंत्रालय, मुंबई.
७. सचिव (वैद्यकीय शिक्षण) यांचे स्वीय सहायक, मंत्रालय, मुंबई.
८. आयुक्त, बृहन्मुंबई महानगरपालिका, मुंबई.
९. आयुक्त, वैद्यकीय शिक्षण, मुंबई.
१०. आयुक्त, आरोग्य सेवा तथा संचालक, राष्ट्रीय आरोग्य अभियान, महाराष्ट्र राज्य, मुंबई.
११. आयुक्त, पिंपरी-चिंचवड महानगरपालिका, पिंपरी, पुणे.
१२. आयुक्त, ठाणे महानगरपालिका, ठाणे.
१३. आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष, मुंबई.
१४. संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई.
१५. संचालक, आरोग्य सेवा संचालनालय, मुंबई.
१६. सर्व सहसचिव/उपसचिव/अवर सचिव/कक्ष अधिकारी, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, मंत्रालय, मुंबई.
१७.निवडनस्ती (शिक्षण-२)

पृष्ठ ३ पैकी ३

महाराष्ट्र वैद्यकीय व आरोग्य सेवा गट-अ सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी (In Service Medical Officers) पदव्युत्तर पदवी / पदविका अभ्यासक्रम प्रवेश सुधारीत निवड नियमावली.

महाराष्ट्र शासन
सार्वजनिक आरोग्य विभाग
शासन निर्णय क्रमांकः मवैअ-२०१९/प्र.क्र. १६५/सेवा-३
१० वा मजला, संकुल इमारत, गो.ते. रुग्णालय, संकुल इमारत
मंत्रालय, मुंबई - ४०० ००१
दिनांक: १९ मार्च, २०१९

वाचा:-

१) वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग , शासन निर्णय क्र. एकईडी -१००९/प्र.क्र.२१०/०९/ शिक्षण-२, दि.२०/५/२०१०.

२) वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग , शासन निर्णय क्र. एकईडी -१०१०/प्र.क्र.१८४/१०/ शिक्षण-२, दि.२८/५/२०१०.

३) सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र. मवैअ-१०१०/३९०/प्र.क्र.३६६/सेवा-३, दि.१९/६/२०१०.

४) शासन निर्णय क्रमांक मवैअ - १९१०/४६६/प्र क्र. ४११/१०/सेवा- ३, दिनांक ३.५.२०११.

५) सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र. मवैअ-२०१५/प्र.क्र.८५/सेवा-३, दि. १७.०७.२०१५

६) सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र. मवैअ-१३१६/प्र.क्र.२५०/सेवा-३, दि.२.०७.२०१६

७) शासन परिपत्रक क्रमांक: मवैअ-१३१६/प्र.क्र.२५० (भाग-२)/सेवा-३ दिनांक २८ नोव्हेंबर, २०१६.

८) सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र. मवैअ-२०१७/प्र.क्र.८५/सेवा-३, दि. २४.११.२०१७

९) मेडिकल कौन्सिल ऑफ इंडियाची दि. २०.१०.२००८ ची अधिसूचना

१०) केंद्र शासनाची दिनांक ५ एप्रिल २०१८ ची अधिसूचना.

११) डॉ.प्रकाश डोके यांच्या अध्यक्षतेखालील समितीचा अहवाल.

१२) सार्वजनिक आरोग्य विभाग, शासन निर्णय क्र.मवैअ-२०१९/प्र.क्र.१६५/सेवा-३, दि.१९.०३.२०१९

प्रस्तावना:-

महाराष्ट्र वैद्यकीय व आरोग्य सेवा गट-अ या संवर्गात कार्यरत असलेल्या सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी (In Service Medical Officers) पदव्युत्तर पदवी / पदविका अभ्यासक्रमास सन २०१४ पूर्वी केवळ पदवी परीक्षेच्या अंतिम वर्षाच्या गुणांच्या आधारे प्रवेश देण्याची पद्धत अंमलात

होती. यासंदर्भात मा. उच्च न्यायालय, मुंबई यांनी याचिका क्र. ९२/२००५ मध्ये दि. २५/०१/२००५ रोजी दिलेल्या आदेशानुसार सेवांतर्गत वैद्यकीय अधिकाऱ्यांनासुदधा पदव्युत्तर पदवी / पदविका अभ्यासक्रमासाठी सामाईक प्रवेश परीक्षा अनिवार्य करण्यात आली. त्यानुसार पदव्युत्तर अभ्यासक्रमास प्रवेश देण्यात येत आहेत. सन २००४ ते सन २००९ या कालावधीतील पदव्युत्तर अभ्यासक्रमासाठीचे प्रवेश केवळ प्रवेश परीक्षेमध्ये (Common Entrance Test) प्राप्त गुणांवर देण्यात येत होते. सन २०१७ पासून सामाईक प्रवेश परीक्षेऐवजी राष्ट्रीय पात्रता तथा प्रवेश परीक्षा (NEET PG) लागू करण्यात आलेली आहे.

२. सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी पदव्युत्तर पदवीसाठी आता जागा राखीव नाहीत. तथापि, एकूण पदविकांच्या जागांपैकी ५० टक्के जागा अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) भागात किमान ३ वर्ष नियमीत सेवा दिलेल्या वैदयकिय अधिकाऱ्यांसाठी राखून ठेवण्यात आलेल्या आहेत. भारतीय वैद्यक परिषदेने दि. १७/११/२००९ च्या अधिसूचनेद्वारे सेवांतर्गत वैद्यकीय अधिकाऱ्यांचा पदव्युत्तर पदवी / पदविका अभ्यासक्रमासाठी गुणानुक्रम ठरवितांना त्यांनी दुर्गम आणि अवघड भागामध्ये केलेल्या सेवेबद्दल प्रोत्साहनपर गुणाधिक्य देण्याची शिफारस केली आहे. त्यानंतर दि. ५ एप्रिल, २०१८ च्या केंद्र शासनाच्या अधिसूचनेनुसार ग्रामीण क्षेत्रातील तीन वर्ष काम केलेल्या वैद्यकीय अधिकाऱ्यांनाही प्रोत्साहनपर गुणाधिक्य देण्याची शिफारस केली आहे. त्याआधारे वाचा क्र. ३ येथील शासन निर्णयान्वये गुणांकन करुन तसे गुणाधिक्य देण्यासंदर्भात दुर्गम, अतिदुर्गम, आदिवासी व नक्षलग्रस्त भागातील आरोग्य संस्थांची यादी घोषित करण्यात आली आहे. त्यानुसार वाचा क्र. ४ येथील शासन निर्णयान्वये वैद्यकीय अधिकारी गट-अ या संवर्गात कार्यरत असलेल्या वैद्यकीय अधिकाऱ्यांसाठी (In service Medical Officers) पदव्युत्तर पदवी / पदविका अभ्यासक्रम प्रवेश सुधारित निवड नियमावली प्रसिध्द करण्यात आली आहे. आता वाचा क्र. १२ येथील शासन निर्णयान्वये सार्वजनिक आरोग्य विभागातंर्गत असलेल्या राज्यातील आरोग्य संस्थांचे अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) याप्रमाणे सुधारीत वर्गीकरण करण्यात आले आहे. त्यामुळे पदव्युत्तर अभ्यासक्रम प्रवेश प्रक्रियेची नियमावली एकाच आदेशात सुस्पष्ट व सुलभ करण्याच्या अनुषंगाने वाचा क्र.४, ६ व ७ येथील शासन निर्णय अधिक्रमित करणे आवश्यक आहे. त्यामुळे सदर शासन निर्णय अधिक्रमीत करुन पुढीलप्रमाणे शासननिर्णय निर्गमित करण्याची बाब शासनाच्या विचाराधीन आहे.

पृष्ठ ११ पैकी २

शासन निर्णय :-

वाचा क्र.४, ६ व ७ येथील शासननिर्णय या शासन निर्णयान्वये अधिक्रमित करण्यात येत आहे.

२. राज्याच्या दुर्गम /अतिदुर्गम, आदिवासी व नक्षलग्रस्त भागामध्ये वैदयकीय अधिकारी उपलब्ध व्हावेत याकरीता त्या भागात कार्यरत वैद्यकीय अधिकाऱ्यांना प्रोत्साहन देण्याच्या हेतूने भारतीय वैद्यक परिषदेच्या दि. १७/११/२००९ च्या अधिसूचनेच्या अनुषंगाने शासनाच्या वैद्यकीय शिक्षण व औषधी द्रव्ये विभागाने दि. २०/०५/२०१० चा शासन निर्णय निर्गमित केला आहे. या शासन निर्णयातील तरतूदीनुसार तसेच केंद्र शासनाच्या दिनांक ५.४.२०१८ च्या अधिसूचनेनुसार सेवांतर्गत वैद्यकीय अधिकाऱ्यांना त्यांच्या अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural), (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट आहे) भागात केलेल्या सेवेबद्दल प्रत्येक पूर्ण वर्षासाठी प्राप्त गुणांच्या १० टक्के परंतु जास्तीत जास्त ३० टक्क्यांच्या मर्यादेत गुणाधिक्य देण्यात येतील. शासनाने नियुक्त केलेल्या डॉ. डोके समितीने शिफारस केल्याप्रमाणे शासन निर्णय दि.१८/०३/२०१९ अन्वये अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) (यामध्ये आदिवासी व नक्षलग्रस्त समाविष्ट आहे) भागातील आरोग्य संस्थांची यादी घोषित करण्यात आलेली आहे. सदर शासन निर्णयातील तरतूदीनुसार गुणाधिक्य अनुज्ञेय राहिल.

३. संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई हे सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी एकत्रितरीत्या प्रवेश प्रक्रिया राबवतील. पदव्युत्तर अभ्यासक्रमाच्या प्रवेशासंदर्भात घेण्यात येणाऱ्या प्रवेश परीक्षेसाठी सक्षम प्राधिकारी म्हणून आयुक्त, State CET Cell , मुंबई हे परिक्षा घेणे, परिक्षेचा निकाल जाहीर करणे, सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी राखीव पदव्युत्तर पदविका / सर्वसाधारण गुणानुक्रमानुसार पदवी / पदविका अभ्यासक्रमाच्या प्रवेशासाठी उपलब्ध जागांचा महाविद्यालय निहाय तपशिल घोषित करतील.

४. पदव्युत्तर प्रशिक्षणासाठी सेवांतर्गत प्रतिनियुक्ती मिळण्यासाठी खालीप्रमाणे निकष रहातील.

४.१ प्रवेश परिक्षेस (NEET PG) बसण्यास संबंधित उपसंचालक, आरोग्य सेवा, परिमंडळ यांची लेखी परवानगी घेणे अनिवार्य आहे. तसेच प्रवेश परीक्षेला (NEET PG) बसण्यासाठी उपसंचालकांची परवानगी न घेता थेट अर्ज करण्याऱ्या सेवांतर्गत वैद्यकीय अधिकाऱ्यांना पदव्युत्तर अभ्यासक्रमासाठी कार्यमुक्त केले जाणार नाही.

पृष्ठ ११ पैकी ३

४.२ वैद्यकीय अधिकाऱ्यांची नियुक्ती विहित पद्धतीने झालेली असावी, तसेच सेवा कालावधी बंधपत्रित / अस्थायी/ कंत्राटी सेवेचा कालावधी वगळून नियमित स्वरुपात किमान ३ वर्षे झालेला असावा.

४.३ वैद्यकीय अधिकाऱ्यांचे वय पदव्युत्तर अभ्यासक्रमाच्या (NEET PG) प्रवेश परिक्षेच्या दिनांकास ४५ वर्षापेक्षा जास्त नसावे.

४.४ नामनिर्देशनाने नियुक्ती झालेल्या वैद्यकीय अधिकाऱ्यांचा परिविक्षाधीन कालावधी प्रवेश परिक्षेच्या (NEET PG) दिनांकास समाधानकारकरीत्या समाप्त करण्यात आलेला असावा. तांत्रिक कारणामुळे ज्या वैद्यकीय अधिकाऱ्यांचा परिविक्षाधीन कालावधी समाप्त केल्याबाबतचे शासनाचे औपचारीक आदेश निर्गमित करण्यात आले नाहीत, परंतु त्यांची ३ वर्षाची समाधानकारक सेवा झाली आहे, अशा उमेदवारांना ते परिविक्षा कालावधी समाप्त करण्यासाठी आवश्यक असलेल्या अटींची पूर्तता करीत असतील तरच त्यांना (NEET PG) प्रवेश परिक्षेस बसण्यास संबंधित उपसंचालक, आरोग्य सेवा, परिमंडळ हे परवानगी देतील.

४.५ वैदयकिय अधिकारी यांनी मुख्यालयी राहून सेवा देणे आवश्यक आहे. वैदयकिय अधिकारी यांच्या अनुपस्थितीमुळे गंभीर आजारी रुग्णावर उपचार झाले नाहीत, शवविच्छेदन झाले नाही अशी एकही घटना या कालावधीमध्ये झालेली असू नये, अशी घटना घडलेली असल्यास व प्राथमिक चौकशीमध्ये तसे सिध्द झाल्यास, तसेच संबंधित अधिकाऱ्याविरुध्द विभागीय चौकशी आदेशीत झाल्यास, प्रलंबित असल्यास तसेच अन्य कारणाच्या अनुषंगाने वैद्यकीय अधिकाऱ्यांविरुध्द विभागीय चौकशी अथवा फौजदारी प्रकरण प्रलंबित / सुरु असल्यास त्यास (NEET PG) प्रवेश परिक्षेस बसण्यास अपात्र समजण्यास येईल.

४.६ राष्ट्रीय पात्रता व प्रवेश परीक्षा (NEET PG) मध्ये पात्र ठरलेल्या तसेच उपरोक्त ४.१ ते ४.५ मधील अटी पूर्ण करणा-या आणि तीन वर्ष नियमित सेवा अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) भागात (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट) झालेली आहे, अशा सेवांतर्गत वैद्यकीय अधिकाऱ्यांसाठी (In Service Medical Officers) मेडीकल काउन्सिल ऑफ इंडियाच्या दि.०५.०४.२०१८ च्या अधिसुचनेतील नियम क्रमांक ९ मधील ८ नुसार ५०% राखीव पदव्युत्तर पदवीका (Diploma) अभ्यासक्रमास प्रवेश देण्यात येईल.

५. अतिदुर्गम, दुर्गम व ग्रामीण भागासाठी गुण देण्याचे निकष खालीलप्रमाणे राहतील.

पृष्ठ ११ पैकी ४

५.१ वाचा क्र. १२ येथील शासन निर्णयान्वये, सेवांतर्गत वैद्यकीय अधिकाऱ्यांना पदव्युत्तर पदविका अभ्यासक्रमास प्रवेश मिळताना गुणाधिक्य देण्यासाठी सार्वजनिक आरोग्य विभागांतर्गत असलेल्या आरोग्य संस्थेचे वर्गीकरण अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) आरोग्य संस्था म्हणून घोषित करण्यात आले आहे.

५.२ गुणाधिक्य देतांना अतिदुर्गम, दुर्गम व ग्रामीण भागातील (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट) प्रत्येकी पूर्ण वर्षा करिता झालेल्या सेवेनुसार गुणाधिक्य देण्यात येईल. एक वर्षाखालील सेवा अतिरिक्त गुणांसाठी विचारात घेतली जाणार नाही. तसेच नियमित नियुक्तीपूर्वी संबंधित वैद्यकीय अधिकाऱ्याने दुर्गम, अतिदुर्गम व ग्रामीण भागात (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट) अस्थाई नियुक्तीने सेवा केली असल्यास तो सेवा कालावधी गुणाधिक्य देण्यास पात्र समजण्यात येईल. तथापि, करार अथवा बंधपत्रीत सेवा विचारात घेतली जाणार नाही.

५.३ वाचा क्र. १० नुसार वाचा क्र.१२ येथील शासन निर्णयान्वये ग्रामीण भागातील आरोग्य संस्था घोषीत करण्यात आलेल्या आहेत. त्या संस्थांचे गुण वाचा क्र.१० येथील अधिसूचना लागू झाल्यापासून लागू राहील. तथापि, तत्पूर्वी ती संस्था वाचा क्र. ३ येथील शासन निर्णयाच्या यादीत असल्यास त्यातील निकषानुसार, वाचा क्र. १० येथील अधिसूचनेच्या दिनांकापूर्वीच्या सेवेसाठी गुण देण्यात यावे.

५.४ सदर सेवेची गणना करताना खालील बाबी विचारात घेण्यात याव्यात.

अ. सदर ३ वर्षांचा सेवा कालावधी हा थेट रुग्णसेवेशी संबंधित असला पाहिजे. म्हणजेच तालुका आरोग्य अधिकारी व अन्य प्रशासकीय पदावरील सेवा उपरोक्त ३ वर्षांच्या कालावधीतून वगळण्यात यावी.

आ. सदर सेवेची गणना करताना अनुज्ञेय असलेली व मंजूर करण्यात आलेली रजा वगळता अनुपस्थितीचा कालावधी ग्राहय धरण्यात येणार नाही.

इ. सदर आरोग्य संस्थेमध्ये नियमित पदस्थापनेद्वारे नियुक्त वैद्यकीय अधिकारी यांची सेवाच केवळ विचारात घेण्यात यावी. प्रतिनियुक्ती अथवा अतिरिक्त कार्यभाराद्वारे होणारी पदस्थापना विचारात घेऊ नये.

पृष्ठ ११ पैकी ५

ई. संपूर्ण १२ महिन्यांची सेवाच १ वर्ष म्हणून विचारात घ्यावी. त्यापेक्षा कमी महिन्यांची सेवा असल्यास ती अजिबात विचारात घेऊ नये.

उ. वैद्यकीय अधिकारी सदर शासन निर्णयासोबतच्या प्रपत्रात नमूद असलेल्या घोषित संस्थांमध्ये पदस्थापनेद्वारे कार्यरत असणे आवश्यक आहे. प्रतिनियुक्ती अथवा उसनवारी तत्वावर अन्यत्र सेवा बजावल्यास त्याला केवळ मूळ पदस्थापना घोषित क्षेत्रातील आहे या सबबीखाली अतिरिक्त गुणांकनाचा फायदा घेता येणार नाही.

५.५ राष्ट्रीय पात्रता तथा प्रवेश परीक्षा (NEET PG) प्रक्रियेचा निकाल प्राप्त झाल्यानंतर पात्र उमेदवांराना गुणाधिक्य देण्यासाठी संचालनालय स्तरावर संचालक, आरोग्य सेवा-१, मुंबई यांच्या अध्यक्षतेखाली एक समिती नेमण्यात येईल. या समितीने संबंधित वैद्यकीय अधिकाऱ्यांचा अतिदुर्गम (Remote), दुर्गम (Difficult) व ग्रामीण (Rural) भागातील (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट) सेवाकाळ योग्यरित्या तपासून शासन निर्णय दि.१९/०३/२०१९ नुसार दुर्गम, अतिदुर्गम, व ग्रामीण भागात (यामध्ये आदिवासी, नक्षलग्रस्त भाग समाविष्ट) केलेल्या सेवेबद्दल वरीलप्रमाणे प्रत्येक पूर्ण वर्षासाठी १० टक्के परंतु जास्तीत जास्त प्राप्त गुणांच्या ३० टक्के मर्यादेत गुणाधिक्य देऊन अंतिम गुणवत्ता यादी व सेवांतर्गत वैद्यकीय अधिकाऱ्यांचे गुणाधिक्य ठरवावे. गुणाधिक्य देवून तयार करण्यात आलेली गुणवत्ता यादी संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई तसेच आयुक्त, State CET Cell, मुंबई यांना कळवावी.

६. तीन वर्षे अतिदुर्गम, दुर्गम व ग्रामीण सेवा नसणा-या वैदयकिय अधिका-यांसाठी पदव्युत्तर प्रशिक्षणासाठी पुढीलप्रमाणे कार्यवाही करावी.

६.१ ज्या वैद्यकीय अधिकाऱ्यांची नियमित सेवा घोषित संस्थांमध्ये १ वर्ष पूर्ण परंतु ३ वर्षांपेक्षा कमी झालेली असेल आणि एकूण नियमित सेवा ५ वर्षांपेक्षा कमी असेल अशांना त्यांच्या घोषित क्षेत्रातील सेवेच्या कालावधीच्या अनुषंगाने गुणाधिक्य देण्यात येईल. परंतु अशा वैदयकिय अधिकाऱ्यांचा MCI च्या दि. ०५.०४.२०१८ च्या अधिसूचनेतील नियम क्र. ९ मधील ८ मध्ये नमूद तरतुदीनुसार ५० % राखीव पदविका अभ्यासक्रमासाठी तसेच प्रतिनियुक्तीसाठी विचार करण्यात येणार नाही. असे वैद्यकीय अधिकारी त्यांच्या गुणवत्तेनुसार सर्वसाधारण वर्गात सदर अभ्यासक्रमास प्रवेश मिळण्यास ते पात्र ठरल्यास ते प्रतिनियुक्तीस पात्र नसतील व अशा वैद्यकीय अधिकाऱ्यांचा अनुपस्थितीचा कालावधी हा विनावेतन धरण्यात येईल.

६.२ ज्या वैद्यकीय अधिकाऱ्यांची नियमित सेवा घोषित संस्थांमध्ये १ वर्ष पूर्ण आणि ३ वर्षांपेक्षा कमी झालेली असेल परंतु एकूण नियमित सेवा ५ वर्ष किंवा त्या पेक्षा जास्त झाली असेल अशांना

पृष्ठ ११ पैकी ६

त्यांच्या घोषित क्षेत्रातील सेवेच्या कालावधीच्या अनुषंगाने गुणाधिक्य देण्यात येईल. परंतु अशा वैदयकिय अधिकाऱ्यांचा MCI च्या दि. ०५.०४.२०१८ च्या अधिसूचनेतील नियम क्र. ९ मधील ८ मध्ये नमूद तरतुदीनुसार ५० % राखीव पदविका अभ्यासक्रमासाठी विचार करण्यात येणार नाही. तथापि अशा वैद्यकीय अधिका-यांना त्यांच्या गुणवत्तेनुसार सर्वसाधारण वर्गात सदर अभ्यासक्रमास प्रवेश मिळण्यास ते पात्र ठरल्यास त्यांना प्रतिनियुक्ती देण्यात येईल तसेच त्यांना अधिसंख्य पदावर देण्यात येईल.

६.३ ज्या वैद्यकीय अधिकाऱ्यांची नियमित सेवा घोषित संस्थांमध्ये एक वर्ष पूर्ण नसेल तथापि, अन्य क्षेत्रात त्यांची झालेली सेवा धरुन त्या वैद्यकीय अधिकाऱ्याची एकूण सेवा ही ५ वर्ष किंवा त्या पेक्षा जास्त झाली असेल अशा वैद्यकीय अधिकाऱ्यांना ते त्यांच्या गुणवत्तेनुसार या अभ्यासक्रमास प्रवेश घेण्यासाठी पात्र ठरल्यास त्यांना २ वर्षांच्या अध्ययन रजेवर तसेच त्याला जोडून त्याच्या खाती शिल्लक असेल तर ४ महिन्याची त्याला देय (अर्जित/अर्धवेतनी/परिवर्तित) रजा व उर्वरित ८ महिन्याची असाधारण रजा मंजूर करता येईल. असे वैद्यकीय अधिकारी प्रतिनियुक्तीस पात्र नसल्याने अधिसंख्य पदावर येणार नाहीत व त्यांना अनुज्ञेय असणाऱ्या रजेचे वेतन ते ज्या पदावरुन पदव्युत्तर अभ्यासक्रमासाठी गेले आहेत त्याच पदावरुन काढण्यात येईल.

६.४ प्रतिनियुक्ती देण्यात न आलेल्या वैद्यकीय अधिकाऱ्यांनी सदर प्रवेश घेण्यापूर्वी सक्षम प्राधिकाऱ्याची म्हणजे शासनाची पूर्व परवानगी घेणे आवश्यक राहील. वेळेअभावी किमान आयुक्त, आरोग्य सेवा, मुंबई किंवा संचालक, आरोग्य सेवा संचालनालय, मुंबई यांना शासनाच्या मान्यतेच्या अधीन राहून अवगत करुन परवानगी घेणे आवश्यक राहील. अन्यथा, अशा वैद्यकीय अधिकाऱ्यांची अनधिकृत गैरहजेरी समजून तो कालावधी त्यांच्या सेवेतील खंड समजण्यात येईल. तसेच, त्यांना असाधारण रजा मंजूर करण्यात येणार नाही.

७. खाजगी वैद्यकीय महाविद्यालयात प्रवेश घेतला असल्यास महाविद्यालयाचे अनुज्ञेय शुल्क हे संबंधित वैद्यकीय अधिकाऱ्यास भरावे लागेल.

८. ज्या वैदयकीय अधिकाऱ्यांनी नियमित सेवेत रुजू झाल्यानंतर अथवा तत्पूर्वी एखादया विषयामध्ये पदव्युत्तर पदविका धारण केली असल्यास, अशा वैदयकीय अधिकाऱ्यांना त्याच विषयाच्या पदव्युत्तर पदवी अभ्यासक्रमासाठी सर्वसाधारण गुणवत्तेनुसार प्रवेश घेता येईल. तसेच एक पदवी असलेल्या उमेदवारांना दुसऱ्या पदवीसाठी किंवा कोणत्याही पदविकेसाठी नोंदणी देण्यात येणार नाही.

पृष्ठ ११ पैकी ७

९. पदव्युत्तर अभ्यासक्रमासाठी निवड झालेल्या उमेदवारांनी पदव्युत्तर पदविका / पदवी अभ्यासक्रम पूर्ण झाल्यावर, असे वैद्यकीय अधिकारी सार्वजनिक आरोग्य विभागामध्ये (म्हणजेच सार्वजनिक आरोग्य विभागाच्या अखत्यारीतील आरोग्य संस्थांमध्येच) किमान ३ वर्षे सेवा व पदव्युत्तर पदवी पूर्ण झाल्यावर सार्वजनिक आरोग्य विभागाची (म्हणजेच सार्वजनिक आरोग्य विभागाच्या अखत्यारीतील आरोग्य संस्थांमध्येच) किमान ५ वर्षे सेवा करतील असे बंधपत्र (हमीपत्र) अभ्यासक्रमासाठी रुजू होण्यापूर्वी संचालक, आरोग्य सेवा-१, मुंबई यांचेकडे भरुन देणे आवश्यक राहील. बंधपत्रातील अटी न पाळल्यास सदर वैद्यकीय अधिकाऱ्यांना रु.५०,००,०००/- (रु. पन्नास लक्ष) एवढी किंवा शासन वेळोवेळी विहित करेल एवढी बंधपत्राची रक्कम दंड म्हणून संचालक, आरोग्य सेवा-१, मुंबई यांचेकडे जमा करावी लागेल व असा दंड वसूल करायची जबाबदारी संचालक, आरोग्य सेवा-१, मुंबई यांची राहील.

१०. बंधपत्रानुसार ३ वर्षाची / ५ वर्षाची सेवा देताना त्यापैकी किमान २ वर्षाची सेवा दुर्गम, अतिदुर्गम व ग्रामीण (यामध्ये आदिवासी व नक्षलग्रस्त भागातील आरोग्य संस्था समाविष्ट आहे) अशा आरोग्य संस्थांमध्ये करणे बंधनकारक राहील.

११. पदव्युत्तर अभ्यासक्रम पूर्ण केल्यानंतर पदस्थापनेबाबतची कार्यवाही शासन स्तरावरुन करण्यात येईल. संबंधित उमेदवारांना विशिष्ट ठिकाणी नियुक्ती देण्याची मागणी करता येणार नाही. शासन अशा उमेदवारांला ज्या ठिकाणी नियुक्ती देईल, त्या ठिकाणी त्यांना काम करावे लागेल.

१२. पदव्युत्तर पदवी / पदविकेकरीता नोंदणी देवून प्रतिनियुक्ती दिलेल्या तसेच अध्ययन रजेवर गेलेल्या वैदयकीय अधिकाऱ्यांनी अभ्यासक्रमाकरीता रुजू होवून अभ्यासक्रम पूर्ण न केल्यास / अभ्यासक्रम मध्येच सोडून दिल्यास प्रतिनियुक्ती कालावधीत त्यांना देण्यात आलेले वेतन व भत्ते त्यांचे कडून वसूल करण्यात येतील. त्याशिवाय M C I च्या नियम व अटी शर्तीनुसार दंडाची रक्कमदेखील त्यांना भरावी लागेल. तसेच सदरहू वैद्यकीय अधिकाऱ्यांच्या सेवांतर्गत पदव्युतर अभ्यासक्रमाच्या नोंदणीसाठी भविष्यात कोणत्याही परिस्थितीत विचार केला जाणार नाही.

१३. पदव्युत्तर अभ्यासक्रमाकरीता निवड झालेल्या उमेदवारांची माहिती संबंधित वैद्यकीय महाविदयालयांना आरोग्य सेवा संचालनालयाकडून दिली जाईल. पदव्युत्तर अभ्यासक्रमाकरीता प्रतिनियुक्ती आदेश प्राप्त होताच संबंधित उमेदवारांनी त्यांना दिलेल्या वैद्यकीय महाविदयालयात अर्ज करुन प्रवेश घेणे आवश्यक राहील.

१४. पदव्युत्तर अभ्यासक्रमाकरीता प्रवेश घेतलेल्या उमेदवारांना अभ्यासक्रम (टर्म) पूर्ण होवून परिक्षेला बसलेल्या उमेदवारांना परिक्षा संपताच संबंधित वैद्यकीय महाविद्यालयानी तात्काळ

पृष्ठ ११ पैकी ८

कार्यमुक्त करावे. एखादा उमेदवार प्रथम प्रयत्नामध्ये परिक्षेला बसला नाही / उत्तीर्ण झाला नाही अथवा त्या जागेवर दुसऱ्या वैदयकीय अधिकाऱ्याची प्रतिनियुक्ती झाली नाही, तरीदेखील वैद्यकीय महाविदयालयानी उमेदवारांना परिक्षा संपताच कार्यमुक्त करावे.

१५. अभ्यासक्रम पूर्ण करुन संबंधित महाविद्यालयाने कार्यमुक्त केल्यावर पदव्युत्तर पदविका / पदवी च्या अनुषंगाने शासनाकडून सुधारित पदस्थापना मिळेपर्यंत पूर्वी असे वैद्यकीय अधिकारी ज्या परिमंडळात कार्यरत होते त्याच परिमंडळाच्या उपसंचालकांनी परिमंडळात तात्पुरती पदस्थापना द्यावी. त्या करीता उमेदवारांनी परिक्षा होताच संबंधित परिमंडळात हजर होऊन तसा रुजू अहवाल दयावा व त्याची प्रत संचालक, आरोग्य सेवा, मुंबई यांस दयावी. अन्यथा, त्यांचे वेतन रोखण्यात येईल.

१६. अभ्यासक्रमाच्या कालावधीत उमेदवारांनी शक्यतोवर रजेवर जावू नये. निकडीच्या प्रसंगी रजा घेतल्यास त्याची माहिती संबंधित वैद्यकीय महाविद्यालयाच्या अधिष्ठाता मार्फत संचालक, आरोग्य सेवा-१, मुंबई यांना कळवावी. संबंधित विद्यापीठाच्या पदव्युत्तर अभ्यासक्रमाच्या उपस्थितीच्या नियमानुसार आवश्यक कालावधीच्या अधीन राहून रजा अनुज्ञेय राहील.

१७. पदव्युत्तर अभ्यासक्रमाकरीता आलेल्या वैदयकीय अधिकाऱ्यांना उपलब्धतेनुसार निवासाकरीता एक खोली संबंधित वैद्यकीय महाविदयालयाच्या वसतीगृहात उपलब्ध करुन दिली जाईल व अभ्यासक्रमाचा अवधी पूर्ण होताच ती खोली त्यांना त्वरीत रिक्त करावी लागेल.

१८. पदव्युत्तर पदविका अभ्यासक्रमासाठी निवड झालेल्या सेवांतर्गत वैद्यकीय अधिकाऱ्यांना प्रतिनियुक्तीपूर्वी ज्या कार्यालयातून वेतन आहरीत केले जात होते, त्या कार्यालयाने संबंधित वैद्यकीय अधिकाऱ्यांना सर्व आर्थिक लाभ प्रदान करुन व सेवापूस्तक परिपूर्ण करुन त्यांना संचालक, आरोग्य सेवा, मुंबई कार्यालयातील अधिसंख्य पदावर रुजू होण्यासाठी तात्काळ कार्यमुक्त करावे.

१९. वरील नियमातील कोणत्याही नियमाच्या तरतूदीबद्दल वाद निर्माण झाल्यास / अर्थाबद्दल शंका उपस्थित करण्यात आल्यास यासंबंधी सार्वजनिक आरोग्य विभागाचे अप्पर मुख्य सचिव / प्रधान सचिव / सचिव यांनी दिलेले स्पष्टीकरण अंतिम राहिल आणि सर्व संबंधितांवर बंधनकारक राहील.

२०. वरील नियमात कोणत्याही वेळेस पूर्वसूचना न देता बदल / सुधारणा करण्याचे अधिकार शासनास राहतील.

पृष्ठ ११ पैकी ९

२१. आयुर्वेद विद्याशाखेतील पदव्युत्तर अभ्यासक्रमासाठी सुद्धा वरीलप्रमाणे प्रवेश प्रक्रिया राबविण्यात येईल. गट-अ व गट-ब संवर्गामध्ये कार्यरत असलेले आणि आयुर्वेद पदवी धारण करीत असलेले वैद्यकीय अधिकारी वरील सर्व अटींची पूर्तता करीत असल्यास, आयुर्वेद विद्याशाखेतील पदव्युत्तर अभ्यासक्रमासाठी आयोजित करण्यात येणाऱ्या सामाईक / (NEET PG) प्रवेश परिक्षेसाठी पात्र असतील.

२२ . सदर नियमावली सन २०१९-२० या शैक्षणिक वर्षापासून द्यावयाच्या प्रवेश प्रक्रियेपासून लागू राहील.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेताक २०१९०३१३१०४७१२३४१७ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

KIRAN VASANTRAO WAHUL

Digitally signed by KIRAN VASANTRAO WAHUL
DN: c=IN, st=Maharashtra, 2.5.4.20=58e32592d7ee16b3f0ea3e5db304272db05689914ece7f762990f9b1a0c5049, postalCode=400001, street=MANTRALAYA,MUMBAI, serialNumber=2e35734ec976bf5657815fb42c4d25b0b3c23b4c69600638f3deb172ac9e37f4, ou=PHD, o=GOVERNMENT OF MAHARASHTRA, cn=KIRAN VASANTRAO WAHUL
Date: 2019.03.19 18:07:50 +05'30'

(कि. व. वाहुल)
उप सचिव, महाराष्ट्र शासन

प्रत,

१) मा. राज्यपाल यांचे सचिव, राजभवन, मुंबई.
२) मा. मुख्यमंत्री यांचे सचिव, मंत्रालय, मुंबई.
३) मा. मंत्री, सार्वजनिक आरोग्य यांचे खाजगी सचिव, मंत्रालय, मुंबई.
४) मा. मुख्य सचिव, मंत्रालय, मुंबई.
५) आयुक्त, आरोग्य सेवा, आरोग्य सेवा संचालनालय, मुंबई.
६) आयुक्त, State CET Cell, मुंबई.
७) संचालक, आरोग्य सेवा-१, आरोग्य सेवा संचालनालय मुंबई.
८) संचालक, वैद्यकीय शिक्षण संचालनालय, मुंबई.
९) महालेखापाल, महाराष्ट्र-१ /२ (लेखा / लेखा व अनुज्ञेयता) मुंबई / नागपूर.
१०) उप संचालक, आरोग्य सेवा (सर्व परिमंडळे).
११) जिल्हा शल्य चिकित्सक (सर्व).

पृष्ठ ११ पैकी १०

१२) जिल्हा आरोग्य अधिकारी (सर्व).
१३) वैद्यकीय अधिक्षक (सर्व).
१४) सर्व कोषागार अधिकारी.

ANNEXURE -"V"

Government Resolution regarding procedures followed at Post-graduate Admission Process & Maharashtra Government Notification, Medical Education and Drugs department, No.PGM-1006/ 3207/CR-362/06/EDU-2, dated 08th, January 2007.

राज्यातील शासकीय / महापालिका / शासन अनुदानित महाविद्यालयांमध्ये पदव्युत्तर वैद्यकीय व दंत अभ्यासक्रमाच्या प्रवेशासाठी कार्यपध्दती निश्चित करण्याबाबत.

महाराष्ट्र शासन
वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन निर्णय क्रमांक सीईटी ३५१८/प्र.क्र.३२/१८/शिक्षण-२
नववा मजला, गोकुळदास तेजपाल रुग्णालय संकुल,
लोकमान्य टिळक मार्ग, नविन मंत्रालय, मुंबई - ४०० ००१.
दिनांक - २९ जानेवारी,२०१८

वाचा -

१. खाजगी विनाअनुदानित व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५
२. वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, शासननिर्णय क्रमांक एमईडी १०१५/प्र.क्र. ३९६ / १५/ शिक्षण-२, दिनांक १६.१२.२०१५
३. शासन अधिसुचना, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग क्रमांक सीईटी १२१५/ प्र. क्र. ४१२/१५/ शिक्षण-२, दिनांक १९.०१.२०१७

प्रस्तावना -

राज्यातील खाजगी विनाअनुदानित महाविद्यालयातील व्यावसायिक अभ्यासक्रमांचे प्रवेश व शुल्क यांबाबत संदर्भाधीन क्रमांक १ वरील कायद्यामधील तरतुदींच्या अनुषंगाने कार्यवाही करण्यात येते. तसेच, शासकीय/ महापालिका/ शासन अनुदानित आरोग्य विज्ञानाच्या व्यावासायिक अभ्यासक्रमांचे प्रवेश एक खिडकी पध्दतीने आयुक्त, राज्य सामाईक प्रवेश परिक्षा कक्ष यांच्याव्दारा करण्यास संदर्भाधीन क्रमांक २ वरील शासननिर्णयान्वये मान्यता देण्यात आली आहे. त्यानुषंगाने राज्यातील विविध शासकीय/ महापालिका/ शासन अनुदानित तसेच खाजगी विनाअनुदानित वैद्यकीय/ दंत महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांचे प्रवेश (All India Quota प्रवेश वगळुन) हे नीट-पीजी/ नीट-एमडीएस या अखिल भारतीय स्तरावर होणाऱ्या सामाईक प्रवेश परीक्षेच्या गुणवत्तेच्या आधारे आयुक्त, राज्य सामाईक प्रवेश परिक्षा कक्ष यांच्याव्दारा एकत्रित समुपदेशन प्रक्रियेमार्फत (Common Counselling) करण्यात येतात. खाजगी वैद्यकीय व दंत महाविद्यालयातील वैद्यकीय व दंत पदव्युत्तर अभ्यासक्रमांच्या जागांवर प्रवेश प्रक्रिया राबविण्यासाठी संदर्भाधीन क्रमांक ३ वरील अधिसुचनेन्वये प्रवेश नियम घोषीत करण्यात आले आहेत. त्यानुषंगाने, राज्यातील शासकीय/ महानरगपालिका/ शासन अनुदानित वैद्यकीय व दंत महाविद्यालयातील पदव्युत्तर पदवी/ पदविका

अभ्यासक्रमांच्या State Quota मधील जागांवरील प्रवेशांच्या अनुषंगाने कार्यपध्दती निश्चित करण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय -

राज्यातील शासकीय/ महानगरपालिका/ शासन अनुदानित वैद्यकीय व दंत महाविद्यालयांमध्ये पदव्युत्तर पदवी/ पदविका (M.D. / M.S. / MDS / PG Diploma) अभ्यासक्रमांच्या प्रवेश प्रक्रियेच्या अनुषंगाने पुढील कार्यपध्दती निश्चित करण्यात येत आहे.

१. पात्रता निकष-

राज्यातील शासकीय/ महानगरपालिका/ शासन अनुदानित वैद्यकीय व दंत महाविद्यालयांमधील पदव्युत्तर अभ्यासक्रमाच्या State Quota च्या जागांवर प्रवेशाकरीता पुढील पात्रता निकष पुर्ण करणे आवश्यक राहील.

(१) उमेदवार हा भारतीय नागरीक असावा.

(२) उमेदवार महाराष्ट्र राज्याचा अधिवासी (डोमिसाईल) असणे आवश्यक राहील.

(३) उमेदवार हा वैद्यकीय दृष्टया/ शारिरीक दृष्टया सक्षम असावा.

(४) एम.बी.बी.एस./ बी.डी.एस. ही पदवी महाराष्ट्र राज्यातील मान्यता प्राप्त वैद्यकीय/ दंत महाविद्यालयातून उत्तीर्ण केलेली असणे आणि राष्ट्रीय पातळीवर घेण्यात येणाऱ्या नीट-पीजी/ नीट-एमडीएस परीक्षेच्या संबंधीत वर्षाच्या ३१ मार्च, पूर्वी आंतरवासिता पूर्ण करणे आवश्यक राहील. सदर उमेदवारांनी MCI/ DCI अथवा संबंधित राज्य परिषदेमार्फत नोंदणी प्राप्त केली असणे आवश्यक राहील.

(५) जे उमेदवार महाराष्ट्र राज्याचे अधिवासी असतील मात्र ज्यांना अखिल भारतीय कोटयातून अन्य राज्यातील महाविद्यालयांमध्ये एम.बी.बी.एस./ बी.डी.एस. करीता प्रवेश मिळालेला असेल, तसेच ज्या अधिवासी उमेदवारांना देशातील AIIMS अथवा केंद्रीय वैद्यकीय संस्थांमध्ये एम.बी.बी.एस. करीता प्रवेश प्राप्त झाला असेल, असे उमेदवार अन्यथा पात्र असल्यास महाराष्ट्र राज्यामध्ये पदव्युत्तर वैद्यकीय अभ्यासक्रमाच्या प्रवेशासाठी पात्र राहतील.

(६) उमेदवार हा राष्ट्रीय पातळीवर घेण्यात येणाऱ्या नीट-पीजी/ नीट-एमडीएस परिक्षेतील गुणवत्तेनुसार पदव्युत्तर वैद्यकीय/ दंत अभ्यासक्रमास प्रवेशासाठी किमान पात्रता प्राप्त केली असणे आवश्यक आहे. या परिक्षेमध्ये प्राप्त केलेली पात्रता/ गुणवत्ता यानुसारच उमेदवारांना प्रवेश देण्यात येतील.

(७) उमेदवाराने MBBS/ BDS अभ्यासक्रम पुर्ण केल्यानंतर त्यास बंधपत्रित सेवा लागू असल्यास शासनाने वेळोवेळी विहीत केलेल्या अन्य नियमांनुसार त्याने बंधपत्रित सेवा पुर्ण केली असणे आवश्यक राहील.

पृष्ठ ८ पैकी २

(८) उपरोक्त पात्रता निकषांव्यतिरिक्त संबंधित केंद्रीय परिषद (एम.सी.आय./डी.सी.आय.) यांचेद्वारा वैद्यकीय/ दंत पदव्युत्तर अभ्यासक्रम प्रवेशाच्या अनुषंगाने वेळोवेळी विहीत करण्यात येणारे पात्रता निकष/ अर्हता उमेदवाराने पूर्ण करणे आवश्यक राहील.

२. **जागा वाटप** - शासकीय/ महानगरपालिका व शासन अनुदानित संस्थांमधील वैद्यकीय व दंत पदव्युत्तर पदवी/ पदविका अभ्यासक्रमांचे प्रवेशासाठी जागा वाटप **परिशिष्ट (अ)** नुसार राहील. तसेच ऑल इंडिया कोटा वगळून राज्यस्तरीय कोटयातील उपलब्ध जागांचे वाटप (सेवांतर्गत उमेदवारांकरिता राखीव असलेला कोटा धरुन) हे **परिशिष्ट (ब)** नुसार राहील.

३. **संवैधानिक/घटनात्मक आरक्षण** - सोबतच्या **परिशिष्ट (क)** नुसार राहील.

४. **शारिरीक दृष्टया दिव्यांग उमेदवारांकरिता आरक्षण** (Person with Disability) - शारिरीक दृष्टया दिव्यांग उमेदवारांसाठी भारतीय आयुर्विज्ञान परिषद, भारतीय दंत परिषद आणि केंद्र शासन यांनी विहीत केलेल्या निकषानुसार आरक्षण राहील.

५. **कट-ऑफ -डेट नंतर प्रवेश रद्द करणे आणि निवासी कालावधी पूर्ण न करणे याकरीता दंड** - शासकीय/ महानगरपालिका वैद्यकीय व दंत महाविद्यालयातील वैद्यकीय व दंत पदव्युत्तर पदवी/ पदविका अभ्यासक्रमाची जागा विहीत कालावधीनंतर रद्द केल्यास व त्यामुळे सदरची जागा रिक्त राहील्यास, अशा उमेदवारांकडून रुपये १०.०० लाख (रुपये दहा लाख फक्त) इतका दंड वसूल करण्यात येईल. तसेच प्रवेश रद्द केल्यामुळे उमेदवाराने त्याचा निवासी कालावधी पूर्ण न केल्याचे गृहीत धरुन अधिक रुपये १०.०० लाख (रुपये दहा लाख फक्त) इतका दंड आकारण्यात येईल.

६. **बंधपत्र** - शासनाने वेळावेळी प्रसिध्द केलेल्या शासन निर्णयान्वये शासकीय/ महानगरपालिका वैद्यकीय अथवा दंत महाविद्यालयातून एम.डी., एम.एस., पदव्युत्तर पदविका किंवा एम.डी.एस. अभ्यासक्रम पूर्ण करणा-या विद्यार्थ्याने भारत सरकार वा भारत सरकारचे उपक्रम (महाराष्ट्र राज्यातील सेवा)/ संरक्षण दलाची सेवा / महाराष्ट्र शासन वा महाराष्ट्र शासनाचे उपक्रम / स्थानिक स्वराज्य संस्था व स्थानिक स्वराज्य संस्थेचे उपक्रम यांच्या रुग्णालयांमध्ये शासनाने विहीत केलेल्या कालावधीची बंधपत्रीत सेवा करणे आवश्यक राहील. सदर बंधपत्रीत सेवा न केल्यास त्यास रुपये ५०.०० लाख (रुपये पन्नास लाख फक्त) इतका दंड आकारण्यात येईल. तसेच या संदर्भात भविष्यात शासनामार्फत वेळोवेळी घेण्यात येणारे नियम/ निर्णय लागू राहतील.

७. **उपरोक्त** नमूद बाबींव्यतिरिक्त संबंधित केंद्रीय परिषद (एम.सी.आय./ डी.सी.आय.), केंद्र शासन व राज्यशासन यांचेद्वारा वैद्यकीय/ दंत पदव्युत्तर अभ्यासक्रम प्रवेशाच्या अनुषंगाने वेळोवेळी विहीत करण्यात येणारे नियम लागु राहतील.

पृष्ठ ८ पैकी ३

८. **वरीलप्रमाणे** शैक्षणिक वर्ष २०१८-१९ पासून प्रवेश प्रक्रिया ही संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई यांच्या सहाय्याने आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष, महाराष्ट्र राज्य यांचेमार्फत पार पाडण्यात येईल.

९. **सदर** शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेताक २०१८०१३०१६२९१५२६१३ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

Surendra Pralhad Chankar

Digitally signed by Surendra Pralhad Chankar
DN: c=IN, o=Government Of Maharashtra, ou=Women And Child Development Department, postalCode=400032, st=Maharashtra, 2.5.4.20=da74ce04daa59e5121ba34985 5e71412ea68827bae27cd8d40bb39537 f77726, serialNumber=f2ebc258c4d9ba2b6b78 6fa7056a76c0298ba36e78a4582723736 fdd3d330d44, cn=Surendra Pralhad Chankar
Date: 2018.02.01 13:27:27 +05'30'

(सुरेन्द्र प्र. चानकर)
उप सचिव, महाराष्ट्र शासन

प्रति,
मा.राज्यपाल यांचे सचिव, राज्यपाल सचिवालय, राजभवन, मलबार हिल, मुंबई.
मा.सभापती, महाराष्ट्र विधानपरिषद यांचे सचिव, विधान भवन, मुंबई.
मा.अध्यक्ष, महाराष्ट्र विधानसभा यांचे सचिव, विधान भवन, मुंबई.
मा.मुख्यमंत्र्यांचे प्रधान सचिव, मंत्रालय, मुंबई.
मा.मंत्री, वैद्यकीय शिक्षण यांचे खाजगी सचिव, मंत्रालय, मुंबई.
मा.विरोधी पक्ष नेता, महाराष्ट्र विधान परिषद यांचे सचिव, विधान भवन, मुंबई.
मा.विरोधी पक्ष नेता, महाराष्ट्र विधानसभा यांचे सचिव, विधान भवन, मुंबई.
मा.राज्यमंत्री, वैद्यकीय शिक्षण यांचे खाजगी सचिव, मंत्रालय, मुंबई.
मा. मुख्य सचिव, महाराष्ट्र शासन, मंत्रालय, मुबंई.
मा. सचिव, भारत सरकार, आरोग्य व कुटूंब कल्याण मंत्रालय, निर्माण भवन, नवी दिल्ली.
मा.सचिव, भारतीय दंत परिषद, ऐबान-ए-गालिक मार्ग, कोटला रोड, टेंपल लेन, नवी दिल्ली.
मा. सचिव, भारतीय आयुर्विज्ञान परिषद, नवी दिल्ली.
सचिव, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, मंत्रालय, मुंबई.
महासंचालक, माहिती व जनसंपर्क संचालनालय, मंत्रालय, मुंबई.
आयुक्त, राज्य सामाईक प्रवेश परिक्षा कक्ष, महाराष्ट्र राज्य, मुंबई.
सचिव, प्रवेश नियामक प्राधिकरण, महाराष्ट्र राज्य, मुंबई.

पृष्ठ ८ पैकी ४

सचिव, शिक्षण शुल्क नियामक प्राधिकरण, महाराष्ट्र राज्य, मुंबई.
सर्व सह/ उप सचिव, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, मंत्रालय, मुंबई.
संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, महाराष्ट्र राज्य, मुंबई.
संचालक, वैद्यकीय शिक्षण व प्रमुख रुग्णालये (बृहन्मुंबई महानगरपालिका).
कुलसचिव, महाराष्ट्र आरोग्य विज्ञान विद्यापीठ, नाशिक.
अधिष्ठाता/ प्राचार्य, सर्व शासकीय व महानगरपालिका वैद्यकीय व दंत महाविद्यालय/ सर्व अनुदानित व विनाअनुदानित वैद्यकीय व दंत महाविद्यालये यांना संचालक, वैद्यकीय शिक्षण व संशोधन, मुंबई यांच्यामार्फत निवडनस्ती (शिक्षण-२).

पृष्ठ ८ पैकी ५

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन निर्णय क्रमांक सीईटी ३५१८/प्र.क्र.३२/१८/शिक्षण-२, दिनांक २९.०१.२०१८
सोबतचे

परिशिष्ट - अ

शासकीय/ महानगरपालिका आणि शासन अनुदानित वैद्यकीय व दंत महाविद्यालयातील वैद्यकीय व दंत पदव्युत्तर पदवी आणि वैद्यकीय पदविका अभ्यासक्रमांचे जागांचे वाटप

एम.डी./ एम.एस./ पदव्युत्तर पदविका आणि एम.डी.एस.

अ.क्र.	संस्थेचा प्रकार	राज्यस्तरीय कोटा (राज्य सामाईक प्रवेश परीक्षाकक्षामार्फत भरावयाच्या जागांची टक्केवारी)	अखिल भारतीय कोटयाकरिता राखीव जागांची टक्केवारी
१.	शासकीय/ महापालिका आणि शासन अनुदानित वैद्यकीय महाविद्यालये.	५० टक्के	५० टक्के
२.	शासकीय/ महापालिका दंत महाविद्यालये	५० टक्के	५० टक्के

पृष्ठ ८ पैकी ६

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन निर्णय क्रमांक सीईटी ३५१८/प्र.क्र.३२/१८/शिक्षण-२, दिनांक २९.०१.२०१८
सोबतचे

परिशिष्ट - ब

शासकीय/ महानगरपालिका वैद्यकीय व दंत महाविद्यालयातील वैद्यकीय पदवी/ पदविका व दंत पदव्युत्तर पदवी अभ्यासक्रमांचे राज्यस्तरीय कोटयातील
(ऑल इंडिया कोटा वगळून) जागांचे वाटप

अ.क्र.	जागांचा प्रकार	अभ्यासक्रम	उपलब्ध जागांची टक्केवारी
१.	नीट-पीजी सर्व पात्र उमेदवारांकरीता	एम.डी./ एम.एस.	१०० टक्के
		पदविका	५० टक्के
२.	वैद्यकीय सेवांतर्गत उमेदवारांकरीता	एम.डी./ एम.एस.	निरंक
		पदविका	५० टक्के
३.	नीट-एमडीएस सर्व पात्र उमेदवारांकरीता	एम.डी.एस.	८५ टक्के
४.	नीट-एमडीएस पात्र दंत सेवांतर्गत उमेदवारांकरीता	एम.डी.एस.	१५ टक्के

पृष्ठ ८ पैकी ७

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन निर्णय क्रमांक सीईटी ३५१८/प्र.क्र.३२/१८/शिक्षण-२, दिनांक २९.०१.२०१८
सोबतचे

परिशिष्ट - क

शासकीय/ महानगरपालिका आणि शासन अनुदानित वैद्यकीय व दंत महाविद्यालयातील वैद्यकीय व दंत पदव्युत्तर पदवी/ पदविका अभ्यासक्रमांचे ५० टक्के राज्यस्तरीय कोटयातील (५० टक्के अखिल भारतीय कोटा) जागांकरिता संवैधानिक आरक्षण

अ.क्र.	जागांचा प्रकार	राखीव कोटयाची टक्केवारी
अ	अनुसूचित जाती (नवबौध्दांसहित)	१३ टक्के
ब	अनुसूचित जमाती	७ टक्के
क	विमुक्त जाती - अ	३ टक्के
ड	भटके जमाती - ब	२.५ टक्के
इ	भटके जमाती - क	३.५ टक्के
फ	भटके जमाती - ड	२ टक्के
ग	इतर मागासवर्गीय/ विशेष मागसवर्गीय	१९ टक्के
	एकूण	**५० टक्के**

असा. क्र. ५ रजिस्टर्ड नं. एमएच/एमआर/साऊथ-२२९/२००६-०८

महाराष्ट्र शासन राजपत्र

असाधारण

प्राधिकृत प्रकाशन

सोमवार, जानेवारी ८, २००७/पौष १८, शके १९२८

स्वतंत्र संकलन म्हणून फाईल करण्यासाठी या भागाला वेगळे पृष्ठ क्रमांक दिले आहेत.

भाग चार-ब

महाराष्ट्र शासनाने महाराष्ट्र अधिनियमांन्वये तयार केलेले (भाग एक, एक-अ आणि एक-ल यांमध्ये प्रसिद्ध केलेले नियम व आदेश यांव्यतिरिक्त) नियम व आदेश.

वैद्यकीय शिक्षण व औषधिद्रव्ये विभाग

मंत्रालय, मुंबई ४०० ०३२, दिनांक ८ जानेवारी २००७

अधिसूचना

महाराष्ट्र खाजगी व्यावसायिक संस्था [अनुसूचित जाती, अनुसूचित जमाती, निरधिसूचित जमाती (विमुक्त जाती), भटक्या जमाती व इतर मागासवर्ग यांच्याकरिता जागांचे आरक्षण] अधिनियम, २००६

क्रमांक पीजीएम. १००६/३२०७/सीआर-३६२/०६/शिक्षण-२.—महाराष्ट्र खाजगी व्यावसायिक शिक्षण संस्था [अनुसूचित जाती, अनुसूचित जमाती, निरधिसूचित जमाती (विमुक्त जाती), भटक्या जमाती व इतर मागासवर्ग यांच्याकरिता जागांचे आरक्षण] अधिनियम, २००६ (२००६ चा महा. ३०) च्या कलम २ मधील खंड (ञ) व कलम ५ याद्वारे प्रदान करण्यात आलेल्या अधिकाराचा वापर करून महाराष्ट्र शासन याद्वारे,—

(एक) सोबत जोडलेल्या अनुसूचीमध्ये नमूद करण्यात आलेले आरोग्य विज्ञानातील पदव्युत्तर पदवी व पदविका अभ्यासक्रम हे उक्त अधिनियमाच्या प्रयोजनार्थ, व्यावसायिक अभ्यासक्रम असल्याचे अधिसूचित करीत आहे ;

[किंमत : रुपये ३.००]

(दोन) उक्त अभ्यासक्रमाच्या प्रवेशाकरिता राखीव प्रवर्गातील उमेदवारांसाठी आरक्षित ठेवावयाच्या जागा या, मंजूर प्रवेश क्षमतेच्या पंचवीस टक्के इतक्या असतील असा निदेश देत आहे.

स्पष्टीकरण.—(क) या अधिसूचनेच्या प्रयोजनार्थ, विशिष्ट आरोग्य विज्ञान शाखेतील/ अभ्यासक्रमातील पदव्युत्तर व्यावसायिक अभ्यासक्रम चालविणाऱ्या सर्व खाजगी विनाअनुदानित संस्थांमध्ये त्या विशिष्ट आरोग्य विज्ञान शाखेसाठी/अभ्यासक्रमासाठी प्रवेश देताना (ज्या संस्थांमधील प्रवेश प्रक्रिया ही एकत्रितपणे चालविण्यात येत आहे) त्या संस्थांमध्ये आरक्षणासाठीच्या जागांची संख्या ही, त्या विशिष्ट आरोग्य विज्ञान शाखेसाठी/ अभ्यासक्रमासाठी सर्व संस्थांमध्ये एकत्रितपणे उपलब्ध असलेल्या एकूण जागांच्या (म्हणजेच मंजूर प्रवेश क्षमतेच्या) संख्येच्या आधारे ठरविण्यात येईल. उदाहरणार्थ, ज्या खाजगी विनाअनुदानित वैद्यकीय व दंत महाविद्यालयांच्या व्यवस्थापन संघाद्वारे ज्या खाजगी विनाअनुदानित व्यावसायिक शिक्षण संस्थांकरिता प्रवेश प्रक्रिया एकत्रितपणे चालविण्यात येत आहे, अशा सर्व संस्थांमध्ये एम.डी. (औषध) या पदव्युत्तर पदवी अभ्यासक्रमासाठी उपलब्ध असलेल्या सर्व जागा.

(ख) तसेच या अधिसूचनेच्या प्रयोजनार्थ, खाजगी व्यावसायिक शैक्षणिक संस्थांमध्ये राखीव प्रवर्गातील उमेदवारांसाठी आरक्षित असलेल्या जागांची संख्या निश्चित करताना ती अपूर्णांकात निर्माण झाली आणि ती संख्या अर्ध्यापेक्षा कमी असल्यास ती विचारात घेण्यात येणार नाही आणि ती अर्धी किंवा त्यापेक्षा अधिक असेल तर तिचे रुपांतर पूर्ण एका जागेमध्ये करण्यात येईल.

अनुसूची

(१) वैद्यकीय शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.डी./एम.एस.).
(२) वैद्यकीय शाखेतील पदव्युत्तर पदविका अभ्यासक्रम.
(३) दंत वैद्यकशास्त्र शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.डी.एस.).
(४) आयुर्वेद शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.डी./एम.एस.).
(५) समचिकित्सा (होमिओपॅथी) शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.डी.).
(६) युनानी शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.डी.).
(७) भौतिकोपचारशास्त्र शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.पी.टी.एच.).
(८) व्यवसायोपचारशास्त्र शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.ओ.टी.एच.).
(९) ऑडीओलॉजी व स्पीच लँग्वेज पॅथॉलॉजी यातील पदव्युत्तर पदवी अभ्यासक्रम (एम.ए.एस.एल.पी.).
(१०) वैद्यकीय प्रयोगशाळा व तंत्रज्ञान यांमधील पदव्युत्तर पदविका अभ्यासक्रम (डी.एम.एल.टी.).
(११) शुश्रुषा (नर्सिंग) शाखेतील पदव्युत्तर पदवी अभ्यासक्रम (एम.एससी).
(१२) शरीररचनाशास्त्र, जीवरसायनशास्त्र, सूक्ष्मजीवशास्त्र, औषधशास्त्र, शरीरक्रियाशास्त्र यातील पदव्युत्तर पदवी अभ्यासक्रम (एम.एससी).

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

मेधा गाडगीळ,
शासनाच्या सचिव.

MEDICAL EDUCATION AND DRUGS DEPARTMENT

Mantralaya, Mumbai 400 032, dated the 8th January 2007

NOTIFICATION

MAHARASHTRA PRIVATE PROFESSIONAL EDUCATIONAL INSTITUTIONS [RESERVATION OF SEATS FOR SCHEDULED CASTES, SCHEDULED TRIBES, DE-NOTIFIED TRIBES (VIMUKTA JATIS) NOMADIC TRIBES AND OTHER BACKWARD CLASSES] ACT, 2006.

No. PGM-1006/3207/CR-362/06/EDU-2.—In exercise of the powers conferred by clause (*j*) of section 2 and section 5 of the Maharashtra Private Professional Educational Institutions [Reservation of Seats for Scheduled Castes, Scheduled Tribes, De-notified Tribes (Vimukta Jatis), Nomadic Tribes and Other Backward Classes] Act, 2005 (Mah. XXX of 2006), the Government of Maharashtra hereby,—

(*i*) notifies the post-graduate degree and diploma courses of study in Health Sciences mentioned in the Schedule appended hereto to be Professional Courses for the purposes of the said Act;

(*ii*) directs that the seats to be reserved for the candidates belonging to the Reserved Category for admission to the said courses shall be twenty-five per cent of the sanctioned intake.

Explanation.—(*a*) For the purposes of this Notification, the reservation shall be calculated on the basis of total number of seats available for admission (i.e. sanctioned intake capacity) for a particular Health Science Discipline/Course at all Private Unaided Professional Institutions (for which admission process is being conducted jointly) conducting Post-graduate Professional Courses, in such particular Discipline/Course taken together, for example all the seats available for admission to the Post-graduate course of M.D. (Medicine) at all the Private Un-aided Professional Educational Institutions for which admission process is being jointly conducted by Association of Management of Private Unaided Medical and Dental Colleges.

(*b*) Further, for the purposes of this Notification, in calculating the number of seats available for a Reserved Category in a Private Professional Educational Institution, a fraction of a seat less than one-half shall be ignored and one-half or more shall be reckoned as one.

Schedule

(1) Post Graduate Degree (M.D./M.S.) Courses in Medical Faculty.
(2) Post Graduate Diploma Courses in Medical Faculty.
(3) Post Graduate Degree (M.D.S.) Courses in Dental Faculty.
(4) Post Graduate Degree (M.D./M.S.) Courses in Ayurved Faculty.
(5) Post Graduate Degree (M.D.) Courses in Homoeopathy Faculty.
(6) Post Graduate Degree (M.D.) Courses in Unani Faculty.

(7) Post Graduate Degree (M.P.Th.) Courses in Physiotherapy Faculty.
(8) Post Graduate Degree (M.O.Th.) Courses in Occupational Therapy Faculty.
(9) Post Graduate Degree (M.A.SLP) Courses in Audiology & Speech-language Pathology.
(10) Post Graduate Diploma (DMLT) Courses in Medical Laboratory Technology.
(11) Master of Science (M.Sc.) Courses in Nursing Faculty.
(12) Master of Science (M.Sc.) Courses in Anatomy, Biochemistry, Microbiology, Pharmacology and Physiology.

By order and in the name of the Governor of Maharashtra,

MEDHA GADGIL,
Secretary to Government.

शासकीय मध्यवर्ती मुद्रणालय, मुंबई

ANNEXURE -"W"

Government Resolution for declaring Commissioner, State CET Cell as a Competent Authority for admission at Government / Corporation and Government Aided institution from State of Maharashtra

वैद्यकीय शिक्षण व औषधी द्रव्ये विभागांतर्गत शासकीय / शासन अनुदानित/ महापालिका महाविद्यालयांतील आरोग्य विज्ञानाचे व्यावसायिक अभ्यासक्रमांचे प्रवेश आयुक्त, राज्य सामाईक प्रवेश परीक्षा यांच्यामार्फत करण्याबाबत...

महाराष्ट्र शासन

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन निर्णय क्र. एमईडी-१०१५/ प्र.क्र. ३९६/१५/शि-२,
गो.ते.रुग्णालय आवार इमारत, ९ वा मजला
नवीन मंत्रालय, मुंबई- ४०० ००१.
दिनांक : १६ डिसेंबर, २०१५

वाचा :- १. शासन अधिसूचना, उच्च व तंत्र शिक्षण विभाग, क्र. संकीर्ण-२०१५/ प्र.क्र. २५२/ तांशि-४, दिनांक ३/१२/२०१५

२. शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, क्र. सीईटी-१२१५/ प्र.क्र. ४११/१५/शि-२, दि. १४ /१२/२०१५.

प्रस्तावना :-

राज्यातील विनाअनुदानित खाजगी व्यावसायिक शिक्षण संस्थांमधील प्रवेशाचे नियमन करणे व शुल्क निश्चित करण्यासाठी आणि त्याच्याशी संबंधित बाबींसाठी तरतूद करण्याकरिता महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ प्रसिध्द करण्यात आला आहे. तसेच वैद्यकीय शिक्षण वऔषधी द्रव्ये विभागाच्या नियंत्रणाखालील आरोग्य विज्ञानाचे व्यावसायिक अभ्यासक्रम शासन अधिसूचना, क्र. संकीर्ण-२०१५/ प्र.क्र.२५२/ तांशि-४, दि. ३/१२/२०१५ अन्वये घोषित करण्यात आले आहेत. हया व्यावसायिक अभ्यासक्रमांच्या सामाईक प्रवेश परीक्षा घेण्यासाठी व केंद्रीभूत प्रवेश प्रक्रियेद्वारे प्रवेश करण्यासाठी आयुक्त, राज्य सामाईक प्रवेश परीक्षा यांची नियुक्ती वरील अधिनियमाच्या कलम १० अन्वये करण्यात आली आहे. तसेच, शासन निर्णय, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, क्र. सीईटी-१२१५/ प्र.क्र. ४११/१५/शि-२, दि. १४/१२/२०१५. अन्वये वैद्यकीय शिक्षण व संशोधन संचालनालयाच्या अखत्यारितील आरोग्य

विज्ञानाच्या ज्या पदवी आणि पदव्युत्तर पदवी/ पदविका व्यावसायिक अभ्यासक्रमांना उक्त अधिनियमाच्या कलम ४(क) च्या परंतुकान्वये राज्य सामाईक प्रवेश परीक्षेतून वगळण्यात आले आहे, ते अभ्यासक्रम व त्यांच्या प्रवेशाची कार्यपध्दती याबाबतचा तपशील देण्यात आला आहे.

२. राज्यस्तरावर घेण्यात येणाऱ्या संबंधित व्यावसायिक अभ्यासक्रमांची प्रवेश प्रक्रिया ही महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ मधील कलम १० अन्वये आयुक्त, राज्य सामायिक प्रवेश परीक्षा कक्ष यांचेमार्फत करणे क्रमप्राप्त आहे. तथापि, सदर अधिनियमात फक्त खाजगी विनाअनुदानित व अल्पसंख्यांक संस्थेतील व्यावसायिक अभ्यासक्रमांच्या प्रवेशाच्या नियमनाची तरतूद करण्यात आली असल्याने सदर संस्थेव्यतिरिक्त शासकीय/ शासन अनुदानित आणि महापालिकेच्या महाविद्यालयांतील व्यावसायिक अभ्यासक्रमांच्या प्रवेशासाठी एक खिडकी पध्दतीने एकच प्रवेश प्रक्रिया अंमलात आणण्याचे शासनाच्या विचाराधीन होते.

<u>शासन निर्णय</u> :-

वैद्यकीय शिक्षण व संशोधन संचालनालयाच्या अखत्यारितील आरोग्य विज्ञानाच्या ज्या पदवी आणि पदव्युत्तर व्यावसायिक अभ्यासक्रमांना राज्याची सामाईक प्रवेश प्रक्रिया लागू केली आहे व/ किंवा ज्यांचे प्रवेश केंद्रीभूत प्रवेश प्रक्रियेद्वारे करण्यात येणार आहेत, अशा सर्व व्यावसायिक अभ्यासक्रमांचे खाजगी विनाअनुदानित/ शासकीय/ शासन अनुदानित/ महापालिका/ अल्पसंख्यांक संस्थांमधील प्रवेश हे महाराष्ट्र विनाअनुदानित खाजगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ मधील कलम १० अनुसार केंद्रिभूत प्रवेश प्रक्रियेद्वारे आयुक्त, राज्य सामायिक प्रवेश परीक्षा कक्ष यांच्यामार्फत एकत्रितपणे अभ्यासक्रमनिहाय एक खिडकी पध्दतीनुसार करण्यात येतील.

२. तसेच, ज्या व्यावसायिक अभ्यासक्रमांना राज्यस्तरावरील सामाईक प्रवेश परीक्षेतून वगळण्यात आले आहे त्याबाबत प्रवेशाच्या कार्यपध्दतीचा तपशील संदर्भ क्र.२ वरील शासन निर्णयाद्वारे विषद करण्यात आला आहे.

३. उपरोक्तप्रमाणे आयुक्त, राज्य सामायिक प्रवेश परीक्षा कक्ष यांच्याद्वारे एक खिडकी पध्दतीने करण्यात येणा-या सोबतच्या परिशिष्ट-अ मधील, सर्व व्यावसायिक अभ्यासक्रमाची प्रवेश प्रक्रिया ही शासनाने अधिनियमांतर्गत विहित केलेल्या नियमान्वये करण्यात येईल.

४. प्रस्तुत आदेश हे उच्च व तंत्र शिक्षण विभागाच्या सहमतीने निर्गमित करण्यात येतआहेत.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नांवाने.

(अजित सासुलकर)
अवर सचिव, महाराष्ट्र शासन

प्रति,
मा. मुख्यमंत्री यांचे प्रधान सचिव, मंत्रालय ,मुंबई.
मा. मंत्री (वै.शि.) यांचे खासगी सचिव, मंत्रालय,मुंबई.
प्रधान सचिव, उच्च व तंत्र शिक्षण विभाग, मंत्रालय,मुंबई.
आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष,वांद्रे,मुंबई.
उप सचिव (वैसेवा) वै.शि.व औ. विभाग, मंत्रालय, मुंबई.
संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, महाराष्ट्र राज्य, मुंबई.
संचालक, आयुष संचालनालय, महाराष्ट्र राज्य, मुंबई.
कुलसचिव, महाराष्ट्र आरोग्य विज्ञान विद्यापीठ, नाशिक.
कार्यलयीन सचिव, प्रवेश नियंत्रण समिती व शिक्षण शुल्क समिती, महाराष्ट्र राज्य, मुंबई.
अधिष्ठाता, सर्व शासकीय व खासगी वैद्यकीय,आयुर्वेद,होमिओपॅथी,नर्सिंग महाविद्यालये.
कक्ष अधिकारी (शिक्षण-१) वै.शि.व औ. विभाग, मंत्रालय, मुंबई
निवड नस्ती.

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, मंत्रालय,मुंबई शासन निर्णय, क्र. एमईडी-१०१५/ प्र.क्र.३९६/१५/ शिक्षण-२, दिनांक १६ डिसेंबर,२०१५.सोबतचे

परिशिष्ट-अ

अ.क्र.	राज्य सामाईक प्रवेश परिक्षेव्दारे प्रवेश द्यावयाचेव्यावसायिक अभ्यासक्रम.
1	M.B.B.S. (Bachelor of Medicine and Bachelor of Surgery)
2	B.D.S. (Bachelor of Dental Surgery)
3	B.A.M.S.(Bachelor of Ayurved Medicine and Surgery)
4	B.U.M.S.(Bachelor of Unani Medicine and Surgery)
5	B.H.M.S.(Bachelor of Homeopathic Medicine and Surgery)
6	B. P. Th.(Bachelor of Physiotherapy)
7	B. O. Th.(Bachelor of Occupational Therapy)
8	B.Sc. (Nursing) (Bachelor of Science (Nursing))
9	B.A.S.L.P.(Bachelor of Audio and Speech Language Pathology)
10	B.P.O. (Bachelor of Prosthetics and Orthotics)
11	M.D. (Doctor of Medicine)
12	M.S. (Master of Surgery)
13	Post Graduate Diploma
14	M.D.S. (Master of Dental Surgery)
15	D.M. (Doctor of Medicine)
16	M.Ch. (Magister of Chirurgie)
17	M.D. (Ayurved) (Doctor of Medicine)AyurvedVachaspati
18	M.D. (Unani)(Doctor of Medicine)Mahir-E-Tib
19	M.D. (Homeopathy)(Doctor of Medicine)
20	M. P. Th. (Master of Physiotherapy)
21	M. O. Th.(Master of Occupational Therapy)
22	M.A.S.L.P.(Master of Audio and Speech Language Pathology)
23	M.P.O.(Master of Prosthetics and Orthotics)

ANNEXURE -"X"

Private Unaided Medical Institution shall not demand Bank Guarantee equivalent to fee amounting to next academic year(s) at the time of admission and Bond Service shall not be imposed after completion of Post-graduate course

राज्यातील खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या प्रवेशाच्यावेळी विद्यार्थ्यांकडुन पुढील शैक्षणिक वर्षाच्या शुल्काची बॅक गॅरंटीची मागणी आणि अभ्यासक्रम पुर्ण झाल्यानंतर वैद्यकीय सेवा देण्याबाबत बंधपत्राची मागणी न करण्याबाबत

महाराष्ट्र शासन
वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
शासन परिपत्रक क्रमांक सीईटी ३५१८/प्र.क्र.१८२/१८/शिक्षण-२
गो.ते.रुग्णालयाची नवीन इमारत, ९ वा मजला, गो.ते.रुग्णालय संकुल,
लोकमान्य टिळक मार्ग, मुंबई ४०० ००१
दिनांक : १९.०५.२०१८

संदर्भ : महाराष्ट्र विनाअनुदानित खासगी व्यावसायिक शिक्षण संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम,२०१५

परिपत्रक:-

राज्यातील खाजगी विनाअनुदानित महाविद्यालयातील आरोग्य विज्ञानाचे व्यावसायिक अभ्यासक्रमांचे प्रवेश संदर्भाधीन अधिनियमातील तरतुदीनुसार आणि त्या अंतर्गत प्रसिध्द केलेल्या प्रवेश नियमांनुसार करण्यात येतात. त्यानुषंगाने, राज्य सामाईक प्रवेश परिक्षा कक्ष, शुल्क नियामक प्राधिकरण आणि प्रवेश नियामक प्राधिकरण या वैधानिक संस्था कार्यरत आहेत. राज्यातील खाजगी विनाअनुदानित महाविद्यालयातील आरोग्य विज्ञानाचे व्यावसायिक अभ्यासक्रमांचे प्रवेश राज्य सामाईक प्रवेश परिक्षा कक्षामार्फत करण्यात येऊन सदर प्रवेशांना मान्यता देण्याची कार्यवाही प्रवेश नियामक प्राधिकरण यांच्याव्दारा करण्यात येते. तसेच, राज्यातील खाजगी विनाअनुदानित महाविद्यालयातील आरोग्य विज्ञानाच्या व्यावसायिक अभ्यासक्रमांचे शुल्क निश्चित करण्याची कार्यवाही शुल्क नियामक प्राधिकरणाव्दारे करण्यात येते.

२. राज्यातील खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या प्रवेशाच्यावेळी विद्यार्थ्यांकडून पुढील शैक्षणिक वर्षांच्या शुल्काची बॅक गॅरंटी आणि अभ्यासक्रम पुर्ण झाल्यानंतर संबंधित

महाविद्यालयास एक वर्ष सेवा देण्याप्रित्यर्थची बॅक गॅरंटीची/बंधपत्राची मागणी करण्यात येत असल्याच्या तक्रारी शासनास प्राप्त झाल्या आहेत. त्यानुषंगाने खालीप्रमाणे स्पष्टीकरण करण्यात येत आहे.

अ. महाराष्ट्र विनाअनुदानित खासगी व्यावसायिक शैक्षणिक संस्था (प्रवेश व शुल्क यांचे विनियमन) अधिनियम, २०१५ च्या कलम १४ (५) मध्ये खाली नमूद केल्याप्रमाणे तरतुद आहे

"No instituiton shall collect fee amounting to morethan one year from a candidate in an academic year and collection of fees for more than one year be construed as collection of capitation fee and such instituiton shall be liable to be proceeded against"

त्यानुसार, राज्यातील खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयानी विद्यार्थी ज्या शैक्षणिक वर्षात शिकत आहे त्याच शैक्षणिक वर्षाचे शुल्क विद्यार्थ्यांकडून वसुल करणे आवश्यक आहे. पुढील शैक्षणिक वर्षांचे शुल्क आधीच वसुल करणे अथवा त्याप्रित्यर्थ शुल्काच्या रकमेची बॅक गॅरंटीची मागणी विद्यार्थ्यांकडून करणे उपरोक्त तरतुदीचे उल्लंघन करणारी आहे.

ब. राज्यातील शासकीय/ महापालिका वैद्यकीय/ दंत महाविद्यालयातील विद्यार्थ्यांना अतिशय माफक शुल्क आकारले जाते. सदर विद्यार्थ्यांच्या शिक्षणावर होणारा खर्च जनतेच्या पैशातुन केला जात असल्याने त्याची काही अंशी परतफेड व्हावी या हेतुने उक्त महाविद्यालयातुन पदवी/ पदव्युत्तर पदवी/ पदव्युत्तर पदविका अभ्यासक्रम पुर्ण करणाऱ्या विद्यार्थ्यांनी शासनाची विहीत कालावधीची सेवा करावी याकरीता त्याच्याकडून बंधपत्र लिहुन घेण्यात येते. तथापि, खाजगी विनाअनुदानित महाविद्यालयातुन पदव्युत्तर अभ्यासक्रम पुर्ण झाल्यानंतर विद्यार्थ्याने संबंधीत खाजगी विनाअनुदानित महाविद्यालयास आपली सेवा उपलब्ध करुन देण्याबाबत कायद्यात, वैद्यकीय पदव्युत्तर अभ्यासक्रमाच्या प्रवेशनियमात अथवा प्रवेशप्रक्रीयेच्या माहितीपुस्तीकेत कोणतीही तरतुद नाही. त्यामुळे, राज्यातील खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयातील पदव्युत्तर अभ्यासक्रमांच्या विद्यार्थ्यांकडून अभ्यासक्रम पुर्ण झाल्यानंतर संबंधित महाविद्यालयास एक वर्ष सेवा देण्याप्रित्यर्थची बॅक गॅरंटीची मागणी करणे अथवा बंधपत्र लिहुन घेणे पुर्णत: बेकायदेशीर आहे.

३. संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, मुंबई आणि आयुक्त, राज्य सामाईक प्रवेशपरिक्षा कक्ष, मुंबई यांच्याव्दारा पदव्युत्तर अभ्यासक्रमाच्या प्रवेशाकरीता शिफारस करण्यात आलेल्या विद्यार्थ्यांकडून पुढील शैक्षणिक

पृष्ठ ४ पैकी २

वर्षांच्या शुल्काची बँक गॅरंटी आणि अभ्यासक्रम पुर्ण झाल्यानंतर संबंधित महाविद्यालयास एक वर्ष सेवा देण्याप्रित्यर्थची बँक गॅरंटी/ बंधपत्र याबाबत राज्यातील खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयांनी मागणी करु नये. तसेच, यानुषंगाने यापुर्वी राज्यातील खाजगी विनाअनुदानित वैद्यकीय महाविद्यालयांनी पदव्युत्तर वैद्यकीय अभ्यासक्रमांच्या विद्यार्थ्यांकडून बॅक गॅरंटी आणि बंधपत्र घेतले असल्यास ते देखील बेकायदेशीर आहे.

४. खाजगी विनाअनुदानित महाविद्यालयांनी वर नमूद केल्याप्रमाणे विद्यार्थ्यांकडुन बँक गॅरंटी अथवा बंधपत्राची मागणी केल्यास त्याचेविरुध्द यथोचित कारवाई करण्यात येईल.

५. सदर शासन परिपत्रक महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात अ असून त्याचा संकेताक २०१८०५१९१७०२२३२२१३ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

Surendra Pralhad Chankar

Digitally signed by Surendra Pralhad Chankar
DN: c=IN, o=Government Of Maharashtra, ou=Women And Child Development Department, postalCode=400032, st=Maharashtra, 2.5.4.20=da74ced4daa59e5121be348655e71412ea68827bae27cd8d480eb3963ff77726, serialNumber=f0abc250c4d9be2b6b786fa7056a78c0298ba36e78a4582723738fdd3d550d44, cn=Surendra Pralhad Chankar
Date: 2018.05.19 17:24:14 +05'30'

(सुरेन्द्र प्र. चानकर)
उप सचिव, महाराष्ट्र शासन

प्रत,

मा. राज्यपाल यांचे सचिव, राज्यपाल सचिवालय, राजभवन, मलबार हिल, मुंबई.
मा.सभापती, महाराष्ट्र विधानपरिषद यांचे सचिव, विधान भवन, मुंबई
मा.अध्यक्ष, महाराष्ट्र विधानसभा यांचे सचिव, विधान भवन, मुंबई
मा. मुख्यमंत्र्यांचे प्रधान सचिव, मंत्रालय, मुंबई.
मा.मंत्री, वैद्यकीय शिक्षण यांचे खाजगी सचिव, मंत्रालय, मुंबई.
मा.विरोधी पक्ष नेता, महाराष्ट्र विधानपरिषद, विधान भवन, मुंबई.
मा.विरोधी पक्ष नेता, महाराष्ट्र विधानसभा, विधान भवन, मुंबई
मा.राज्यमंत्री, वैद्यकीय शिक्षण यांचे खाजगी सचिव, मंत्रालय, मुंबई.
मुख्य सचिव, महाराष्ट्र शासन, मंत्रालय, मुंबई
प्रधान सचिव, उच्च व तंत्र शिक्षण विभाग, मंत्रालय,मुंबई.

पृष्ठ ४ पैकी ३

सचिव, वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग, मंत्रालय, मुंबई
महासंचालक, माहिती व जनसंपर्क संचालनालय, मंत्रालय, मुंबई
आयुक्त, राज्य सामाईक प्रवेश परीक्षा कक्ष, महाराष्ट्र राज्य, मुंबई.
सचिव, प्रवेश नियामक प्राधिकरण, महाराष्ट्र राज्य, मुंबई.
सचिव, शुल्क नियामक प्राधिकरण, महाराष्ट्र राज्य, मुंबई.
सर्व सहउप सचिव/, वैद्यकीय शिक्षण व औषधीद्रव्ये विभाग, मंत्रालय, मुंबई.
संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, महाराष्ट्र राज्य, मुंबई.
संचालक, आयुष संचालनालय, महाराष्ट्र राज्य, मुंबई.
कुलसचिव, महाराष्ट्र आरोग्य विज्ञान विद्यापीठ, नाशिक.
संचालक, वैद्यकीय शिक्षण व प्रमुख रुग्णालये (बृहन्मुंबई महानगरपालिका)
अधिष्ठाता/ प्राचार्य, सर्व शासकीय/महानगरपालिका/ अनुदानित/ खाजगी विनाअनुदानित आरोग्य विज्ञान महाविद्यालये.
निवड नस्ती (कार्यासन शिक्षण-२).

ANNEXURE -"Y"

MEDICAL COUNCIL OF INDIA, NOTIFICATION: Admission schedule from the academic year 2018-19 onwards for Post-graduate courses

रजिस्ट्री सं० डी० एल०-33004/99 REGD. NO. D. L.-33004/99

भारत का राजपत्र
The Gazette of India

असाधारण
EXTRAORDINARY
भाग III—खण्ड 4
PART III—Section 4
प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 144] नई दिल्ली, बृहस्पतिवार, अप्रैल 5, 2018/चैत्र 15, 1940
No. 144] NEW DELHI, THURSDAY, APRIL 5, 2018/CHAITRA 15, 1940

भारतीय आयुर्विज्ञान परिषद्

अधिसूचना

नई दिल्ली, 5 अप्रैल, 2018

सं. भा.आ.प.-18(1)/2018-मेड./100818.— भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 (1956 का 102) की धारा 33 द्वारा प्रदत्त शक्तियों का इस्तेमाल करते हुए, भारतीय आयुर्विज्ञान परिषद् "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" में पुन: संशोधन करने के लिए केंद्र सरकार की पूर्व स्वीकृति से एतद्वारा निम्नलिखित विनियम बनाती है, नामत:-

1. (i) ये विनियम, "स्नातकोत्तर चिकित्सा शिक्षा (संशोधन) विनियमावली, 2018" कहे जाएंगे।

   (ii) ये सरकारी राजपत्र में उनके प्रकाशन की तारीख से प्रवृत्त होंगे।

2. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" के "स्नातकोत्तर चिकित्सा शिक्षा पाठ्यक्रम आरंभ करना और उनकी मान्यता" शीर्षक के अंतर्गत खंड 6(1), (2) और (3) को निम्नलिखित रूप में प्रतिस्थापित किया जाएगा:

   "(1)कोई स्नातकोत्तर चिकित्सा शिक्षा पाठ्यक्रम आरंभ करने या पहले से चल रहे पाठ्यक्रम में वार्षिक प्रवेश क्षमता में वृद्धि करने का इच्छुक कोई संस्थान, अधिनियम की धारा 10 क के अंतर्गत केंद्र सरकार की पूर्वानुमति प्राप्त करेगा। स्नातकोत्तर डिग्री/स्नातकोत्तर डिप्लोमा पाठ्यक्रमों के लिए केंद्र सरकार द्वारा प्रदान की गई पूर्वानुमति क्रमश: चार और तीन शैक्षिक वर्षों के लिए होगी।

   परंतु यह कि मेडिकल कालेजों/संस्थानों के लिए यह आवश्यक होगा कि वे मान्यता प्रदान किए जाने के तीन वर्ष अर्थात भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 की प्रथम अनुसूची में की गई एमबीबीएस शैक्षिक योग्यता के शामिल किए जाने की तारीख से तीन वर्ष के अंदर स्नातकोत्तर चिकित्सा शिक्षा पाठ्यक्रम आंरभ करने के लिए आवेदन करें। स्नातकोत्तर पाठ्यक्रम आरंभ करने के लिए अनुबद्ध समय के अंदर आवेदन करने में विफल रहने पर, एम बी बी एस शैक्षिक योग्यता की मान्यता वापस लेनी आवश्यक हो जाएगी।

परंतु यह भी कि कोई ऐसे मेडिकल कालेज/चिकित्सा संस्थान, जो अननुमोदन की स्थिति में कोई स्नातकोत्तर पाठ्यक्रम आरंभ करने के लिए आवेदन करने के आगामी वर्षों के लिए दो और अवसर प्रदान किए जाएंगे। इसके पश्चात केंद्र सरकार की अनुमति प्राप्त करने में विफल रहने पर, एमबीबीएस शैक्षिक योग्यता की मान्यता वापस लेनी आवश्यक हो जाएगी।

परंतु यह भी कि मौजूदा कालेजों को आवेदन करने का समय उपलब्ध कराने की दृष्टि से, उपर्युक्त, शैक्षिक वर्ष 2020-21 से प्रस्तुत की गई योजना पर लागू होगा।

(2) संस्थान, स्नातकोत्तर चिकित्सा शैक्षिक योग्यता की मान्यता के लिए संबद्धन विश्वविद्यालय के जरिए केंद्र सरकार को आवेदन करेगा, जब दाखिल किया गया प्रथम बैच, संबद्धन विश्वविद्यालय द्वारा आयोजित की जाने वाली परीक्षा में बैठने के लिए नियत होगा।

मूल्यांकन में कमियां पाए जाने की स्थिति में संस्थान को, परिषद् द्वारा कमियों के संसूचन की तारीख से 30 दिन के अंदर अनुपालन प्रस्तुत करने का एक अवसर प्रदान किया जाएगा। कमियों का अनुपालन करने के ऐसे अवसर का लाभ संस्थान द्वारा केवल दो बार लिया जाएगा। अनुपालन के संतोषजनक पाए जाने पर स्नातकोत्तर चिकित्सा शिक्षा समिति, पाठ्यक्रम को मान्यता देने की अनुशंसा संसूचित करेगी। अन्य सभी मामलों में, उप-खंड (1) के अंतर्गत प्रदान की गई केंद्र सरकार की पूर्वानुमति, स्नातकोत्तर डिग्री/स्नातकोत्तर डिप्लोमा पाठ्यक्रम के लिए क्रमश: चार और तीन वर्षों के पश्चात व्ययगत हुई मानी जाएगी। इसके अलावा, ऐसे मामलों में, केंद्र सरकार से, स्नातकोत्तर डिग्री पाठ्यक्रम के केवल प्रथम चार बैचों और स्नातकोत्तर डिप्लोमा पाठ्यक्रमों के तीन बैचों के संबंध में, भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 की प्रथम अनुसूची में शैक्षिक योगयताएं शामिल करने की अनुशंसा की जाएगी।

(3) उप-खंड 2 में यथा अपेक्षित समय से मान्यता प्राप्त करने में विफल रहने की स्थिति में संबंधित स्नातकोत्तर पाठ्यक्रम में दाखिला बंद कर दिया जाएगा।

मौजूदा पाठ्यक्रमों के लिए मान्यता प्राप्त करने में संस्थान के विफल रहने की स्थिति में, परिषद् केंद्र सरकार से निवारक शास्ति लगाने की अनुशंसा कर सकती है, जो स्नातकोत्तर पाठ्यक्रम की प्रति सीट दस लाख रुपये और/या संस्थान के अन्य स्नातकोत्तर चिकित्सा पाठ्यक्रमों के बंद किए जाने और/या किसी विनिदितर अवधि के लिए स्नातकोत्तर पाठ्यक्रम आरंभ करने या सीटों में वृद्धि करने के लिए आवेदन करने से संस्थान को विवर्जित करने और/या एमबीबीएस में प्रवेश क्षमता को कम करने तक हो सकती है।"

3. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" के "सामान्य" शीर्षक के अंतर्गत खंड 8(1) को निम्नलिखित रूप में प्रतिस्थापित किया जाएगा:-

"भारतीय आयुर्विज्ञान परिषद् (संशोधन) अधिनियम, 1993 के प्रारंभण से पहले स्नातकोत्तर पाठ्यक्रम चलाने के लिए भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 के अंतर्गत मान्यताप्राप्त चिकित्सा संस्थान, आयुर्विज्ञान तथा शल्य विज्ञान स्नातक (एम बी बी एस) पाठ्यक्रम चलाने के लिए मान्यताप्राप्त मेडिकल कालेज और स्नातकोत्तर चिकित्सा शिक्षा प्रदान करने के उद्देश्य के लिए केंद्र सरकार द्वारा स्थापित चिकित्सा संस्थान, स्नातकोत्तर चिकित्सा पाठ्यक्रम आंरभ करने या पहले से चल रहे किसी स्नातकोत्तर चिकित्सा शिक्षा पाठ्यक्रम में प्रवेश क्षमता में वृद्धि करने के पात्र होंगे।

परंतु यह कि भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 के अंतर्गत एमबीबीएस डिग्री प्रदान करने के लिए मान्यता प्रदान न किए गए मेडिकल कालेजों के लिए यह अनुमति होगी कि वे तीसरे नवीनीकरण के समय अर्थात एमबीबीएस पाठ्यक्रम के चौथे बैच के दाखिले के साथ प्रि-नैदानिक और पारा-नैदानिक विषयों नामत: शरीररचना-विज्ञान; शरीरक्रिया-विज्ञान; जीवरसायन; भेषज-विज्ञान; रोग-विज्ञान; सूक्ष्मजीव-विज्ञान; फारेंसिक मेडिसन; और कम्यूनिटी मेडिसिन में और चौथे नवीनीकरण के समय अर्थात एमबीबीएस पाठ्यक्रम के

लिए पांचवे बैच के दाखिले के साथ नैदानिक विषयों नामत: निश्चेतना संचेतनाहर-विज्ञान; त्वचारोग-विज्ञान; रतिजरोग विज्ञान एवं कुष्ट रोग; जनरल मेडिसिन, बालरोग; मनश्चिकित्सा; विकिरण निदान; रेडिएशन ऑनकोलोजी; श्वसनी मेडिसन; नाक-कान-गला रोग-विज्ञान; जनरल सर्जरी; नेत्ररोग-विज्ञान; अस्थि रोग; प्रसूति एवं स्त्रीरोग-विज्ञान में किसी स्नातकोत्तर चिकित्सा शिक्षा पाठ्यक्रम आरंभ करने के लिए आवेदन कर सकें।"

4. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" में "स्नातकोत्तर पाठ्यक्रमों के लिए अभ्यर्थी के चयन की प्रक्रिया" शीर्षक के अंतर्गत विनियम 9 को निम्नलिखित रूप में प्रतिस्थापित किया जाएगा:-

"प्रस्तावना

1. भारत की संसद ने, भारतीय आयुर्विज्ञान परिषद् (संशोधन) अधिनियम, 2016 द्वारा भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 को संशोधित कर दिया है। राष्ट्रपति की मंजूरी प्राप्त होने के पश्चात यह संशोधन अधिनियम, 5 अगस्त 2016 को भारत के राजपत्र में अधिसूचित कर दिया गया है। भारतीय आयुर्विज्ञान परिषद् (संशोधन) अधिनियम, 2016 ने भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 में धारा 10 घ और धारा 33 (ड ख) जोड़ दी है। उक्त उपबंध में, "नामित प्राधिकारी" द्वारा स्नातक-पूर्व स्तर और स्नातकोत्तर स्तर पर सभी चिकित्सा शैक्षिक संस्थानों में एक समान प्रवेश परीक्षा की व्यवस्था दी गई है। इस संशोधन के बल पर संसद ने, दिनांक 27 दिसंबर, 2010, 27 फरवरी, 2012 और 23 अक्तूबर, 2012 को सरकारी राजपत्र में अधिसूचित संशोधनों द्वारा "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 1997" में शामिल की गई राष्ट्रीय पात्रता व प्रवेश परीक्षा (जिसे इसमें आगे "नीट" कहा गया है) की विधायी पुनीतता का उपबंध किया है।
2. पहले, नीट से संबंधित उपबंध, क्रिश्चियन मेडिकल कालेज, वैल्लोर और अन्य [2012 की टीसी (सी) संख्या 98 और 114 अन्य संबंधित याचिकाओं] के मामले में दिनांक 18 जुलाई, 2013 के अपने निर्णय के अंतर्गत माननीय उच्चतम न्यायालय द्वारा रद्द कर दिए गए है। तथापि, भारतीय आयुर्विज्ञान परिषद् और भारत की संघ सरकार द्वारा दायर की गई एक पुनर्विचार याचिका पर माननीय उच्चतम नयायालय ने, 'भारतीय आयुर्विज्ञान परिषद् बनाम क्रिश्चियन मेडिकल कालेज, वैल्लोर और अन्य' शीर्षक वाली 2013 की पुनर्विचार याचिका (सिविल) संख्या 2059-2268 में दिनांक 11 अप्रैल, 2016 के अपने आदेश के अंतर्गत नीट विनियमावली को पुनरजीवित कर दिया। शैक्षिक वर्ष 2017-18 के लिए स्नातकोत्तर पाठ्यक्रम में दाखिले, भारतीय आयुर्विज्ञान परिषद् (संशोधन) अधिनियम, 2016 के उपबंधों और माननीय उच्चतम न्यायालय द्वारा पुनरजीवित नीट विनियमावली के आधार पर और भारतीय आयुर्विज्ञान परिषद् (संशोधन) अधिनियम, 2016 की शर्तों के अनुसार राष्ट्रीय पात्रता व प्रवेश परीक्षा, स्नातकोत्तर स्तर पर सभी चिकित्सा शैक्षिक संस्थानों के लिए एक समान प्रवेश परीक्षा है और स्नातकोत्तर स्तर पर सभी चिकित्सा शैक्षिक संस्थानों के लिए एक समान प्रवेश परीक्षा बनी रहेगी।

9. स्नातकोत्तर पाठ्यक्रमों के लिए अभ्यर्थियों के चयन की प्रक्रिया निम्नलिखित होगी:-

(1) प्रत्येक शैक्षिक वर्ष स्नातकोत्तर पाठ्यक्रमों में दाखिले के लिए स्नातकोत्तर स्तर पर सभी चिकित्सा शैक्षिक संस्थानों के लिए एक समान प्रवेश परीक्षा नामत: 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' होगी और यह स्वास्थ्य एवं परिवार कल्याण मंत्रालय, भारत सरकार के समग्र पर्यवेक्षण के अधीन आयोजित की जाएगी।

(2) "राष्ट्रीय पात्रता व प्रवेश परीक्षा" आयोजित करने के लिए 'नामित प्राधिकारी' राष्ट्रीय परीक्षा बोर्ड या स्वास्थ्य एवं परिवार कल्याण मंत्रालय, भारत सरकार द्वारा नामित कोई अन्य निकाय/संगठन होगा।

(3) किसी शैक्षिक वर्ष के लिए स्नातकोत्तर पाठ्यक्रम में दाखिले हेतु पात्र बनने की दृष्टि से किसी अभ्यर्थी के लिए यह आवश्यक होगा कि वह उक्त शैक्षिक वर्ष के लिए आयोजित की गई स्नातकोत्तर पाठ्यक्रमों हेतु पात्रता 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' में 50 वें पर्सेंटाइल पर न्यूनतम अंक प्राप्त करे। तथापि, अनुसूचित जातियों, अनुसूचित जनजातियों और अन्य पिछड़ा वर्गों से संबंधित अभ्यर्थियों के संबंध में न्यूनतम अंक 40 वें पर्सेंटाइल पर होंगे। विकलांग व्यक्तियों के अधिकार अधिनियम, 2016 के अंतर्गत विनिर्दिष्ट बैंच मार्क विकलांगताओं वाले अभ्यर्थियों के संबंध में न्यूनतम अंक सामान्य श्रेणी के लिए 45 वें पर्सेंटाइल पर और अ.जा./अ.ज.जा./अ.पि.व.के लिए 40 वें पर्सेंटाइल पर होंगे। पर्सेंटाइल, स्नातकोत्तर पाठ्यक्रमों के लिए 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' में अखिल भारतीय सामूहिक मेरिट सूची में प्राप्त उच्चतम अंकों के आधार पर निर्धारित की जाएगी।

परंतु यह कि जब संबंधित श्रेणियों में पर्याप्त संख्या में अभ्यर्थी स्नातकोत्तर पाठ्यक्रमों में दाखिले कि लिए किसी शैक्षिक वर्ष हेतु आयोजित राष्ट्रीय पात्रता व प्रवेश परीक्षा में यथा विनिर्धारित न्यूनतम अंक प्राप्त करने में विफल रहते हैं तो भारतीय आयुर्विज्ञान परिषद् के परामर्श से केंद्र सरकार अपने विवेक पर, संबंधित श्रेणियों से संबंधित अभ्यर्थियों के लिए स्नातकोत्तर पाठ्यक्रम में दाखिले के लिए अपेक्षित न्यूनतम अंक कम कर सकती है और केंद्र सरकार द्वारा इस प्रकार कम किए अंक केवल उसी शैक्षिक वर्ष के लिए लागू होंगे।

(4) संबंधित श्रेणियों के लिए, मेडिकल कालेजों/संस्थानों में सीटों का आरक्षण, राज्यों/संघ शासित क्षेत्रों में प्रचलित लागू होने वाले कानूनों के अनुसार होगा। पात्र अभ्यर्थियों की अखिल भारतीय मेरिट सूची और राज्य-वार मेरिट सूची, 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' में प्राप्त अंकों के आधार पर तैयार की जाएगी और अभ्यर्थियों को केवल उक्त मेरिट सूचियों से स्नातकोत्तर पाठ्यक्रमों में दाखिल किया जाएगा।

परंतु यह कि ऐसे अभ्यर्थियों, जो सरकार/लोक प्राधिकरण की सेवा में हैं, की मेरिट निर्धारित करने में, 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' में प्राप्त अंकों के अधिकतम 30% तक, दूर-दराज के और/या दुर्गम्य क्षेत्रों या ग्रामीण क्षेत्रों में सेवा के प्रत्येक वर्ष के लिए, प्राप्त अंकों के 10% तक एक प्रोत्साहन के रूप में सरकार/सक्षम प्राधिकारी द्वारा अंकों में भारांश दिया जा सकता है। दूर-दराज के और/या दुर्गम्य क्षेत्र या ग्रामीण क्षेत्र वह होंगे जो समय-समय पर राज्य सरकार/सक्षम प्राधिकारी द्वारा अधिसूचित किए गए हों।

(5) वार्षिक स्वीकृत प्रवेश क्षमता की 5% सीटें, स्नातकोत्तर चिकित्सा पाठ्यक्रमों में दाखिले के लिए 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' की मेरिट सूची के आधार पर, विकलांग व्यक्तियों के अधिकार अधिनियम, 2016 के उपबंधों के अनुसार बैंचमार्क विकलांगताओं वाले व्यक्तियों द्वारा भरी जाएंगी।

किसी शैक्षिक वर्ष के लिए स्नातकोत्तर पाठ्यक्रम में दाखिले हेतु पात्र बनने की दृष्टि से किसी अभ्यर्थी के लिए यह आवश्यक होगा कि वह उक्त शैक्षिक वर्ष के लिए आयोजित की गई स्नातकोत्तर पाठ्यक्रमों हेतु पात्रता 'राष्ट्रीय पात्रता व प्रवेश परीक्षा' में 50 वें पर्सेंटाइल पर न्यूनतम अंक प्राप्त करे। तथापि, अनुसूचित जातियों, अनुसूचित जनजातियों और अन्य पिछड़ा वर्गों से संबंधित अभ्यर्थियों के संबंध में 40 वें पर्सेंटाइल पर न्यूनतम अंक होंगे। विकलांग व्यक्तियों के अधिकार अधिनियम, 2016 के अंतर्गत अविनिर्दिष्ट बैंच मार्क विकलांगताओं वाले अभ्यर्थियों के संबंध में सामान्य श्रेणी के लिए न्यूनतम अंक 45 वें पर्सेंटाइल पर और अ.जा./अ.ज.जा./अ.पि.व.के लिए 40 वें पर्सेंटाइल पर होंगे।

(6) किसी ऐसे अभ्यर्थी, जो ऊपर उप-खंड (3) में यथा विनिर्धारित न्यूनतम पात्रता अंक प्राप्त करने में विफल रहा है, को उक्त शैक्षिक वर्ष में किसी स्नातकोत्तर पाठ्यक्रम में दाखिल नहीं किया जाएगा।

(7) गैर सरकारी मेडिकल कॉलेजों/संस्थानों में, कुल सीटों में से 50% (पचास प्रतिशत) सीटें राज्य सरकार या उनके द्वारा नियुक्त प्राधिकारी द्वारा भरी जाएंगी और शेष 50% (पचास प्रतिशत) सीटें "राष्ट्रीय पात्रता व प्रवेश-परीक्षा" में प्राप्त अंकों के आधार पर बनाई गई मेरिट सूची के अनुसार संबंधित मेडिकल कॉलेजों/संस्थानों द्वारा भरी जाएंगी।

(8) स्नातकोत्तर डिप्लोमा पाठ्यक्रमों में 50% सीटें, सरकारी सेवा में ऐसे चिकित्सा अधिकारियों के लिए आरक्षित होंगी, जिन्होंने दूर-दराज के और/या दुर्गम्य क्षेत्रों और/या ग्रामीण क्षेत्रों में कम से कम तीन वर्ष तक सेवा की है।

स्नातकोत्तर डिप्लोमा प्राप्त करने के पश्चात ये चिकित्सा अधिकारी, समय-समय पर राज्य सरकार/सक्षम प्राधिकारी द्वारा यथा परिभाषित दूर-दराज के और/या दुर्गम्य क्षेत्रों में दो और वर्ष तक सेवा करेंगे।

(9) विश्वविद्यालय और अन्य संबंधित प्राधिकारी, दाखिले की प्रक्रिया ऐसे तरीके से आयोजित करेंगे कि सामान्य विशेषज्ञता पाठ्यक्रमों में हर वर्ष 1 मई तक और अति विशेषज्ञता पाठ्यक्रमों में 1 अगस्त तक अध्यापन आरंभ हो जाए। इस उद्देश्य के लिए वे परिशिष्ट III में दर्शायी गई समय अनुसूची का पालन करेंगे।

(10) स्नातकोत्तर पाठ्यक्रमों के लिए 31 मई के पश्चात और अति विशेषज्ञता पाठ्यक्रमों के लिए 31 अगस्त के पश्चात किसी भी परिस्थिति में किसी शैक्षिक सत्र के संबंध में छात्रों का कोई दाखिला नहीं किया जाएगा। विश्वविद्यालय उक्त तारीखों के पश्चात दाखिल किए गए किसी छात्र का पंजीकरण नहीं करेंगे।

(11) कोई भी प्राधिकारी/संस्थान, इन विनियमों द्वारा यथा विनिर्धारित मापदंड/प्रक्रिया का उल्लंघन करके और/या दाखिलों के संबंध में माननीय उच्चतम न्यायालय द्वारा पारित निर्णयों का उल्लंघन करके, किसी स्नातकोत्तर मेडिसिन पाठ्यक्रम में किसी अभ्यर्थी को दाखिल नहीं करेगा। उपर्युक्त का उल्लंघन करके दाखिल किए गए किसी अभ्यर्थी को परिषद् द्वारा तुरंत निकाल दिया जाएगा। ऐसे प्राधिकारी/संस्थान, जो इन विनियमों और/या माननीय उच्चतम न्यायालय द्वारा पारित निर्णयों का उल्लंघन करके किसी छात्र को दाखिला प्रदान करता है, उसके विरूद्ध ऐसी कार्रवाई की जा सकेगी जो परिषद् द्वारा विनिर्धारित की जाए, जिसमें आगामी शैक्षिक वर्ष/वर्षों के लिए उसकी स्वीकृत प्रवेश क्षमता से, किए गए ऐसे दाखिलों की सीमा के समतुल्य सीटों का अभ्यर्पण शामिल है।"

5. स्नातकोत्तर चिकित्सा शिक्षा विनियमावली में 9 क (3) के पश्चात निम्नलिखित खंड जोड़ा जाएगा:-

9 क (4) स्नातकोत्तर पाठ्यक्रमों में दाखिले के लिए सामूहिक परामर्श में सीट ब्लाकिंग और परामर्श के दौरान नया विकल्प चुनने की अनुमेयता रोकने की दृष्टि से, शुल्क की जब्ती, परिशिष्ट-III में दिए गए मापदंडों के अनुसार होगी।

6. " स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" में, स्टाफ संकाय शीर्षक के अंतर्गत खंड 11.1 (क) में निम्नलिखित अभिवर्धन किया जाएगा, दूसरे परंतुक के पश्चात निम्नलिखित जोड़ा जाएगा:

"न्यूनतम अपेक्षित स्टाफ (सामान्य विशेषज्ञता):
(प्रथम इकाई)
1-प्रोफेसर
1-एसोसिएट प्रोफेसर
1-सहायक प्रोफेसर
1-वरिष्ठ रेजीडेंट
2-कनिष्ठ रेजीडेंट

विभाग की बाकी इकाइयों (बहु-इकाई विभागों में) का अध्यक्ष प्रोफेसर या एसोसिएट प्रोफेसर हो सकता है और बाकी दो संकाय सदस्य, एक वरिष्ठ रेजीडेंट तथा दो कनिष्ठ रेजीडेंटों के अलावा सहायक प्रोफेसर हो सकते हैं।

उपर्युक्त परिभाषा, श्वसनी मेडिसन/त्वचारोग-विज्ञान, रतिजरोग-विज्ञान, कुष्ठ रोग/नेत्ररोग-विज्ञान/नाक कान गला रोग-विज्ञान आदि जैसे दिवा देखभाल सेवाओं वाले विभागों/गंभीर देखभाल वाले विभागों पर लागू नहीं होगी। परिषद् ने स्नातकोत्तर में सभी विभागों में रेजीडेंटों की शर्त शामिल करने का भी निर्णय लिया है।

7. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" में 'स्टाफ संकाय' शीर्षक के अंतर्गत खंड 11.1 (ख) में निम्नलिखित अभिवर्धन किया जाएगा, तीसरे परंतुक के पश्चात निम्नलिखित जोड़ा जाएगा:-

"न्यूनतम अपेक्षित स्टाफ (अति विशेषज्ञता):
(प्रथम इकाई)
1-प्रोफेसर
1-एसोसिएट प्रोफेसर
1-सहायक प्रोफेसर
1-वरिष्ठ रेजीडेंट
2-कनिष्ठ रेजीडेंट

विभाग की बाकी इकाइयों (बहु-इकाई विभागों में) का अध्यक्ष, प्रोफेसर या एसोसिएट प्रोफेसर हो सकता है और बाकी दो संकाय सदस्य, एक वरिष्ठ रेजीडेंट तथा दो कनिष्ठ रेजीडेंटों के अलावा सहायक प्रोफेसर हो सकते हैं।

8. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" के "दाखिल किए जाने वाले स्नातकोत्तर छात्रों की संख्या" शीर्षक के अंतर्गत खंड 12(1) को निम्नलिखित रूप में प्रतिस्थापित किया जाएगा/उसमें निम्नलिखित जोड़ा जाएगा:-

दूसरे पैराग्राफ में "रेडियोथेरेपी" शब्द "रेडिएशन ऑनकोलॉजी" के रूप में प्रतिस्थापित किया जाएगा।

तीसरे पैराग्राफ के पश्चात निम्नलिखित जोड़ा जाएगा:-

"यह भी कि गैर-सरकारी मेडिकल कॉलेजों/चिकित्सा संस्थानों में उक्त अनुपात के आधार पर सीटों की वृद्धि के लिए किए गए आवेदनपत्र पर केवल तभी विचार किया जाएगा, यदि उस कॉलेज/संस्थान की-

1. 15 वर्ष की स्टैंडिंग है;
2. वह 10 वर्ष से स्नातकोत्तर पाठ्यक्रम चलाने वाला होना चाहिए;
3. उसे मान्यता के मूल्यांकन की कम से कम एक निरंतरता संतोषजनक ढंग से पूरी कर लेनी चाहिए; और
4. यदि वह सीटों की वृद्धि के लिए भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 की धारा 10क के अंतर्गत आवेदन करता है जो केवल संकाय सदस्य, रेजिडेंट, नैदानिक सामग्री और अवसंरचनात्मक सुविधाओं आदि के वास्तविक सत्यापन के पश्चात ही प्रदान की जाएगी।

9. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" के "प्रशिक्षण कार्यक्रम" शीर्षक के अंतर्गत खंड 13(2) की तीसरी पंक्ति में "प्रत्येक शैक्षिक वर्ष" शब्द निम्नलिखित रूप में प्रतिस्थापित किए जाएंगे:-
"6 महीने की शैक्षिक अवधि"

10. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" के "परीक्षा" शीर्षक के अंतर्गत खंड 14 को निम्नलिखित रूप में प्रतिस्थापित किया जाएगा:-

"डिग्री की परीक्षाओं के लिए सभी चार प्रश्नपत्रों और डिप्लोमा परीक्षा में तीन प्रश्नपत्रों में सिद्धांत के प्रत्येक प्रश्नपत्र में न्यूनतम 40% और संचयी रूप से कम से कम 50% अंक प्राप्त करना। उक्त डिग्री/डिप्लोमा परीक्षा, जैसा भी मामला हो, में कुल मिलाकर, उत्तीर्ण होने के लिए प्रयोगात्मक परीक्षा में 50% अंक प्राप्त करना अनिवार्य होगा।

11. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" में परिशिष्ट में, स्नातकोत्तर पाठ्यक्रमों (सामान्य विशेषज्ञता) के लिए शैक्षिक वर्ष 2018-19 में दाखिला अनुसूची के नीचे निम्नलिखित टिप्पणी जोड़ी जाएगी:-

टिप्पणी:-

1. कार्य आरंभ की अंतिम तारीख अर्थात 10 मई के पश्चात खाली बची अखिल भारतीय कोटा सीटें, राज्य सरकार के कोटे में परिवर्तित मानी जाएगी।
2. 28 फरवरी के पश्चात अनुमत संस्थान/कालेज/पाठ्यक्रमों पर चालू शैक्षिक वर्ष के लिए दाखिले/सीटों के आबंटन हेतु विचार नहीं किया जाएगा।
3. किसी भी परिस्थितियों में, दाखिले/कार्य आरंभ की अंतिम तारीख, 31 मई के बाद नहीं बढ़ाई जाएगी।
4. उपर्युक्त समय-सारणी का निष्ठापूर्वक पालन करने के उद्देश्य के लिए शनिवार, रविवार या अवकाशों (राष्ट्रीय अवकाशों को छोड़कर) को कार्य दिवस के रूप में माना जाएगा।
5. परामर्श के दौरान नया विकल्प चुनने की छात्रों की अनुमेयता के संबंध में निम्नलिखित मापदंड लागू होंगे:

चक्र	नि:शुल्क निर्गमन	शुल्क की जब्ती के साथ निर्गमन	आगे परामर्श के लिए अपात्र	पंजीकरण शुल्क की धनराशि
ए.आई.क्यू.I/ मानित	✓			
ए.आई.क्यू.II/मानित		यदि कार्य आंरभ नहीं किया	यदि कार्य आंरभ कर दिया	सरकारी-25,000/- रु. (अ.जा./अ. ज. जा./अ.पि.व. के लिए आधी) मानित 2,00,000/- रुपये
राज्य कोटा I	✓			
राज्य कोटा II		यदि कार्य आंरभ नहीं किया	यदि कार्य आंरभ कर दिया	सरकारी-25,000/- रु. (अ.जा./अ. ज. जा./अ.पि.व. के लिए आधी) प्राइवेट 2,00,000/- रुपये
राज्य कोटा मोप-अप			✓	
मानित मोप-अप			✓	

12. "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" की अनुसूची में, क्रम संख्या 25 पर खंड 'क' के अंतर्गत 'एम डी (रेडियोथेरेपी)" का नाम बदल कर निम्नलिखित किया जाएगा:-

"एम डी (रेडिएशन ऑनकोलोजी)"

डॉ. रीना नय्यर, सचिव (प्रभारी)

[विज्ञापन III/4/असा./18/17]

पाद टिप्पणी: प्रधान विनियमावली नामत: "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" दिनांक 7 अक्तूबर, 2000 को भारत के राजपत्र के भाग III, खंड 4 में प्रकशित की गई थी और इसे भारतीय आयुर्विज्ञान परिषद् की दिनांक 03/03/2001, 06/10/2001, 16/03/2005, 23/03/2006, 20/10/2008, 25/03/2009, 21/07/2009, 17/11/2009, 09/12/2009, 16/04/2010, 08/12/2010, 27/12/2010 09/02/2012, 27/02/2012, 28/03/2012, 17/04/2013, 01/02/2016, 17/06/2016, 08/08/2016, 31/01/2017, 11/03/2017, 06/05/2017, 27/06/2017 और 31/07/2017 की अधिसूचनाओं के अंतर्गत संशोधित किया गया था।

MEDICAL COUNCIL OF INDIA

NOTIFICATION

New Delhi, the 5th April, 2018

No. **MCI-18(1)/2018-Med./100818**.— In exercise of powers conferred by Section 33 of the Indian Medical Council Act, 1956 (102 of 1956), the Medical Council of India with the previous sanction of the Central Government hereby makes the following regulations to further amend the "Postgraduate Medical Education Regulations, 2000." namely:-

1. (i) These regulations may be called the "Postgraduate Medical Education (Amendment) Regulations, 2018".

(ii) They shall come into force from the date of their publication in the Official Gazette.

2. Clause 6(1), (2) & (3) under the heading "Starting of postgraduate Medical Courses and their recognition" of the "Postgraduate Medical Education Regulations, 2000", shall be substituted as under:-

"(1) An institution intending to start a post-graduate medical education course or to increase the annual intake capacity in an already ongoing course shall obtain the prior permission of the Central Government under section 10A of the Act. The prior permission granted by the Central Government for Postgraduate Degree/Postgraduate Diploma courses shall be for four and three academic years respectively

Provided that it shall be incumbent upon Medical Colleges/Medical Institutions to make an application for starting of Post-graduate medical education courses within three years of grant of recognition, i.e., three years from the date of inclusion of the MBBS qualification awarded by the Medical College in the First Schedule of the Indian Medical Council Act, 1956. Failure to make an application for starting of Postgraduate courses within the stipulated time shall entail the withdrawal of recognition of MBBS qualification.

Provided further that a Medical College/Medical Institution that makes an application for starting of a Postgraduate course in the eventuality of disapproval shall be granted two more opportunities for the succeeding years to make an application. Failure to obtain permission of the Central Government thereafter shall entail the withdrawal of Recognition of MBBS qualification."

Provided further that above shall be applicable to the scheme submitted from the academic year 2020-21 onwards, in order to provide time to the existing colleges to apply.

(2) The Institution shall apply for recognition of the Post Graduate Medical qualification to the Central Government through the affiliating University, when the first admitted batch shall be due to appear for the examination to be conducted by the affiliating University.

In the event of deficiencies being found in the assessment, the Institution shall be granted an opportunity to submit compliance within 30 days from the date of communication of deficiencies by the Council. Such an opportunity to comply with the deficiencies shall be availed by the Institute only twice. The Postgraduate Medical Education Committee on finding the compliance satisfactory shall convey the recommendation to recognize the course. In all others cases, the prior permission of the Central Government granted under sub-clause (1) shall be deemed to have lapsed after four and three years for Postgraduate Degree/Postgraduate Diploma courses respectively. Further, in such cases; recommendation shall be made to the Central Government to include the qualifications in the First Schedule of the Indian Medical Council Act, 1956 only in respect of first four batches of Postgraduate Degree Courses and three batches of Postgraduate Diploma courses.

(3) Failure to seek timely recognition as required in sub-clause 2 shall invariably result in stoppage of admission to the concerned Post Graduate course.

In the event of failure of the institute to seek recognition for existing Post Graduate courses, the Council may recommend to the Central Government for imposition of exemplary penalty which may extend to Rupees ten lakhs per seat of the postgraduate course; and/or stoppage of other postgraduate Medical courses of the Institution; and/or debar the Institution from making any application for starting or increase of seats in postgraduate courses for a specified period; and/or reducing the intake capacity in MBBS."

3. Clause 8(1) under the heading "General" of the "Postgraduate Medical Education Regulations, 2000", shall be substituted as under:-

"The Medical Institution recognized under the Indian Medical Council Act, 1956 for running post-graduate courses prior to the commencement of the Indian Medical Council (Amendment) Act, 1993; the Medical

Colleges recognised for running Bachelor of Medicine and Bachelor of Surgery (MBBS) course; and the Medical Institutions established by the Central Government for the purpose of imparting postgraduate medical education shall be eligible for starting a post-graduate medical education course or to increase the intake capacity in any already ongoing postgraduate medical education course.

Provided that it shall be permissible for Medical Colleges not yet recognized for the award of MBBS degree under the Indian Medical Council Act, 1956 to apply for starting of a Post-graduate medical education course in pre clinical and para clinical subjects, namely, Anatomy; Physiology; Biochemistry; Pharmacology; Pathology; Microbiology; Forensic Medicine; and Community Medicine at the time of third renewal i.e., alongwith the admission of fourth batch for the MBBS course; and in clinical subjects, namely, Anaesthesiology; Dermatology, Venerology and Leprosy; General Medicine; Paediatrics; Psychiatry; Radio-diagnosis; Radiation Oncology; Respiratory Medicine; Otorhinolaryngology; General Surgery; Ophthalmology; Orthopaedics; Obstetrics & Gynaecology, at the time of fourth renewal, i.e., along with the admission of fifth batch for the MBBS course."

4. In the "Postgraduate Medical Education Regulations, 2000", in Regulation 9 under the heading "Procedure for selection of candidate for Postgraduate courses" shall be substituted as under:-

Preamble

1. The Parliament of India has amended the Indian Medical Council Act, 1956 by the Indian Medical Council (Amendment) Act 2016. This Amendment Act after receiving the assent of the President has been notified in the Gazette of India on 5th August 2016. The Indian Medical Council (Amendment) Act 2016 has inserted section 10 D and section 33 (mb) to the Indian Medical Council Act, 1956. The said provision provides for a uniform entrance examination to all medical educational institutions at the under graduate level and post graduate level by the "designated authority". By virtue of this Amendment the Parliament has provided legislative sanctity to the National Eligibility-Cum-Entrance Test [hereinafter "NEET"] included in the Post-Graduate Medical Education Regulations,1997 by Amendments notified in the Official Gazette on 27th December 2010, 27th February 2012 and 23rd October 2012.

2. Earlier the provisions relating to NEET were quashed by the Hon`ble Supreme Court vide its judgment dated 18th July 2013 in Christian Medical College Vellore & Ors. (TC (C) No. 98 of 2012 and other 114 connected petitions). However, on a Review Petition preferred by the Medical Council of India and the Union of India, the Hon'ble Supreme Court vide its order dated 11th April 2016 in Review Petition (c) Nos. 2059-2268 of 2013 captioned as Medical Council of India vs. Christian Medical College Vellore & Ors. has revived NEET Regulations. The admission to postgraduate courses for the academic year 2017-18 were conducted on the basis of provisions of the Indian Medical Council (Amendment) Act, 2016 and the NEET Regulations revived by the Hon`ble Supreme Court and in the Terms of the Indian Medical Council (Amendment) Act, 2016 the National Eligibility-cum-Entrance Test is the uniform entrance examination to all medical educational institutions at the post graduate level and shall continue to be the uniform entrance examination to all medical educational institutions at the post graduate level.

9. Procedure for selection of candidate for Postgraduate courses shall be as follows:-

(1) There shall be a uniform entrance examination to all medical educational institutions at the Postgraduate level namely 'National Eligibility-cum-Entrance Test' for admission to postgraduate courses in each academic year and shall be conducted under the overall supervision of the Ministry of Health & Family Welfare, Government of India.

(2) The "designated authority" to conduct the 'National Eligibility-cum-Entrance Test' shall be the National Board of Examination or any other body/organization so designated by the Ministry of Health and Family Welfare, Government of India.

(3) In order to be eligible for admission to Postgraduate Course for an academic year, it shall be necessary for a candidate to obtain minimum of marks at 50th percentile in the 'National Eligibility-Cum-Entrance Test for Postgraduate courses' held for the said academic year. However, in respect of candidates belonging to Scheduled Castes, Scheduled Tribes, and Other Backward Classes, the minimum marks shall be at 40th percentile. In respect of candidates with benchmark disabilities specified under the Rights of Persons with Disabilities Act, 2016, the minimum marks shall be at 45th percentile for General Category and 40th percentile for SC/ST/OBC. The percentile shall be determined on the basis of highest marks secured in the All India Common merit list in National Eligibility-cum-Entrance Test for Postgraduate courses.

Provided when sufficient number of candidates in the respective categories fail to secure minimum marks as prescribed in National Eligibility-cum-Entrance Test held for any academic year for admission to Postgraduate Courses, the Central Government in consultation with Medical Council of India may at its

discretion lower the minimum marks required for admission to Post Graduate Course for candidates belonging to respective categories and marks so lowered by the Central Government shall be applicable for the academic year only.

(4) The reservation of seats in Medical Colleges/institutions for respective categories shall be as per applicable laws prevailing in States/Union Territories. An all India merit list as well as State-wise merit list of the eligible candidates shall be prepared on the basis of the marks obtained in National Eligibility-cum-Entrance Test and candidates shall be admitted to Postgraduate Courses from the said merit lists only.

Provided that in determining the merit of candidates who are in service of government/public authority, weightage in the marks may be given by the Government/Competent Authority as an incentive upto 10% of the marks obtained for each year of service in remote and/or difficult areas or Rural areas upto maximum of 30% of the marks obtained in National Eligibility-cum Entrance Test. The remote and/or difficult areas or Rural areas shall be as notified by State Government/Competent authority from time to time.".

(5) 5% seats of annual sanctioned intake capacity shall be filled up by persons with benchmark disabilities in accordance with the provisions of the Rights of Persons with Disabilities Act, 2016, based on the merit list of National Eligibility-Cum-Entrance Test for admission to Postgraduate Medical Courses.

In order to be eligible for admission to Postgraduate Course for an academic year, it shall be necessary for a candidate to obtain minimum of marks at 50th percentile in the 'National Eligibility-Cum-Entrance Test for Postgraduate courses' held for the said academic year. However, in respect of candidates belonging to Scheduled Castes, Scheduled Tribes, and Other Backward Classes, the minimum marks shall be at 40th percentile. In respect of candidates with benchmark disabilities specified under the Rights of Persons with Disabilities Act, 2016, the minimum marks shall be at 45th percentile for General Category and 40th percentile for SC/ST/OBC.

(6) No candidate who has failed to obtain the minimum eligibility marks as prescribed in Sub-Clause (3) above shall be admitted to any Postgraduate courses in the said academic year.

(7) In non-Governmental medical colleges/institutions, 50% (Fifty Percent) of the total seats shall be filled by State Government or the Authroity appointed by them, and the remaining 50% (Fifty Percent) of the seats shall be filled by the concerned medical colleges/institutions on the basis of the merit list prepared as per the marks obtained in National Eligibility-cum-Entrance Test."

(8) 50% of the seats in Postgraduate Diploma Courses shall be reserved for Medical Officers in the Government service, who have served for at least three years in remote and /or difficult areas and / or Rural areas. After acquiring the Postgraduate Diploma, the Medical Officers shall serve for two more years in remote and /or difficult areas and / or Rural areas as defined by State Government/Competent authority from time to time.

(9) The Universities and other authorities concerned shall organize admission process in such a way that teaching in broad speciality postgraduate courses starts by 1st May and for super speciality courses by 1st August each year. For this purpose, they shall follow the time schedule indicated in Appendix-III.

(10) There shall be no admission of students in respect of any academic session beyond 31st May for postgraduate courses and 31st August for super speciality courses under any circumstances. The Universities shall not register any student admitted beyond the said date.

(11) No authority / institution shall admit any candidate to any postgraduate medicine course in contravention of the criteria / procedure as laid down by these Regulations and / or in violation of the judgements passed by the Hon'ble Supreme Court in respect of admissions. Any candidate admitted in contravention / violation of aforesaid shall be discharged by the Council forthwith. The authority / institution which grants admission to any student in contravention / violation of the Regulations and / or the judgements passed by the Hon'ble Supreme Court, shall also be liable to face such action as may be prescribed by the Council, including surrender of seats equivalent to the extent of such admission made from its sanctioned intake capacity for the succeeding academic year / years.".

5. In the Postgraduate Medical Education Regulations following clause shall be added after 9A(3):-

9A(4) In order to prevent seat blocking in common counseling for admission to Postgrauate Courses and permissibility to exercise fresh choice during Counseling, forfeiture of fee shall be in accordance with the matrix contained in appendix-III.

6. In the "Postgraduate Medical Education Regulations, 2000", the following additions in clause 11.1(a) under the heading Staff – Faculty, the following shall be added after the second proviso:

Minimum staff required (Broad speciality):

(First Unit)

1-Professor

1-Associate Professor

1- Assistant Professor

1-Senior Resident

2-Junior Resident

Remaining units of the department (in multi unit departments) can be headed by Professor or Associate Professor and remaining two faculties can be Assistant Professor in addition to one Senior Resident and two Junior Resident.

The above definition shall not apply to the Departments of Critical Care/Departments with day care services such as Respiratory Medicine/ Dermatology Venereology Leprosy/Ophthalmology/Otorhinolaryngology etc. The Council also decided to include the requirement of Residents in all departments in the Postgraduate..

7. In the "Postgraduate Medical Education Regulations, 2000", the following additions in clause 11.1(b) under the heading Staff – Faculty, the following shall be added after the third proviso:

Minimum staff required (Super-speciality):

(First Unit)

1-Professor

1-Associate Professor.

1- Assistant Professor

1-Senior Resident

2-Junior Resident

Remaining units of the department (in multi-unit departments) can be headed by Professor or Associate Professor and remaining two faculties can be Assistant Professor in addition to one Senior Resident and two Junior Resident.

8. Clause 12(1) under the heading "Number of Postgraduate students to be admitted " of the "Postgraduate Medical Education Regulations, 2000", following shall be substituted/added:-

The word Radiotherapy shall be substituted as "Radiation Oncology" in 2nd paragraph

After Third paragraph following shall be added:-

Provided further that in non-governmental Medical Colleges/Medical Institution, the application for increase of seats on the basis of said ratio shall be considered only if the College/Institute:-

1. Has a standing of 15 years
2. Should be running the Postgraduate course since 10 years
3. Should have completed atleast 1 continuance of recognition assessment satisfactorily and
4. Applies u/s 10A of the Indian Medical Council Act, 1956 for increase of seats which would be granted only after physical verification of faculty, resident, clinical material and infrastructural facilities etc.

9. Clause 13(2) under the heading "TRAINING PROGRAMME" of the "Postgraduate Medical Education Regulations, 2000", in third line "each academic year" shall be substituted as under:-

"Academic Term of 6 months"

10. Clause 14 under the heading "EXAMINATION" of the "Postgraduate Medical Education Regulations, 2000", following shall be substituted as under:-

Obtaining a minimum of 40% marks in each theory paper and not less than 50% cumulatively in all the four papers for degree examinations and three papers in diploma examination. Obtaining of 50% marks in Practical examination shall be mandatory for passing the examination as a whole in the said degree/diploma examination as the case may be.

11. In the Postgraduate Medical Education Regulations, 2000, in appendix the following note shall be added below the Admission schedule from the academic year 2018-19 onwards for Postgraduate Courses (broad Speciality):-

Note:

1. All India Quota Seats remaining vacant after last date for joining, i.e 10th May will be deemed to be converted into State Quota.
2. Institute/College/Courses permitted after 28th February will not be considered for admission/allotment of seats for current academic year.
3. In any circumstances, last date for admission/joining will not be extended after 31st May.
4. For the purpose of ensuring faithful obedience to the above time-schedule, Saturday, Sunday or Holidays (except National Holiday) shall be treated as working day.
5. The following Matrix shall be applicable with regard to permissibility to students to exercise fresh choice during counseling: -

Round	Free Exit	Exit with forfeiture of fees	Ineligible for further counselling	Amount of registration fee
AIQ I/Deemed	✓			
AIQ II / Deemed		If not joined	If joined	Government – Rs. 25,000 (half for SC/ST/OBC) Deemed – Rs. 2,00,000
State Quota I	✓			
State Quota II		If not joined	If joined	Government – Rs. 25,000 (half for SC/ST/OBC) Private – Rs. 2,00,000
State Quota Mop- Up			✓	
Deemed Mop-Up			✓	

12. In Schedule of the Postgraduate Medical Education Regulations, 2000, under Clause "A" at Sl.No. 25, the nomenclature of "MD(Radio-Therapy)" is changed to

"MD (Radiation Oncology)".

Dr. REENA NAYYAR, Secy. (I/c)
[ADVT. III/4/Exty./18/17]

Footnote: The Principal Regulations namely, "Postgraduate Medical Education Regulations, 2000" were published in Part III, Section 4 of the Gazette of India on 7th Oct., 2000 and amended *vide* Medical Council of India Notification dated 03/03/2001; 06/10/2001; 16/03/2005; 23/03/2006; 20/10/2008; 25/03/2009; 21/07/2009; 17/11/2009; 09/12/2009; 16/04/2010; 08/12/2010; 27/12/2010; 09/02/2012; 27/02/2012; 28/03/2012; 17/04/2013; 01/02/2016; 17/06/2016; 08/08/2016; 31/01/2017; 11/03/2017; 06/05/2017; 27/06/2017 and 31/07/2017

RAKESH SUKUL Digitally signed by RAKESH SUKUL Date: 2018.04.07 14:17:57 +05'30'

Uploaded by Dte. of Printing at Government of India Press, Ring Road, Mayapuri, New Delhi-110064
and Published by the Controller of Publications, Delhi-110054.

ANNEXURE - "Z"

Government Resolution No. Orphan-2022/CR 122/KA-03, Dated 06/04/2023 regarding Orphan reservation.

अनाथ आरक्षण धोरणामध्ये बदल करणेबाबत.

महाराष्ट्र शासन
महिला व बाल विकास विभाग
शासन निर्णय क्रमांक- अनाथ-२०२२/प्र.क्र.१२२/का-०३
नविन प्रशासन भवन, तिसरा मजला,
मादाम कामा मार्ग, हुतात्मा राजगुरु चौक,
मंत्रालय, मुंबई-४०० ०३२.
दिनांक- ६ एप्रिल, २०२३.

वाचा :-

१) शासन निर्णय, महिला व बाल विकास विभाग, क्र.संकीर्ण-२०१३/प्र.क्र.१०९/का.०३, दि.०६.०६.२०१६.
२) शासन शुध्दीपत्रक, महिला व बाल विकास विभाग क्र.संकीर्ण-२०१३/प्र.क्र.१०९/का-३, दिनांक ९.५.२०१८.
३) शासन निर्णय, महिला व बाल विकास विभाग, क्र.अमुजा-२०११/प्र.क्र.२१२/का.०३, दि.०२.०४.२०१८.
४) शासन परिपत्रक, महिला व बाल विकास विभाग क्रमांक-अनाथ-२०१८/प्र.क्र.१८२/का.०३, दि.२०.८.२०१९.
५) शासन निर्णय, महिला व बाल विकास विभाग, क्र. अनाथ-२०१८/प्र.क्र.१८२/का-०३, दि.२३ .०८.२०२१
६) शासन शुध्दीपत्रक महिला व बाल विकास विभाग क्र. अनाथ-२०१८/प्र.क्र.१८२/का-०३, दिनांक २६.११.२०२१.
७) दिनांक २३.०३.२०२३ रोजी आयोजित मा. मंत्रीमंडळाच्या बैठकीचे इतिवृत्त.

प्रस्तावना :-

अनाथ मुलांना राज्य शासनाच्या विविध सवलतींचा लाभ घेता यावा, याकरीता दि. १७/०१/२०१८ रोजी झालेल्या मंत्रिमंडळाच्या बैठकीतील निर्णयानुसार शासन निर्णय, महिला व बाल विकास विभाग, दि.२/४/२०१८ अन्वये अनाथ मुलांना सर्वप्रथम खुल्या प्रवर्गातून शिक्षण व नोकरी यामध्ये १ टक्का समांतर आरक्षण लागू करण्यात आले. व अनाथ आरक्षणाच्या अंमलबजावणीच्या अनुषंगाने मार्गदर्शक सूचना महिला व बाल विकास विभाग, शासन परिपत्रक दि. २०/०८/२०१९ अन्वये निर्गमित करण्यात आल्या.

अनाथ आरक्षणाबाबतच्या दि. २/०४/२०१८ च्या शासन निर्णयात नमूद व्याख्येत बदल करणे तसेच अनाथांची तीन प्रकारांमध्ये वर्गवारी करणे तसेच अनाथांना खुल्या प्रवर्गातून १ टक्का आरक्षण लागू करण्याऐवजी दिव्यांगांच्या धर्तीवर उपलब्ध पद संख्येच्या १ टक्का आरक्षण लागू करणे याबाबतचा प्रस्ताव मा. मंत्रिमंडळाच्या मान्यतेस्तव सादर करण्यात आला. दि. ११/०८/२०२१ रोजी झालेल्या मंत्रिमंडळाच्या बैठकीतील निर्णयानुसार अनाथांना दिव्यांगांच्या धर्तीवर १ टक्के आरक्षण लागू करणे, अनाथांच्या व्याख्येमध्ये बदल करणे, अनाथांची तीन प्रकारामध्ये वर्गवारी करणे, अनाथ प्रमाणपत्र नमून्यात बदल करणे यानुषंगाने अनाथ आरक्षणासंदर्भातील सर्व शासन निर्णय अधिक्रमित करुन दिनांक २३ ऑगस्ट, २०२१ रोजी शासन निर्णय निर्गमित करण्यात आला आहे.

या शासन निर्णयातील अनाथांच्या कोणत्याही प्रवर्गावर अन्याय होणार नाही तसेच सर्व प्रवर्गांना समान संधी उपलब्ध व्हावी याकरिता सध्या उपलब्ध असलेल्या १ टक्का आरक्षणाच्या मर्यादेतच अनाथांच्या प्रवर्गामध्ये

आरक्षित पदांची विभागणी करण्याबावत दि. २३.०३.२०२३ रोजी झालेल्या मंत्रिमंडळाच्या बैठकीतील निर्णयानुसार पुढील शासन निर्णय निर्गमित करण्यात येत आहे.

शासन निर्णय :-

अनाथ आरक्षण धोरणामध्ये बदल करण्यासाठी वाचा क्र.५ येथील शासन निर्णय तसेच वाचा क्र.६ येथील शासन शुध्दिपत्रक अधिक्रमित करून हा शासन निर्णय निर्गमित करण्यात येत आहे.

अनाथांना दिव्यांगांच्या धर्तीवर शिक्षण व शासकीय (निमशासकीय तसेच शासन अनुदानित संस्थांमधील) पद भरतीमध्ये उपलब्ध पदांच्या १ टक्का इतके आरक्षण लागू करण्यास मान्यता देण्यात येत आहे. या आरक्षणासाठी पात्रतेचे निकष, आरक्षणाचे स्वरुप, अटी व शर्ती, आरक्षणाच्या अंमलबजावणीसाठी मार्गदर्शक सूचना, अनाथांसाठी प्रमाणपत्र निर्गमित करावयाची कार्यपध्दती तसेच अनाथ प्रमाणपत्राचा नमुना पुढीलप्रमाणे विहित करण्यात येत आहेत.

१. अनाथ आरक्षण पात्रता निकष

१) "संस्थात्मक" या प्रवर्गामध्ये ज्यांच्या वयाची १८ वर्षे पूर्ण होण्यापूर्वी त्यांच्या आई वडीलांचे निधन झाले आहे व ज्यांचे शासन मान्यता प्राप्त संस्थांमध्ये पालन पोषण झाले आहे (त्यांच्या नातेवाईकाची अथवा जातीची माहिती उपलब्ध असो किंवा नसो) अशा बालकांचा समावेश असेल.

(महिला व बाल विकास विभागांतर्गत बाल न्याय (मुलांची काळजी व संरक्षण) अधिनिय,२०१५ अन्वये कार्यरत बालकांच्या काळजी व संरक्षणाशी संबंधित संस्थांमध्ये तसेच महिला व बाल विकास विभागाव्यतिरिक्त अन्य विभागांकडून मान्यता प्रदान करण्यात आलेल्या अनाथालये अथवा तत्सदृश संस्थांमध्ये पालन पोषण झालेल्या अनाथांचा यामध्ये समावेश असेल.)

२) "संस्थाबाह्य" या प्रवर्गामध्ये ज्यांच्या वयाची १८ वर्षे पूर्ण होण्यापूर्वी त्यांच्या आई वडीलांचे निधन झाले आहे आणि ज्यांचे शासन मान्यताप्राप्त संस्थांबाहेर/नातेवाईकाकडे संगोपन झालेले आहे अशा बालकांचा समावेश असेल.

२. आरक्षणाचे स्वरुप

१) अनाथ आरक्षणाची अंमलबजावणी दिव्यांग आरक्षणाच्या धर्तीवर करण्यात येईल.

२) सदर आरक्षण तसेच शैक्षणिक संस्था वसतिगृहे व व्यावसायिक शिक्षण प्रवेशासाठी आणि शासकीय पदभरतीसाठी लागू राहील.

३) अनाथांसाठी आरक्षित पदे ही पदभरतीसाठी उपलब्ध एकूण पदसंख्येच्या तसेच शैक्षणिक प्रवेशासाठी उपलब्ध एकूण जागांच्या १% इतकी असतील.

४) अनाथांसाठी आरक्षित पदांची विभागणी संस्थात्मक व संस्थाबाह्य या प्रवर्गामध्ये पुढीलप्रमाणे करण्यात येईलः

I. शिक्षण व नोकरीमध्ये अनाथ प्रवर्गासाठी उपलब्ध जागा समसंख्येत असल्यास संस्थात्मक व संस्थाबाह्य प्रवर्गास समप्रमाणात जागा वाटून देण्यात याव्यात.

II. अनाथ आरक्षण प्रवर्गासाठी उपलब्ध जागा विषम संख्येत असल्यास आधी जागांची समप्रमाणात विभागणी करावी व उरलेले अधिकचे १ पद हे पहिल्या पदभरतीमध्ये संस्थात्मक प्रवर्गासाठी उपलब्ध करुन द्यावे. व त्यापुढील पदभरतीमध्येसुध्दा विषम जागा उपलब्ध असतील तर उपरोक्तप्रमाणे जागांची सम-समान विभागणी केल्यावर उरलेले अधिकचे १ पद हे त्या पदभरतीमध्ये संस्थाबाह्य

पृष्ठ १० पैकी २

प्रवर्गासाठी उपलब्ध करुन देण्यात यावे. अशा प्रकारे अधिकचे पद आळीपाळीने संस्थात्मक व संस्थाबाह्य प्रवर्गासाठी उपलब्ध करुन देण्यात यावे.

III. तथापि, एका वर्षी विषम संख्येत पदे उपलब्ध झाली व त्यानंतरच्या पुढील पदभरतीमध्ये समप्रमाणात पदे उपलब्ध झाल्यास पुढील प्रमाणे कार्यवाही करावी-

- पहिल्या भरती प्रक्रियेमध्ये तीन पदे उपलब्ध झाल्यास दोन पदे संस्थात्मक व एक पद संस्थाबाह्य उमेदवारांना उपलब्ध होतील.
- पुढील भरतीप्रक्रियेमध्ये दोन पदे उपलब्ध झाल्यास दोन्ही प्रवर्गांना एक-एक पद उपलब्ध होईल.
- त्या पुढील भरतीप्रक्रियेमध्ये पुन्हा तीन पदे उपलब्ध झाल्यास एक पद संस्थात्मक व दोन पदे संस्थाबाह्य उमेदवारांना उपलब्ध होतील.

३. अटी व शर्ती

१) आरक्षणाचा लाभ घेण्यासाठी उमेदवारा०कडे महिला व बाल विकास विभागाकडून निर्गमित अनाथ प्रमाणपत्र असणे आवश्यक असेल.

२) अनाथ आरक्षणासाठी अर्ज करणा-या उमेदवाराने तो महाराष्ट्र राज्याचा अधिवासी (Domicile) असल्याचे प्रमाणपत्र सादर करणे आवश्यक असेल.

३) पदभरतीमध्ये अनाथ आरक्षणासाठी अर्ज करणाऱ्या उमेदवाराने संबंधित पदाच्या सेवा प्रवेश नियमातील तरतूदीनुसार पदासाठी आवश्यक असणारी किमान शैक्षणिक व इतर अर्हता प्राप्त केलेली असणे बंधनकारक राहील.

४) अनाथ आरक्षणाचा लाभ घेऊन शासन सेवेत रूजू होणाऱ्या उमेदवाराला अनाथ प्रमाणपत्र पडताळणीच्या अधीन राहून तात्पुरत्या स्वरुपात नियुक्ती देण्यात येईल. नियुक्ती पश्चात ६ महिन्याच्या कालावधीत आयुक्त, महिला व बाल विकास, पुणे यांचेकडून अनाथ प्रमाणपत्राची पडताळणी करुन घेण्याची जबाबदारी संबंधित नियुक्ती प्राधिकारी/ विभाग प्रमुख यांची राहील.

५) अनाथ आरक्षण लागू करताना शासन निर्णयातील तरतूदींचे काटेकोरपणे पालन करण्याची जबाबदारी संबंधीत प्राधिकरणाची राहील.

६) अनाथ आरक्षणाच्या अनुषंगाने अभिनिर्णय देण्यास महिला व बाल विकास विभाग सक्षम राहील.

७) अनाथ आरक्षण हे समांतर आरक्षण असल्याने आरक्षणाच्या अनुषंगाने सामान्य प्रशासन विभागाने वेळोवेळी निश्चित केलेले निकष व अटी अनाथ आरक्षणास लागू राहतील.

४. आरक्षणाच्या अंमलबजावणीसाठी मार्गदर्शक सूचना

१) अनाथांसाठी आरक्षित पदांची गणना करताना १०० पदांमध्ये १ पद असे प्रमाण असले तरी उपलब्ध पदसंख्येच्या १%ची गणना केल्यावर संख्या अपूर्णांकात येत असल्यास ०.५० पेक्षा कमी येणारा अपूर्णांक दुर्लक्षित करावा तर ०.५० किंवा त्यापेक्षा मोठा अपूर्णांक १ समजावा.

२) पदभरती अथवा शैक्षणिक प्रवेशासाठीची अनाथ आरक्षणाची पदे उपलब्ध पदसंख्येच्या प्रमाणात स्वतंत्रपणे दर्शविण्यात यावीत. ही पदे खुला किंवा सामाजिक आरक्षण प्रवर्गात दर्शविण्यात येऊ नयेत.

३) तथापि, अनाथांसाठी आरक्षित पदावर गुणवत्तेनुसार निवड झाल्यावर संबंधित अनाथ उमेदवाराचा समावेश तो ज्या सामाजिक प्रवर्गाचा आहे त्या प्रवर्गात करण्यात येईल. आणि त्याच्या सामाजिक प्रवर्गाच्या बिंदूवर त्याची गणना करण्यात येईल.

पृष्ठ १० पैकी ३

४) बालगृहात/अनाथालयात दाखल करण्यात येणाऱ्या काही अनाथ बालकांच्या शैक्षणिक प्रवेशावेळी त्यांची जात अंदाजे नमूद करण्यात येते. अशा अनाथांच्या जात प्रमाणपत्राची वैधता होऊ शकत नसल्यास सदर उमेदवाराचा समावेश पदभरतीनंतर खुल्या प्रवर्गात करण्यात यावा.

५) सदर शासन निर्णय अंमलात येण्यापूर्वी ज्या पात्र अनाथांना महिला व बाल विकास विभागामार्फत अनाथ प्रमाणपत्र निर्गमित करण्यात आलेले आहे त्यातील "अ" व "ब" प्रवर्गाचे अनाथ प्रमाणपत्रप्राप्त अनाथांना या शासन निर्णयानुसार "संस्थात्मक" प्रवर्गातील अनाथ समजण्यात येईल. व पूर्वीच्या "क" प्रवर्गाचे प्रमाणपत्र निर्गमित करण्यात आलेल्या अनाथांना या शासन निर्णयानुसार "संस्थाबाह्य" प्रवर्गातील अनाथ समजण्यात येईल. त्यांना सुधारीत प्रमाणपत्रे वेगळ्याने निर्गमित करण्याची आवश्यकता नाही. हा शासन निर्णय लागू झाल्याच्या दिनांकापासून नव्याने विहीत नमुन्यानुसार प्रमाणपत्रे वितरीत करण्यात यावीत.

६) अनाथ आरक्षणासाठी अर्ज करणा-या उमेदवारास अनूसूचित जाती या प्रवर्गासाठी निश्चित करण्यात आलेले शैक्षणिक शुल्क, परीक्षा शुल्क, किमान गुणवत्ता पात्रता आणि वयोमर्यादा इत्यादी निकष लागू राहतील.

५. "संस्थात्मक" प्रवर्गातील अनाथांसाठी प्रमाणपत्र निर्गमित करावयाची कार्यपध्दती

१) महिला व बालविकास विभागाच्या अखत्यारीत येणा-या बालकांशी संबंधित संस्थांमध्ये वास्तव्यास असलेल्या किंवा वयाच्या १८ वर्षानंतर संस्थेतून बाहेर पडलेल्या व अनाथ प्रमाणपत्रासाठीचे निकष पूर्ण करणा-या अनाथाने संबंधित संस्थेच्या अधीक्षकाकडे अनाथ प्रमाणपत्र मिळण्यासाठी अर्ज करावा.

२) संबंधित संस्थेच्या अधीक्षकांनी त्या अर्जावरून संबंधित अर्जदाराने ज्या-ज्या संस्थेत वास्तव्य केले आहे अशा सर्व संबंधित संस्थेच्या अधीक्षकांकडून आवश्यकतेनुसार त्याची माहिती स्वतः उपलब्ध करुन घ्यावी. तसेच अर्जदाराच्या आई-वडीलांचा शोध घेवून, त्यापैकी कोणीही हयात नसल्याबाबतची संबंधित यंत्रणेकडून खात्री करुन घ्यावी.

३) संस्थेच्या अधीक्षकांनी अर्जदाराच्या आई-वडीलांचा शोध घेवून, त्यापैकी कोणीही हयात नसल्याबाबतची संबंधित यंत्रणेकडून खात्री केली असल्याचे तसेच संबंधित अर्जदाराची माहिती व उपलब्ध कागदपत्रांच्या आधारे निकषानुसार तो अनाथ असल्याचे नमूद करून जिल्हा महिला बाल विकास अधिकारी यांना प्रस्ताव सादर करावा.

४) जिल्हा महिला व बाल विकास अधिकारी यांनी संस्थेच्या अधीक्षकांकडून प्राप्त प्रस्तावाची छाननी पुढील दस्तावेज/पुरावे विचारात घेऊन करावी - संस्थेचे अधीक्षक यांनी सादर केलेली माहिती, जन्म-मृत्यू नोंद रजिस्टर, ग्रामसेवक/मुख्याधिकारी/वार्ड अधिकारी किंवा इतर सक्षम अधिकारी यांचेकडून निर्गमित मृत्यू दाखला, आवश्यकतेनुसार शासकीय जिल्हा रुग्णालयाकडून प्राप्त वयाचा पुरावा, शाळा सोडल्याचा दाखला, प्रवेश निर्गम रजिस्टरची प्रत, गृह चौकशी अहवाल, बाल कल्याण समिती/बाल न्याय मंडळाचे संबंधिताबाबतचे आधीचे आदेश इत्यादी.

५) या छाननीनंतर जिल्हा महिला बाल विकास अधिकारी यांनी संबंधित अर्जदारास अनाथ घोषित करण्यासाठीचा प्रस्ताव स्वयंस्पष्ट अभिप्रायासह संबंधित जिल्ह्याच्या बाल कल्याण समितीस सादर करावा.

पृष्ठ १० पैकी ४

६) बाल कल्याण समितीने जिल्हा महिला व बाल विकास अधिकारी यांचेकडून प्रस्ताव प्राप्त झाल्यानंतर अर्जाची पुन्हा छाननी करावी. आवश्यकता असेल तर अर्जाच्या छाननीसाठी अर्जदाराची मुलाखत किंवा पोलीस / महसूल विभागाच्या यंत्रणेचे सहाय्य घ्यावे.

७) बालगृहात/अनाथालयात दाखल करण्यात येणाऱ्या काही अनाथ बालकांची जन्म तारीख/वय अंदाजे नमूद करण्यात येते. सक्षम प्राधिका-याच्या प्रमाणपत्राशिवाय अन्य कोणताही दस्तावेज वयाचा पुरावा म्हणून ग्राह्य धरु नये. ज्या बालकांच्या जन्म तारखेचा कोणताही पुरावा उपलब्ध नसेल अशा बालकांच्या वयाची चाचणी शासकीय जिल्हा रुग्णालयातून करुन घेवून त्याचे वय निश्चित करुन घ्यावे.

८) प्रस्तावाची छाननी पूर्ण झाल्यावर अर्जदारास अनाथ प्रमाणपत्र निर्गमित करण्याची शिफारस करुन किंवा अनाथ प्रमाणपत्रासाठीचा अर्ज नाकारण्यात आल्यास त्याबाबतची कारणे नमूद करुन प्रस्ताव जिल्हा महिला व बाल विकास अधिकारी यांच्याकडे परत पाठवावा.

९) जिल्हा महिला व बाल विकास अधिकारी यांनी बाल कल्याण समितीकडून प्राप्त प्रस्ताव शिफारशीसह संबंधित विभागीय उपायुक्त (महिला व बाल विकास) यांच्याकडे कार्यवाहीसाठी पाठवावा.

१०) जिल्हा महिला व बाल विकास अधिकारी यांनी सादर केलेला प्रस्ताव /शिफारस विचारात घेऊन विभागीय उपायुक्त, महिला व बाल विकास यांनी अनाथ प्रमाणपत्र निर्गमित करण्याची कार्यवाही पूर्ण करावी. अनाथ प्रमाणपत्र निर्गमित करण्याची शिफारस करण्यात आलेल्या प्रस्तावामध्ये प्रत्यक्षात अर्ज नाकारण्यासाठी पुरेशी कारणे आढळल्यास ती नमूद करुन प्रस्ताव जिल्हा महिला व बाल विकास अधिकारी यांचेमार्फत बाल कल्याण समितीकडे फेरनिर्णयासाठी पाठवावा.

११) तथापि महिला व बाल विकास विभागाव्यतिरिक्त अन्य विभागांकडून मान्यता प्रदान करण्यात आलेल्या अनाथालये अथवा तत्सदृश संस्थांमध्ये वास्तव्यास असलेल्या किंवा अशा संस्थांमधून बाहेर पडलेल्या अनाथांना अनाथ प्रमाणपत्र देण्यासाठीची कार्यवाही ही संस्थाबाह्य प्रवर्गातील अनाथांना अनाथ प्रमाणपत्र देण्यासाठी विहीत पद्धतीनुसार करणे आवश्यक राहील.

६. "संस्थाबाह्य" प्रवर्गातील अनाथांसाठी प्रमाणपत्र निर्गमित करावयाची कार्यपध्दती

१) नातेवाईकांकडे पालन पोषण होणा-या/झालेल्या किंवा शासनाच्या अन्य विभागांकडून मान्यता मिळालेल्या संस्थेमध्ये वास्तव्यास असलेल्या किंवा संस्थेमधून बाहेर पडलेल्या अनाथांना अनाथ प्रमाणपत्रासाठीचा अर्ज संबंधित संस्थाचालकांच्या किंवा आपल्या नातेवाईकाच्या माध्यमातून किंवा स्वतः जिल्हा महिला व बाल विकास अधिकारी यांचेकडे करता येईल.

२) जिल्हा महिला व बाल विकास अधिकारी यांनी अर्जदारास अनाथ प्रमाणपत्र मिळणेसाठीच्या प्रस्तावाची छाननी पुढील दस्तावेज/पुराव्यांचा विचार करुन करावी - संबंधित संस्थेचे संचालक यांनी सादर केलेली कागदपत्रे, जन्म-मृत्यू नोंद रजिस्टर, ग्रामसेवक/मुख्याधिकारी/वार्ड अधिकारी किंवा इतर सक्षम अधिकारी यांचेकडून निर्गमित मृत्यू दाखला, आवश्यकतेनुसार शासकीय जिल्हा रुग्णालयाकडून प्राप्त वयाचा पुरावा, शाळा सोडल्याचा दाखला, गृह चौकशी अहवाल, बाल कल्याण समिती/बाल न्याय मंडळाचे संबंधिताबाबतचे आधीचे आदेश इत्यादी.

३) या छाननीनंतर जिल्हा महिला बाल विकास अधिकारी यांनी संबंधित अर्जदारास अनाथ घोषित करण्यासाठीचा प्रस्ताव स्वयंस्पष्ट अभिप्रायासह संबंधित जिल्ह्याच्या बाल कल्याण समितीस सादर करावा.

पृष्ठ १० पैकी ५

४) बाल कल्याण समितीने जिल्हा महिला व बाल विकास अधिकारी यांचेकडून प्रस्ताव प्राप्त झाल्यानंतर अर्जाची पुन्हा छाननी करावी. आवश्यकता असेल तर अर्जाच्या छाननीसाठी अर्जदाराची मुलाखत किंवा पोलीस / महसूल विभागाच्या यंत्रणेचे सहाय्य घ्यावे.

५) बालगृहात/अनाथालयात दाखल करण्यात येणाऱ्या काही अनाथ बालकांची जन्म तारीख/वय अंदाजे नमूद करण्यात येते. सक्षम प्राधिका-याच्या प्रमाणपत्राशिवाय अन्य कोणताही दस्तावेज वयाचा पुरावा म्हणून ग्राह्य धरु नये. ज्या बालकांच्या जन्म तारखेचा कोणताही पुरावा उपलब्ध नसेल अशा बालकांच्या वयाची चाचणी शासकीय जिल्हा रुग्णालयातून करुन घेवून त्याचे वय निश्चित करुन घ्यावे.

६) प्रस्तावाची छाननी पूर्ण झाल्यावर अर्जदारास अनाथ प्रमाणपत्र निर्गमित करण्याची शिफारस करुन किंवा अनाथ प्रमाणपत्रासाठीचा अर्ज नाकारण्यात आल्यास त्याबाबतची कारणे नमूद करुन प्रस्ताव जिल्हा महिला व बाल विकास अधिकारी यांच्याकडे परत पाठवावा.

७) जिल्हा महिला व बाल विकास अधिकारी यांनी बाल कल्याण समितीकडून प्राप्त प्रस्ताव शिफारशीसह संबंधित विभागीय उपायुक्त (महिला व बाल विकास) यांच्याकडे कार्यवाहीसाठी पाठवावा.

८) जिल्हा महिला व बाल विकास अधिकारी यांनी सादर केलेला प्रस्ताव /शिफारस विचारात घेऊन विभागीय उपायुक्त, महिला व बाल विकास यांनी अनाथ प्रमाणपत्र निर्गमित करण्याची कार्यवाही पूर्ण करावी. अनाथ प्रमाणपत्र निर्गमित करण्याची शिफारस करण्यात आलेल्या प्रस्तावामध्ये प्रत्यक्षात अर्ज नाकारण्यासाठी पुरेशी कारणे आढळल्यास ती नमूद करुन प्रस्ताव जिल्हा महिला व बाल विकास अधिकारी यांचेमार्फत बाल कल्याण समितीकडे फेरनिर्णयासाठी पाठवावा.

७. अनाथ प्रमाणपत्राचा नमुना

१) जिल्हा महिला व बाल विकास अधिकारी व बाल कल्याण समितीची शिफारस विचारात घेवून विभागीय उपायुक्त, महिला व बाल विकास यांनी चांगल्या प्रतीच्या कागदावर सोबतच्या प्रपत्रामध्ये विहित करण्यात आलेल्या नमुन्यानुसार छापील लेटर हेडवर अनाथ प्रमाणपत्र स्वाक्षरी करुन वितरीत करावे.

२) अनाथ प्रमाणपत्रांसाठी पुढीलप्रमाणे संकेतांक विहीत करण्यात येत आहे. यामध्ये पहिली दोन अक्षरे महाराष्ट्र राज्य/पुढील तीन अक्षरे प्रमाणपत्र वितरीत करण्याची कार्यवाही करणा-या जिल्ह्याची आद्याक्षरे/ पुढील तीन अक्षरे बालगृहाचा प्रकार [(IWC) हे महिला व बालविकास विभागाच्या अखत्यारीतील संस्थांमधील अनाथांसाठी; (IOG) हे महिला व बालविकास विभागाव्यतिरीक्त शासनाच्या अन्य विभागांकडून मान्यताप्राप्त संस्थांतील अनाथांसाठी आणि (NIN) कोणत्याही संस्थेत दाखल नसलेल्या व नातेवाईकांकडे पालन पोषण झालेल्या अनाथांसाठी] / संकेतामधील शेवटचे चार अंक हे संबंधित विभागीय उपायुक्त, महिला व बालविकास कार्यालयातील अनाथ प्रमाणपत्रांच्या नोंदवही (register) मधील अनाथ प्रमाणपत्राचा अनुक्रमांक दर्शवतील.

उदा. परभणी जिल्ह्यातील महिला व बालविकास अधिकारी कार्यालयाकडून प्रक्रिया झालेल्या बालगृहातील अनाथास द्यावयाच्या प्रमाणपत्राचा सांकेतांक हा MH/PRN/IWC/०००१ असा असेल.

३) विभागीय उप आयुक्त, महिला व बाल विकास विभाग यांनी त्यांच्या विभागातील अनाथ प्रमाणपत्रांची नोंदवही पुढीलप्रमाणे अद्ययावत करावी - यापूर्वी अनाथ प्रमाणपत्रे निर्गमित केल्याच्या दिनांकानुसार क्रमवारीने सर्व

पृष्ठ १० पैकी ६

प्रवर्गातील अनाथांची नोंद एकाच नोंदवहीमध्ये करुन घ्यावी. व त्यापुढे या शासन निर्णयानुसार अनाथ प्रमाणपत्रे निर्गमित करताना नोंद घेऊन त्यानुसार क्रमांक देण्यात यावेत.

४) विभागीय उपायुक्त यांनी वितरीत केलेल्या प्रमाणपत्राची एक प्रत आयुक्त, महिला व बाल विकास, पुणे यांना अग्रेपित करावी.

५) अनाथ प्रमाणपत्राच्या अनुषंगाने जर कांही तक्रार असल्यास यासंदर्भात अपिलीय प्राधिकारी हे आयुक्त, महिला व बाल विकास हे राहतील.

या शासन निर्णयातील तरतुदी या दिनांक ३१/१०/२०२२ नंतर होणा-या नवीन परीक्षांना लागू होतील.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा सांकेतांक २०२३०४०६१३४५५५५०३० असा आहे. हा शासन निर्णय डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

Khadija Farooque Naikwade

(ख. फा. नाईकवाडे)
कक्ष अधिकारी, महाराष्ट्र शासन

प्रत,

१) मा. राज्यपाल यांचे सचिव, राजभवन, मुंबई,
२) मा. मुख्यमंत्री यांचे अपर मुख्य सचिव, मंत्रालय,
३) मा. उपमुख्यमंत्री यांचे सचिव, मंत्रालय, मुंबई,
४) मा.अध्यक्ष/उपाध्यक्ष, विधानसभा, विधानमंडळ, मुंबई,
५) मा.सभापती/उपसभापती, विधानपरिषद, विधानमंडळ, मुंबई,
६) मा.मंत्री, महिला व बाल विकास यांची खाजगी सचिव, मंत्रालय, मुंबई,
७) मा. विरोधी पक्षनेता, विधानसभा/ विधानपरिषद, महाराष्ट्र राज्य, मुंबई,
८) सर्व विधानसभा सदस्य/विधानपरिषद सदस्य, विधानमंडळ, मुंबई,
९) मा. मुख्य सचिव,महाराष्ट्र राज्य यांचे उपसचिव,मंत्रालय,मुंबई,
१०) सर्व विभागांचे अपर मुख्य सचिव/प्रधान सचिव/सचिव, मंत्रालय, मुंबई,
११) प्रधान सचिव, महाराष्ट्र विधानमंडळ सचिवालय (विधानसभा),
१२) प्रधान सचिव, महाराष्ट्र विधानमंडळ सचिवालय (विधानपरिषद),
१३) सर्व विभागीय आयुक्त,
१४) आयुक्त, महिला व बाल विकास, पुणे,
१५) आयुक्त, एकात्मिक बाल विकास सेवा योजना, नवी मुंबई,
१६) सर्व सहायक आयुक्त मागास वर्ग कक्ष, कोकण विभाग, पुणे विभाग, नाशिक विभाग, नागपूर विभाग, अमरावती विभाग, औरंगाबाद विभाग,
१७) सर्व जिल्हाधिकारी,
१८) सर्व जिल्हा परिषदांचे मुख्य कार्यकारी अधिकारी,
१९) प्रबंधक, उच्च न्यायालय, मूळ शाखा, मुंबई,

पृष्ठ १० पैकी ७

२०) प्रबंधक, उच्च न्यायालय, अपील शाखा, मुंबई,
२१) प्रबंधक, लोकायुक्त आणि उपलोकायुक्त यांचे कार्यालय, मुंबई,
२२) प्रबंधक, महाराष्ट्र प्रशासकीय न्यायाधिकरण, मुंबई, नागपूर, औरंगाबाद,
२३) सचिव, महाराष्ट्र लोकसेवा आयोग, मुंबई,
२४) सचिव, राज्य माहिती आयोग, मुंबई,
२५) महासंचालक, माहिती व जनसंपर्क महासंचालनालय, मंत्रालय, मुंबई,
२६) राज्यातील सर्व महामंडळे आणि उपक्रम यांचे व्यवस्थापकीय संचालक,
२७) सर्व महानगर पालिकांचे आयुक्त,
२८) सर्व मुख्याधिकारी, नगरपरिषदा/नगरपालिका,
२९) महालेखापाल, महाराष्ट्र (लेखा व अनुज्ञेयता) मुंबई /नागपूर,
३०) महालेखापाल, महाराष्ट्र (लेखा परीक्षा), मुंबई/नागपूर,
३१) अधिदान व लेखा अधिकारी, मुंबई,
३२) निवासी लेखा परीक्षा अधिकारी, मुंबई,
३३) सर्व मंत्रालयीन विभागांच्या अधिपत्याखालील विभाग प्रमुख व कार्यालय प्रमुख,
३४) ग्रंथपाल, महाराष्ट्र विधानमंडळ सचिवालय, विधानभवन, मुंबई,
३५) सर्व मान्यताप्राप्त राजकीय पक्षांची मध्यवर्ती कार्यालये, महाराष्ट्र राज्य,
३६) निवडनस्ती, महिला व बाल विकास विभाग (कार्यासन -०३).

पृष्ठ १० पैकी ८

प्रपत्र

अनाथ प्रमाणपत्र

संदर्भ- १.शासन निर्णय, महिला व बाल विकास विभाग, क्र.....दिनांक.....
२.बाल कल्याण समिती.....यांचे पत्र क्र.....दिनांक .....अन्वये केलेली शिफारस.
३.जिल्हा महिला व बाल विकास अधिकारी.....यांचे शिफारस पत्र क्र.....दिनांक.....

.....

संकेतांक क्रमांक .....

नवीन फोटो

विभागीय उपायुक्त कार्यालयाचा
गोल शिक्का

नाव - .....

१) संस्थात्मक प्रवर्गातील अनाथांसाठी "अनाथ" असल्याचे प्रमाणपत्र.

प्रमाणित करण्यात येते की, प्रवेशित नामे ---------- हा/ही मुलगा / मुलगी वय वर्षे ---- जन्मदिनांक ---------- दिनांक ---------- पासून ---------- संस्था (नोंदणी क्रमांक), पत्ता---------- ---------- या ---------- विभागाच्या शासकीय / शासनमान्य स्वयंसेवी बालगृहात /अनाथलयात त्या संस्थेतील प्रवेशित रजिस्टरमधील नोंदणी क्रमांक ---------- नुसार दाखल झालेला अनाथ आहे. संस्थेत दाखल होण्याची पार्श्वभूमी :- (वर्णन द्यावे)

प्रवेशित नामे ..... आई वडील मयत आहेत. / याच्या/हिच्या आई वडिलांचा ठाव ठिकाणा सर्व मार्गांचा अवलंब करूनही अद्याप लागलेला नाही. किंवा लागण्याची शक्यता नाही. त्यामुळे संबंधित प्रवेशित हा अनाथ असल्याचे प्रमाणित करण्यात येत आहे.

२) संस्थाबाह्य प्रवर्गातील मुलासाठी अनाथ असल्याचे प्रमाणपत्र.

प्रमाणित करण्यात येते की, अर्जदार नामे ---------- वय वर्षे ---------- जन्म दिनांक ---------- हा /ही महिला व बाल विकास विभाग अथवा अन्य विभागांकडून मान्यताप्राप्त संस्थेमध्ये

कधीही दाखल नव्हता/नव्हती. ..... याचे/हिचे आई वडील मयत असून त्याच्या/तिच्या ---------- या नातेवाईकांची माहिती उपलब्ध आहे. संबंधित अर्जदार अनाथ असल्याचे प्रमाणित करण्यात येत आहे.

त्याचे/ तिचे भविष्य उज्ज्वल व्हावे, ही शुभेच्छा.

(गोल शिक्का)

स्वाक्षरी /-

नाव-

विभागीय उपायुक्त,महिला व बाल विकास,

.....विभाग.

ANNEXURE - "AA"

General Administration Department Government Resolutions no. RAD/4019/C.R 31/16-A, dated 31st May,2021 for EWS Category Reservation.

Note:- As per Government letter no. CET-3519/C.R. 199/19/Edu-2, dated 05 August 2019, implementation of reservations and seat distribution for Economically Weaker Section (EWS) will be informed after directions from State Government in due course.

अराखीव उमेदवारांकरीता (खुला प्रवर्ग) आर्थिकदृष्टया दुर्बल घटकांसाठी शासकीय सेवा व शैक्षणिक संस्थांमध्ये प्रवेशाकरिता १० % जागा आरक्षित करण्याबाबत

महाराष्ट्र शासन
सामान्य प्रशासन विभाग
शासन निर्णय क्रमांक : राआधो ४०१९/प्र.क्र.३१/१६-अ
हुतात्मा राजगुरु चौक, मादाम कामा रोड,
मंत्रालय, मुंबई - ४०० ०३२.
दिनांक - ३१ मे, २०२१

वाचा:- १. शासन निर्णय क्रमांक राआधो ४०१९/प्र.क्र.३१/१६-अ, दि. १२ फेब्रुवारी, २०१९
२. शासन पत्र क्र. राआधो ४०१९/प्र.क्र.३१/१६-अ, दि. २० मार्च, २०१९
३. शासन पत्र क्र. राआधो ४०१९/प्र.क्र.३१/१६-अ, दि. २६ एप्रिल, २०१९
४. शासन पत्र क्र. राआधो ४०१९/प्र.क्र.३१/१६-अ, दि. ६ सप्टेंबर, २०१९
५. सा.प्र.वि., परिपत्रक क्र. राआधो ४०१९/प्र.क्र.३१/१६-अ, दु. २८जुलै, २०२०
६. शासन निर्णय क्र. राआधो/४०१९ प्र.क्र.३१/१६ अ, दि.२३ डिसेंबर, २०२०

प्रस्तावना :-

संसदेने संविधानात १०३ व्या घटनादुरूस्तीनुसार आर्थिकदृष्ट्या दुर्बल घटकांसाठी शैक्षणिक संस्थामध्ये प्रवेशासाठी व शासन सेवेतील नियुक्त्यांमध्ये १० टक्के आरक्षण विहित केलेले आहे. त्यानुसार राज्य शासनाने मा.मंत्रिमंडळाच्या मान्यतेने संदर्भ क्र.१ अन्वये अराखीव उमेदवारांकरीता (खुला प्रवर्ग) आर्थिकदृष्ट्या दुर्बल घटकांसाठी (ईडब्ल्यूएस) राज्यातील शैक्षणिक संस्थामध्ये प्रवेशासाठी व शासन सेवेतील नियुक्त्यांमध्ये १० टक्के आरक्षण लागू केले आहे. सदर आरक्षणाच्या लाभासाठी ज्या घटकांना राज्यात कोणत्याही मागास प्रवर्गातील आरक्षणाचा लाभ दिला जात नाही, अशा अराखीव उमेदवारांचा (खुला प्रवर्ग) आर्थिकदृष्ट्या दुर्बल घटकांचा समावेश करण्यात आला आहे.

राज्यातील शैक्षणिक संस्थामध्ये प्रवेशासाठी व शासन सेवेतील नियुक्त्यांमध्ये राज्यात सामाजिक व शैक्षणिक मागास (एसईबीसी) वर्गास " महाराष्ट्र राज्य सामाजिक आणि शैक्षणिक (एसईबीसी) वर्गाकरिता (राज्यातील शैक्षणिक संस्थांमधील जागांच्या प्रवेशाचे आणि राज्याच्या नियंत्रणाखालील लोकसेवांमधील नियुक्त्यांचे किंवा पदांचे) आरक्षण अधिनियम,२०१८ (सन २०१८ चा महाराष्ट्र अधिनियम क्रमांक ६२) " मधील तरतूदींन्वये आरक्षण असल्याने राज्यात एसईबीसी प्रवर्गातील उमेदवार ईडब्ल्यूएस आरक्षणाच्या लाभासाठी अनुज्ञेय नाहीत. तथापि, ईडब्ल्यूएस आरक्षणाच्या लाभाबाबतचे केंद्र व राज्य शासनाचे निकष हे वेगवेगळे असल्याने केंद्र शासनाच्या सेवा व प्रवेश यामध्ये एसईबीसी उमेदवार हा केंद्र शासनाच्या निकषाच्या पूर्तता करुन ईडब्ल्यूएस

आरक्षणाचा लाभास पात्र असल्याबाबत संदर्भ क्र.२ अन्वये कळविण्यात आले आहे. तसेच राज्य शासनाच्या सेवा व प्रवेशात एसईबीसी उमेदवारास ईडब्ल्यूएस लाभाबाबत संदर्भ क्र. ३ ते ५ अन्वये आवश्यक सूचना देण्यात आल्या होत्या.

दरम्यान मा. सर्वोच्च न्यायालयाने एसएलपी (सी) नं.१५७३७/२०१९ मध्ये दि.०९.०९.२०२० रोजीच्या अंतरीम आदेशान्वये स्थगिती दिलेली असल्याने, सदर प्रकरणी मा.सर्वोच्च न्यायालयाचा अंतिम निर्णय प्रलंबित असल्याची बाब लक्षात घेता, शैक्षणिक प्रवेश व पदभरती प्रक्रिया यामध्ये उद्भवलेल्या अडचणी विचारात घेवून तसेच विविध न्यायालयीन प्रकरणी झालेल्या निर्णयानुसार मा.मंत्रिमंडळाच्या दिनांक २३.१२.२०२० रोजीच्या बैठकीत झालेल्या निर्णयानुसार, संदर्भ क्र. ६ अन्वये सामाजिक व शैक्षणिकदृष्टया मागास (एसईबीसी) वर्गातील उमेदवारांना सन २०२०-२१ या वर्षातील शैक्षणिक प्रवेश घेण्यासाठी व सरळसेवा भरतीकरीता आर्थिकदृष्ट्या दुर्बल घटकांचे (ईडब्ल्यूएस) प्रमाणपत्र देण्यास मान्यता देण्यात आली आहे. त्यानुसार एस.ई.बी.सी. प्रवर्गातील उमेदवारांना अराखीव पदांचा (खुला प्रवर्ग) अथवा ईडब्ल्यूएस आरक्षण हा लाभ ऐच्छिक ठेवण्यात आला आहे. तसेच ईडब्ल्यूएस आरक्षणाचा लाभ घेतल्यास सदर उमेदवारांस एस.ई.बी.सी. प्रवर्गासाठी असलेल्या आरक्षणाचा लाभ अनुज्ञेय रहाणार नसल्याबाबत नमूद करण्यात आले होते.

आता, मा .सर्वोच्च न्यायालयाने सिव्हिल अपिल नं. ३१२३/२०२० [एसएलपी (सी) नं.१५७३७/२०१९] प्रकरणी दिनांक ०५.०५.२०२१ रोजीच्या अंतिम आदेशान्वये एस.ई.बी.सी . आरक्षण अवैध ठरविले असल्याने ,एस.ई.बी.सी. प्रवर्गातील उमेदवारांना मागासवर्ग आरक्षण लागू नाही .त्यामुळे एस.ई.बी.सी प्रवर्गातील उमेदवार हे अराखीव पदांच्या लाभासाठी अनुज्ञेय आहेत. सबब सदर उमेदवार जर दि.१२.२.२०१९ रोजीचा शासन निर्णयानुसार खुल्या प्रवर्गातील आर्थिकदृष्टया दुर्बल घटक आरक्षणाच्या लाभासाठीच्या पात्रतेबाबतच्या निकषांची पूर्तता करत असतील तर त्यांना आर्थिक दुर्बल घटक आरक्षणाचा लाभ अनुज्ञेय आहे. सदर बाब विचारात घेता दि. १२.०२.२०१९ रोजीच्या शासन निर्णयात सुधारणा करण्याची बाब शासनाचे विचाराधीन होती.त्यानुसार शासन आर्थिकदृष्टया दुर्बल घटकांच्या आरक्षणाबाबत खालीलप्रमाणे निर्णय घेत आहे -:

शासन निर्णय :

मा.सर्वोच्च न्यायालयाने सिव्हिल अपिल नं. ३१२३/२०२० या प्रकरणी दिनांक ०५.०५.२०२१ रोजी दिलेल्या सामाजिक व शैक्षणिकदृष्टया मागास (एसईबीसी) आरक्षणासंदर्भातील निर्णयास अनुसरुन, आर्थिकदृष्टया दुर्बल घटक आरक्षणासंदर्भात खालीलप्रमाणे निर्णय घेण्यात येत आहे.

१) दि.१२.२.२०१९ रोजीच्या संदर्भ क्र.१ येथील शासन निर्णयातील परिच्छेद क्र. २ (अ) (ब) खालीलप्रमाणे सुधारीत करण्यात येत आहे.

पृष्ठ ८ पैकी २

परिच्छेद २. आर्थिकदृष्टया दुर्बल घटकासाठीच्या आरक्षणाचा लाभ खालील अटींच्या अधीन अनुज्ञेय राहील -:

(अ)राज्यातील आर्थिकदृष्टया दुर्बल घटकासाठी ज्या व्यक्तीच्या जातींचा समावेश महाराष्ट्र राज्य लोकसेवा (अनुसूचित जाती, अनुसूचित जमाती ,निरधिसूचित जमाती , (वि.जा.) भटक्या जमाती, विशेष मागास प्रवर्ग आणि इतर मागासवर्ग यांच्यासाठी आरक्षण) अधिनियम ,२००१ (सन २००४ चा महाराष्ट्र अधिनियम क्रमांक ८) यामध्ये समावेश नाही त्यांच्यासाठी शासकीय शैक्षणिक संस्था/ अनुदानित विद्यालये, महाविद्यालये, शैक्षणिक संस्था, विना अनुदानित विद्यालये, महाविद्यालये, शैक्षणिक संस्था, स्वायत्त विद्यापिठे यामध्ये एकूण प्रवेश द्यावयाच्या जागांमध्ये १०% आरक्षण विहित करण्यात येत आहे. सदर आरक्षण राज्य घटनेच्या अनुच्छेद ३० च्या खंड (१) मध्ये संदर्भीत अल्पसंख्याक संस्थामध्ये लागू होणार नाही.

तसेच शासकीय आस्थापना, निमशासकीय आस्थापना मंडळे/ महामंडळे/ नागरी स्थानिक स्वराज्य संस्था/ग्रामिण स्थानिक स्वराज्य संस्था ,प्राधिकरणे यांच्या आस्थापनेवरील सरळसेवेच्या पदांच्या कोणत्याही संवर्गातील नियुक्तीसाठी १०% ही आर्थिकदृष्टया दुर्बल घटकांसाठी राखीव राहतील.

(ब) हे १०% आरक्षण राज्यात सध्या राज्य लोकसेवा (अनुसूचित जाती, अनुसूचित जमाती, निरधिसूचित जमाती, (वि.जा.) भटक्या जमाती, विशेष मागास प्रवर्ग आणि इतर मागासवर्ग यांच्यासाठी आरक्षण) अधिनियम,२००१) (सन २००४ चा महाराष्ट्र अधिनियम क्रमांक ८) अन्वये विहित करण्यात आलेल्या मागासवर्गासाठी आरक्षणाव्यतिरिक्त राहील.

२) आर्थिकदृष्टया दुर्बल घटकाच्या आरक्षणाच्या लाभासाठी पात्रतेबाबतचे निकष व कार्यपध्दती ही दिनांक १२.२.२०१९ रोजीच्या शासन निर्णयातील परिच्छेद २(क) व २(ड) प्रमाणे कायम राहतील. परिच्छेद २ (क) (३) मध्ये नमूद प्रमाणपत्रासंदर्भातील परिशिष्ट- अ ही सदर शासन निर्णयासोबत जोडल्यानुसार राहतील.

३) दि.१२.२.२०१९ रोजीच्या शासन निर्णयातील परिच्छेद २(इ) मधील (४) वगळता अन्य तरतूदी या दि.१२.२.२०१९ मधील कायम राहतील. परिच्छेद (इ) (४) मधील तरतूद रद्द करण्यात येत आहे.

४) ईडब्ल्यूएस प्रमाणपत्र हे मागील आर्थिक वर्षाच्या उत्पन्न व मत्ता या आधारे देण्यात यावे. तसेच प्रमाणपत्राच्या ग्राहयता कालावधी हा त्या आर्थिक वर्षापर्यंत समजण्यात यावा. तसेच दि.१२.२.२०१९ ते ३१.३.२०१९या कालावधीत निर्गमित करण्यात आलेल्या प्रमाणपत्रांचा ग्राहयता कालावधी मार्च २०२०पर्यंत समजण्यात यावा.

पृष्ठ ८ पैकी ३

तसेच ज्या निवड प्रक्रियांमध्ये एक पेक्षा अधिक टप्पे समाविष्ट असतील अथवा निवड प्रक्रिया या पुढील आर्थिक वर्षामध्ये पूर्ण होणार असतील अशा प्रकरणी प्रमाणपत्राच्या ग्राहयतेबाबतचा दिनांक जाहिरातीमध्ये स्पष्ट नमूद करणे आवश्यक राहील.

५) संदर्भ क्र.२ अन्वये सूचित केल्यानुसार, केंद्र शासनामधील नागरी सेवा व पदे यामध्ये सरळसेवा प्रवेशासाठी व शैक्षणिक संस्थांमधील प्रवेशाकरीता आर्थिकदृष्टया दुर्बल घटकासाठी केंद्र शासन वेळोवेळी निश्चित करेल त्या निकषांच्या आधारे केंद्र शासनाने विहित केलेल्या नमुन्यात सक्षम प्राधिकाऱ्यांनी प्रमाणपत्र देणे बंधनकारक आहे.

६) एसईबीसी प्रवर्गासाठी संदर्भ क्र. ३ ते ५ अन्वये देण्यात आलेले आदेश रद्द समजण्यात यावे.

७) एस.ई.बी.सी. उमेदवारांना संदर्भ क्र.६ अन्वये देण्यात आलेले लाभ कायम ठेवण्यात येत असून एस.ई.बी.सी. उमेदवार ईडब्ल्यूएस लाभासाठी पात्र असल्यास त्यांना विहीत प्रमाणपत्राच्या आधारे ईडब्लूएस आरक्षणाचा लाभ घेता येईल.

८) संदर्भ क्र.६ अन्वये एसईबीसी उमेदवारांना आर्थिकदृष्ट्या दुर्बल घटकांचा देण्यात आलेला लाभ खालीलप्रमाणे अनुज्ञेय राहील:-

(i) सदर लाभ एस.ई.बी.सी. आरक्षणाच्या अंतरीम स्थगितीपासून म्हणजे दि.९.९.२०२० पासून दि.५.५.२०२१ या कालावधीसाठी लागू राहील.

(ii) दि.९.९.२०२० पूर्वी ज्या निवड प्रक्रियांचा अंतिम निकाल लागलेला आहे परंतु उमेदवारांच्या नियुक्त्या प्रलंबित आहेत अशा प्रकरणी सदर आदेश पूर्वलक्षी प्रभावाने लागू राहतील.

(iii) ज्या निवड प्रक्रिया पूर्ण झाल्या आहेत व एस.ई.बी.सी. आरक्षणानुसार नियुक्त्या करण्यात आल्या आहेत अशा प्रकरणांमध्ये सदर आदेश अनुज्ञेय होणार नाहीत.

(iv) ज्या निवड प्रक्रिया या दि.९.९.२०२० पूर्वी पूर्ण होवून नियुक्ती आदेशानुसार उमेदवार हजर झाले होते व एस.ई.बी.सी. उमेदवारांचे ईडब्ल्यूएस प्रमाणपत्र अवैध ठरविले होते, अशा प्रकरणी सदर आदेश लागू नाहीत.

९) सदर आदेश यापुढील सर्व शैक्षणिक प्रवेशांसाठी लागू राहतील.

१०) आर्थिकदृष्टया दुर्बल घटक पात्रता प्रमाणपत्राच्या वैधतेबाबत नियुक्ती प्राधिकारी/ शंका उद्भवल्यास सदर प्रमाणपत्राची परिच्छेद २ (ड) मधील २ (i), (ii), (iii) नुसार अपील सादर करुन त्यानुसार पडताळणी करण्यात यावी.

११) संबंधित भरती वर्षात सदर आरक्षणांतर्गत सुयोग्य उमेदवार उपलब्ध न झाल्यास आरक्षणाचा अनुशेष पुढे न ओढता खुल्या प्रवर्गातून गुणवत्तेनुसार भरण्यात याव्यात.

पृष्ठ ८ पैकी ४

१२) हा शासन निर्णय शासकीय/ निमशासकीय सेवा, मंडळे/महामंडळे, नगरपालिका / महानगरपालिका, जिल्हा परिषदा, शासकीय विद्यालय, महाविद्यालय, शासकीय शैक्षणिक संस्था, खाजगी विद्यालय, महाविद्यालय, शैक्षणिक संस्था, अनुदानित/विना अनुदानित विद्यालय, महाविद्यालय व शैक्षणिक संस्था आणि ज्यांना मार्गदर्शक आदेश देण्याचा अधिकार राज्य शासनाला आहे, अशी इतर सर्व प्राधिकरणे, सेवा व संस्था यांना लागू राहील. संबंधित यंत्रणांनी याबाबत आवश्यक त्या सूचना निर्गमित कराव्यात.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आले असून त्याचा संगणक सांकेतांक २०२१०५३११२५०५९९४०७ असा आहे. हा शासन निर्णय डिजीटल स्वाक्षरीने साक्षांकित करून काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

TIKARAM WAMAN KARPATE

Digitally signed by TIKARAM WAMAN KARPATE
DN: cn=, o=Government Of Maharashtra, ou=GENERAL ADMINISTRATION DEPARTMENT, postalCode=400032, st=Maharashtra, 2.5.4.20=a97a9d6b23c34f6dd6e8f6f518dc05328de58af11 2f af7d6f0a149b3a4cf1426, cn=TIKARAM WAMAN KARPATE
Date: 2021.05.21 13:07:27 +05'30'

(टि.वा.करपते)
उप सचिव, महाराष्ट्र शासन

प्रति,

१. मा. विरोधीपक्ष नेता, महाराष्ट्र विधानसभा/ विधानपरिषद,महाराष्ट्र विधानमंडळ सचिवालय,मुंबई.
२. मा. सर्व सन्माननिय विधानसभा/ विधानपरिषद,व संसद सदस्य महाराष्ट्र राज्य
३. मा. राज्यपालांचे प्रधान सचिव, राजभवन, मलबारहिल, मुंबई.
४. मा. मुख्यमंत्र्यांचे अप्पर मुख्य सचिव/ प्रधान सचिव/सचिव, मंत्रालय, मुंबई.
५. महाराष्ट्र विधानमंडळ सचिवालय, (विधान परिषद) विधानभवन, मुंबई.
६. प्रधान सचिव, महाराष्ट्र विधानमंडळ सचिवालय, (विधान सभा) विधानभवन, मुंबई.
७. शासनाचे सर्व अपर मुख्य सचिव / प्रधान सचिव / सचिव.
८. महालेखापाल, लेखा व अनुज्ञेयता, महाराष्ट्र-१, मुंबई,
९. महालेखापाल, लेखा व अनुज्ञेयता, महाराष्ट्र-२, नागपूर,
१०. महासंचालक, माहिती व जनसंपर्क संचालनालय, मंत्रालय, मुंबई.
११. प्रबंधक, मा.उच्च न्यायालय, मुळ न्याय शाखा, मुंबई, औरंगाबाद, नागपूर.
१२. प्रबंधक, मा.उच्च न्यायालय, अपिल शाखा, मुंबई, औरंगाबाद, नागपूर.
१३. प्रबंधक, मा. महाराष्ट्र प्रशासकीय न्यायाधिकरण, मुंबई, औरंगाबाद, नागपूर.
१४. प्रबंधक, मा. लोक आयुक्त व उप लोक आयुक्त, मुंबई.
१५. सर्व विभागीय आयुक्त/सर्व जिल्हाधिकारी/सर्व विभागीय जिल्हाधिकारी/उप विभागीय अधिकारी (प्रांत अधिकारी)/ सर्व तालुका दंडाधिकारी तथा तहसिलदार, महाराष्ट्र राज्य.
१६. सर्व जिल्हा परिषदांचे मुख्य कार्यकारी अधिकारी, महाराष्ट्र राज्य.
१७. सचिव, महाराष्ट्र लोकसेवा आयोग, मुंबई.

पृष्ठ ८ पैकी ५

१८. उप सचिव (आस्थापना शाखा) , सर्व मंत्रालयीन विभाग, मंत्रालय, मुंबई.
१९.सर्व मंत्री/राज्यमंत्री यांचे खाजगी सचिव ,मंत्रालय, मुंबई.
२०.मा. मुख्य सचिव यांचे स्वीय सहायक, मंत्रालय, मुंबई.
२१.सचिव, राज्य निवडणूक आयोग, मुंबई.
२२.सचिव, राज्य माहिती आयोग, मुंबई.
२३.सरकारी वकील, उच्च न्यायालय, मुळ शाखा व अपील शाखा, मुंबई, औरंगाबाद, नागपूर,
२४.सरकारी वकील, महाराष्ट्र प्रशासकीय न्यायाधिकरण, मुंबई, औरंगाबाद, नागपूर,
२५.सर्व महानगरपालिकांचे आयुक्त,
२६.सर्व मुख्याधिकारी, नगरपरिषदा/नगरपालिका,
२७.विधिमंडळ ग्रंथालय, महाराष्ट्र विधानभवन, मुंबई
२८. सर्व महामंडळे , मंडळे आणि सार्वजनिक उपक्रम यांचे व्यवस्थापकीय संचालक,
२९.सर्व मान्यताप्राप्त राजकीय पक्षांची मध्यवर्ती कार्यालये, महाराष्ट्र राज्य,
३०.निवड नस्ती/कार्यासन १६-अ.

पृष्ठ ८ पैकी ६

सामान्य प्रशासन विभाग, शासन निर्णय क्र. राआधो ४०१९/प्र.क्र.३१/१६ अ, दि. ३१.०५.२०२१ सोबतचे सहपत्र

परिशिष्ट अ

महाराष्ट्र शासन

प्रमाणपत्र क्र.

फोटो

वर्ष ----------करीता ग्राहय

आर्थिकदृष्टया दुर्बल घटकाच्या पात्रतेसाठी प्रमाणपत्र

सामान्य प्रशासन विभाग, शासन निर्णय क्र .राआधो/४०१९ प्र.क्र.३१/१६ अ, दिनांक ३१.०५.२०२१ अन्वये

(आर्थिकदृष्टया दुर्बल घटकासाठी विहित केलेल्या %१० आरक्षणाचा लाभ घेण्यासाठी)

प्रमाणित करण्यात येते की, श्री/श्रीमती/कुमारी ---------- श्री/श्रीमती---------- ----------यांचा/यांची मुलगा/मुलगी गाव/शहर----------तालुका ---------- जिल्हा/विभाग ---------- महाराष्ट्र चे रहिवासी आहेत .तो/ती ---------- जातीचे असून जात /पोटजात /वर्ग चे असून सदर जात महाराष्ट्र राज्य लोकसेवा (अनुसूचित जाती, अनुसूचित जमाती ,निरधिसूचित जमाती, (वि.जा.) भटक्या जमाती (भ.ज.) ,विशेष मागास प्रवर्ग (वि.मा.प्र.) आणि इतर मागासवर्ग (इ.मा.व.) यांच्यासाठी आरक्षण) अधिनियम, २००१ (सन २००४ चा महाराष्ट्र अधिनियम क्रमांक ८) यामध्ये नमूद केलेल्या प्रवर्गातर्गत होत नाही.

महाराष्ट्र शासन, सामान्य प्रशासन विभागाचा शासन निर्णय क्र. राआधो ४०१९/प्र.क्र.३१/१६ अ, दिनांक १२.०२.२०१९ अन्वये त्याच्या/तिच्या कुटूंबाचे सर्व स्त्रोतांचे वर्ष ----------मधील एकत्रित वार्षिक उत्पन्न रु. असून, सदर उत्पन्न रु.८,००,०००/- पेक्षा कमी आहे. त्यामुळे असे प्रमाणित करण्यात येत आहे की, तो/ ती यांचा आर्थिकदृष्टया दुर्बल घटकामध्ये समावेश होतो.

ठिकाण :

दिनांक: स्वाक्षरी :

नाव :

पदनाम :

हे प्रमाणपत्र अर्जकर्त्याने सादर केलेल्या खालील कागदपत्र/पुरावे यांच्या आधारावर निर्गमित करण्यात येत आहे.

१
२
३

पृष्ठ ८ पैकी ७

सामान्य प्रशासन विभाग, शासन निर्णय क्र. राआधो ४०१९/प्र.क्र.३१/१६ अ, दि. ३१.०५.२०२१
सोबतचे सहपत्र
Annexure–A

Government of Maharashtra

Certificate No :

Photo

(valid for Year)
Eligibility certificate for Economically Weaker Section

(For the purpose of 10% reservation prescribed for Economically Weaker Section vide Government Resolution सामान्य प्रशासन विभाग, शासन निर्णय क्र. राआधो 4019/प्र.क्र.31/16 अ dated 31.05.2021)

This is to certify that Shri/Smt/Kum ---------- is son /daughter/ward of ---------- ----------He/ She is resident of village / city ---------- ----------Taluka ---------- District -------- and he /she belongs to ---------- caste/sub caste /class which is not included in the cadres mentioned in the Maharashtra State Public services (Schedule Caste, Schedule Tribes, De-notified Tribes (Vimukta Jati), Nomadic Tribes, Special Backward category and Other Backward Classes) Act, 2001 (Maharashtra Act No 8 of 2004).

As per norms prescribed Vide Government of Maharashtra, General Administration Department, and Government Resolution No. राआधो 4019/प्र.क्र.31/16 अ, dated 12.02.2019. His /Her gross family annual income for Year---------- from all source is Rs.----------/- which is less than Rs.8,00,000/-. Therefore it is certified that he/ she is within category of Economically Weaker Sections.

Place :
Date :

Signature :
Name :
Designation:

(This certificate has been issued on the basis of following proof/evidences/documents)

1.
2.
3.

पृष्ठ ८ पैकी ८

आरोग्य विज्ञान अभ्यासक्रमांच्या प्रवेशाकरीता राज्यातील खुल्या प्रवर्गातील आर्थिकदृष्ट्या दुर्बल घटकांसाठी १० टक्के आरक्षण लागु करणेबाबत....

महाराष्ट्र शासन

वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग

शासन निर्णय क्रमांकः एमईडी-१०१९/प्र.क्र.३७/१९/शिक्षण-२,

नववा मजला, गोकुळदास तेजपाल रुग्णालय संकुल,लोकमान्य टिळक मार्ग,नवीन मंत्रालय,

मुंबई ४०० ००१,

तारीख: ०७ मार्च, २०१९

वाचा : शासन निर्णय, सामान्य प्रशासन विभाग, क्र.राआधो-४०१९/प्र.क्र. ३१/१६-अ, दिनांक १२ फेब्रुवारी,२०१९.

प्रस्तावना :

भारतीय संविधानातील अनुच्छेद १५(४) व (५) आणि अनुच्छेद १६ (४) अन्वये आरक्षणाचा लाभ देण्यात आलेल्या प्रवर्गाव्यतिरिक्त (मागासवर्गीय) राज्यातील खुल्या प्रवर्गातील आर्थिकदृष्टया दुर्बल घटकांसाठी अल्पसंख्यांक दर्जा प्राप्त झालेल्या शैक्षणिक संस्था वगळुन शासकीय शैक्षणिक संस्था / अनुदानित विद्यालये, महाविद्यालये, सर्व उच्च शिक्षण देणाऱ्या शैक्षणिक संस्था, विना अनुदानित विद्यालये, महाविद्यालये व शैक्षणिक संस्था यामध्ये एकुण प्रवेश द्यावयाच्या जागांमध्ये १० टक्के आरक्षण सामान्य प्रशासन विभागाच्या दिनांक १२.०२.२०१९ रोजीच्या शासननिर्णयान्वये विहीत करण्यात आले आहे. तसेच, शासकीय आस्थापना, निमशासकीय आस्थापना, मंडळे/महामंडळे / नागरी स्थानिक स्वराज्य संस्था/ ग्रामीण स्थानिक स्वराज्य संस्था, प्राधिकरणे यांच्या आस्थापनांवरील नियुक्तीसाठी सरळसेवेच्या पदांमध्ये राज्यातील आर्थिकदृष्टया दुर्बल घटकांसाठी १० टक्के आरक्षण देखील उक्त शासन निर्णयान्वये विहीत करण्यात आले आहे. सदर आरक्षणाचा लाभ घेण्यासंदर्भात अटी/शर्ती उक्त शासननिर्णयात नमूद करण्यात आल्या आहेत. शैक्षणिक संस्थांमध्ये प्रवेशाबाबतचे आवश्यक आदेश संबंधित विभागाने तात्काळ निर्गमित करावेत, असे सामान्य प्रशासन विभागाने निर्गमित केलेल्या उपरोक्त दिनांक १२.०२.२०१९ रोजीच्या शासन निर्णयात नमूद करण्यात आले आहे.

त्यानुषंगाने उक्त दिनांक १२.०२.२०१९ रोजीच्या शासननिर्णयास अनुसरुन आरोग्य विज्ञान अभ्यासक्रमांच्या प्रवेशाकरीता खुल्या प्रवर्गातील आर्थिकदृष्ट्या दुर्बल घटकांसाठी आरक्षण लागु करण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय :

आर्थिकदृष्ट्या दुर्बल घटकांसाठी राज्यातील आरोग्य विज्ञानाच्या शासकीय / महापालिका / शासनअनुदानित/ खाजगी विना अनुदानित महाविद्यालये (अल्पसंख्यांक शैक्षणिक संस्था वगळून) यांमध्ये एकुण प्रवेश द्यावयाच्या जागांमध्ये १० टक्के आरक्षण याव्दारे विहीत करण्यात येत आहे.

२. सदर आरक्षणाचा लाभ प्राप्त होण्याच्या अनुषंगाने पात्रता प्रमाणपत्रासंबंधातील कार्यपध्दती तथा इतर अटी / शर्ती ह्या सामान्य प्रशासन विभागाच्या दिनांक १२.०२.२०१९ रोजीच्या शासननिर्णयात नमुद केल्याप्रमाणे राहतील.

३. सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेताक २०१९०३०७१८३८४४३९१३ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

Surendra Pralhad Chankar

Digitally signed by Surendra Pralhad Chankar
DN: c=IN, o=Government Of Maharashtra, ou=MEDD, postalCode=400032, st=Maharashtra, 2.5.4.20=cda74ee04daa59e5121fbe348655e71413ea59827bae27cd88480eb3863f77726, cn=Surendra Pralhad Chankar
Date: 2019.03.08 15:30:57 +05'30'

(सुरेन्द्र प्र. चानकर)
उपसचिव, महाराष्ट्र शासन

प्रत,

१) मा. राज्यपाल यांचे सचिव, राज्यपाल सचिवालय, राजभवन, मुंबई.
२) मा. सभापती, महाराष्ट्र विधानपरिषद यांचे सचिव, विधानभवन,मुंबई.
३) मा. अध्यक्ष, महाराष्ट्र विधानसभा यांचे सचिव, विधानभवन,मुंबई.
४) मा. मुख्यमंत्री यांचे प्रधान सचिव, मंत्रालय,मुंबई.
५) मा. मंत्री (वैद्यकीय शिक्षण) यांचे खासगी सचिव,मंत्रालय,मुंबई.
६) मा. विरोधी पक्षनेता, महाराष्ट्र विधानपरिषद यांचे सचिव, विधानभवन,मुंबई.

पृष्ठ ३ पैकी २

७) मा. विरोधी पक्षनेता, महाराष्ट्र विधानसभा यांचे सचिव, विधानभवन,मुंबई.
८) मा. राज्यमंत्री (वैद्यकीय शिक्षण) यांचे खासगी सचिव,मंत्रालय,मुंबई.
९) मा. मुख्यसचिव,महाराष्ट्र शासन,मंत्रालय, मुंबई.
१०) सचिव,आरोग्य व कुटुंब कल्याण मंत्रालय,भारत सरकार, नवी दिल्ली.
११) सचिव,आयुष मंत्रालय,भारत सरकार, नवी दिल्ली.
१२) सचिव, भारतीय आयुर्विज्ञान परिषद,नवी दिल्ली.
१३) सचिव, भारतीय चिकीत्सा केंद्रीय परिषद, नवी दिल्ली.
१४) सचिव, केंद्रीय होमिओपॅथी परिषद, नवी दिल्ली.
१५) आयुक्त, राज्य सामाईक प्रवेशपरिक्षा कक्ष,महाराष्ट्र राज्य,मुंबई.
१६) सचिव, प्रवेश नियामक प्राधिकरण,महाराष्ट्र राज्य,मुंबई.
१७) सचिव, शुल्क नियामक प्राधिकरण,महाराष्ट्र राज्य, मुंबई.
१८) संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय,महाराष्ट्र राज्य,मुंबई.
१९) संचालक, आयुष संचालनालय,महाराष्ट्र राज्य,मुंबई.
२०) कुलसचिव, महाराष्ट्र आरोग्य विज्ञान विद्यापीठ, नाशिक.
२१) अधिष्ठाता/प्राचार्य, राज्यातील सर्व शासकीय/शासन अनुदानित/महापालिका/खाजगी विनाअनुदानित आरोग्य विज्ञान महाविद्यालये.
२२) निवडनस्ती (शिक्षण-२).

पृष्ठ ३ पैकी ३

BYMAIL/SPEED POST

No.U-12012/350/2019-ME.I [FTS.8013875]
Government of India
Ministry of Health & Family Welfare
(Department of Health & Family Welfare)

Nirman Bhawan, New Delhi-11
Dated the 21 June, 2019

To

The Additional Chief Secretary/Principal Secretary/
Secretary-in-Charge of Medical Education Department,
All the States/UTs.

Subject: Reservation for Economically Weaker Section (EWS) for admission in Medical Education Institutions under Constitution Amendment (One Hundred and Third Amendment) Act, 2019 dated 12.01.2019- **Increase of MBBS seats under EWS Quota for the academic year 2019-20**- Reg.

Madam/Sir,

I am directed to refer to the Provisions of the Constitution Amendment (One Hundred and Third Amendment) Act, 2019 dated 12.01.2019 for implementation of reservation for Economically Weaker Sections (EWSs) in admission to educational Institutions for the academic year 2019-20 and BoG-MCI's letter No.MCI-34(41)(EWS)/2019-Med./122349 dated 04/06 June, 2019 seeking applications from the Medical Colleges/Institutions for increase of MBBS seats to implement EWS quota and to say that BoG-MCI after considering the applications, vide letter No.MCI-34(41)(EWS)/2019-Med./125319-20 dated 20.06.2019 submitted a proposal to the Ministry containing the names of Medical Colleges with permitted MBBS seats under EWS quota for 2019-20.

2. After carefully considering the matter, Ministry of Health & Family Welfare has accepted the proposal of the BoG-MCI and hereby directs the Counselling Authorities (States/UTs/AIQ) for filling up the MBBS seats under EWS quota as per rules in forthcoming academic year 2019-20. **A copy of the list showing details of Medical Colleges and permitted MBBS seats is enclosed herewith.**

Yours faithfully,

(P K Bandyopadhyay)
Under Secretary to the Govt. of India
Telefax No. 011-23062959

Encl:- As above.

Copy to:

i. The Secretary General, BoG, Medical Council of India, Pocket-14, Phase-I, Sector-8, New Dehi-77.
ii. The ADG (ME), Dte.GHS, Nirman Bhawan, New Delhi.
iii. The Incharge, NIC- with request to upload in the Ministry's website.

ANNEXURE -"CC"

NMC / erstwhile MCI Gazette of India, dated 20/02/2018

रजिस्ट्री सं० डी० एल०-33004/99 REGD. NO. D. L.-33004/99

भारत का राजपत्र
The Gazette of India

असाधारण
EXTRAORDINARY
भाग III—खण्ड 4
PART III—Section 4
प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 67] नई दिल्ली, मंगलवार, फरवरी 20, 2018/फाल्गुन 1, 1939
No. 67] NEW DELHI, TUESDAY, FEBRUARY 20, 2018/PHALGUNA 1, 1939

भारतीय आयुर्विज्ञान परिषद्

संशोधन अधिसूचना

नई दिल्ली, 20 फरवरी, 2018

सं. भा. आ. प/18(1)/2017—मेडि./174626.—भारतीय आयुर्विज्ञान परिषद् अधिनियम, 1956 (1956 का 102) की धारा 33 द्वारा प्रदत्त शक्तियों का इस्तेमाल करते हुए भारतीय आयुर्विज्ञान परिशद्, "स्नातकोत्तर शिक्षा विनियमावली, 2000" को पुनः संशोधित करने के लिए केंद्र सरकार की पूर्व स्वीकृति से एतद्द्वारा निम्नलिखित नियम बनाती है, नामतः—

1 (i) इन विनियमों को "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली (संशोधन), 2018" कहा जाएगा।

(ii) ये सरकारी राजपत्र में उनके प्रकाशन की तारीख से प्रवृत्त होंगे।

2. "स्नातकोत्तर शिक्षा विनियमावली, 2000" में निम्नलिखित अभिवर्धन/संशोधन/विलोप/प्रतिस्थापन इसमें दर्शाए गए अनुसार किए जाएँगे:—

3. "स्नातकोत्तर शिक्षा विनियमावली, 2000" में परिशिष्ट स्नातकोत्तर पाठ्यक्रमों (ब्रॉड स्पेशिलिटी) में दाखिलों की प्रक्रिया की पूर्णता हेतु समय सारणी को निम्नलिखित द्वारा प्रतिस्थापित किया जाएगा:—

स्नातकोत्तर पाठ्यक्रमों (ब्रॉड स्पेशिलिटी) में शैक्षिक वर्श 2018—19 और उसके आगे हेतु प्रवेश अनुसूची:—

क्रम सं.	दाखिले के लिए कार्यक्रम	केन्द्रीय काउंसिलिंग		राज्य काउंसिलिंग
		अखिल भारतीय कोटा	मानित + केन्द्रीय संस्थान	
1.	परीक्षा आयोजित करना	10 जनवरी तक		
2.	परिणाम की घोशणा	जनवरी के अंत तक		
3.	काउंसलिंग का पहला चक्र	12 मार्च— 24 मार्च	12 मार्च— 24 मार्च	25 मार्च—5 अप्रैल
4.	कार्यारंभ करने की अंतिम तारीख	3 अप्रैल	3 अप्रैल	12 अप्रैल
5.	काउंसलिंग का दूसरा चक्र	6 अप्रैल—12 अप्रैल	6 अप्रैल—12 अप्रैल	15 अप्रैल—26 अप्रैल
6.	कार्यारंभ करने की अंतिम तारीख	22 अप्रैल	22 अप्रैल	3 मई
7.	मॉप—अपचक्र		12 मई—22 मई	4 मई—6 मई

8.	कार्यारंभ करने की अंतिम तारीख		26 मई	12 मई
9.	काउंसलिंग प्राधिकरण द्वारा चिकित्सा कॉलेजों में रिक्त सीटों की दस गुना के बराबर मेरिट के अनुसार विद्यार्थियों की सूची भेजना		27 मई	13 मई
10.	कार्यारंभ करने की अंतिम तारीख		31मई	18मई

डॉ. रीना नय्यर, सचिव (प्रभारी)

[विज्ञापन—III/4/असा./439/17]

पाद टिप्पणी : प्रधान विनियमावली, नामतः "स्नातकोत्तर चिकित्सा शिक्षा विनियमावली, 2000" भारत के राजपत्र के भाग–III खंड (4) में 7 अक्तूबर, 2000 को प्रकाशित की गई थी और इसे दिनांक 03/03/2001, 06/10/2001, 16/03/2005, 23/03/2006, 20/10/2008, 25/03/2009, 21/07/2009, 17/11/2009, 09/12/2009, 16/04/2010, 08/12/2010, 27/12/2010, 09/02/2012, 27/02/2012, 28/03/2012, 17/04/2013, 01/02/2016, 17/06/2016, 08/08/2016, 31/01/2017, 11/03/2017, 06/05/2017, 31/05/2017, 27/06/2017 और 31/07/2017 की अधिसूचना के अंतर्गत संशोधित किया गया था।

MEDICAL COUNCIL OF INDIA

NOTIFICATION

New Delhi, the 20th February, 2018

No. MCI-18(1)/2017-Med./174626.—In exercise of powers conferred by Section 33 of the Indian Medical Council Act, 1956 (102 of 1956), the Medical Council of India with the previous sanction of the Central Government hereby makes the following regulations to further amend the "Postgraduate Medical Education Regulations, 2000" namely:-

1. (i) These regulations may be called the "Postgraduate Medical Education (Amendment) Regulations, 2018.".

(ii) They shall come into force from the date of their publication in the Official Gazette.

2. In the "Postgraduate Medical Education Regulations, 2000", the following additions/modifications / deletions / substitutions, shall be as indicated therein:-

3. In the Appendix in "Postgraduate Medical Education Regulations, 2000", the time schedule for completion of admission process for postgraduate courses (Broad Speciality) stands substituted by the following :-

Admission schedule from the academic year 2018-19 onwards for Postgraduate courses (broad speciality) :-

S.No.	Schedule for Admission	Central Counselling		State Counselling
		All India Quota	Deemed + Central Institute	
1	Conduct of Exam	By 10th January		
2	Declaration of Result	By end of January		
3	Ist Round of Counselling	12th March-24th March,	12th March – 24th March	25th March- 5th April
4	Last date of Joining	3rd April,	3rd April	12th April
5	2nd round of Counselling	6th April – 12 April	6th April – 12th April	15th April-26th April

6	Last date of joining	22nd April	22nd April	3rd May
7	Mop up Round		12th May- 22nd May	4th May -8th May
8	Last date of joining		26th May	12th May
9	Forwarding the list of students in order of merit equalling to ten times the number of vacant seats to the Medical Colleges by the Counselling Authority		27th May	13th May
10	Last date of joining		31st May	18th May

Dr. REENA NAYYAR, Secy. I/c

[ADVT.-III/4/Exty./439/17]

Note : The Principal Regulations namely, "Postgraduate Medical Education Regulations, 2000" were published in Part III, Section 4 of the Gazette of India on 7th October, 2000 and amended *vide* Medical Council of India Notification dated 03/03/2001, 06/10/2001, 16/03/2005, 23/03/2006, 20/10/2008, 25/03/2009, 21/07/2009, 17/11/2009, 09/12/2009, 16/04/2010, 08/12/2010, 27/12/2010, 09/02/2012, 27/02/2012, 28/03/2012, 17/04/2013, 01/02/2016, 17/06/2016 and 08/08/2016, 31.01.2017, 11.03.2017, 06.05.2017, 31.05.2017, 27.06.2017 & 31.07.2017.

Uploaded by Dte. of Printing at Government of India Press, Ring Road, Mayapuri, New Delhi-110064
and Published by the Controller of Publications, Delhi-110054.

ALOK KUMAR
Digitally signed by ALOK KUMAR
Date: 2018.02.22 15:59:38 +05'30'

ANNEXURE -"DD"

Ministry of Home Affairs, Govt. of India, Gazette Notification dated 4th March 2021 & Hon'ble Supreme Court Order W.P.(C) No. 891 of 2021 regarding eligibility of OCI Candidates- relevant pages

रजिस्ट्री सं. डी.एल.- 33004/99 REGD. No. D. L.-33004/99

भारत का राजपत्र
The Gazette of India

सी.जी.-डी.एल.-अ.-04032021-225647
CG-DL-E-04032021-225647

असाधारण
EXTRAORDINARY

भाग II—खण्ड 3—उप-खण्ड (ii)
PART II—Section 3—Sub-section (ii)

प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 962] नई दिल्ली, बृहस्पतिवार, मार्च 4, 2021/फाल्गुन 13, 1942
No. 962] NEW DELHI, THURSDAY, MARCH 4, 2021/PHALGUNA 13, 1942

गृह मंत्रालय

अधिसूचना

नई दिल्ली, 4 मार्च, 2021

का.आ. 1050(अ).—केंद्रीय सरकार, नागरिकता अधिनियम, 1955 (1955 का 57) की धारा 7ख की उपधारा (1) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए तथा राजपत्र में प्रकाशित गृह मंत्रालय, भारत सरकार की अधिसूचना सं. का.आ. 542(अ), तारीख 11 अप्रैल, 2005 तथा राजपत्र में प्रकाशित तत्कालीन प्रवासी भारतीय कार्य मंत्रालय, भारत सरकार की अधिसूचना सं. का.आ. 12(अ), तारीख 5 जनवरी, 2007 तथा का.आ. 36(अ), तारीख 5 जनवरी, 2009 को, उन बातों के सिवाय अधिक्रांत करते हुए, जिन्हें ऐसे अधिक्रमण के पूर्व किया गया है या करने से लोप किया गया है, निम्नलिखित अधिकारों को विनिर्दिष्ट करती है जिनका कोई भारत का प्रवासी नागरिक कार्ड धारक राजपत्र में इस अधिसूचना के प्रकाशन की तारीख से हकदार होगा, अर्थात् :-

(1) किसी प्रयोजन के लिए भारत आने हेतु जीवन पर्यन्त बहु प्रवेश वीजा अनुदत्त करना:

परंतु निम्नलिखित क्रियाकलाप करने के लिए, भारत का प्रवासी नागरिक कार्ड धारक को सक्षम प्राधिकारी या विदेशी क्षेत्रीय रजिस्ट्रीकरण अधिकारी या संबंधित भारतीय मिशन से, यथास्थिति, विशेष अनुज्ञा या विशेष अनुज्ञप्ति प्राप्त करना अपेक्षित होगा, अर्थात्:-

(i) अनुसंधान करने के लिए;

(ii) किन्हीं मिशनरी या तबलीग़ या पर्वतारोहण या पत्रकारिता संबंधी क्रियाकलापों के लिए;

(iii) भारत में किन्हीं विदेशी राजनयिक मिशनों या विदेशी सरकारी संगठनों में इंटर्नशिप करने के लिए या भारत में किन्हीं विदेशी राजनयिक मिशनों में रोजगार के लिए;

(iv) किसी ऐसे स्थान पर भ्रमण के लिए, जो केंद्रीय सरकार या सक्षम प्राधिकारी द्वारा यथा अधिसूचित संरक्षित या निर्बंधित या प्रतिषिद्ध क्षेत्र है;

(2) भारत में किसी भी अवधि के ठहराव के लिए विदेशी क्षेत्रीय रजिस्ट्रीकरण अधिकारी या विदेशी रजिस्ट्रीकरण अधिकारी के पास रजिस्ट्रीकरण से छूट:

परंतु भारत के प्रवासी नागरिक कार्ड धारक, जो सामान्यतः भारत में निवासी हैं, अधिकारिता वाले विदेशी क्षेत्रीय रजिस्ट्रीकरण अधिकारी या विदेशी रजिस्ट्रीकरण अधिकारी को ई-मेल द्वारा सूचित करेंगे, जब कभी उनके स्थायी निवास के पते या उनके व्यवसाय में कोई परिवर्तन होता है;

(3) निम्नलिखित के विषय में भारत के राष्ट्रिकों से समानता,-

(i) भारत में घरेलू क्षेत्रों में वायुयान भाड़े के टैरिफ; और

(ii) भारत में राष्ट्रीय उद्यान, वन्यजीव अभ्यारण्य, राष्ट्रीय स्मारक, ऐतिहासिक स्थल और संग्रहालय देखने हेतु वसूल की जाने वाली प्रवेश फीस;

(4) निम्नलिखित के विषय में अनिवासी भारतीयों से समानता,-

(i) ऐसे दत्तक ग्रहण के लिए सक्षम प्राधिकारी द्वारा यथा अधिकथित प्रक्रिया के अनुपालन के अधीन रहते हुए, भारतीय बालकों का अंतर्देशीय दत्तक ग्रहण;

(ii) उन्हें केवल किसी अनिवासी भारतीय सीट या किसी अधिसंख्य सीट पर प्रवेश के लिए पात्र बनाने हेतु अखिल भारतीय प्रवेश परीक्षाओं, जैसे राष्ट्रीय पात्रता-सह-प्रवेश परीक्षा, संयुक्त प्रवेश परीक्षा (मुख्य), संयुक्त प्रवेश परीक्षा (उच्च) या ऐसी अन्य परीक्षाओं में सम्मिलित होना:

परंतु भारत का प्रवासी नागरिक कार्ड धारक विशिष्टतया भारत के नागरिकों के लिए आरक्षित किसी सीट पर प्रवेश के लिए पात्र नहीं होगा;

(iii) कृषि भूमि या फार्म हाउस या बागान संपत्ति से भिन्न अचल संपत्ति का क्रय या विक्रय; और

(iv) यथास्थिति, लागू सुसंगत परिनियमों या अधिनियमों में अंतर्विष्ट उपबंधों के अनुसार निम्नलिखित वृत्तियां करना, अर्थात्:-

(क) चिकित्सक, दंत चिकित्सक, परिचायिका और भेषजज्ञ;

(ख) अधिवक्ता;

(ग) वास्तुविद्;

(घ) चार्टर्ड अकाउन्टेंट;

(5) अन्य सभी आर्थिक, वित्तीय और शैक्षणिक क्षेत्रों के संबंध में, जिन्हें इस अधिसूचना में विनिर्दिष्ट नहीं किया गया है या विदेशी मुद्रा प्रबंध अधिनियम, 1999 (1999 का 42) के अधीन भारतीय रिजर्व बैंक द्वारा की गई अधिसूचनाओं के अंतर्गत नहीं आने वाले अधिकारों और विशेषाधिकारों के संबंध में भारत के प्रवासी नागरिक कार्ड धारक के वही अधिकार और विशेषाधिकार होंगे जो किसी विदेशी व्यक्ति के हैं।

स्पष्टीकरण,- इस अधिसूचना के प्रयोजनों के लिए,-

(1) भारत का प्रवासी नागरिक कार्ड धारक (जिसके अंतर्गत भारतीय मूल का व्यक्ति कार्ड धारक भी है) अन्य देश का पासपोर्ट धारण करने वाला विदेशी राष्ट्रिक है और भारत का नागरिक नहीं है।

(2) "अनिवासी भारतीय" का वही अर्थ होगा जो इसका विदेशी मुद्रा प्रबंध अधिनियम, 1999 1999 का 42) के अधीन भारतीय रिजर्व बैंक द्वारा बनाए गए विदेशी मुद्रा प्रबंध (भारत में अचल संपत्ति का अर्जन और अंतरण) विनियम, 2018 में उसका है तथा जो आयकर अधिनियम, 1961 (1961 का 43) के अनुसार "अनिवासी भारतीय" की प्रास्थिति को पूर्ण करता है।

[फा. सं. 26011/सीसी/05/2018-ओसीआई]

प्रमोद कुमार, निदेशक

MINISTRY OF HOME AFFAIRS

NOTIFICATION

New Delhi, the 4th March, 2021

S.O. 1050(E).— In exercise of the powers conferred by sub-section (1) of section 7B of the Citizenship Act, 1955 (57 of 1955) and in supersession of the notification of the Government of India in the Ministry of Home Affairs published in the Official Gazette *vide* number S.O. 542(E), dated the 11th April, 2005 and the notifications of the Government of India in the *erstwhile* Ministry of Overseas Indian Affairs published in the Official Gazette *vide* numbers S.O. 12(E), dated the 5th January, 2007 and S.O. 36(E), dated the 5th January, 2009, except as respect things done or omitted to be done before such supersession, the Central Government hereby specifies the following rights to which an Overseas Citizen of India Cardholder (hereinafter referred to as the OCI cardholder) shall be entitled, with effect from the date of publication of this notification in the Official Gazette, namely:—

(1) grant of multiple entry lifelong visa for visiting India for any purpose:

Provided that for undertaking the following activities, the OCI cardholder shall be required to obtain a special permission or a Special Permit, as the case may be, from the competent authority or the Foreigners Regional Registration Officer or the Indian Mission concerned, namely:-

(i) to undertake research;

(ii) to undertake any Missionary or Tabligh or Mountaineering or Journalistic activities;

(iii) to undertake internship in any foreign Diplomatic Missions or foreign Government organisations in India or to take up employment in any foreign Diplomatic Missions in India;

(iv) to visit any place which falls within the Protected or Restricted or prohibited areas as notified by the Central Government or competent authority;

(2) exemption from registration with the Foreigners Regional Registration Officer or Foreigners Registration Officer for any length of stay in India:

Provided that the OCI cardholders who are normally resident in India shall intimate the jurisdictional Foreigners Regional Registration Officer or the Foreigners Registration Officer by email whenever there is a change in permanent residential address and in their occupation;

(3) parity with Indian nationals in the matter of,-

(i) tariffs in air fares in domestic sectors in India; and

(ii) entry fees to be charged for visiting national parks, wildlife sanctuaries, the national monuments, historical sites and museums in India;

(4) parity with Non-Resident Indians in the matter of,-

(i) inter-country adoption of Indian children subject to the compliance of the procedure as laid down by the competent authority for such adoption;

(ii) appearing for the all India entrance tests such as National Eligibility cum Entrance Test, Joint Entrance Examination (Mains), Joint Entrance Examination (Advanced) or such other tests to make them eligible for admission only against any Non-Resident Indian seat or any supernumerary seat:

Provided that the OCI cardholder shall not be eligible for admission against any seat reserved exclusively for Indian citizens;

(iii) purchase or sale of immovable properties other than agricultural land or farm house or plantation property; and

(iv) pursuing the following professions in India as per the provisions contained in the applicable relevant statutes or Acts as the case may be, namely:-

(a) doctors, dentists, nurses and pharmacists;

(b) advocates;

(c) architects;

(d) chartered accountants;

(5) in respect of all other economic, financial and educational fields not specified in this notification or the rights and privileges not covered by the notifications made by the Reserve Bank of India under the Foreign Exchange Management Act, 1999 (42 of 1999), the OCI cardholder shall have the same rights and privileges as a foreigner.

***Explanation.*— For the purposes of this notification,—**

(1) The OCI Cardholder (including a PIO cardholder) is a foreign national holding passport of a foreign country and is not a citizen of India.

(2) "Non-Resident Indian" shall have the same meaning as assigned to it in the Foreign Exchange Management (Acquisition and Transfer of Immovable Property in India) Regulations, 2018 made by the Reserve Bank of India under the Foreign Exchange Management Act, 1999 (42 of 1999) and who fulfils the "Non-Resident Indian" status as per the Income Tax Act, 1961 (43 of 1961).

[F. No. 26011/CC/05/2018-OCI]

PRAMOD KUMAR, Director

Uploaded by Dte. of Printing at Government of India Press, Ring Road, Mayapuri, New Delhi-110064
and Published by the Controller of Publications, Delhi-110054. ALOK KUMAR

2023 INSC 99

REPORTABLE

IN THE SUPREME COURT OF INDIA

CIVIL ORIGINAL/APPELLATE JURISDICTION

WRIT PETITION (C) NO.891 OF 2021

Anushka Rengunthwar & Ors. .... Petitioner(s)

Versus

Union of India & Ors. .... Respondent(s)

WITH

Writ Petition (C) No.503/2022,

Writ Petition (C) No.35/2022,

Writ Petition (C) No.246/2022,

Writ Petition (C) No.155/2022,

Writ Petition (C) No.347/2022,

Writ Petition (C) No.380/2022,

Writ Petition (C) No.322/2022,

Writ Petition (C) No.629/2022,

Writ Petition (C) No.740/2022,

Writ Petition (C) No.706/2022,

Writ Petition (C) No.741/2022,

Civil Appeal No. 812/2023
(arising out of SLP(C) No. 16306/2022)

Writ Petition (C) No.22/2022,

Writ Petition (C) No.1070/2022,

away the rights which were conferred also as a matter of policy of the Sovereign State.

57. Hence, the notification being sustainable prospectively, we hereby declare that the impugned portion of the notification which provides for supersession of the notifications dated 11.04.2005, 05.01.2007 and 05.01.2009 and the clause 4(ii), its proviso and Explanation (1) thereto shall operate prospectively in respect of OCI cardholders who have secured the same subsequent to 04.03.2021.

58. We further hold that the petitioners in all these cases and all other similarly placed OCI cardholders will be entitled to the rights and privileges which had been conferred on them earlier to the notification dated 04.03.2021 and could be availed by them notwithstanding the exclusion carved out in the notification dated 04.03.2021. The participation of the petitioners and similarly placed OCI cardholders in the selection process and the subsequent action based on

the interim orders passed herein or elsewhere shall stand regularised.

59. Notwithstanding the fact that we have held the impugned notification dated 04.03.2021 to be valid with specific prospective effect in view of the power available to respondent No.1 under Section 7B(1) of Act, 1955, keeping in perspective the wide ramification it may have in future also on the Indian diaspora and since it is claimed to be based on the policy decision of the Sovereign State, we expect that the same would be examined in the higher echelons of the Executive with reference to the rights already created.

60. In terms of the above, all these petitions/ appeals are allowed in part to the above extent with no order as to costs.

61. Pending application, if any, stands disposed of.

.....J.
(A.S. BOPANNA)

.....J
(C.T. RAVIKUMAR)

NEW DELHI;
FEBRUARY 03, 2023

ANNEXURE -"EE"

National Medical Commission Circular dated 24/07/2023

दूरभाष/Phone : 25367033, 25367035, 25367036
फैक्स/Fax : 0091-11-25367024
ई-मेल/E-mail : pgmeb@nmc.org.in

पॉकेट -14, सेक्टर-8, द्वारका, फेस1-, नई दिल्ली77-
Pocket- 14, Sector- 8, Dwarka,
Phase – 1, New Delhi-77

राष्ट्रीय आयुर्विज्ञान आयोग

National Medical Commission

स्नातकोत्तर आयुर्विज्ञान शिक्षा बोर्ड

Post Graduate Medical Education Board (PGMEB)

File No. N-P018(20)/5/2023-PGMEB-NMC/044351 **Date:** 24-7-23

To,

1. Principal Secretary of Health of all States/UTs
2. The Director, Directorate of Medical Education of all States/UTs/Medical Counselling Authority.

Subject: **Online Counselling for NEET PG courses.**

Dear Sir/Madam,

As per the Orders of Hon'ble Supreme Court of India in I.A. No. 132614/2022 in WP(C) 267/2017, the Medical Counselling Committee (MCC) of DGHS, Ministry of Health & Family Welfare shall conduct Online Counselling for stray vacancy round for 100% seats in Deemed Universities in UG & PG courses.

2. All the State Counselling Agencies are requested to make necessary arrangement for conducting the counselling in online mode, for all rounds including stray vacancy round in Private Medical Colleges, from the academic year 2023-24. No College/Institute should conduct the counselling, including the stray vacancy round, in physical mode.

3. It will help in tackling the issue of seat blocking & complaints/court cases related to counselling.

4. This issues with the approval of Competent Authority.

Yours faithfully,

24/7/23

(Aujender Singh)
Deputy Secretary, PGMEB

O/C

ANNEXURE "FF"

Government Letter no. MED-1024/C.R. 178/24/Edu-2, dated 06/06/2024 for SEBC Category Reservation.

महाराष्ट्र शासन
वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग,
गो.ते.रूग्णालय आवार, ९ वा मजला,
लोकमान्य टिळक मार्ग, नवीन मंत्रालय,
मुंबई - ४०० ००१.

क्र.एमईडी-१०२४/प्र.क्र.१७८/२४/शि-२ दि.०६/०६/२०२४

प्रति,
आयुक्त,
वैद्यकीय शिक्षण, संशोधन व आयुष,
मुंबई.

विषय:-शैक्षणिक वर्ष २०२४-२५ करीताच्या आरोग्य विज्ञान विद्यापीठाच्या अभ्यासक्रमांच्या प्रवेश प्रक्रियेमध्ये मराठा समाजातील विद्यार्थ्यांना देण्यात येणाऱ्या आरक्षणाबाबत.

संदर्भ:-आपले पत्र क्र.संवैशिवसं/मराठा आरक्षण/प्रवेश प्रक्रिया/१३७/२०२४, दि.०७/०५/२०२४

महोदय,

आपल्या विषयांकित संदर्भाधीन पत्राच्या अनुषंगाने कळविण्यात येते की, शासकीय/शासन अनुदानित तसेच खाजगी विनाअनुदानित आरोग्य विज्ञान अभ्यासक्रमांच्या शैक्षणिक संस्थांमधील/महाविद्यालयांतील शैक्षणिक वर्ष २०२४-२५ करिताच्या "महाराष्ट्र राज्यातील सामाजिक व शैक्षणिकदृष्ट्या मागासवर्गांकरीता आरक्षण अधिनियम, २०२४" मधील तरतुदीनुसार राज्यस्तरीय कोट्याकरीता एकूण उपलब्ध जागांपैकी १० टक्के जागा सामाजिक व शैक्षणिकदृष्ट्या मागासवर्ग प्रवर्गासाठी आरक्षित ठेवण्यात याव्यात.

२. सदर आरक्षण हे मा. उच्च न्यायालय, मुंबई येथे दाखल असलेल्या रिट याचिका क्र.३४६८/२०२४ व इतर मधील भविष्यातील निर्णयास अधीन राहील. प्रवेश प्रक्रियेच्या नियमपुस्तिकेत सदर बाब प्रवेशोच्छुक उमेदवारांच्या माहितीकरिता विवक्षितपणे नमूद करणे आवश्यक राहील.

आपला,
06/06/2024
(नि. ब. महाडीक)
कक्ष अधिकारी, महाराष्ट्र शासन

प्रत- माहिती व आवश्यक कार्यवाहीसाठी
१. संचालक, वैद्यकीय शिक्षण व संशोधन संचालनालय, मुंबई
२. संचालक, आयुष संचालनालय, मुंबई
३. निवडनस्ती (शिक्षण-२ कार्यासन)

मराठा समाजातील शैक्षणिक प्रवेश घेणाऱ्या विद्यार्थ्यांना इतर मागास प्रवर्गाप्रमाणे शैक्षणिक सवलती व इतर सर्व लाभ अनुज्ञेय करण्याबाबत...

महाराष्ट्र शासन
सामान्य प्रशासन विभाग
शासन निर्णय क्रमांक : मअसे २०२४/प्र.क्र.१९ /१६-क
हुतात्मा राजगुरु चौक, मादाम कामा रोड,
मंत्रालय, मुंबई - ४०० ०३२.
दिनांक - २५ जानेवारी, २०२४

वाचा:- १) सामान्य प्रशासन विभाग, शा.नि.क्र. बीसीसी २०२०/प्र.क्र.२९५/१६ ब, दि.९.१०.२०२०
२) उच्च व तंत्र शिक्षण विभाग, शा.नि.क्र.संकीर्ण २०२०/प्र.क्र.१४०/तांशि-४, दि.१६.१२.२०२०

प्रस्तावना :-

महाराष्ट्र राज्य सामाजिक आणि शैक्षणिक मागास (एसईबीसी) वर्गाकरीता (राज्यातील शैक्षणिक संस्थांमधील जागांच्या प्रवेशाची आणि राज्यातील नियंत्रणाखाली लोकसेवांमधील नियुक्त्यांचे किंवा पदांचे) आरक्षण अधिनियम २०१८, मा. सर्वोच्च न्यायालयाने दि.५.०५.२०२१ रोजी अवैध ठरविला. राज्यात आरक्षण अधिनियम अस्तित्वात नसल्याने, मराठा समाजातील मुलांना शैक्षणिक सुविधांपासून वंचित राहू नये यास्तव, मा.मंत्रिमंडळाच्या मान्यतेने, संदर्भ क्र. १ येथील दि.९.१०.२०२० रोजीच्या शासन निर्णयान्वये विविध सवलती देण्यात आल्या. तसेच संदर्भ क्र. २ येथील दि.१६.१२.२०२० अन्वये राजर्षी छत्रपती शाहू महाराज शिक्षण शुल्क शिष्यवृत्ती योजना व डॉ. पंजाबराव देशमुख वसतिगृह निर्वाह भत्ता योजना खुल्या प्रवर्गातून प्रवेश घेणाऱ्या मराठा समाजातील विद्यार्थ्यांना लागू करण्यात आली. तसेच ईडब्ल्यूएस प्रवर्गातून प्रवेश घेणाऱ्या विद्यार्थ्यांना सुध्दा सदर लाभ अनुज्ञेय करण्यात आला. ईडब्ल्यूएस आरक्षणाचे निकष हे इतर मागास प्रवर्गाच्या निकषापेक्षा भिन्न असल्याने मराठा समाजातील विद्यार्थी काही शैक्षणिक लाभापासून वंचित राहत आहेत.

मराठा आरक्षणासाठी श्री. मनोज जरांगे पाटील व मराठा समाजाचे इतर आंदोलनकर्ते यांचे राज्यात मराठा आरक्षणासाठी विविध स्तरावर आंदोलने सुरु आहेत. त्यानुसार श्री. मनोज जरांगे पाटील यांनी त्यासंदर्भात केलेला सततचा पाठपुरावा व मराठा बांधवांच्या विविध मागण्या लक्षात घेता, राज्य शासन मराठा आरक्षणासाठी सकारात्मक प्रतिसाद देण्याच्या दृष्टीने मराठा समाजासाठी विविध स्तरावर कार्यवाही करण्यात येत आहे. मराठा समाजाचे सामाजिक, शैक्षणिक व आर्थिक मागासलेपण तपासण्यासाठी सर्वेक्षणाचे काम युध्द पातळीवर राज्य मागासवर्ग आयोगामार्फत करण्यात येत आहे. अशा परिस्थिती मराठा समाजातील विद्यार्थी कोणताही शैक्षणिक लाभापासून वंचित राहू नयेत यास्तव, मा.मराठा आरक्षण मंत्रिमंडळ उपसमितीच्या बैठकीत झालेल्या चर्चेनुसार, मराठा समाजास इतर मागास प्रवर्गाप्रमाणे सर्व शैक्षणिक लाभ अनुज्ञेय करण्याची बाब शासनाच्या विचाराधीन होती.

पृष्ठ ३ पैकी १

शासन निर्णय -

मराठा समाजातील विद्यार्थी आरक्षणाअभावी कोणत्याही शैक्षणिक सवलतीपासून वंचित राहू नयेत यास्तव, इतर मागास प्रवर्गातील विद्यार्थ्यांना मिळणाऱ्या सर्व शैक्षणिक सोयी-सुविधा व सवलती मराठा समाजातील विद्यार्थ्यांना लागू करण्यात येत आहे.

सदर आदेश शासन निर्णय निर्गमित केल्याच्या दिनांकापासून लागू राहतील.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आले असून त्याचा संगणक सांकेतांक २०२४०१३०१८२७४५६३०७ असा आहे. हे शासन परिपत्रक डिजीटल स्वाक्षरीने साक्षांकित करून काढण्यात येत आहे.

SUMANT NAMDEORAO BHANGE

Digitally signed by SUMANT NAMDEORAO BHANGE
DN: cn=IN, o=GOVERNMENT OF MAHARASHTRA, ou=SOCIAL JUSTICE AND SPECIAL ASSISTANCE DEPARTMENT, 2.5.4.20=17b7f711996a30f5dadd3859d04bfb54ed8b2dd1177972936de56dce9a4daa38e, postalCode=400032, st=Maharashtra, serialNumber=1FB1B4B850CC3E5A74179F14C10EC607D89BEA3022F75E225829CC7525E64558, cn=SUMANT NAMDEORAO BHANGE
Date: 2024.01.30 18:29:09 +05'30'

(सुमंत भांगे)
सचिव(साविस), महाराष्ट्र शासन

प्रति,

१. मा. विरोधीपक्ष नेता, महाराष्ट्र विधानसभा/ विधानपरिषद,महाराष्ट्र विधानमंडळ सचिवालय,मुंबई.
२. मा. सर्व सन्माननिय विधानसभा/ विधानपरिषद,व संसद सदस्य महाराष्ट्र राज्य
३. मा. राज्यपालांचे प्रधान सचिव, राजभवन, मलबारहिल, मुंबई.
४. मा. मुख्यमंत्र्यांचे अप्पर मुख्य सचिव/ प्रधान सचिव/सचिव, मंत्रालय, मुंबई.
५. महाराष्ट्र विधानमंडळ सचिवालय, (विधान परिषद) विधानभवन, मुंबई.
६. प्रधान सचिव, महाराष्ट्र विधानमंडळ सचिवालय, (विधान सभा) विधानभवन, मुंबई.
७. शासनाचे सर्व अपर मुख्य सचिव / प्रधान सचिव / सचिव.
८. महालेखापाल, लेखा व अनुज्ञेयता, महाराष्ट्र-१, मुंबई,
९. महालेखापाल, लेखा व अनुज्ञेयता, महाराष्ट्र-२, नागपूर,
१०. महासंचालक, माहिती व जनसंपर्क संचालनालय, मंत्रालय, मुंबई.
११. प्रबंधक, मा.उच्च न्यायालय, मुळ न्याय शाखा, मुंबई, औरंगाबाद, नागपूर.
१२. प्रबंधक, मा.उच्च न्यायालय, अपिल शाखा, मुंबई, औरंगाबाद, नागपूर.
१३. प्रबंधक, मा. महाराष्ट्र प्रशासकीय न्यायाधिकरण, मुंबई, औरंगाबाद, नागपूर.
१४. प्रबंधक, मा. लोक आयुक्त व उप लोक आयुक्त, मुंबई.
१५. सर्व विभागीय आयुक्त/सर्व जिल्हाधिकारी/सर्व विभागीय जिल्हाधिकारी/उप विभागीय अधिकारी (प्रांत अधिकारी)/ सर्व तालुका दंडाधिकारी तथा तहसिलदार, महाराष्ट्र राज्य.
१६. सर्व जिल्हा परिषदांचे मुख्य कार्यकारी अधिकारी, महाराष्ट्र राज्य.
१७. सचिव, महाराष्ट्र लोकसेवा आयोग, मुंबई.
१८. उप सचिव (आस्थापना शाखा), सर्व मंत्रालयीन विभाग, मंत्रालय, मुंबई.
१९. सर्व मंत्री/राज्यमंत्री यांचे खाजगी सचिव ,मंत्रालय, मुंबई.
२०. मा. मुख्य सचिव यांचे स्वीय सहायक, मंत्रालय, मुंबई.
२१. सचिव, राज्य निवडणूक आयोग, मुंबई.
२२. सचिव, राज्य माहिती आयोग, मुंबई.
२३. सरकारी वकील, उच्च न्यायालय, मुळ शाखा व अपील शाखा, मुंबई, औरंगाबाद, नागपूर,
२४. सरकारी वकील, महाराष्ट्र प्रशासकीय न्यायाधिकरण, मुंबई, औरंगाबाद, नागपूर,
२५. सर्व महानगरपालिकांचे आयुक्त ,

पृष्ठ ३ पैकी २

२६. सर्व मुख्याधिकारी, नगरपरिषदा/नगरपालिका,
२७. सर्व महामंडळे , मंडळे आणि सार्वजनिक उपक्रम यांचे व्यवस्थापकीय संचालक,
२८. सर्व मान्यताप्राप्त राजकीय पक्षांची मध्यवर्ती कार्यालये, महाराष्ट्र राज्य
२९. निवडनस्ती १६ क.

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र
असाधारण भाग आठ

वर्ष १०, अंक ७(४)] सोमवार, फेब्रुवारी २६, २०२४/फाल्गुन ७, शके १९४५ [पृष्ठे ७, किंमत : रुपये २७.००

असाधारण क्रमांक २३

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra State Reservation for Socially and Educationally Backward Classes Act, 2024 (Mah. Act No. XVI of 2024), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XVI OF 2024

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 26th February 2024).

An Act to specify certain communities as the Socially and Educationally Backward Classes in relation to the State of Maharashtra and to provide for reservation of seats for admission in educational institutions in the State and for reservation of posts for appointments in public services and posts under the State to such Socially and Educationally Backward Classes in the State of Maharashtra for their advancement and for matters connected therewith or incidental thereto.

WHEREAS it is expedient to specify certain communities as the Socially and Educationally Backward Classes in relation to the State of Maharashtra and to provide for reservation of seats for admission in educational institutions in the State and for reservation of posts for appointments in public services and posts under the State to such Socially

and Educationally Backward Classes in the State of Maharashtra for their advancement and for matters connected therewith or incidental thereto; it is hereby enacted in the Seventy-fifth Year of the Republic of India, as follows :—

Short title and commencement.

1. *(1)* This Act may be called the Maharashtra State Reservation for Socially and Educationally Backward Classes Act, 2024.

(2) It shall come into force on the date of publication of this Act in the *Official Gazette*.

Definitions.

2. *(1)* In this Act, unless the context otherwise requires,—

(a) "admission authority", in relation to admissions to educational institutions, means the authority having supervisory and controlling powers over the educational institutions responsible for admissions to particular educational institutions ;

(b) "appointing authority", in relation to public services and posts, means the authority empowered to make appointments to such services and posts ;

(c) "Competent Authority" means the Competent Authority appointed under section 7 ;

(d) "educational institutions" includes the educational institutions in the State of Maharashtra owned and controlled by the Government, which receives grant-in-aid from the Government, universities established by or under the relevant Maharashtra Acts, private educational institutions, whether aided or un-aided by the State, other than the minority educational institutions referred to in clause (*1*) of article 30 of the Constitution of India.

Explanation.—For the purposes of this clause, the expression "private educational institutions" means institutions which have been given either prior to coming into force of this Act or thereafter, aid in the form of Government land at concessional rates or any other monetary concessions by the Government, or are recognized, permitted, supervised or controlled by the Government ;

(e) "establishment" means any office of the Government or of a local authority or statutory authority constituted under any Act of the State Legislature for the time being in force, or university or company or corporation or co-operative society in which share capital is held by the Government or any Government aided institutions.

Explanation.—For the purposes of this clause, the expression "Government aided institutions" shall also include institutions or industries which have been given, either prior to coming into force of this Act or thereafter, aid in the form of Government land at concessional rates or any other monetary concessions by the Government or is recognized, licensed, supervised or controlled by the Government ;

(f) "Government" or "State Government" means the Government of Maharashtra ;

(g) "prescribed" means prescribed by rules made under this Act ;

(h) "public services and posts" means the services and posts in connection with the affairs of the State and includes services and posts in,—

(i) a local authority ;

Mah. XXIV of 1961.

(ii) a co-operative society registered under the Maharashtra Co-operative Societies Act, 1960, in which the Government is a share holder ;

(iii) a board or a corporation or a statutory body established by or under a Central Act or a State Act which is owned and controlled by the Government, or a Government company as defined in the Companies Act, 2013 ;

18 of 2013.

(iv) an educational institution owned and controlled by the Government, which receives grant-in-aid from the Government including a university established by or under a Maharashtra Act; and

(v) any other establishment in respect of which reservation was applicable by Government orders on the date of commencement of this Act and which are not covered under sub-clauses *(i)* to *(iv)* ;

(i) "reservation" means the reservation of seats, for admission in educational institutions and reservation of posts for appointments in the public services and posts to the persons belonging to Socially and Educationally Backward Classes in the State ;

(j) "Socially and Educationally Backward Classes" means the Socially and Educationally Backward Classes as specified under this Act for the purposes of the State of Maharashtra in accordance with article 342A of the Constitution of India ;

(k) "State" means the State of Maharashtra.

(*2*) The words and expressions used in this Act, but not defined, shall have the same meanings respectively assigned to them in the Maharashtra State Public Services (Reservation for Scheduled Castes, Scheduled Tribes, De-notified Tribes (*Vimukta Jatis*), Nomadic Tribes, Special Backward Category and Other Backward Classes) Act, 2001.

Mah. VIII of 2004.

3. The Maratha Community is hereby specified as the Socially and Educationally Backward Class for the purposes of the State.

Socially and Educationally Backward Class in State.

4. *(1)* This Act shall apply to all the direct recruitments and appointments made in the public services and posts in the State except,-

Applicability.

(a) the super specialized posts in medical, technical and educational field ;

(b) the posts to be filled by transfer or deputation ;

(c) the temporary appointments of less than forty-five days duration ; and

(d) the post which is single (isolated) in any cadre or grade.

(*2*) This Act shall also apply, for admissions in educational institutions including private educational institutions, whether aided or un-aided by the State, other than the minority educational institutions referred to in clause (*1*) of article 30 of the Constitution of India.

(*3*) The State Government shall, while entering into or renewing an agreement with any educational institution or any establishment for the grant of any aid as provided in the explanation to clauses *(d)* and *(e)* of section 2, respectively, incorporate a condition for compliance of the provisions of this Act, by such educational institution or establishment.

(*4*) For the removal of doubts, it is hereby declared that nothing in this Act shall affect the reservation provided to the Other Backward Classes under the Maharashtra State Public Services (Reservation for Scheduled Castes, Scheduled Tribes, De-notified Tribes (*Vimukta Jatis*), Nomadic Tribes, Special Backward Category and Other Backward Classes) Act, 2001 and the Maharashtra Private Professional Educational Institutions (Reservation of seats for admission for Scheduled Castes, Scheduled Tribes, De-notified Tribes (*Vimukta Jatis*), Nomadic Tribes and Other Backward Classes) Act, 2006. Mah. VIII of 2004. Mah. XXX of 2006.

Reservation of seats for admission in educational institutions, appointments in public services and posts under State for Socially and Educationally Backward Classes.

5. (*1*) Notwithstanding anything contained in any judgment, decree or order of any court or other authority, and subject to the other provisions of this Act,—

(a) ten per cent. of the total seats in educational institutions including private educational institutions, whether aided or un-aided by the State, other than minority educational institutions referred to in clause (*1*) of article 30 of the Constitution of India ; and

(b) ten per cent. of the total appointments in direct recruitment in public services and posts under the State,

shall be separately reserved for the Socially and Educationally Backward Classes :

Provided that, the above reservation shall not be applicable to the posts reserved in favour of the Scheduled Tribes candidates in the Scheduled Areas of the State under the Fifth Schedule to the Constitution of India as per the notification issued, from time to time, by the Governor, in this behalf.

(*2*) The principle of Creamy Layer shall be applicable for the purposes of reservation to the Socially and Educationally Backward Classes under this Act and reservation under this Act shall be available only to the persons belonging to the Socially and Educationally Backward Classes who are not falling in Creamy Layer.

Explanation.—For the purposes of this sub-section, the expression "Creamy Layer" means the person falling in the category of Creamy Layer as declared by the Government by general or special orders issued in this behalf, from time to time.

Reservation not to be affected.

6. Notwithstanding anything contained in section 5, the claims of students or persons belonging to Socially and Educationally Backward Classes shall also be considered for the allotment on unreserved seats and appointments on public services and posts which shall be filled on the basis of merit, and where students or persons belonging to such classes is selected on the basis of merit, the number of seats and appointments reserved for the Socially and Educationally Backward Classes, shall not in any way be affected.

Competent Authority.

7. (*1*) The Government may, by notification in the *Official Gazette*, appoint any officer not below the rank of the District Social Welfare Officer to be the Competent Authority for such area as may be specified in such

notification for the purposes of carrying out the provisions of this Act and the rules made thereunder.

(*2*) The Competent Authority shall exercise such powers and perform such functions, as may be prescribed.

Carrying forward of reserved vacancies.

8. (*1*) If in respect of any recruitment year, any vacancy reserved for Socially and Educationally Backward Classes of persons remains unfilled, such vacancy shall be carried forward upto five years in case of direct recruitment :

Provided that, on the date of commencement of this Act, if any Government Order, Resolution, Circular and Office Memorandum regarding filling of posts is in force then, the same shall continue to be in force unless modified or revoked by the Government :

Provided further that, if the sanctioned posts are not adequate to allocate atleast one post for each reserved category, then the reserved post shall be filled in by applying the principle of rotation in accordance with the Government roster orders or rules as may be prescribed or modified in this behalf.

(*2*) When a vacancy is carried forward as provided in sub-section (*1*), it shall not be counted against the quota of the vacancies reserved for the concerned classes of persons for the recruitment year to which it is carried forward :

Provided that, the appointing authority may, at any time, undertake a special recruitment drive to fill up such unfilled vacancies and if such vacancies remain unfilled even after such special recruitment drive then, it shall be filled up in the manner prescribed by the Government.

Responsibility and powers for compliance of Act.

9. (*1*) The Government may, by order in writing, entrust upon every admission authority or appointing authority or any officer under such authority, with the responsibility of ensuring the compliance with the provisions of this Act.

(*2*) The Government may, in the like manner, invest the admission authority or appointing authority or officer with such powers or authority as may be necessary for such authority or officer, to effectively discharge such duty assigned to such authority or officer.

Penalty.

10. (*1*) Any admission authority or appointing authority or officer or employee entrusted with the duty or responsibility who willfully acts in a manner intended to contravene or defeat the purposes of this Act shall, on conviction, be punished with imprisonment for a term which may extend to ninety days or fine, which may extend to twenty-five thousand rupees, or with both.

(*2*) No court shall take cognizance of an offence punishable under this section except with the previous sanction of the Government or officer authorized in this behalf by the Government.

Power to call for records.

11. When it comes to the notice of the Government or is brought to its notice that any person belonging to Socially and Educationally Backward Classes is adversely affected, on account of non-compliance with the provisions of this Act or the rules made thereunder or the Government orders

issued in this behalf, by any admission authority or appointing authority, it may call for such records and pass such appropriate orders as it deems fit.

Procedure of issuance of Caste Certificate and Validity Certificate.

12. The provisions of the Maharashtra Scheduled Castes, Scheduled Tribes, De-notified Tribes (*Vimukta Jatis*), Nomadic Tribes, Other Backward Classes and Special Backward Category (Regulation of Issuance and Verification of) Caste Certificate Act, 2000 and the Maharashtra Scheduled Castes, De-notified Tribes (*Vimukta Jatis*), Nomadic Tribes, Other Backward Classes and Special Backward Category (Regulation of Issuance and Verification of) Caste Certificate Rules, 2012, shall *mutatis mutandis* apply for issuance of Caste Certificate and Validity Certificate for Maratha Community as Socially and Educationally Backward Class, for the purposes of this Act. Mah. XXIII of 2001.

Representation in selection committee.

13. The Government may, by an order, provide for nomination of officers belonging to Socially and Educationally Backward Classes in selections, screening and departmental committee for the purpose of selecting persons for appointment to public services and posts.

Irregular admissions and appointments void.

14. Any admissions or appointments made in contravention of the provisions of this Act shall be void.

Competent Authority to be public servant.

15. The Competent Authority appointed under section 7 shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code. 45 of 1860.

Protection of action taken in good faith.

16. No suit, prosecution or other legal proceeding shall lie against the Competent Authority or its officers, for anything which is in good faith done or intended to be done under this Act or the rules or orders made thereunder.

Power to make rules.

17. (*1*) The State Government may, by notification in the *Official Gazette*, make rules to carry out the purposes of this Act.

(*2*) Every rule made under this Act shall be laid, as soon as may be, after it is made, before each House of the State Legislature, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in any rule or both Houses agree that the rule should not be made, and notify their decision to that effect in the *Official Gazette*, the rule shall, from the date of publication of notification of such decision have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

Savings.

18. (*1*) The provisions of this Act shall not apply to the cases in which selection process has already been initiated before the commencement of this Act, and such cases shall be dealt with in accordance with the provisions of law and the Government orders as they stood before such commencement.

Explanation.—For the purposes of this section, the selection process shall be deemed to have been initiated where, under the relevant service rules,—

(*i*) recruitment is to be made on the basis of written test or interview only, and such written test or the interview, as the case may be, has started; or

(ii) recruitment is to be made on the basis of both, written test and interview and such written test has started.

(*2*) The provisions of this Act shall not apply to admissions in educational institutions and the cases in which the admission process has already been initiated before the commencement of this Act and such cases shall be dealt with in accordance with the provisions of law and the Government orders, as they stood before such commencement.

Explanation.- For the purposes of this section, the admission process shall be deemed to have initiated where,—

(i) admission is to be made on the basis of any entrance test, and procedure for such entrance test has started; or

(ii) in case of admission to be made other than on the basis of entrance test, the last date for filling the form is lapsed.

Power to remove difficulty.

19. (*1*) If any difficulty arises in giving effect to the provisions of this Act, the Government may, as occasion arises, by an order published in the *Official Gazette*, do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for the purpose of removing the difficulty :

Provided that, no such order shall be made after expiry of the period of two years from the date of commencement of this Act.

(*2*) Every order made under sub-section *(1)* shall be laid, as soon as may be, after it is made, before each House of the State Legislature.

Repeal and saving.

Mah. LXII of 2018.

20. *(1)* The Maharashtra State Reservation (of seats for admission in educational institutions in the State and for appointments in the public services and posts under the State) for Socially and Educationally Backward Classes (SEBC) Act, 2018 is hereby repealed.

1 of 1904.

(2) The provisions of section 7 of the Maharashtra General Clauses Act with regard to effect of repeal shall apply.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

ANNEXURE "GG"

Director Medical Education & Research Letter No. DMER-11011/9/2022-CETIT dated 06/06/2023

DMER-11011/9/2022-CETIT

I/67657/2023

महाराष्ट्र शासन

संचालनालय, वैद्यकीय शिक्षण व संशोधन,

४था मजला, शासकीय दंत महाविद्यालय व रुग्णालय इमारत, सेंट जॉर्जेस रुग्णालय आवार,फोर्ट, मुंबई -400 001
दुरध्वनी - (022) - 22620363 (विस्तार - 339) ईमेल - dmer.cetit@maharashtra.gov.in

DMER-11011/9/2022-CETIT दिनांक : 06/06/2023

प्रति,

अधिष्ठाता/प्राचार्य,

1. सर्व शासकीय/महानगरपालिका वैद्यकीय महाविद्यालये, महाराष्ट्र राज्य.
2. सर्व शासकीय/महानगरपालिका दंत महाविद्यालये, महाराष्ट्र राज्य.
3. सर्व शासकीय/शासन अनुदानित आयुर्वेद महाविद्यालये, महाराष्ट्र राज्य.
4. सर्व आरोग्य विज्ञान अभ्यासक्रमाची शासकीय/महानगरपालिका/शासन अनुदानित महाविद्यालये, महराष्ट्र राज्य

विषय : **शासकीय व शासन अनुदानित आरोग्य विज्ञान अभ्यासक्रमाच्या महाविद्यालयातील पदवी व पदव्युत्तर विद्यार्थ्यांसाठी शैक्षणिक वर्ष 2023-24 ते 2027-28 पर्यंतचे सुधारीत शैक्षणिक शुल्काच्या दराच्या निश्चितीबाबत...**

संदर्भ :
1. **शासन निर्णय क्रमांक एएमसी -1007/628/प्र.क्र.148/07/शिक्षण - 2, दिनांक 1 मार्च, 2011.**
2. **संचालनालयाचे पत्र क्रं. संवैशिवसं/शै.शु./सुधारीत दर/आविअ/न.क्र.4 /2012/1-अ दिनांक 2.04.2012**
3. **संचालनालयाचे पत्र क्रं. संवैशिवसं/शै.शु./सुधारीत दर/आविअ/ न.क्र.4/2012/1-अ दिनांक 04.07.2017**
4. **संचालनालयाचे पत्र क्रं. DMER-11011/9//2022-CETIT दिनांक 25.04.2022**

शासन निर्णय दिनांक 01.03.2011 निर्णयान्वये शासनाने शासकीय व शासन अनुदानित आरोग्य विज्ञान अभ्यासक्रमाच्या महाविद्यालयातील पदवी व पदव्युत्तर विद्यार्थ्यासाठी शैक्षणिक वर्ष 2011-2012 पासुन शैक्षणिक शुल्काचे दर खालीलप्रमाणे सुधारित केलेले आहेत.

अ.क्र.	विद्याशाखेच नांव	प्रतिवर्ष शैक्षणिक + विकास निधी (रूपयांमध्ये)
1.	वैद्यकीय	40,000 + 5,000
2.	दंत	30,000 + 3,000
3.	आयुर्वेद	15,000 + 3,000
4.	युनानी	15,000 + 3,000

I/67657/2023

5.	बीपीटीएच व बीओटीएच	15,000 + 3,000
6.	डी.एम.एल.टी.	18,000 + निरंक
7.	परिचर्या	6,000 + निरंक
8.	बी.पी.एम.टी.	18,000 + निरंक

उपरोक्त शुल्क सन 2011-2012 पासुन सर्व महाविद्यालयांमध्ये लागु करण्यात आलेले आहे. सदर शासन निर्णयामध्ये खालील तरतुद सुध्दा नमुद केलेली आहे.

"वरील शुल्क सन 2011-12 पासुन लागु करण्यात येत असुन सन 2012-13 पासुन त्यापुढील प्रत्येक शैक्षणिक वर्षी सदर शैक्षणिक शुल्कात 10 टक्के एवढी वाढ पुढील शुल्क निश्चित होईपर्यत करण्यात येईल, शैक्षणिक शुल्कात 10 टक्के वाढ करण्यात आल्यानंतर, आवश्यक असल्यास, येणा-या रक्कमेचे रुपांतर रु.100/- च्या पटीतील जवळच्या रक्कमेत पुर्णाकीत करण्यात येईल व तेवढे शुल्क आकारण्यात येईल".

शासन निर्णयातील उपरोक्त तरतुदीच्या अनुषंगाने संचालनालयाच्या दिनांक 02 एप्रिल 2012 च्या पत्रान्वये सन 2012-13 ते सन 2016-17 या शैक्षणिक वर्षाचे सुधारित दर शासकीय/महानगरपालिका महाविद्यालयास कळविण्यात आले होते. सदरील कालावधीनंतर पुढील 5 वर्षाकरिता म्हणजेच शैक्षणिक वर्ष 2017-18 ते शैक्षणिक वर्ष 2021-2022 वर्षापर्यंतच्या शुल्क निश्चितीबाबत संचालनालयाच्या दिनांक 04.07.2017 रोजीच्या पत्रान्वये कळविण्यात आलेले आहे.

तद्नंतर संचालनालयाच्या दिनांक 25.04.2022 रोजीच्या पत्रान्वये शैक्षणिक वर्ष 2022-23 ते 2030-31 वर्षापर्यंतच्या शैक्षणिक शुल्क निश्चित करण्यात आलेले होते. सदरील पत्रात वैद्यकीय अभ्यासक्रमाच्या शैक्षणिक शुल्कामध्ये त्रुटी आढळून आल्यामुळे शैक्षणिक वर्ष 2023-24 ते 2027-28 पर्यंतचे सुधारीत शैक्षणिक शुल्क खालील प्रमाणे दर्शविण्यात येत आहे.

अ.क्र.	विद्याशाखेचे नाव	सन 2022-2023 करिता प्रवेशित विद्यार्थ्यांकरिता शैक्षणिक शुल्क
1.	वैद्यकीय	1,14,300 + 5000
2.	दंत	85,900 + 3,000
3.	आयुर्वेद	43,200 + 3,000
4.	युनानी	43,200 + 3,000
5.	बीपीटीएच व बीओटीएच	43,200 + 3,000
6.	डी.एम.एल.टी.	51,600 + निरंक
7.	परिचर्या	17,400 + निरंक
8.	बी.पी.एम.टी.	51,600 + निरंक

DMER-11011/9/2022-CETIT

I/67657/2023

- **सन 2023-2024 साठी नव्याने प्रवेशित विद्यार्थ्यांकरिता**

अ.क्र	विद्याशाखेचे नांव	सन 2022-2023 करिताचे शैक्षणिक शुल्क रू.	10 टक्के	10 टक्के प्रमाणे वाढ रू.	सन 2023-2024 करिता प्रस्तावित शैक्षणिक शुल्क
1	वैद्यकीय	1,14,300	11,430	11,400	1,25,700 + 5000
2	दंत	85,900	8590	8,600	94,500 +3000
3	आयुर्वेद	43,200	4320	4300	47,500 +3000
4	युनानी	43,200	4320	4300	47,500 + 3000
5	बीपीटीएच व बीओटीएच	43,200	4320	4300	47,500 + 3000
6	डी.एम.एल.टी.	51,600	5160	5200	56,800 + निरंक
7	परिचर्या	17,400	1740	1700	19,100 + निरंक
8	बी.पी.एम.टी.	51,600	5160	5200	56,800 + निरंक

- **सन 2024-2025 साठी नव्याने प्रवेशित विद्यार्थ्यांकरिता**

अ.क्र	विद्याशाखेचे नांव	सन 2023-2024 करिताचे शैक्षणिक शुल्क रू.	10 टक्के	10 टक्के प्रमाणे वाढ रू.	सन 2024-2025 करिता प्रस्तावित शैक्षणिक शुल्क
1	वैद्यकीय	1,25,700	12,570	12,600	1,38,300 + 5000
2	दंत	94,500	9,450	9,500	1,04,000 + 3000
3	आयुर्वेद	47,500	4,750	4,700	52,200 + 3000
4	युनानी	47,500	4,750	4,700	52,200 + 3000
5	बीपीटीएच व बीओटीएच	47,500	4,750	4,700	52,200 + 3000
6	डी.एम.एल.टी.	56,800	5,680	4,700	61,500 + निरंक
7	परिचर्या	1,9100	1,910	1,900	21,000 + निरंक
8	बी.पी.एम.टी.	56,800	5,680	5,700	62,500 + निरंक

- **सन 2025-2026 साठी नव्याने प्रवेशित विद्यार्थ्यांकरिता**

अ.क्र	विद्याशाखेचे नांव	सन 2024-2025 करिताचे शैक्षणिक शुल्क रू.	10 टक्के	10 टक्के प्रमाणे वाढ रू.	सन 2025-2026 करिता प्रस्तावित शैक्षणिक शुल्क
1	वैद्यकीय	1,38,300	13,830	13,800	1,52,100 + 5000
2	दंत	1,04,000	10400	10,400	1,14,400 + 3000
3	आयुर्वेद	52,200	5,220	5,200	57,400 + 3000
4	युनानी	52,200	5,220	5,200	57,400 + 3000

I/67657/2023

5	बीपीटीएच व बीओटीएच	52,200	5,220	5,200	57,400 + 3000
6	डी.एम.एल.टी.	61,500	6,150	6,100	67,600 + निरंक
7	परिचर्या	21,000	2,100	2,100	23,100 + निरंक
8	बी.पी.एम.टी.	62,500	6,250	6,200	68,700 + निरंक

- **सन 2026-2027 साठी नव्याने प्रवेशित विद्यार्थ्यांकरिता**

अ.क्र	विद्याशाखेचे नांव	सन 2025-2026 करिताचे शैक्षणिक शुल्क रू.	10 टक्के	10 टक्के प्रमाणे वाढ रू.	सन 2026-2027 करिता प्रस्तावित शैक्षणिक शुल्क
1	वैद्यकीय	1,52,100	15,210	15,200	1,67,300 + 5000
2	दंत	1,14,400	11,440	11,400	1,25,800 + 3000
3	आयुर्वेद	57,400	5,740	5,700	63,100 + 3000
4	युनानी	57,400	5,740	5,700	63,100 + 3000
5	बीपीटीएच व बीओटीएच	57,400	5,740	5,700	63,100 + 3000
6	डी.एम.एल.टी.	67,600	6,760	6,800	74,400 + निरंक
7	परिचर्या	23,100	2,310	2,300	25,400 + निरंक
8	बी.पी.एम.टी.	68,700	6,870	6,900	75,600 + निरंक

- **सन 2027-2028 साठी नव्याने प्रवेशित विद्यार्थ्यांकरिता**

अ.क्र	विद्याशाखेचे नांव	सन 2026-2027 करिताचे शैक्षणिक शुल्क रू.	10 टक्के	10 टक्के प्रमाणे वाढ रू.	सन 2027-2028 करिता प्रस्तावित शैक्षणिक शुल्क
1	वैद्यकीय	1,67,300	16,730	16,700	1,84,000 + 5000
2	दंत	1,25,800	12,580	12,600	1,38,400 + 3000
3	आयुर्वेद	63,100	6,310	6,300	69,400 + 3000
4	युनानी	63,100	6,310	6,300	69,400 + 3000
5	बीपीटीएच व बीओटीएच	63,100	6,310	6,300	69,400 + 3000
6	डी.एम.एल.टी.	74,400	7,440	7,400	81,800 + निरंक
7	परिचर्या	25,400	2,540	2,500	27,900 + निरंक
8	बी.पी.एम.टी.	75,600	7,560	7,600	83,200 + निरंक

DMER-11011/9/2022-CETIT

त्याअनुषंगाने 2023-24 ते 2027-28 करिता सुधारीत शैक्षणिक शुल्काचा गोषवारा.

I/67657/2023

अ.क्र.	विद्याशाखेचे नाव	प्रस्तावित शैक्षणिक शुल्क + विकास निधी रुपयांमध्ये				
		2023-24	2024-25	2025-26	2026-27	2027-28
1.	वैद्यकीय	1,25,700 + 5000	1,38,300 + 5000	1,52,100 + 5000	1,67,300 + 5000	1,84,000 + 5000
2.	दंत	94,500 +3000	1,04,000 + 3000	1,14,400 + 3000	1,25,800 + 3000	1,38,400 + 3000
3.	आयुर्वेद	47,500 +3000	52,200 + 3000	57,400 + 3000	63,100 + 3000	69,400 + 3000
4.	युनानी	47,500 + 3000	52,200 + 3000	57,400 + 3000	63,100 + 3000	69,400 + 3000
5.	बिपीटीएच व बिओटीएच	47,500 + 3000	52,200 + 3000	57,400 + 3000	63,100 + 3000	69,400 + 3000
6.	डी.एम.एल.टी.	56,800 + निरंक	61,500 + निरंक	67,600 + निरंक	74,400 + निरंक	81,800 + निरंक
7.	परिचर्या	19,100 + निरंक	21,000 + निरंक	23,100 + निरंक	25,400 + निरंक	27,900 + निरंक
8.	बी.पी.एम.टी.	56,800 + निरंक	62,500 + निरंक	68,700 + निरंक	75,600 + निरंक	83,200 + निरंक

वरील प्रमाणे सुधारीत शैक्षणिक शुल्क हे त्या त्या शैक्षणिक वर्षामध्ये नव्याने पदवी किंवा पदव्युत्तर अभ्यासक्रमाकरिता प्रवेशित विद्यार्थ्यांसाठी लागू राहणार आहेत. ज्या शैक्षणिक वर्षामध्ये विद्यार्थ्यांचा प्रवेश होईल, त्या शैक्षणिक वर्षापासून ते त्याचे पदवी किंवा पदव्युत्तर अभ्यासक्रमाचे शिक्षण पूर्ण होईपर्यंत, तेच शैक्षणिक शुल्क लागू राहणार आहे. (उदा. शैक्षणिक वर्ष 2022-23 मध्ये प्रवेशित विद्यार्थ्यांचे शैक्षणिक शुल्क 1,14,300/- इतके असल्यास, सदरचा विद्यार्थी त्याचे शिक्षण पूर्ण होईपर्यंत त्याचे शैक्षणिक शुल्क हे रू. 1,14,300/- इतकेच आकारण्यात येईल.)

तसेच प्रवेश शुल्क जिमखाना, शुल्क, वसतिगृह शुल्क, ग्रंथालय अनामत, ग्रंथालय शुल्क इत्यांदीचे शुल्क हे शासन निर्णय दिनांक 1 मार्च, 2011 मध्ये नमूद केलेल्या दराप्रमाणेच वसूल करावे व त्याबाबत शासन निर्णयामध्ये नमूद करण्यात आलेल्या कार्यपध्दतीचा अवलंब करावा. वरील प्रमाणे सुधारीत शैक्षणिक शुल्काच्या अनुषंगाने आवश्यक ती कार्यवाही आपल्या स्तरावर करण्यात यावी.

Signed by Deelip
Govindrao Mhaisekar
Date: 06-06-2023 15:59:14

संचालक,
वैद्यकीय शिक्षण व संशोधन, मुंबई

प्रत,

1. मा. सचिव, वैद्यकीय शिक्षण व औषधी द्रव्ये विभाग, मंत्रालय, मुंबई यांना माहितीकरिता सादर.
2. संचालक, आयुष संचालनालय, मुंबई यांना माहिती व पुढील योग्य त्या कार्यवाहीकरिता.
3. संचालक, वैद्यकीय शिक्षण व प्रमुख रूग्णालये, बृहन्मुंबई महानगरपालिका, सेठ गो. सु. वै. महाविद्यालय आणि रा.ए. स्मारक रूग्णालय, परळ मुंबई यांना माहिती व पुढील योग्य त्या कार्यवाहीकरिता.

ANNEXURE "HH"

Government Resolution no. Misc-2024/C.R 75 (Part – 1) / Reservation – 5 dated 02/07/2026 six-month period to submit the caste validity certificate for admission & Government Circular CBC-2025/C.R 131 MVK Dated 04/09/2026 three month period to submit the caste validity certificate for admission

सन २०२६-२०२७ या शैक्षणिक वर्षासाठी अभियांत्रिकी, वैद्यकीय आणि इतर व्यावसायिक अभ्यासक्रमांमधील शैक्षणिक संस्थांमधील प्रवेशासाठी जात वैधता प्रमाणपत्र सादर करण्याकरीता उमेदवारांना सहा महिन्यांची मुदत देण्याबाबत...

महाराष्ट्र शासन
सामान्य प्रशासन विभाग
शासन निर्णय क्रमांक - संकिर्ण-२०२४/प्र.क्र. ७५ (भाग-१)/आरक्षण-५
मादाम कामा मार्ग, हुतात्मा राजगुरू चौक,
मंत्रालय, मुंबई-४०००३२
दिनांक - २ जुलै, २०२६

संदर्भ-

१. महाराष्ट्र राज्यातील सामाजिक व शैक्षणिकदृष्ट्या मागासवर्गांकरिता आरक्षण अधिनियम, २०२४ (सन २०२४ चा महाराष्ट्र अधिनियम क्रमांक १६)
२. शासन निर्णय क्र.मआसु-२०२४/प्र.क्र.०३/१६-क, दि.०७.०९.२०२३
३. शासन निर्णय क्र.संकीर्ण-२०२५/प्र.क्र.६८/आरक्षण-५, दि.२६.०८.२०२५

प्रस्तावना -

सन २०२५-२६ या शैक्षणिक वर्षामधील विविध शैक्षणिक संस्थांमधील व्यावसायिक अभ्यासक्रमाच्या प्रवेशासाठी (अभियांत्रिकी, वैद्यकीय आणि इतर व्यावसायिक अभ्यासक्रमांसहित) सामाजिक व शैक्षणिकदृष्ट्या मागासवर्ग (एसईबीसी) व इतर मागास प्रवर्ग (ओबीसी) प्रवर्गातील ज्या विद्यार्थ्यांचे शैक्षणिक प्रवेश निश्चित झालेले त्यांना संदर्भ क्र.३ अन्वये जातवैधता प्रमाणपत्र सादर करण्यासाठी, प्रवेशासाठी अर्ज केल्याच्या दिनांकापासून सहा महिन्यांची मुदत देण्यात आलेली होती. त्याच धर्तीवर आता सन २०२६-२०२७ या शैक्षणिक वर्षाकरीता काही कालावधीची मुदत देण्याची बाब शासनाच्या विचाराधीन होती. त्यानुसार शासनाने खालीलप्रमाणे निर्णय घेतला आहे.

शासन निर्णय-

राज्यात सध्या सुरू असलेल्या सन २०२६-२०२७ या शैक्षणिक वर्षामधील विविध शैक्षणिक संस्थांमधील व्यावसायिक अभ्यासक्रमाच्या प्रवेशासाठी (अभियांत्रिकी, वैद्यकीय आणि इतर व्यावसायिक अभ्यासक्रमांसहित) सामाजिक व शैक्षणिकदृष्ट्या मागासवर्ग (एसईबीसी) व इतर मागास प्रवर्ग (ओबीसी) प्रवर्गातील ज्या विद्यार्थ्यांचे प्रवेश निश्चित झालेले आहेत, परंतू सदर विद्यार्थ्यांपैकी काही विद्यार्थ्यांना जातवैधता प्रमाणपत्र सादर करण्यास येत असलेल्या अडचणी

लक्षात घेऊन सदर शैक्षणिक संस्थांमधील प्रवेशासाठी (अभियांत्रिकी, वैद्यकीय आणि इतर व्यावसायिक अभ्यासक्रमांसहित) विद्यार्थ्यांना जातवैधता प्रमाणपत्र सादर करण्यासाठी, प्रवेशासाठी अर्ज केल्याच्या दिनांकापासून सहा महिन्यांची मुदत देण्यात येत आहे. सदर सहा महिन्यांच्या मुदतीमध्ये संबंधित विद्यार्थ्यांनी जातवैधता प्रमाणपत्र सादर करणे बंधनकारक राहील. अन्यथा अशा विद्यार्थ्यांचे प्रवेश रद्द होतील व त्याबाबत संबंधित विद्यार्थी जबाबदार राहतील.

२. विद्यार्थ्यांना जातवैधता प्रमाणपत्र सादर करण्यास देण्यात आलेली ६ महिन्यांची मुदत ही अंतिम संधी असून त्यांनतर कोणतीही मुदतवाढ देण्यात येणार नाही.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आले असून त्याचा संगणक संकेतांक २०२६०७०२१६१२४५९८०७ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करून काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

Digitally signed by APPASO DHULAJ
Date: 2026.07.02 16:13:32 +05'30'

(आप्पासो धुळाज)
सचिव (साविस) , महाराष्ट्र शासन

प्रत,

१) राज्यपाल यांचे प्रधान सचिव,राजभवन, मलबार हिल, मुंबई.
२) मा. मुख्यमंत्री यांचे अ.मु.स./प्र.स./सचिव,मंत्रालय, मुंबई.
३) सर्व मंत्री/राज्यमंत्री यांचे खाजगी सचिव,
४) मा.विरोधी पक्ष नेता, विधानसभा, विधानभवन, मुंबई
५) मा. विरोधी पक्ष नेता, विधानपरिषद, विधानभवन, मुंबई
६) सर्व विधानसभा/विधानपरिषद सदस्य/संसद सदस्य
७) मा. मुख्य सचिव, महाराष्ट्र राज्य.
८) अपर मुख्य सचिव (सेवा),सामान्य प्रशासन विभाग मंत्रालय, मुंबई.
९) अपर मुख्य सचिव, महसूल व वन विभाग, मंत्रालय, मुंबई
१०)अपर मुख्य सचिव, कृषी व पदुम विभाग, मंत्रालय, मुंबई.
११) प्रधान सचिव, उच्च व तंत्रशिक्षण विभाग, मंत्रालय, मुंबई
१२) प्रधान सचिव, शालेय शिक्षण विभाग, मंत्रालय, मुंबई.
१३) प्रधान सचिव, विधी व न्याय विभाग, मंत्रालय, मुंबई.
१४) प्रधान सचिव, इतर मागास व बहुजन कल्याण विभाग, मंत्रालय, मुंबई.
१५) सचिव, वैद्यकीय शिक्षण वऔषधी द्रव्ये विभाग, जी.टी. हॉस्पिटल, मुंबई.
१६) सचिव, सामाजिक न्याय व विशेष सहाय्य विभाग, मंत्रालय, मुंबई-
१७) सचिव, महाराष्ट्र लोकसेवा आयोग, मुंबई.

पृष्ठ **३** पैकी **२**

१८) महालेखापाल, महाराष्ट्र-१. मुंबई.
१९) महालेखापाल, महाराष्ट्र-२, नागपूर,
२०) अधिदान व लेखा अधिकारी, मुबई
२१) मुख्य महानगर दंडाधिकारी,
२२) सर्व विभागीय आयुक्त.
२३) सर्व जिल्हाधिकारी,
२४) सर्व उप विभागीय दंडाधिकारी (महसूल) तथा उप विभागीय अधिकारी,
२५) सर्व तालुका कार्यकारी दंडाधिकारी तथा तहसिलदार,
२६) प्रबंधक, उच्च न्यायालय, मूळ न्याय शाखा, मुंबई
२७) प्रबंधक, उच्च न्यायालय, मूळ न्याय अपील शाखा, मुंबई.
२८) प्रबंधक, उच्च न्यायालय, मूळ न्याय शाखा, खंडपीठ नागपूर.
२९) प्रबंधक, उच्च न्यायालय, मूळ न्याय अपील शाखा, नागपूर,
३०) प्रबंधक, उच्च न्यायालय, मूळ न्याय शाखा, खंडपीठ छत्रपती संभाजीनगर,
३१) प्रबंधक, उच्च न्यायालय, मूळ न्याय अपील शाखा, खंडपीठ छत्रपती संभाजीनगर,
३२) आयुक्त, समाजकल्याण, महाराष्ट्र राज्य, पुणे.
३३) महासंचालक, डॉ. बाबासाहेब आंबेडकर संशोधन व प्रशिक्षण संस्था, पुणे
३४) संचालक, विजाभज संचालनालय, महाराष्ट्र राज्य, पुणे.
३५) संचालक, उच्च तंत्र शिक्षण, महाराष्ट्र राज्य, मुंबई.
३६) संचालक, माध्यमिक शिक्षण, महाराष्ट्र राज्य, पुणे,
३७) संचालक, प्राथमिक शिक्षण, महाराष्ट्र राज्य, पुणे,
३८) सदस्य सचिव, राज्य मागासवर्ग आयोग, पुणे,
३९) सर्व मंत्रालयीन विभाग त्यांना विनंती करण्यात येते की, त्यांनी त्यांच्या अधिपत्याखालील सर्व विभाग प्रमुख/कार्यालय प्रमुख यांना याबाबतच्या सूचना द्याव्यात,
४०) सर्व प्रादेशिक उपायुक्त, समाजकल्याण विभाग/सर्व सहाय्यक आयुक्त, समाजकल्याण
४१) सर्व जिल्हा परिषदांचे मुख्य कार्यकारी अधिकारी,
४२) सर्व जिल्हा परिषदाचे समाजकल्याण अधिकारी
४३) सर्व अध्यक्ष/सदस्य सचिव, जिल्हा जात प्रमाणपत्र पडताळणी समिती
४४) महासंचालक, माहिती व जनसंपर्क महासंचालनालय, मंत्रालय, मुंबई.
४५ निवड नस्ती, आरक्षण-५

सन २०२६-२७ या शैक्षणिक वर्षासाठी अभियांत्रिकी, वैद्यकीय आणि इतर व्यावसायिक अभ्यासक्रम शैक्षणिक संस्थांमधील प्रवेशासाठी जात वैधता प्रमाणपत्र सादर करण्याकरीता उमेदवारांना तीन महिन्यांची मुदतवाढ देण्याबाबत...

महाराष्ट्र शासन
सामाजिक न्याय व विशेष सहाय्य विभाग
शासन परिपत्रक क्रमांक:- सीबीसी-२०२५/प्र.क्र.१३१/मावक
हुतात्मा राजगुरु चौक, मादाम कामा मार्ग,
मंत्रालय (विस्तार), मुंबई-३२.
दि.०४ सप्टेंबर, २०२६

परिपत्रक

संदर्भ :- सामान्य प्रशासन विभाग, शासन निर्णय:- संकीर्ण-२०२४/प्र.क्र.७५ (भाग-१)/आरक्षण-५ दि.०२.०७.२०२६

राज्यात सध्या सुरू असलेल्या सन २०२६-२७ या शैक्षणिक वर्षामधील विविध शैक्षणिक संस्थांमधील व्यावसायिक अभ्यासक्रमाच्या प्रवेशासाठी (अभियांत्रिकी, वैद्यकीय आणि इतर व्यावसायिक अभ्यासक्रमांसहित) सामाजिक व शैक्षणिकदृष्ट्या मागसवर्ग (एसईबीसी) व इतर मागास प्रवर्ग (ओबीसी) प्रवर्गातील ज्या उमेदवारांचे प्रवेश निश्चित झालेले आहेत, त्यांना संदर्भाधिन सामान्य प्रशासन विभाग शासन निर्णयान्वये जात वैधता प्रमाणपत्र सादर करण्यासाठी, प्रवेशासाठी अर्ज केल्याच्या दिनांकपासून सहा महिन्यांची मुदतवाढ देण्यात आलेली आहे.

२. अनुसूचित जाती, विमुक्त जाती, भटक्या जमाती, इतर मागासवर्ग व विशेष मागास प्रवर्गातील ज्या उमेदवारांचे प्रवेश निश्चित झालेले आहेत, परंतु सदर उमेदवारांपैकी काही उमेदवारांना जात वैधताप्रमाणपत्र सादर करण्यास येत असलेल्या अडचणी लक्षात घेऊन सदर शैक्षणिक संस्थामधील प्रवेशाकरिता (अभियांत्रिकी, वैद्यकीय आणि इतर व्यावसायिक अभ्यासक्रमांसहित) उमेदवारांना जात वैधता प्रमाणपत्र सादर करण्यासाठी दि.०४.०९.२०२६ रोजीचे सदर परिपत्रक निर्गमित झाल्याच्या दिनांकपासून पुढील ३ महिन्यांची मुदतवाढ देण्यात येत आहे. सदर ३ महिन्यांच्या मुदतीमध्ये संबंधित उमेदवाराने जात वैधता प्रमाणपत्र सादर करणे बंधनकारक राहील.

३. विद्यार्थ्यांना जातवैधता प्रमाणपत्र सादर करण्यास देण्यात आलेली ३ महिन्यांची मुदत हि अंतिम संधी असून त्यानंतर कोणतीही मुदतवाढ देण्यात येणार नाही.

सदर शासन परिपत्रक महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आले असून त्याचा संकेताक २०२६०९०४१४३९१६७०२२ असा आहे. हे परिपत्रक डिजिटल स्वाक्षरीने सांक्षाकित करुन काढण्यात येत आहे. सदरचे परिपत्रक सामान्य प्रशासन विभाग, शासन निर्णय दि. ०२.०७.२०२६ मध्ये नमुद सर्व विभाग/ कार्यालयांना लागू राहिल.

महाराष्ट्राचे राज्यपाल यांचे आदेशानुसार व नावाने,

DESHMUKH VARSHA GUNVANT

Digitally signed by DESHMUKH VARSHA GUNVANT
DN: cn=N, o=GOVERNMENT OF MAHARASHTRA, ou=S.E.A, 2.5.4.20=31637449EDBBEB0A87FA90C6CE49CDBC0F40C525 96BC652C9CF9FA77A3555Q, postalCode=400032, st=Maharashtra, serialNumber=f8000790A0E2ED44CEB1E600F4D4BFD4CCFBDE81526E9944C0A7A1AFE3C2 PAQ, cn=DESHMUKH VARSHA GUNVANT
Date: 2026.09.04 14:40:17 +05'30'

(वर्षा देशमुख)
उप सचिव, महाराष्ट्र शासन

ANNEXURE "II"

Maharashtra Unaided Private Professional Educational Institution (Regulation of Admissions and Fees) Act, 2015 and (Amendment) Act, 2026

RNI No. MAHENG/2009/35528

महाराष्ट्र शासन राजपत्र
असाधारण भाग आठ

वर्ष १, अंक ४९(४)] सोमवार, ऑगस्ट १७, २०१५/श्रावण २६, शके १९३७ [पृष्ठे १४, किंमत : रुपये २७.००

असाधारण क्रमांक ९४

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015 (Mah. Act No. XXVIII of 2015), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

N. J. JAMADAR,
I/c. Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XXVIII OF 2015.

(First published, after having received the assent of the Governor in the "*Maharashtra Government Gazette*", on the 17th August 2015).

An Act to provide for regulation of admissions and fees by Unaided Private Professional Educational Institutions in the State of Maharashtra and for matters connected therewith or incidental thereto.

WHEREAS both Houses of the State Legislature were not in session;

AND WHEREAS the Governor of Maharashtra was satisfied that circumstances existed which rendered it necessary for him to take immediate action to provide for regulation of admissions and fees by Unaided Private Professional Educational Institutions in the State of Maharashtra and for matters connected therewith or incidental thereto; and, therefore, promulgated the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Ordinance, 2015 on the 12th May 2015;

Mah. Ord. VII of 2015.

AND WHEREAS it is expedient to replace the said Ordinance, by an Act of the State legislature, with certain minor modification; it is hereby enacted in the Sixty-sixth Year of the Republic of India as follows :—

CHAPTER I

PRELIMINARY

Short title, extent and commencement.

1. (*1*) This Act may be called the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015.

(*2*) It extends to the whole of the State of Maharashtra.

(*3*) It shall be deemed to have come into force on the 12th May 2015.

Definitions.

2. In this Act, unless the context otherwise requires,—

(*a*) "Admissions Regulating Authority" means the Authority constituted under section 7 for regulating the admissions in Unaided Private Professional Educational Institutions and conducting CETs;

(*b*) "appropriate authority" means the authorities declared by the State or Central Government which approve and regulate the professional courses or educational disciplines;

(*c*) "Centralized Admission Process (CAP)" means the centralized process of admission carried out by the competent authority through single window system in a transparent manner for admitting the students for various professional courses in educational institutions ;

(*d*) "Common Entrance Test (CET)" means the entrance test conducted for determination of merit of the candidates by Centralized Admission Process (CAP) for the purpose of admission to professional education courses through a single window system;

(*e*) "Competent Authority" means the Commissioner of State CET appointed by the Government under section 10, for conducting CET through CAP for the admissions into Private Professional Educational Institutions ;

(*f*) "Director" means the Director of Higher Education or, of Technical Education or, of Medical Education and Research or, of any other Directorate or Commissioner of any Commissionarate of the State Government, entrusted with the task of supervision of the Private Professional Educational Institution;

(*g*) "Fees" means the amount fixed as fee which includes tuition fee, library fee, gymkhana fee, examination fee, development fee or amount payable for any curricular or co-curricular activities, laboratory fee, information brochure fee and any other amount collected from the students, by whatsoever name called, and accepted in whichever manner, that is made payable to a Private Professional Educational Institution, for whatever purpose, by any candidate admitted to a professional course at such institution, but excludes any charges payable towards use of any optional hostel accommodation, mess charges and Students Insurance Fees;

(*h*) "Fees Regulating Authority" means the authority constituted under section 11 for determination and regulation of fee in unaided institutions;

(*i*) "Foreign Student" means a student who is not a citizen of India;

(*j*) "Government" or "State Govemment" means the Government of Maharashtra;

(*k*) "lateral entry" means admission of students in second year of the course against seats as per the guidelines of the appropriate authorities;

(*l*) "management" means the managing committee or the governing body, by whatever name called, of the Private Professional Educational Institution to which the affairs of such Institution are entrusted and where such affairs are entrusted to any person, by whatever name or designation called, includes such person;

(*m*) "Minority Educational Institution" means a Private Professional Educational Institution notified as such by the State Government, established and administered for and by the persons belonging to the minority community, domiciled in the State of Maharashtra, having right to do so under clause (*1*) of article 30 of the Constitution of India;

(*n*) "Non-Resident Indian (NRI)" means a person who is "not ordinarily resident" under sub-section (*6*) of section 6 of the Income Tax Act, 1961, and includes a person resident outside India under clause (*w*) of section 2 of the Foreign Exchange Management Act, 1999, and also includes his child or ward;

43 of 1961.

42 of 1999.

(*o*) "Person of Indian Origin (PIO)" means a person who is a citizen of a country other than India but who, at any time, was a citizen of India; or in whose case either parent or any grandparent was a citizen of India by virtue of the provisions of Part II of the Constitution of India or under the Citizenship Act, 1955;

57 of 1955.

(*p*) "prescribed" means prescribed by rules made under this Act;

(*q*) "Private Professional Educational Institution" means any college, school, institute, institution or other body, by whatever name called, conducting any professional course or courses approved or recognized by the appropriate authority and affiliated to any university, but shall not include,—

(*i*) any such institution established, maintained or administered by the Central Government, any State Government or any local authority;

(*ii*) institution declared to be a deemed university under section 3 of the University Grants Commission Act, 1956 ; or

3 of 1956.

(*iii*) a university to which the provisions of the University Grants Commission (Establishment and Maintenance of Private Universities) Regulations, 2003 are applicable;

(*r*) "Professional Education" means any educational course of study declared and notified as such, from time to time by the Government which includes a course leading to the award of an Under Graduate or Post-Graduate degree, diploma, by whatever name called and recognized by the appropriate authority;

(*s*) "profiteering" means any amount accepted in cash or kind, directly or indirectly which is in excess of the fee approved as per the provisions of this Act;

(*t*) "regulations" means the regulations framed by the Regulating Authorities;

(*u*) "Regulating Authority" means the Admissions Regulating Authority under section 7 or the Fees Regulating Authority under section 11, as the case may be ;

(*v*) "sanctioned intake" means the total number of seats sanctioned or approved by the appropriate authority for admitting candidates in a single academic year in each professional course of study or discipline in a Private Professional Educational Institution at the appropriate level of entry;

(*w*) "Stake-holders" means the management, the students studying in the respective institution and their parents;

(*x*) "unaided institution" means Private Professional Educational Institution, which is not receiving aid or grant-in-aid from the Central Government, the State Government or the local authority;

(*y*) "University" shall have the same meaning as assigned to it in clause (*f*) of section 2 of the University Grants Commission Act, 1956. 3 of 1956.

CHAPTER II

Regulation of Admissions

Eligibility for admission.

3. (*1*) The eligibility conditions and requirements for admission to a professional course at any Private Professional Educational Institution shall be such as may be notified by the Government from time to time, but shall not be less than, those stipulated by the appropriate authority.

(*2*) No student shall be admitted to a Private Professional Educational Institution unless the student possesses such educational or equivalent qualification as may be notified.

(*3*) Unaided institution shall admit students through a process as may be prescribed.

Manner of admission.

4. The admissions to seats for professional course in every unaided institution shall be carried out in the following manner :—

(*a*) admission to seats in a Private Professional Educational Institution excluding institutional quota declared by Government from time to time, shall be made on the basis of merit by following the procedure of Common Entrance Test (CET) conducted in the manner, as may be prescribed by rules:

Provided that, the admission to institutional quota shall be on the basis of merit and after following the procedure specified by the appropriate authority :

Provided further that, the State Government may by order issued from time to time exempt any professional courses, from requirement of the Common Entrance Test (CET) thereto.

(*b*) admissions to such institution shall be carried out by the competent authority through the Centralized Admission Process on the basis of Common Entrance Test (CET) and Centralized Admission Process (CAP);

(*c*) the Competent Authority shall supervise and guide the entire Centralized Admission Process in such manner as it may specify with a view to ensuring that the process is fair, transparent, merit-based and non-exploitative.

Irregular admissions void.

5. Any admission made in contravention of the provisions of this Act or the rules made thereunder shall be void.

Allocation and reservation of seats.

6. (*1*) The allocation of seats under different categories in an unaided institution, not being a Minority Educational Institution, shall be in accordance with the Maharashtra Private Professional Educational Institutions (Reservation of seats for admission for Scheduled Castes, Scheduled Tribes, De-notified Tribes (Vimukta Jatis), Nomadic Tribes and Other Backward Classes) Act, 2006 and as per the Government policy declared from time to time, including the NRI quota. Mah. XXX of 2006.

(2) In an unaided Minority Educational Institution, the admissions shall be made as per the policy of the State Government and not less than fifty-one per cent. of the sanctioned intake shall be filled by minority students from within the State, belonging to the minority community to which the institution belongs on the basis of inter-se merit of the Common Entrance Test (CET) and Centralized Admission Process (CAP) :

Provided that, if any seats earmarked for the minority category in an unaided Minority Educational Institution remain to be filled in a academic year or where the students leave the institution after selection, the unfilled vacant seats shall be surrendered to the Competent Authority of the State Government for being filled up from the minority to which the minority institution belongs, on the basis of *inter-se* merit list prepared on the basis of the Common Entrance Test (CET) conducted in accordance with the provisions of sub-section (4) of section 10 and Centralized Admission Process (CAP):

Provided further that, if any seats remain unfilled even thereafter, such unfilled seats shall be filled from the student belonging to the general category on the basis of merit of the Common Entrance Test (CET) conducted by the Competent Authority and Centralized Admission Process (CAP):

Provided also that, if such institution fails to admit minimum fifty-one per cent. of its sanctioned intake from the persons belonging to the concerned minority, for period of three consecutive years the Competent Authority shall inform the State Government to refer such institution for taking action under section 12C of the National Commission for Minority Educational Institutions Act, 2004.

2 of 2005.

CHAPTER III

ADMISSIONS REGULATING AUTHORITY AND STATE COMMON ENTRANCE TEST CELL

Constitution of Admissions Regulating Authority and its functions.

7. (1) There shall be an Authority to be known as "the Admissions Regulating Authority" to exercise the powers conferred on, and discharge the functions assigned to it, under this Act.

(2) The State Government may, by notification in the *Official Gazette*, constitute the Authority under sub-section (1). The said Authority shall be a body corporate by the name aforesaid having perpetual succession and common seal and shall have power to acquire, hold, and dispose off property both movable and immovable, and to do all things necessary for the purpose of this Act, and may sue or be sued by its name.

(3) The authority shall consist of,—

(a) a retired Judge of High Court or retired officer of the Government of the rank of Chief Secretary	..	Chairperson
(b) an eminent educationist who has worked as Vice-Chancellor of University	..	Member
(c) an expert of repute from the field of Professional Education	..	Member
(d) the Registrar, Maharashtra University of Health Sciences, Nashik	..	Member
(e) the Director of Technical Education	..	Member
(f) the Director of Higher Education	..	Member
(g) the Member-Secretary of the Maharashtra Council of Agricultural Education and Research		Member
(h) the Commissioner of State CET	..	Secretary.

(4) The appointment of Chairperson and of members under clauses (a), (b) and (c) of sub-section (3) shall be made by the State Government.

(5) No person who is associated with any private aided or unaided Professional Educational Institution shall be eligible for being a member of Admissions Regulating Authority.

(6) A member of the Admissions Regulating Authority shall cease to be so, if he does any act which in the opinion of the State Government is unbecoming of a member of the Authority.

(7) The Chairperson shall preside over the meetings of the Admissions Regulating Authority and the authority may adopt its own procedure by regulations, as it deem fit.

(8) No act or proceeding of the Admissions Regulating Authority shall be deemed to be invalid by reason merely of any vacancy in, or any defect in the constitution thereof.

Term of Office and Conditions of Service of Chairperson and members of Admissions Regulating Authority.

8. (1) The term of Office of the Chairperson and members of the Admissions Regulating Authority, shall be of five years from the date of their nomination and in the case of any vacancy arising earlier for any reason, such vacancy shall be filled for the reminder period of the term.

(2) The Chairperson and members of the Admissions Regulating Authority shall not be eligible for re-appointment.

(3) The Chairperson or a Member may resign from the office in writing addressed to the Government and on such resignation being accepted, his office shall become vacant and the vacancy may be filled in within a period of three months from the date of occurrence of the vacancy.

(4) The Chairperson or a Member of the Admissions Regulating Authority may be removed, if he does any act which, in the opinion of the Government, is unbecoming of the Chairperson or a Member of such Authority. The Chairperson or a Member so removed shall not be eligible for re-appointment on such Authority:

Provided that, no Chairperson or Member may be removed from the Admissions Regulating Authority without giving him a reasonable opportunity of being heard.

(5) The salaries and allowances to be paid to the Chairperson and members of the Admissions Regulating Authority shall be such as may be notified, either prospectively or retrospectively, by the Government, from time to time.

(6) A person shall be disqualified for appointment as the Chairperson or Member of the Admissions Regulating Authority, if such person,—

(i) is holding any office, post or is in any way directly or indirectly connected or associated with any unaided institution;

(ii) has been convicted and sentenced to imprisonment for an offence which, in the opinion of the Government, involves moral turpitude;

(iii) is an undischarged insolvent;

(iv) is of unsound mind and stands so declared by a Competent Court;

(v) has been removed or dismissed from the service of the Government or a body corporate owned or controlled by the Government;

(vi) has, in the opinion of the Government such financial or other interest as is likely to affect prejudicially the perforamance of the functions and the discharge of his duties as such Chairperson or a Member; or

(vii) has such other disqualifications as may be prescribed.

(7) The other terms and conditions of service of the Chairperson and the members shall be such as may be prescribed.

Functions, powers and procedure of Admissions Regulating Authority.

9. (*1*) The functions of the Admissions Regulating Authority shall be, —

(*i*) conducting and monitoring CET through CET Cell established under this Act;

(*ii*) verification of admission proposals and final approval thereof;

(*iii*) cancellation of admission if found contrary to the provisions of this Act;

(*iv*) redressal of grievances from the Stake-holders.

(*2*) The Admissions Regulating Authority, for the purpose of exercise of its functions under this Act, shall have the following powers, namely: —

(*i*) to adjudicate the dispute amongst the Stake-holders regarding admission of the students in the unaided institutions;

(*ii*) to prescribe its own procedure regarding scrutiny of admission proposals and grievance redressal mechanism as it deem fit;

(*iii*) to declare that the admission process of the unaided institution that is unfair, non-transparent and exploitative and therefore invalid, after giving a reasonable opportunity of being heard to those who are likely to be adversely affected by the decision of the Authority;

(*iv*) to recommend to the concerned affiliating University, Board or such other authority for withdrawal of affiliation or recognition of the Institution for admissions those are made in contravention of this Act.

(*3*) Notwithstanding anything contained in sub-sections (*1*) and (*2*) the *Pravesh Niyanttran Samiti* existing on to the date of commencement of this Act shall continue to exercise the powers of the Admissions Regulating Authority till such Authority is duly constituted under this Act.

(*4*) In the discharge of its functions, and, for the purpose of making any inquiry under this Act, the Admissions Regulating Authority shall have all the powers of a Civil Court under the Code of Civil Procedure, 1908 while trying a suit, in respect of the following matters, namely: — 5 of 1908

(*i*) the summoning and enforcing the attendance of any witness and examining him on oath;

(*ii*) the discovery and production of any document;

(*iii*) the reception of evidence on affidavits;

(*iv*) the issue of commission for the examination of the witness.

(*5*) In carrying out its functions under this Act, the Authority and every unaided Institution shall follow the following procedure, namely: —

(*i*) every unaided institution shall submit the ' admission-approval proposals ' to the concerned Directorate within fifteen days from the cut-off date of admission;

(*ii*) every institution shall submit such proposal certified by the concerned Directorate to the Admissions Regulating Authority within two months from the date of such certification;

(*iii*) every such proposal received from the Institution by Admissions Regulating Authority shall be scrutinized and approved before the 31st January of every year;

(iv) any grievance regarding admission may be admitted before the Authority and shall be decided within a fortnight and before the cut-off date for admission;

(*v*) the Admissions Regulating Authority shall have power to review its own order after recording the reasons therefor;

(*vi*) no act or proceeding of the Admissions Regulating Authority shall be deemed to be invalid by reason merely of any vacancy in, or any defect in the constitution thereof;

(*vii*) the Admissions Regulating Authority shall by regulations, prescribe its procedure regarding scrutiny of admission proposals and grievance redressal mechanism as it deem fit.

State Common Entrance Test Cell and its functions.

10. (*1*) There shall be a State Common Entrance Test Cell.

(*2*) The State Common Entrance Test Cell shall be headed by an officer working under the control of the Admissions Regulating Authority, not below the rank of the Joint Secretary, nominated as the Commissioner of State CET.

(*3*) The Commissioner shall be assisted by officers of the rank of Joint Director of the State Government, in the fields of the Medical, Technical, Agriculture, Higher Education, etc.

(*4*) The Common Entrance Test for admissions to Unaided Institution shall be conducted by the Competent Authority:

Provided that, the State Government may allow such admissions through CET conducted by the authorities of the Central Government.

(*5*) The Cell shall have such powers and shall discharge such functions and conduct the examination in such manner as may be prescribed.

(*6*) The Cell shall take all decisions in respect of conduct of the Common Entrance Test in a fair manner maintaining the required confidentiality. It shall appoint examiners, evaluators, moderators and persons for assignment of software development required for the conduct of examination, evaluation and result processing, and also appoint persons as service providers required for the conduct of the online or off-line examination and shall undertake printing of various documents, etc. It shall exercise financial powers for execution of all activities related to conduct of CETs.

(*7*) Admission to every seat excluding institutional quota shall be made on the basis of merit secured at the Common Entrance Test (CET) followed by Centralized Admission Process of the State, subject to the reservation policy of the State :

Provided that, nothing in this sub-section shall apply to the Centralized Admission Process, being conducted for the academic year 2015-2016.

CHAPTER IV

Regulation of Fees

Fees Regulating Authority.

11. (*1*) There shall be an Authority to be known as "the Fees Regulating Authority" to exercise the powers conferred on, and discharge the functions assigned to it, under this Act.

(*2*) The State Government may, by notification in the *Official Gazette*, constitute the Authority under sub-section (*1*). The said Authority shall be a body corporate having perpetual succession and common seal and shall have power to acquire, hold, and dispose off property both movable and immovable, and to do all things necessary for the purpose of this Act, and may sue or be sued by its name.

(*3*) The Authority shall consist of, —

(*a*) a retired Judge of High Court or retired officer of the Government of the rank of Chief Secretary	..	Chairperson
(*b*) an eminent educationist who has worked as Vice-Chancellor of University	..	Member
(*c*) a Chartered Accountant of repute who is a Member of the Institute of Chartered Accountants of India, for a period of not less than ten years	..	Member
(*d*) a Cost Accountant of repute who is a Member of the Institute of Cost and Works Accountants of India for a period of not less than ten years, or a financial expert of repute	..	Member

(*e*) an expert of repute from the field of Professional Education .. Member

(*f*) the Registrar, Maharashtra University of Health Sciences, Nashik .. Member

(*g*) the Director of Technical Education .. Member

(*h*) the Director of Higher Education .. Member

(*i*) the Member-Secretary of the Maharashtra Council of Agricultural Education and Research .. Member

(*j*) an Officer of the State Government not below the rank of Joint Secretary. .. Secretary.

(*4*) The Chairperson and of members under clauses (*a*), (*b*), (*c*), (*d*) and (*e*) of sub-section (*3*) shall be appointed by the Government.

(*5*) No person who is associated with any private aided or unaided Professional Educational Institution shall be eligible for being a member of the Fees Regulating Authority.

(*6*) A Member of the Fees Regulating Authority shall cease to be so, if he does any act which in the opinion of the State Government is unbecoming of a member of the Authority.

(*7*) The Chairperson shall preside over the meeting of the Fees Regulating Authority and the Authority may adopt its own procedure, by regulations as it may deem fit.

(*8*) No act or proceeding of the Fees Regulating Authority shall be deemed to be invalid by reason merely of any vacancy in, or any defect in the constitution thereof.

Term of Office and Conditions of Services of Chairperson and members of Fees Regulating Authority.

12. The provisions of section 8 shall *mutatis mutandis* apply in respect of the term of Office and Conditions of Service of Chairperson and members of the Fees Regulating Authority.

Functions, powers and procedure of Fees Regulating Authority.

13. (*1*) The Fees Regulating Authority shall perform the following functions, namely :—

(*i*) to determine the reasonableness of fees levied by unaided institutions on the basis of the factors specified in section 15; and to verify whether the fees so levied does not amount to profiteering or charging of capitation fees within the meaning of clause (*a*) of section 2 of the Maharashtra Educational Institutions (Prohibition of Capitation Fees) Act, 1987 ;

Mah. VI of 1988.

(*ii*) scrutiny and verification of fee proposals of the unaided institutions and final approval thereof ;

(*iii*) to evolve the mechanism for verification of infrastructure facilities and amenities and to undertake the verification of such facilities and amenities ;

(*iv*) to undertake research studies, at such intervals as the Fees Regulating Authority may deem fit, for determining the professional coursewise expenses required to be made per student, for the unaided

institutions in accordance with the mandatory guidelines of the appropriate authority concerned; and

(*v*) to undertake measures for the redressal of grievances of the Stake-holders.

(*2*) In the discharge of its functions under sub-section (*1*), the Fees Regulating Authority shall have the following powers, namely:—

(*i*) scrutiny and verification of 'fee proposals' and final approval thereof;

(*ii*) to evolve mechanism for verification of infrastructure facilities, amenities and verification thereof in unaided institutions;

(*iii*) redressal of grievances of the Stake-holders.

(*3*) Notwithstanding anything contained in sub-sections (*1*) and (*2*) the *Shulka Niyanttran Samiti* existing on to the date of commencemnet of this Act shall continue to exercise the powers of the Fees Regulating Authority till such Authority is duly constituted under this Act.

(*4*) In the discharge of its functions, and, for the purpose of making any inquiry under this Act, the Fees Regulating Authority shall have all powers of a civil court under the Code of Civil Procedure, 1908 while trying a suit, in respect of the following matters, namely : — 5 of 1908.

(*i*) the summoning and enforcing the attendance of any witness and examining him on oath ;

(*ii*) the discovery and production of any document;

(*iii*) the reception of evidence on affidavits;

(*iv*) the issue of commission for the examination of the witness.

(*5*) The Fees Regulating Authority may constitute an enquiry committee of officers to verify the infrastructure facilities and amenities provided by the institutions as against the fee recovered from the students.

Procedure to be adopted by Fees Regulating Authority.

14. (*1*) In determining the reasonableness of fee structure, the following provisions shall apply :—

(*a*) the Management of the Unaided Institution shall submit the details of the proposed fee alongwith the audited accounts of the preceding financial year, the proposed budget in respect of the current financial year and the relevant record and evidence to the Fees Regulating Authority for its approval not later than 31st October of previous academic year;

(*b*) in the event of non-submission of proposal for upward revision of fees to the Fees Regulating Authority within the time-limit specified by the Authority, the fees structure as approved by the Authority and applicable during the previous academic year shall continue to apply;

(*c*) the Fees Regulating Authority shall establish a separate scrutiny cell for the scrutiny of proposals submitted;

(*d*) after considering all the relevant factors, the Fees Regulating Authority shall approve the fees within a period of one hundred and twenty days from the date of receipt of the details of the proposed fee and communicate the details of the fee so approved;

(*e*) if the fee approved by the Fees Regulating Authority is not acceptable to the unaided institution, it may file review application with detail reasoning before the Fees Regulating Authority for reviewing its decision, within fifteen days from the date of communication. It shall be mandatory for the Fees Regulating Authority to decide such review

application before the 31st March of every year and shall communicate its decision to the concerned institution accordingly;

(*f*) the Fees Regulating Authority may prescribe its procedure regarding scrutiny of fee proposals and grievance redressal mechanism as it deem fit.

(*2*) Pending the decision of the Fees Regulating Authority, the management shall be at liberty to collect the interim or *adhoc* fee as the case may be, till the final determination for the particular academic year.

(*3*) The Fees Regulating Authority shall indicate the different heads under which the fees may be levied.

(*4*) Every unaided institution shall display on its notice board, the course-wise fees as approved by the Fees Regulating Authority and on its website in Marathi and English, provided that, in case of linguistic minority institutions, the display shall also be in the language of the minority to which such, institution belongs and shall be binding on the students and the institution.

(*5*) No institution shall collect fee amounting to more than one year fee from a candidate in an academic year and collection of fees for more than one year in an academic year shall be construed as collection of capitation fee and such institution shall be liable to be proceeded against.

(*6*) The fees approved and communicated by the Fees Regulating Authority shall be applicable in respect of the candidate who is admitted to the unaided institution in that academic year and shall not be revised till the completion of the course of such student in the concerned institution:

Provided that, an unaided institution may, with the prior approval of the Fees Regulating Authority, revise the fees in respect of the second or subsequent years, on the grounds such as revision in taxes, sudden revision in regular expenditure, etc.

Factors for determination of fee structure.

15. The Fees Regulating Authority shall determine the reasonableness of the fee structure proposed by every unaided institution, in respect of each professional course or group of courses, considering following factors :—

(*i*) the location (Urban or Rural) of the institution;

(*ii*) the cost of land and building ;

(*iii*) minimum mandatorily required infrastructure or facilities, as specified by the appropriate authority ;

(*iv*) the expenditure proposed or incurred on the facilities and amenities that are not mandatory as per the guidelines of the appropriate authority ;

(*v*) available number of qualified regularly appointed teaching and non-teaching staff as per the prescribed norms of the appropriate authority ;

(*vi*) expenses on the prescribed salaries of the teaching and non-teaching staff ;

(*vii*) the expenditure on administration and the maintenance;

(*viii*) the reasonable revenue surplus required for growth and development of the institution with particular reference to the professional course conducted by it, which shall not be more than fifteen

per cent. of educational revenue in the respective professional course or group of courses;

(*ix*) facilities provided by the Government, such as lease of land at concessional rates and use of its infrastructure, for the conduct of the professional courses;

(*x*) depreciation or contribution for asset replacement fund;

(*xi*) rent of building or usage charges;

(*xii*) incentives for quality enhancement, such as—

(*a*) faculty strength with Ph. D. qualifications and Research publications in International Journals and Patent filed by the institution;

(*b*) faculty training and placement of students;

(*c*) accreditation of eligible programmes or the Institute such as NBA, NABET, NAAC, etc.;

(*xiii*) rate of inflation;

(*xiv*) any other relevant factor, as may be determined by the Fees Regulating Authority.

Funds of Regulating Authorities.

16. (*1*) There shall be a separate fund of each of the Regulating Authority.

(*2*) The funds of the said authorities shall consist of,—

(*i*) process fees payable by a Private Professional Educational Institution;

(*ii*) interest on deposits;

(*iii*) grants from the State Government, Central Government and the University Grants Commission and other Institutions (if any).

(*3*) The Regulating Authorities may charge process fee for conduct of CET and charges for fixation of fees, etc., as may be decided from time to time by the said authorities. The process fee for each year may be decided by the concerned authorities considering their day to day expenditure including salaries, allowances, administrative expenses, honorarium, infrastructural needs and any other activity in pursuance of its function, etc.

(*4*) The concerned authorities shall open separate bank account in nationalized bank and meet their expenses from the receipts.

CHAPTER V

Accounts and Maintenance of Records of Authorities

Maintenance of Accounts.

17. The Regulating Authorities shall maintain their respective accounts in such form as may be prescribed.

Audit.

18. The Accounts of the Regulating Authorities shall be audited every year by the Comptroller and Auditor General of India and the report thereof shall be placed before both Houses of the State Legislature in the session immediately held thereafter.

Report of activities of Regulating Authorities.

19. The Regulating Authorities shall, in such form and within such time as may be prescribed, submit its report annually in respect of its activities in the previous financial year to the State Government. The State Government shall cause such report to be placed before each House of the State Legislature in the session held immediately thereafter.

CHAPTER VI

PENALTIES

Penalties.

20. (*1*) The Regulating Authority if, of the opinion that any person has contravened any of the provisions of this Act or the rules made thereunder, may direct such person to pay a penalty—

(*a*) for the first contravention, which shall not be less than one lakh rupees but which may extend to five lakh rupees or twice the amount taken in excess of the fee as determined under this Act, whichever is higher;

(*b*) for the second or subsequent contravention, which shall not be less than two lakh rupees but which may extend to ten lakh rupees or twice the amount taken in excess of the fee as determined under this Act, whichever is higher.

(*2*) Whoever, provides incorrect information, fabricated and fake books of accounts, fraudulent documents, and such other evidence etc., to the authorities, whether or not the act is done for profit or gain, is said to have committed an offence and shall, on conviction be punished with imprisonment for a term which may extend to six months.

(*3*) The offence under sub-section (*2*) shall be cognizable.

(*4*) If during the course of enquiry under this section, it is found that the unaided institution has charged the fees in excess of those approved by the Authority; such fees shall be returned to the concerned student.

(*5*) On repetition of contravention or irregularity, the name of the institution shall be recommended for the withdrawal of affiliation or approval from concerned authority.

(*6*) Where the offence or irregularity under this Act or rules made thereunder is committed by a Management, every person designated by the management, from such management, for the purpose, who, at the time when the offence or irregularity was committed, was in charge of, and responsible to, the management for the conduct of the business of the management, as well as the management, shall be deemed to be guilty of the offence and shall be proceeded against and punished accordingly:

Provided that, nothing contained in this sub-section shall render any person liable to punishment, if he proves that the offence was committed without his knowledge or that he has taken due diligence to prevent the commission of such offence.

(*7*) Notwithstanding anything contained in sub-section (*6*), where any offence under this Act or the rules made thereunder has been committed by a management and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of any office bearer, officer or servant, such office bearer, officer or servant concerned shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

CHAPTER VII

MISCELLANEOUS

Protection of action taken in good faith.

21. No suit, prosecution or other legal proceedings shall lie against any authority or employees working in the office of authorities for anything done or purported to have been done in good faith in pursuance of the provisions of this Act or rules and regulations made thereunder.

Power of State Government to issue directions.

22. The State Government may issue such general or special directions to the Regulating Authorities, consistent with the provisions of this Act and the rules made thereunder, as in its opinion are necessary or expedient for carrying out the purposes of this Act or for giving effect to any of the provisions contained therein or in any rules or orders made thereunder.

Power to make rules.

23. (*1*) The State Government may, by notification in the *Official Gazette*, make rules to carry out the purposes of this Act.

(*2*) Every rule made under this Act shall be laid, as soon as may be, after it is made, before each House of the State Legislature, while it is in session for a total period of thirty days, which may be comprised in one session or two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session or sessions immediately following, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, and notify their decision to that effect in the *Official Gazette*, the rule shall from the date of publication of such decision in the *Official Gazette*, have effect only in such modified form, or be of no effect, as the case may be; so, however, that any such modification, or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

Power to make regulations.

24. The Regulating Authorities may, for performing their functions under this Act, make regulations consistent with the provisions of this Act and the Rules made thereunder.

Power to remove difficulty.

25. (*1*) If any difficulty arises in giving effect to the provisions of this Act, the State Government may, as occasion arises, by an order published in the *Official Gazette*, do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for removing the difficulty:

Provided that, no such order shall be made after expiry of a period of two years from the date of commencement of this Act.

(*2*) Every order made under sub-section (*1*) shall be laid, as soon as may be, after it is made, before each House of the State Legislature.

Repeal of Mah. Ord. VII of 2015 and saving.

26. (*1*) The Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Ordinance, 2015, is hereby repealed. Mah. Ord. VII of 2015.

(*2*) Notwithstanding such repeal, anything done or any action taken (including any notification or order issued) under the corresponding provisions of the said Ordinance, shall be deemed to have been done, taken or issued, as the case may be, under the corresponding provisions of this Act.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY SHRI PARSHURAM JAGANNATH GOSAVI, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004, EDITOR : SHRI PARSHURAM JAGANNATH GOSAVI.

RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष १२, अंक १४(३)] मंगळवार, मार्च १७, २०२६/फाल्गुन २६, शके १९४७ [पृष्ठे १६, किंमत : रुपये २७.००

असाधारण क्रमांक २९

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Unaided Private Professional Education Institution (Regulation of Admissions and Fees) (Amendment) Act, 2026 (Mah. Act No VII of 2026), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. VII OF 2026.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 17th March 2026).

An Act further to amend the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015.

WHEREAS both Houses of the State Legislature were not in session;

AND WHEREAS the Governor of Maharashtra was satisfied that circumstances existed which rendered it necessary for him to take immediate action further to amend the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015, for the purposes hereinafter appearing; and, therefore, promulgated the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) (Amendment) Ordinance, 2026 on the 22nd February 2026;

Mah. XXVIII of 2015.

Mah. Ord. II of 2026.

AND WHEREAS it is expedient to replace the said Ordinance by an Act of the State Legislature; it is hereby enacted in the Seventy-seventh Year of the Republic of India as follows:—

Short title and commencement.

1. (*1*) This Act may be called the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) (Amendment) Act, 2026.

(*2*) It shall be deemed to have come into force on the 22nd February 2026.

Amendment of section 1 of Mah. XXVIII of 2015.

2. In section 1 of the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015 (hereinafter referred to as "the principal Act"), in sub-section (*1*), for the words "the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees)" the words "the Maharashtra Professional Educational Institutions (Regulation of Admissions) and Unaided Private Professional Educational Institutions (Regulation of Fees)" shall be substituted. Mah. XXVIII of 2015.

Amendment of section 2 of Mah. XXVIII of 2015.

3. In section 2 of the principal Act,—

(*1*) after clause (*a*), the following clause shall be inserted, namely :—

"(*a-1*) "aided institution" means Private Professional Educational Institution, which is receiving aid or grant-in-aid on account of salaries to its employees from the Central Government, the State Government or the local authority;";

(*2*) after clause (*b*), the following clause shall be inserted, namely :—

"(*b-1*) "Appellate Authority" means the Appellate Authority constituted under section 15A;";

(*3*) after clause (*c*), the following clause shall be inserted, namely :—

"(*c-1*) "CET Cell" means the Maharashtra State Common Entrance Test Cell referred in section 10;";

(*4*) for clause (*g*), the following clause shall be substituted, namely :—

"(*g*) "fees" means the amount determined as fees by the Fees Regulating Authority, having regard to the factors mentioned in section 15; but does not include any charges payable towards use of optional facilities like hostel accommodation, transportation, mess-charges and Students Insurance Fees, etc.;";

(*5*) in clause (*k*), for the words "second year of the course" the words "second or any subsequent year of the course" shall be substituted;

(*6*) after clause (*n*), the following clause shall be inserted, namely :—

"(*n-1*) "Overseas Citizens of India (OCI)" shall have the same meaning as assigned to it in section 7A of the Citizenship Act, 1955 ;"; 57 of 1955.

(*7*) in clause (*q*), after sub-clause (*iii*), the following sub-clause shall be added, namely :—

"(*iv*) the Ratan Tata Maharashtra State Skills University incorporated under the Maharashtra State Skills University Act, 2021 ; or the self-financed private skills university mentioned in the Schedule to the Maharashtra Private Skills Universities (Establishment and Regulation) Act, 2024 or any college or institution affiliated to those universities;"; Mah. VII of 2021. Mah. XXXV of 2024.

(*8*) after clause (*v*), the following clause shall be inserted, namely :—

"(*v-1*) "Selection Committee" means the committee constituted under section 20A;";

(9) in clause (w), for the words "the students studying" the words "the student seeking admission in the institution or the student studying" shall be substituted;

(10) in clause (x), for the words "grant-in-aid" the words "grant-in-aid on account of salaries to its employees" shall be substituted.

Amendment of section 6 of Mah. XXVIII of 2015.

4. In section 6 of the principal Act, in sub-section (1), after the word and figures "Act, 2006" the words ",the Maharashtra State Reservation for Socially and Educationally Backward Classes Act, 2024" shall be inserted.

Mah. XVI of 2024.

Insertion of section 6A Mah. XXVIII of 2015.

5. After section 6 of the principal Act, the following section shall be inserted, namely:—

Manner of admission in Government institution, etc.

"6A. The provisions of sections 3, 4, 5 and 6 in respect of the Regulations of Admissions and section 10 in respect of CET Cell shall *mutatis mutandis* apply to Government institution, Government aided institution and Public University Departments or institutes.".

Amendment of Heading of Chapter III of Mah. XXVIII of 2015.

6. In Chapter III of the principal Act, in the heading, the words "AND STATE COMMON ENTRANCE TEST CELL" shall be deleted.

Amendment of section 7 Mah. XXVIII of 2015.

7. In section 7 of the principal Act,—

(1) in sub-section (3),—

(i) in clause (a), for the words "of the rank of Chief Secretary or Additional Chief Secretary" the words "not below the rank of Principal Secretary" shall be substituted ;

(ii) in clause (b), for the words "Vice-Chancellor of University" the words "the Vice-Chancellor or the Pro-Vice-Chancellor of a Public University" shall be substituted;

(iii) after clause (b), the following clause shall be inserted, namely:—

"(b-1) A retired Government Officer, not below the rank of Joint Secretary, who has worked in the legal section of Law and Judiciary Department	..	Member";

(iv) after clause (e), the following clauses shall be inserted, namely:—

"(e-1) the Director of Medical Education and Research	..	Member
(e-2) the Director, AYUSH	..	Member
(e-3) the Director, Art	..	Member";

(2) in sub-section (4),—

(i) for the brackets and letter "(b)", the brackets, letters and figure "(b), (b-1)" shall be substituted;

(ii) after the words "the State Government" the words "in the prescribed manner on the recommendation of the Selection Committee" shall be added.

Amendment of section 8 of Mah. XXVIII of 2015.

8. In section 8 of the principal Act, for sub-sections (*1*) and (*2*), the following sub-sections shall be substituted, namely:—

"(*1*) The term of Office of the Chairperson and Member shall be of three years from the date he assumes his office or until he attains the age of seventy years, whichever is earlier:

Provided that, every person who on the date of commencement of the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) (Amendment) Act, 2026 is serving as Chairperson or Member shall, on and from such commencement, be the Chairperson or, as the case may be, the Member and they shall continue to hold the office on the same terms and conditions on which they were appointed, till completion of their term of office. Mah. VII of 2026.

(*2*) The Chairperson and Member shall be eligible for re-appointment for only one more consecutive term of three years.".

Amendment of section 9 of Mah. XXVIII of 2015.

9. In section 9 of the principal Act,—

(*1*) in sub-section (*1*),—

(*i*) for clause (*i*), the following clause shall be substituted, namely:—

"(*i*) to assist the Government in making rules, to carry out the purposes of this Act;";

(*ii*) after clause (*iii*), the following clauses shall be inserted, namely:—

"(*iii-a*) to get its budget estimates including revised budget estimates prepared by the Member-Secretary of the Authority and submit it to the Government for its approval;

(*iii-b*) to maintain its accounts in the manner, as may be prescribed and get it audited by the Chartered Accountant who is the member of the Institute of Chartered Accountants of India;

(*iii-c*) to establish and recognize Facilitation Centers (FC) and Students Assistance Centers (SAC) to assist and guide students at the CAP process;

(*iii-d*) to carry out any other ancillary functions;";

(*iii*) for clause (*iv*), the following clauses shall be substituted, namely:—

"(*iv*) redressal of grievances of the Stake-holders by providing Grievance Redressal mechanism relating to admissions;

(*v*) to ensure systematic communication related to admissions with the Stake-holders;";

(*2*) sub-section (*3*) shall be deleted;

(*3*) for sub-section (*5*), the following sub-sections shall be substituted, namely:—

"(*5*) (*a*) In carrying out its functions and duties under this Act, the Authority and the Directorates, as well as every unaided institution shall follow the following procedure, namely:—

(*i*) Every unaided institution shall submit, electronically the 'admission approval proposals' to the concerned Directorate within fifteen days from the cut-off date of admission.

(*ii*) The concerned Directorate shall scrutinize and certify the admission approval proposal including the discrepancies, if any, and forward its recommendation to the Admissions Regulating Authority, electronically, within fifty days from the date of receipt of the proposal from such institution. A copy of the recommendation of Directorate shall be sent to the concerned institution electronically.

(*iii*) Every such recommendation received from the Directorate by the Admissions Regulating Authority and admission approval proposal, shall be scrutinized and the decision of the Authority on such proposal shall be taken before the 31st January of every academic year:

Provided that, the Admissions Regulating Authority, having regard to the cut-off date for admission to a particular course of professional education, as decided by the appropriate authority, from time to time, may, after recording the reasons therefor, extend the date for its decision by three months after 31st January of every academic year, at a time but in any case, it shall not exceed beyond the end of that academic year of the respective professional course.

(*iv*) The Admissions Regulating Authority shall inform its approval to the concerned institution and the university at the earliest.

(*v*) Any grievance by the stake-holder may be filed before the Admissions Regulating Authority and the Authority shall take decision thereon at the earliest, and in any case before the end of that academic year.

(*vi*) The Admissions Regulating Authority shall have power to review its own decision, either on its own motion or on the application of a stake-holder, after recording the reasons therefor; but no second review shall be permissible.

(*vii*) Where the submission of admission approval proposal by electronic mode is not possible in respect of any particular professional course, the proposal with the prior approval of the Admissions Regulating Authority may be filed physically.

(*viii*) Stake-holders aggrieved by the orders or the decision of the Admissions Regulating Authority may file its Appeal to the Appellate Authority, within fifteen days from the date of receipt of the order of the Admissions Regulating Authority. The Appellate Authority shall dispose of such appeal within thirty days from the date of receipt of such appeal and the decision of the Appellate Authority thereon shall be final.

(*b*) No act or proceeding of the Admissions Regulating Authority shall be deemed to be invalid by reason merely of any vacancy in, or any defect in the constitution thereof.

(*c*) The Admissions Regulating Authority shall by regulations, prescribe its procedure regarding scrutiny of admission proposals and grievance redressal mechanism as it deem fit.

(*d*) The Member-Secretary shall be the administrative head of the office of the authority and shall exercise such other powers as may be entrusted to him by regulations.

(*6*) The Admissions Regulating Authority may constitute enquiry committees of officers and experts to verify and report to the Authority in respect of admissions.

(7) The number of the enquiry committees under sub-section (6) and the meeting and other allowances to be payable to such members shall be such, as may be specified by the Authority, from time to time.

(8) The Chairperson may invite,—

(i) the Registrar of any public University in the State of Maharashtra as an invitee Member when the business of the Admissions Regulating Authority pertaining to the professional courses concerned with that University is transacted;

(ii) any person or officer from the field of Higher Education, Technical Education, Information Technology, Medical and Health Science, Architecture, Agriculture, Ayurved Medicine, Homeopathy, Dental, Nursing or Pharmacy Education, for obtaining their expert opinion. Such expert invitees may participate in the proceedings of the meetings of the Admissions Regulating Authority, but they shall have no right to vote.".

Substitution of section 10 of Mah. XXVIII of 2015.

10. For section 10 of the principal Act, the following Chapter shall be substituted, namely:—

"CHAPTER III-A

MAHARASHTRA STATE COMMON ENTRANCE TEST CELL

State Common Entrance Test Cell.

10. (1) There shall be a "Maharashtra State Common Entrance Test Cell" to exercise the powers conferred on, and discharge the functions assigned to it, under this Act. The State CET Cell shall be a body corporate by the name aforesaid having perpetual succession and common seal and shall have power to acquire, hold, and dispose off property both movable and immovable, and to do all things necessary for the purpose of this Act, and may sue or be sued by its name.

(2) The State CET Cell shall consist of,—

(a) an officer not below the rank of the Joint Secretary, deputed as the Commissioner of State CET Cell by the Government	.....	Chairperson
(b) six officers not below the rank of Deputy Director of the State Government, in the fields of the Medical, Technical, Agriculture, Higher Education, Art, AYUSH	.....	Members.

(3) The appointment of Chairperson shall be made by the State Government and that of Members under clause (b) of sub-section (2) shall be made by the Director of Medical, Technical, Agriculture, Higher Education, Art and AYUSH, respectively.

(4) A Chairperson or Member of the State CET Cell shall cease to be Chairperson or Member, if he does any act which in the opinion of the State Government or Director is unbecoming of a Chairperson or Member of the State CET Cell.

(5) The Chairperson shall preside over the meetings of the State CET Cell and may adopt its own procedure by regulations, as it deems fit.

Powers and functions of State CET Cell.

10A. (1) Powers and Functions of the State CET Cell shall be,—

(a) to monitor and conduct the Common Entrance Test for admissions to Unaided Professional Educational Institution in an efficient, transparent, smooth and fair manner:

Provided that, the State Government may allow such admissions through CET conducted by the authorities of the Central Government;

(*b*) to identify and empanel subject experts for setting CET examination questions and their confidential operations;

(*c*) to take all decisions in respect of conduct of the Common Entrance Test in a fair manner, maintaining the required confidentiality. It shall appoint examiners, evaluators, moderators and persons for assignment of software development required for the conduct of examination, evaluation and result processing, and also appoint persons as service providers required for the conduct of the online or offline examination and shall undertake printing of various documents, etc. It shall exercise financial powers for execution of all activities related to conduct of CETs;

(*d*) to take all necessary measures for conducting the Common Entrance Tests, adaptable, accountable, credible, error-free, student friendly, secured, tamper proof, transparent and in efficient manner;

(*e*) to provide trainings, guidelines for testing team and invigilators;

(*f*) to establish and recognize Facilitation Centers (FC) and Students Assistance Centers (SAC) to assist and guide students at the pre-exam and CET;

(*g*) to establish Learning and Test Centers (LTCs) in the State for conducting online CET at various locations;

(*h*) to provide for Grievance Redressal Mechanism relating to CETs;

(*i*) to prepare before 28th February of every year, its budget estimates of the income and expenditure for next year;

(*j*) to consider the budget estimates prepared by it and submit them to the Government for approval on or after the date referred in clause (*i*);

(*k*) to revise budget estimates as and when necessary and submit it to the Government for approval;

(*l*) to maintain its accounts in such form and in such manner, as may be prescribed;

(*m*) to get audited its accounts by the auditor who is member of the Institute of Chartered Accountants of India;

(*n*) to furnish such reports, returns and statements, as may be required by the Admissions Regulating Authority or the Government;

(*o*) to ensure the provisions of this Act, Rules and Regulations and directions of the State Government, made thereunder, are followed scrupulously.

(*2*) The Commissioner of the CET Cell may in an emergency, take such action or decision as he deems fit required.

(*3*) The Commissioner of the CET Cell may invite any person who in his opinion is an expert in the subject to attend its meeting, if the subject with which the expert is likely to come up for discussion or consideration at such meeting.

(*4*) The CET Cell may constitute such committees as it thinks necessary for efficient performance of its functions. The number of the Members, its duties and functions and allowances payable to the members for attending meetings may be specified by the regulations.

(*5*) The CET Cell shall, subject to its budget approved by the Government, exercise financial powers for execution of all activities related to conduct of CET.

(6) The CET Cell shall have such other powers and discharge such other functions and conduct the examination in such manner as may be prescribed.

(7) Admission to every seat shall be made on the basis of merit secured at the Common Entrance Test (CET) followed by Centralized Admission Process of the State, subject to the reservation policy of the State:

Provided that the admission to institutional quota shall be in the manner provided in the first proviso to clause (*a*) of section 4.".

Amendment of section 11 of Mah. XXVIII of 2015.

11. In section 11 of the principal Act,—

(*1*) in sub-section (*3*), for clause (*a*), the following clause shall be substituted, namely :—

"(*a*) a retired Judge of District Court or retired officer of the Government not below the rank of Secretary ... Chairperson";

(*2*) in sub-section (*4*), after the words "by the Government" the words "in the prescribed manner on the recommendation of the Selection Committee" shall be added;

(*3*) after sub-section (*7*), the following sub-section shall be inserted, namely:—

"(*7A*) The Member-Secretary shall be the administrative head of the office of the authority and shall exercise such other powers, as may be entrusted to him by regulations.".

Amendment of section 13 of Mah. XXVIII of 2015.

12. In section 13 of the principal Act,—

(*1*) in sub-section (*1*), after clause (*v*), the following clauses shall be added, namely:—

"(*vi*) to lay down the norms for submission of fee proposals, from time to time;

(*vii*) to advice the Government, on reference, if any made, relating to fees.";

(*2*) in sub-section (*2*), for clauses (*ii*) and (*iii*), the following clauses shall be substituted, namely:-

"(*ii*) to evolve the mechanism for verification of infrastructure facilities and amenities provided to students by the unaided private professional educational institution;

(*iii*) to undertake measure for redressal of grievances relating to fees and fees proposals;

(*iv*) to ascertain, verify and ensure that there is no profiteering in collection of fees;";

(*3*) sub-section (*3*) shall be deleted;

(*4*) for sub-section (*5*), the following sub-sections shall be substituted, namely:—

"(*5*) The Fees Regulating Authority may constitute inspection committees of officers and experts to verify and report to the Authority in respect of the infrastructure facilities and amenities provided by the institutions as against the fee recovered from the students.

(6) The number of members of the inspection committee under sub-section (5) and the meeting and other allowances to be payable to such members shall be such as may be specified by the Authority, from time to time.

(7) The Fees Regulating Authority shall have the right to cause an inspection or inquiry to be made by such person or persons, as it may direct of any unaided institution and its infrastructures, such as the buildings, hostels, laboratories, libraries, equipment, teaching and other work conducted by any such institution.

(8) The Authority, shall in every case, give due notice to the institution of its intention to cause an inspection or inquiry to be made and the institution shall be entitled to appoint a representative, who shall have the right to be present and be heard of such inspection or inquiry.".

13. For section 14 of the principal Act, the following section shall be substituted, namely:— Substitution of section 14 of Mah. XXVIII of 2015.

"14. (1) In determining the reasonableness of fees structure, the following provisions shall apply:— Procedure to be adopted by Fees Regulating Authority.

(a) the Authority shall every year lay down the norms, for submission of fees proposals by the Management of unaided institutions and publish the same on its website well in advance;

(b) the Management of the unaided institution shall submit the fee proposal in the formats specified by the Fees Regulating Authority along with the certified copies of audited accounts of the immediately preceding financial year, and the relevant record and evidence to the Fees Regulating Authority for its approval not later than 31st October of previous academic year. The proposal shall confirm to the norms laid down under clause (a) :

Provided that, the Authority may, on sufficient cause being shown, and subject to payment of costs, accept the fees proposal upto 31st December of the previous academic year ;

(c) in the event of non-submission of proposal for revision of fees to the Fees Regulating Authority within the time-limit specified by the Authority, the fees structure as approved by the Authority and applicable during the previous academic year shall continue to apply for the period of next academic year only;

(d) in the event of non-submission of fees proposals for two or more successive academic years, the fees as approved by the Fees Regulating Authority in the immediate past, shall be reduced by twenty per cent. by the Authority;

(e) the Fees Regulating Authority shall establish scrutiny cell for the scrutiny of proposals submitted and different scrutiny cells may be established for different courses;

(f) after considering the report of the scrutiny cell and all other relevant factors, the Fees Regulating Authority shall approve the fees proposal within a period of one hundred and twenty days from the date of receipt of the details of the proposed fees and communicate the decision thereon to the management of the concerned institution;

(*g*) if the decision of the Fees Regulating Authority on fee proposal is not acceptable to the Management of the unaided institution, it may file a review application with detail reasoning before the Fees Regulating Authority for reviewing its decision, within fifteen days from the date of communication of the decision to be reviewed. The Fees Regulating Authority shall decide such review application before the 31st March of the previous academic year and shall communicate its decision to the concerned Management accordingly ;

(*h*) the Fees Regulating Authority may prescribe its procedure regarding scrutiny of fees proposals and grievance redressal mechanism as it deems fit.

(*2*) Pending the decision of the Fees Regulating Authority, the institution shall, with the prior approval of the Authority, may collect the interim or *ad-hoc* fee, as the case may be, till the final determination on the fees proposal.

(*3*) If an institution intends to apply the fees prescribed by the Fees Regulating Authority for the previous academic year to the students studying in the current academic year without any changes, it may be permitted to do so with the approval of the Fees Regulating Authority, but the institution must submit such a proposal to the Fees Regulating Authority in a timely manner.

(*4*) The Fees Regulating Authority shall indicate the different heads under which the fees may be levied and collected.

(*5*) (*a*) Every unaided institution shall display on its notice board and on its website, the course-wise and head-wise fees (including interim fees and *ad-hoc* fees, as the case may be) as approved by the Fees Regulating Authority in Marathi and English ;

(*b*) In case of linguistic minority institutions, the display shall also be in the language of the minority to which such, institution belongs ;

(*c*) The fees so displayed shall be binding on the students and the institution.

(*6*) (*a*) No institution shall collect fees amounting to more than one year fees from a candidate in an academic year ;

(*b*) The collection of fees for more than one year in an academic year shall be construed as collection of capitation fee and such institution shall be liable to be proceeded against in accordance with the provisions of the Maharashtra Educational Institutions (Prohibition of Capitation Fee) Act, 1987 and this Act ; Mah. VI of 1988.

(*c*) If on the receipt of any complaint or otherwise, the Authority is of the opinion after an enquiry that, any institution has charged fees in excess of the fees approved by the Authority such Institution shall be liable to return to such student such excess fees and shall also be liable for the penalty as provided in this Act :

Provided that, where the complainant is the repeater or ex- student of the institution, no such complaint shall be entertained by the authority after the expiry of a period of one year if such complainant has left the instution.

(*7*) No institution shall withhold mark-sheet, transfer certificate or any other document required by the student for pursuing his studies, without disclosing him reasons in writing.

(8) The fees approved and communicated by the Fees Regulating Authority shall be applicable in respect of the student who is admitted to the unaided institution in that academic year and shall not be revised till the completion of the course of such student in the concerned institution:

Provided that, an unaided institution may, with the prior approval of the Fees Regulating Authority, revise the fees in respect of the second or subsequent year, on the grounds such as revision in taxes, sudden revision in regular expenditure, etc.

14. After section 15 of the principal Act, the following shall be inserted, namely :— Insertion of CHAPTER IV-A in Mah. XXVIII of 2015.

"CHAPTER IV-A

APPELLATE AUTHORITY

15A. (1) There shall be an Appellate Authority to decide the appeals arising out of the orders or the decisions of the Admission Regulating Authority and Fees Regulating Authority and to discharge the functions assigned to it, under this Act. Appellate Authority.

(2) The State Government may, by notification in the *Official Gazette*, constitute an Appellate Authority. The said Authority shall be a body corporate by the name aforesaid having perpetual succession and common seal and shall have power to do all things necessary for the purposes of this Act.

(3) The Appellate Authority shall consist of,—

(a) a retired Judge of High Court or retired officer of the Government not below the rank of Additional Chief Secretary	.....	Chairperson
(b) a Chartered Accountant of repute who is a member of the Institute of Chartered Accountants of India, for a period of not less than ten years	.....	Member
(c) a Cost Accountant of repute who is a Member of the Institute of Cost and Works Accountants of India, for a period of not less than ten years	.....	Member
(d) an expert of repute from the field of Professional Education	.....	Member
(e) an officer of Technical Education Department	.....	Member-Secretary.

(4) The appointment of Chairperson and Members of Appellate Authority under clauses (a), (b), (c) and (d) of sub-section (3) shall be made by the State Government on the recommendation of the Selection Committee.

(5) The Member-Secretary of the Appellate Authority shall be appointed by deputation of an officer not below the rank of Deputy Director from Technical Education Department.

(6) No person who is associated with any private aided or unaided Professional Educational Institution shall be eligible for being Chairman or a Member or experts of the Appellate Authority.

(7) A Chairperson or Member of the Appellate Authority shall cease to be Chairperson or Member, if he does any act which in the opinion of the State Government is unbecoming of a Chairperson or Member of the Appellate Authority.

(8) The Chairperson shall preside over the meetings of the Appellate Authority and may adopt its own procedure by regulations, as it deems fit.

(9) No act or proceeding of the Appellate Authority shall be deemed to be invalid by reason merely of any vacancy in, or any defect in the constitution thereof.

(10) The provisions of section 8 shall *mutatis mutandis* apply in respect of the term of office and conditions of service of Chairperson and Members of the Appellate Authority.

(11) The Government shall provide the staff for smooth functioning of the Appellate Authority.

(12) All the expenses of the Appellate Authority shall be incurred from the funds of Fees Regulating Authority.

Powers and functions of Appellate Authority.

15B. (1) The powers and functions of the Appellate Authority shall be,—

(a) to decide the appeal of the stake holders and final approval thereof.

(b) to prescribe its procedure for deciding an appeal on the order and decisions of Admissions Regulating Authority and Fees Regulating Authority, as it deems fit.

(2) In the discharge of its functions under sub-section (1) and for the purpose deciding appeal under this Act, the Appellate Authority shall have all the powers of a Civil Court under the Code of Civil Procedure, 1908 while trying a suit, in respect of the following matters, namely :— 5 of 1908.

(i) the summoning and enforcing the attendance of any witness and examining him on oath:

(ii) the discovery and production of any document;

(iii) the reception of evidence on affidavits;

(iv) the issue of commission for the examination of the witness.

(3) A stake-holder aggrieved by the orders and decision of Admissions Regulating Authority or Fees Regulating Authority may, file an appeal to the Appellate Authority, within fifteen days from the receipt of the order of the Admissions Regulating Authority or Fees Regulating Authority. The Appellate Authority shall dispose off such appeal within thirty days from the date of receipt of such appeal and the decision of the Appellate Authority thereon shall be final.".

Substitution of section 16 of Mah. XXVIII of 2015.

15. For section 16 of the principal Act, the following Chapter shall be substituted, namely :—

"CHAPTER IV-B

FUNDS OF REGULATING AUTHORITIES AND CET CELL

Funds of Regulating Authorities and CET Cell.

16. (1) There shall be a separate fund for each of the Regulating Authority and CET Cell.

(2) The fund of the said authorities and CET Cell shall consists of,—

(i) processing fees payable by a Private Professional Educational Institution;

(*ii*) interest on deposit;

(*iii*) grants from the State Government, Central Government and the University Grants Commission and other Institutions (if any);

(*iv*) any other moneys including fees, royalties, penalties levied and collected service charges, etc., which may be received by the Regulating Authority and CET Cell.

(*3*) (*i*) The Regulating Authorities and the CET Cell may charge processing fees and charges for fixation of fees and processing fees for conducting CET, etc., as may be decided, from time to time by the Authorities and the CET Cell.

(*ii*) The processing fees for every year may be decided by the concerned authorities and the CET Cell by considering their day to day expenditure including salaries, allowances, administrative expenses, honorarium, infrastructural needs and any other activity in pursuance of its functions.

(*4*) The concerned authorities and the CET Cell shall open separate bank account in nationalized bank and meet their expenses from the receipts.".

Substitution of section 17 of Mah. XXVIII of 2015.

16. For section 17 of the principal Act, the following section shall be substituted, namely :—

Maintenance of accounts.

"**17.** (*1*) The Regulating Authorities and the CET Cell shall maintain their respective accounts based on the mercantile system of accounts.

(*2*) The accounts of the Regulating Authorities and the CET Cell shall be maintained in such form, as may be prescribed.".

Amendment of section 18 of Mah. XXVIII of 2015.

17. Section 18 of the principal Act shall be re-numbered as sub-section (*1*) thereof, and,—

(*1*) in sub-section (*1*) as so re-numbered, after the words "Regulating Authorities" the words "and the CET Cell" shall be inserted;

(*2*) after sub-section (*1*), as so re-numbered, the following sub-section shall be added, namely :—

"(*2*) Without prejudice to the provisions of sub-section (*1*), the annual accounts of the Regulating Authorities and the CET Cell shall be audited by a Member of the Institute of Chartered Accountants of India appointed by the respective Authorities and the CET Cell.".

Amendment of section 19 of Mah. XXVIII of 2015.

18. In section 19 of the principal Act,—

(*1*) in the marginal note, after the words "Regulating Authorities" the words "and CET Cell" shall be added ;

(*2*) after the words "Regulating Authorities" the words "and the CET Cell" shall be inserted.

Amendment of section 20 of Mah. XXVIII of 2015.

19. In section 20 of the principal Act,—

(*1*) in sub-section (*1*), for clauses (*a*) and (*b*), the following clauses shall be substituted, namely:-

"(*a*) for the first contravention, which shall not be less than three lakh rupees or twice the amount taken in excess of the fees as determined under this Act, whichever is higher;

(*b*) for the second or subsequent contravention, which shall not be less than fifteen lakh rupees or thrice the amount taken in excess of the fees as determined under this Act, whichever is higher.";

(2) in sub-section (3), after the words "shall be cognizable" the words "and with leave of the court, be compoundable" shall be added:

(3) after sub-section (3), the following sub-section shall be inserted, namely :—

"(3A) No court shall take cognizance of an offence punishable under this Act, except upon a complaint in writing made by the Authority or by any officer of duly authorized by the Authority for this purpose.".

Insertion of new section 20A in Mah. XXVIII of 2015.

20. After section 20 of the principal Act, the following sections shall be inserted, namely :—

Selection Committee.

"20A. (1) There shall be a Selection Committee to recommend the suitable names of the Chairperson and Members of the Admissions Regulating Authority, Fees Regulating Authority and Appellate Authority to the State Government and discharge the functions assigned to it, under this Act.

(2) The Selection Committee shall consist of.—

(a) Chief Secretary, Government of Maharashtra	.....	Chairman
(b) Additional Chief Secretary or Principal Secretary, General Administration Department	.....	Member
(c) Additional Chief Secretary or Principal Secretary or Secretary, Higher and Technical Education Department	.....	Member
(d) Additional Chief Secretary or Principal Secretary or Secretary, Medical Education and Drugs Department	.....	Member
(e) Principal Secretary and Remembrancer of Legal Affairs, Law and Judiciary Department	.....	Member.

(3) *Procedure to be followed by the Selection Committee.*— (i) The State Government shall make a reference to the Selection Committee for appointment of the Chairperson and Members of the Authority or when any vacancy in the office of the Chairperson or Member arises or likely to arise in the Authority.

The Selection Committee may, for the purpose of selection of the Chairperson or Member of the Authority, follow such procedure as it may as deem fit.

(ii) The Selection Committee shall make a recommendation to the State Government for the consideration in the form of a panel of not more than three persons separately to fill the vacancy or vacancies referred to by the State Government.

(*iii*) The Selection Committee shall make its recommendations to the State Government, within a period not exceeding thirty days from the date of reference made under clause (*i*).

(*iv*) The notice or agenda, as the case may be, for the meeting of the Selection Committee shall be issued by the convener after fixing the date and venue for such meeting in consultation with the Chairperson of the Selection Committee.

(*v*) The Secretary of the Higher and Technical Education Department shall be the convener of the Selection Committee.

(*vi*) The State Government shall consider the recommendations of the Selection Committee for the appointment of the Chairperson and Members of the Authority or to fill the vacancy.".

Amendment of section 21 of Mah. XXVIII of 2015.

21. In section 21 of the principal Act, after the words "office of the authorities" the words "and CET Cell" shall be inserted.

Insertion of new sections 21A to 21E in Mah. XXVIII of 2015.

22. After section 21 of the principal Act, the following sections shall be inserted, namely,—

Attendance of *ex-officio* members.

"21A. An *ex-officio* Member of the Regulating Authority, who is unable to attend the meeting of the Authority, due to his official work, may authorize his immediate subordinate to attend such meeting and inform the concerned member-secretary of such authorization in advance.

Appointment of Government employees on deputation.

21B. The terms and conditions of service of the employees appointed by the Government and deputed to the Regulating Authorities, or, as the case may be, the CET Cell shall be such, as are applicable to the Government servants:

Provided that, the Regulating Authority may, by order, grant additional benefits to such Government servants, as it may deem fit.

Chairperson, Members and Officers, etc, to be public servants.

21C. The Chairperson and Members of the Authorities, Officers and Employees of the Regulating Authorities and the CET Cell shall, when acting or purporting to act in pursuance of the provisions of this Act, be deemed to be public servants within the meaning of clause (*28*) of section 2 of the Bhartiya Nyaya Sanhita, 2023.

45 of 2023.

Dispute or difference between Admissions Regulating Authority and CET Cell.

21D. In case of any dispute or difference of opinion between the Admissions Regulating Authority or the CET Cell, as to whether a particular matter pertains to the Regulating Authority or the CET Cell, the matter shall be referred by the Competent Authority, to the Secretary-in-charge of the Higher and Technical Education Department, whose decision thereon shall be final.

Difference of opinion between Regulating Authorities.

21E. In case of any difference of opinion, between the Regulating Authorities, as to whether a particular matter pertains to the Admissions Regulating Authority or the Fees Regulating Authority, the matter shall be referred, by either Member-Secretary to the Secretary-in-charge of the Higher and Technical Education Department, whose decision thereon shall be final.".

Amendment of section 22 of Mah. XXVIII of 2015.

23. In section 22, for the words "Regulating Authorities" the words "Regulating Authorities, Appellate Authority and the CET Cell" shall be substituted.

Insertion of new section 22A of Mah. XXVIII of 2015.

24. After section 22 of the principal Act, the following section shall be inserted, namely :—

Duties of and assistance from Professional Education Institutions.

"**22A.** All Professional Education Institutions shall render such help and assist the Regulating Authorities, Appellate Authority and CET Cell as may require to them to perform and discharge their duties and functions under this Act.".

Power to remove difficulty.

25. (*1*) If any difficulty arises in giving effect to the provisions of the principal Act, as amended by this Act, the State Government may, as occasion arises, by an order published in the *Official Gazette*, do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for removing the difficulty:

Provided that, no such order shall be made after the expiry of a period of two years from the date of commencement of this Act.

(*2*) Every order made under sub-section (*1*) shall be laid, as soon as may be, after it is made, before each House of the State Legislature.

Repeal of Mah. Ord. II of 2026 and saving.

26. (*1*) The Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Ordinance, 2026 is hereby repealed. Mah. Ord. II of 2026.

(*2*) Notwithstanding such repeal, anything done or any action taken (including any notification or order issued) under the corresponding provisions of the principal Act, as amended by the said Ordinance, shall be deemed to have been done, taken or, as the case may be, issued under the corresponding provisions of the principal Act, as amended by this Act.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

ANNEXURE "JJ"

The Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (No. VIII of 2024) & MAHARASHTRA PRIVATE HEALTH SCIENCES UNIVERSITIES: The process for admission to Health Science Courses established under 'The Maharashtra Private Universities (Establishment and Regulation) Act 2023' and 'The Maharashtra Private Universities (establishment and regulation) (third amendment) Act 2026 (No. XXX of 2026)'

The Maharashtra Private Universities (Establishment and Regulation) Act, 2023

Act No. 8 of 2024

Amendments appended: 20 of 2024, 15 of 2025, 45 of 2025, 59 of 2025, 9 of 2026

DISCLAIMER: This document is being furnished to you for your information by PRS Legislative Research (PRS). The contents of this document have been obtained from sources PRS believes to be reliable. These contents have not been independently verified, and PRS makes no representation or warranty as to the accuracy, completeness or correctness. In some cases the Principal Act and/or Amendment Act may not be available. Principal Acts may or may not include subsequent amendments. For authoritative text, please contact the relevant state department concerned or refer to the latest government publication or the gazette notification. Any person using this material should take their own professional and legal advice before acting on any information contained in this document. PRS or any persons connected with it do not accept any liability arising from the use of this document. PRS or any persons connected with it shall not be in any way responsible for any loss, damage, or distress to any person on account of any action taken or not taken on the basis of this document.

RNI No. MAHENG/2009/35528

महाराष्ट्र शासन राजपत्र
असाधारण भाग आठ

वर्ष १०, अंक ४(४)] शुक्रवार, जानेवारी १९, २०२४/पौष २९, शके १९४५ [पृष्ठे ३४, किंमत : रुपये २७.००

असाधारण क्रमांक १०

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (Mah. Act No. VIII of 2024), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. VIII OF 2024.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 19th January 2024).

An Act to enact a law to unify, consolidate and amend the laws relating to the self-financed private universities in the State of Maharashtra and to provide for establishment, incorporation and regulation of self-financed private universities in the State for development and advancement of higher education in the State and for matters connected therewith or incidental thereto.

WHEREAS, it is expedient to enact a law to unify, consolidate and amend the laws relating to self-financed private universities in the State of Maharashtra and to provide for establishment, incorporation and regulation of self-financed private universities in the State for development and advancement of higher education in the State and for matters connected

therewith or incidental thereto it is hereby enacted in the Seventy-fourth Year of the Republic of India, as follows:—

Short title and commencement.

1. (*1*) This Act may be called the Maharashtra Private Universities (Establishment and Regulation) Act, 2023.

(*2*) It shall come into force on such date, as the State Government may, by notification in the *Official Gazette*, appoint.

Definitions.

2. In this Act, unless the context otherwise requires,—

(*a*) "Academic Council" means the Academic Council of the university;

(*b*) "adjunct professor", "adjunct associate professor" or "adjunct assistant professor" means a person from industry, trade, agriculture, commerce, social, cultural, academic or any other allied fields who is so designated during the period of collaboration or association with the university;

(*c*) "authorities" means the authorities of the university as specified by or under this Act;

(*d*) "Board of Management" means the Board of Management constituted under section 28 of this Act;

(*e*) "campus" means the area of university within which it is established;

(*f*) "center of excellence" means the state-of-the-art training or research center established in collaboration with industry or for the benefit of the industry and society, to provide all types of relevant skills to students, in-service employees, working professionals and to undertake joint projects;

(*g*) "distance and online education" means education imparted by combination of any two or more means of communication *viz.* broadcasting, telecasting, correspondence courses, seminars, contact programmes or any other such methodology;

(*h*) "employee" means any person appointed by the university and includes teachers, officers and other staff of the university;

(*i*) "existing university" means the university specified in Part-I of the Schedule;

(*j*) "Expert Committee" means a Committee of eminent persons notified by the Government to promote, facilitate and assist in the establishment of new private universities in the Maharashtra constituted under this Act;

(*k*) "Faculty" means the Faculty of the university;

(*l*) "fee" means monetary collection made by the university or its colleges, institutions or study centers, as the case may be, from the students by whatever name it may be called, which is not refundable;

(*m*) "Government" or "State Government" means the Government of Maharashtra;

(*n*) "Governing Body" means the Governing Body constituted under section 27 of this Act;

(o) "higher education" means the pursuit of knowledge beyond learning at the stage of higher secondary school education;

(*p*) "hostel" means a place of residence for the students of the university, or its institutions and study centers, established or recognized to be as such by the university;

(*q*) "notification" means a notification published in the *Official Gazette*;

(*r*) "*Official Gazette*" means the *Maharashtra Government Gazette*;

(*s*) "prescribed" means prescribed by rules, Statutes, Ordinances or Regulations, as the case may be, made by or under this Act;

(*t*) "President" means the President of the university who shall also be the Chancellor of the university;

(*u*) "regulatory body" means a body established by the Central Government for laying down norms and conditions for ensuring academic standards of higher education, such as University Grants Commission, All India Council of Technical Education, National Council of Teacher Education, National Medical Commission, Pharmacy Council of India, National Council of Assessment and Accreditation, Indian Council of Agriculture Research, Distance Education Council, Council of Scientific and Indian Research, etc., and includes the Government;

(*v*) "rules" means the rules prescribed by the State Government;

(*w*) "Schedule" means the Schedule appended to this Act;

(*x*) "section" means a section of this Act;

(*y*) "sponsoring body" in relation to a university established under this Act means,—

21 of 1860. (*i*) a society registered under the Societies Registration Act, 1860; or

XXIX of 1950. (*ii*) public trust registered under the Maharashtra Public Trusts Act; or

1 of 1956. 8 of 2013. (*iii*) any Educational Institution established under section 25 of the Companies Act, 1956 or a company registered under the Companies Act, 2013;

(*z*) "State" means the State of Maharashtra;

(*za*) "Statutes", "Ordinances" or "Regulations" means respectively, the Statutes, Ordinances or Regulations of the university prescribed under this Act;

(*zb*) "student" means a person enrolled in the university for taking a course of study for a degree, diploma or other academic distinctions instituted by the university, including a research degree;

(*zc*) "study center" means a center established and maintained or recognized by the university for the purpose of advising,

counselling or for rendering any other assistance required by the students in the context of distance education;

(*zd*) "teacher" means a professor, associate professor, assistant professor, adjunct professor or any other person required to impart education or to guide research or to render guidance in any form to the students for pursuing a course of study of the university;

(*ze*) "university" means the self-financed private university mentioned in the Schedule.

Detailed Project Report for establishing university.

3. *(1)* Any sponsoring body (including any private institute conducting an educational activity) desirous of establishing a self-financed private university under this Act, may submit an application along with a Detailed Project Report (DPR) containing a proposal for establishment of a university to the Government in such manner alongwith such processing fees as may be prescribed by rules.

(2) The Detailed Project Report (DPR) shall contain the following particulars, namely:-

(i) the details of the sponsoring body submitting an application under sub-section *(1)* along with the copies of its registration certificate, constitution and bye-laws;

(ii) the information regarding financial resources of the sponsoring body along with audited accounts for the past three years for existing private institutes conducting an educational activity or plan for mobilization for financial resources duly certified by the Chartered Accountant for newly established sponsoring body;

(iii) the name, location and headquarters of the proposed university;

(iv) the objects of the university;

(v) the availability of land and details of buildings and infrastructure facilities if already exists; or the master plan for the land acquisition, building construction and infrastructure establishment, in compliance with the applicable regulations of local and State bodies;

(vi) the proposed plan and availability of academic facilities including teaching and non-teaching staff, if any, at the disposal of the sponsoring body;

(vii) the details of plans for campus development such as construction of building, development of structural amenities and infrastructure facilities and procurement of equipments, *etc.*, to be undertaken before the university starts functioning and phased programme for first five years;

(viii) the phased outlay of capital expenditure proposed for the next five years and its sources of finance;

(ix) the nature and the type of programme of study and research proposed to be undertaken by the university and their relevance to the development goals and employment needs of the State and phasing of such programme for the first five years with course-wise enrollment targets;

(x) the experience and expertise in concerned disciplines at command of sponsoring body;

(xi) the nature of facilities, courses of study and work of research proposed to be started;

(xii) the estimated recurring expenditure course-wise or activity-wise, source of finance and estimated expenditure per student;

(xiii) the scheme of mobilization of resources and the cost of capital thereto and the manner of repayment of such resources;

(xiv) the scheme for generation of funds internally, through the recovery of fees from the students, revenues anticipated from consultancy services and other activities relating to the objects of the university and other anticipated income;

(xv) the supportive plan for educational enhancement of the weaker section of society domiciled in the State through special provision and affirmative action in this regard;

(xvi) the system proposed to be followed for selecting students for admission to the courses of study of the university;

(xvii) the nature of programmes related to local needs and nature of specialized teaching, training or research activities, to be undertaken by the university to fulfill the objects of the proposed university;

(xviii) whether the university proposes to start some programmes for the benefits of farmers, agricultural labourers, other labourers, women and industries. If so, details thereof may be given;

(xix) details of playgrounds and other facilities available or proposed to be created for games, sports and extracurricular activities like National Cadet Corps (NCC), National Service Scheme (NSS), *etc.*;

(xx) the arrangements proposed to be made for academic auditing;

(xxi) justification regarding the necessity of establishment of the proposed university;

(xxii) commitment to follow the norms of the regulatory bodies;

(xxiii) such other details as the sponsoring body may like to give;

(xxiv) such other details as may be prescribed by rules.

Submission and examination of Detailed Project Report.

4. *(1)* On receipt of an application containing the proposal for establishing the university alongwith Detailed Project Report (DPR) by the sponsoring body, the Scrutiny Committee constituted by an order issued by the Government, shall scrutinize the proposal and Detailed Project Report on the following grounds, namely:-

(a) financial soundness and assets of the sponsoring body and its ability to set up the infrastructure of the proposed university;

(b) background of the sponsoring body that is to say its expertise and experience in the field of education, its general reputation, *etc.*, and its commitment to follow the norms of the regulatory bodies;

(c) potential and capability of sponsoring body to offer, proposed academic programme, research and innovation activities, framing curriculum as per the education policy of the regulatory bodies that is to say ability of the academic programme to develop the human resources as per the requirements of the contemporary demand; including the newness of the programme as defined in the objects of the proposed university;

(d) the proposal is in consonance with standards of education specified by the concerned regulatory bodies;

(e) whether the proposal is in consonance with the orders issued by the State Government in this behalf, from time to time.

(2) The Scrutiny Committee while scrutinizing the proposal and project report under sub-section (1), may call for such other information from the sponsoring body as it may thinks proper.

(3) The Scrutiny Committee shall submit its report to the Government for consideration with the suggestions, if any.

Issuance of Letter of Intent and compliance report.

5. (1) After receipt of the report of the Scrutiny Committee constituted under section 4, if the Government is satisfied that it is advisable to establish the university, it may issue a Letter of Intent, and require the sponsoring body to,-

(a) establish an endowment fund in accordance with the provisions of section 13;

(b) submit the title deeds showing that the sponsoring body owns and is in possession of a minimum land as per the norms prescribed by rules;

(c) fulfil such other conditions and provide such other information as may be specified by the University Grants Commission or any other regulatory body established by law;

(d) construct a covered space for administrative purposes and for conducting academic programmes, as per the norms prescribed by rules, if not already available;

(e) give undertaking to appoint Professor, Associate Professor and adequate number of Assistant Professors along with necessary supporting staff in each department or discipline to be started by the university as per the norms laid down by regulatory body;

(f) give undertaking to take up co-curricular activities like seminars, debates, quiz programmes and extracurricular activities like games, sports, National Service Scheme (NSS), National Cadet Corps (NCC), etc., for the benefit of students as per the norms laid down by the regulatory body;

(g) give undertaking for establishment of provident fund and to take up welfare programmes for the employees of the university;

(h) fulfil such other conditions as to infrastructure and other requirements and provide such other information as may be laid down by regulatory body or prescribed by rules.

(2) The sponsoring body shall fulfil the requirements and conditions specified in sub-section *(1)* and shall report the compliance to the Government within a maximum period of one year from the date of issue of Letter of Intent. The Government may in exceptional circumstances extend the said period by an order issued by the Government on payment of such fees as may be specified therein.

(3) On receiving the compliance report by the sponsoring body, the Government shall appoint a Verification Committee by an order, to verify the compliance report.

(4) The Verification Committee shall submit its report to the Government within one month from the date of its appointment specifying whether the sponsoring body has fulfilled the requirements and conditions laid down in sub-section *(1)*. The Government may extend the period of submission of report by the said Committee up to the maximum period of three months.

(5) If the sponsoring body fails to comply with the provision of sub-section *(1)*, proposal submitted by the sponsoring body under section 3 shall stand rejected and the Letter of Intent issued under sub-section *(1)*, shall be deemed to have been withdrawn.

Establishment and incorporation of university.

6. *(1)* The Government may, after considering the report submitted by the Verification Committee under sub-section *(4)* of section 5, if satisfied that the sponsoring body has complied with the provisions of section 5, permit the establishment of a private university, by inclusion of the name, location and headquarters of the private university and its sponsoring body in Part II of the Schedule by amending the Schedule by enacting a law by the State Legislature.

(2) The President, Vice-Chancellor and members of the Governing Body, Board of Management and Academic Council and all other persons who may hereafter become such officers or members, so long as they continue to hold such office or membership, are hereby constituted and declared to be a body corporate by the name specified therefor in the Schedule.

(3) The universities mentioned in the Schedule shall have perpetual succession and common seal and shall sue and be sued by that name.

(4) In relation to each of the existing university and its sponsoring body specified in columns *(2)* and *(4)*, respectively, of Part I of the Schedule, the corresponding university with the name, location and headquarters specified against it in column *(3)* of the said Part, is deemed to have been established under this Act, for the objects for which it was constituted immediately

before the date of commencement of this Act and the provisions of this Act shall be applicable to such university.

(5) The university shall function as a non-affiliating unitary university established under this Act and it shall not affiliate any other college or institute for the award or conferment of degree, diploma or certificate to the students admitted therein.

(6) Every university shall obtain accreditation from the National Assessment and Accreditation Council (NAAC) or the National Board of Accreditation (NBA) within five years from its establishment.

(7) Every university shall establish an Internal Quality Assurance Cell as required by the National Assessment and Accreditation Council for continual internal assurance process and periodic external peer review. The quality reports shall be submitted to the Government.

Secretary Level Committee.

7. *(1)* The Secretary Level Committee consisting of Secretaries of the Higher and Technical Education Department, the Finance Department and the Planning Department shall, after establishing the university, verify whether the sponsoring body has complied with the undertakings submitted by it and the requirements relating to the operationalization of the university specified in the Letter of Intent and the provisions of this Act and the rules made thereunder.

(2) The Committee under sub-section *(1)* shall submit its report to the Government.

(3) On receipt of the report under sub-section *(2)*, the State Government shall publish a notification in the *Official Gazette* allowing the operationalization of the university.

(4) The university shall admit students only after issuance of the notification under sub-section *(3)*.

Inspection by Secretary Level Committee.

8. The Secretary Level Committee under sub-section *(1)* of section 7 of this Act may carry out an inspection of the university as and when directed by the Government and shall also verify and ensure compliance of the requirements relating to the establishment of self-financed private universities and such committee shall also verify and ensure compliance of the provisions of the relevant laws for the time being in force.

Objects of university.

9. *(1)* The objects of the university shall be as follows, namely:—

(*a*) to provide learning, teaching, capacity, capability and skills development and research and development in Higher and Technical Education covering Liberal Arts, Humanities, Social Sciences, Life Sciences and Biotechnologies, Nano-Sciences and Technologies, Professional Disciplines such as Engineering, Technology, Management, Law, Business and Commerce, Applied and Creative Arts, Vocational Education, Media, Information and Communication Technology and Education *per se* and their inter-disciplinary, multidisciplinary studies and development;

(*b*) to provide instructions, teaching and training in Higher and Technical Education, Arts, Sports, Culture, Film, Space Technologies,

Marine Research and make provisions for research;

(*c*) to create higher level of cognitive, affective and psychomotor (head, hearts and hands) abilities;

(*d*) to create higher levels of intellectual abilities;

(*e*) to create and deploy new educational programs to promote creativity, innovation and entrepreneurship for inventing new ways for development and social reconstruction and transformation;

(*f*) to establish state-of-the-art facilities for education and development;

(*g*) to carry out teaching and research and offer continuing quality education programmes;

(*h*) to create centres of excellence for research and development in Science and Technology and Socio- Economic development, and for sharing knowledge and its application;

(*i*) to use modern and post-modern processes, mechanisms and technologies for governance and management of learning, teaching, researching, evaluating, developing, organizing and creating socioeconomic wealth for individuals and society in twenty first century;

(*j*) to provide professional and development services to the industry and public organizations and society;

(*k*) to start higher education programs and courses in new and emerging areas with innovative approaches;

(*l*) to establish links, collaborations and partnerships with other higher education and research institutions in India and abroad;

(*m*) to institute degrees, diplomas, certificates and other academic distinctions on the basis of examinations, or any other methods of evaluation;

(*n*) to establish innovative approaches for creation of seamlessness in academic structures, learning time-frames, and working and continuous evaluation processes for nurturing and cultivation of creativity and entrepreneurship;

(*o*) to pursue any other objectives as may be suggested by the Government;

(*p*) to ensure that the standard of the degrees, diplomas, certificates and other academic distinctions conferred by a university are not lower than those laid down by the All India Council for Technical Education established under the All India Council for Technical Education Act, 1987 or the National Council for Teacher Education established under the National Council for Teacher Education Act, 1993 or University Grants Commission established under the University Grants Commission Act, 1956 or the Pharmacy Council of India constituted under the Pharmacy Act, 1948 or the Bar Council of India constituted under the Advocates Act, 1961 or any other statutory body, as the case may be.

52 of 1987.
73 of 1993.
3 of 1956.
8 of 1948.
25 of 1961.

(2) The Government may, by notification issued in the *Official Gazette*, notify the special objects of the university.

(3) The notification issued under sub-section (2) shall be laid before both Houses of the State Legislature.

Powers and functions of university.

10. The university shall have the following powers and functions, namely :-

(i) to make provisions and adopt all measures (including adoption and updating of the curricula) in respect of study, teaching and research, relating to the courses through traditional as well as new innovative modes including on-line education mode ;

(ii) to institute and confer degrees, diplomas, certificates, awards, grades, credits and academic distinctions;

(iii) to conduct and hold examinations;

(iv) to provide for the degrees, diplomas, certificates, equivalent or corresponding to the degrees, diplomas, certificates of other recognized universities, Boards or Councils ;

(v) to take all necessary measures for setting up campus;

(vi) to set up central library, departmental libraries, museums and allied matters;

(vii) to institute and confer honorary degrees as may be prescribed;

(viii) to institute and award fellowships, scholarships, studentships as may be specified ;

(ix) to take special measures for spreading educational facilities among the educationally backward strata of the society;

(x) to encourage and promote sports and other extra-curricular activities ;

(xi) to create technical, administrative and other necessary posts and to make appointments thereto;

(xii) to undertake research projects on mutually acceptable terms and conditions ;

(xiii) to provide consultancy services;

(xiv) to frame Statutes, Ordinances and Regulations for carrying out the objects of the university in accordance with the provisions of this Act ;

(xv) to encourage and promote co-curricular activities for personality development of the teachers, students and employees of the university;

(xvi) to provide for dual degrees, diplomas or certificates *vis-a-vis* other universities on reciprocal basis within and outside the country, as per instructions of the State Government, Government of India and University Grants Commission ;

(xvii) to make provisions for integrated courses in different disciplines in the educational programmes of the university ;

(xviii) to set-up colleges, institutions, off-campus centers, off-shore campus and study centres, as per the instructions issued by the State Government, Central Government and University Grants Commission, from time to time ;

(xix) to receive donations, gifts and grants and to acquire, hold, manage and dispose of any property, movable or immovable, including trust or endowed property within or outside the State for the purposes and objects of the university and to invest funds ;

(xx) to prescribe the fee structure for various courses, from time to time, as per the provisions of this Act;

(xxi) to demand and receive payments of such fees and other charges as may be specified, from time to time ;

(xxii) to seek collaboration with other institutions on mutually acceptable terms and conditions ;

(xxiii) to determine salaries, remunerations, honoraria to teachers and employees of the university in accordance with the norms, specified by the University Grants Commission and the other regulatory bodies;

(xxiv) to organize and to undertake extra-mural teaching and extension services ;

(xxv) to establish and maintain halls and hostels ;

(xxvi) to recognize, supervise and control halls and hostels not maintained by the university for the residence of the students and to withdraw any such recognition ;

(xxvii) to regulate and enforce discipline among students and employees of the university and to take such disciplinary measures as may be deemed necessary ;

(xxviii) to make arrangements for promoting health and general welfare of the students and the employees of the university ;

(xxix) to co-operate with any other university in and outside the country, authority or any public or private body, having in view the promotion of purposes and objects similar to those of the university for such purposes as may be agreed upon, on such terms and conditions as may, from time to time, be specified ;

(xxx) to provide for the printing, re-printing and publication of research and other work, including text books, which may be issued by the university;

(xxxi) to comply and follow, from time to time, the provisions of the University Grants Commission (Establishment of and Maintenance of Standards in Private Universities) Regulations, 2003 or any other regulations or directions issued by the University Grants Commission ;

(xxxii) to comply with and carry out directives issued by the State Government, from time to time, with reference to above powers, duties and responsibilities of the university ;

(xxxiii) to do all such things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the university.

University open to all.

11. *(1)* No citizen of India shall be excluded from any office of the university or from membership of any of its authorities, bodies or committees, or from appointment to any post, or from admission to any degree, diploma, certificate or other academic distinction or course of study on the ground only of sex, race, creed, class, caste, place of birth, religious belief or profession, or political or other opinion.

(2) The university shall adopt policies and orders of the Government issued, from time to time, in regard to the reservation for Scheduled Castes, Scheduled Tribes, De-notified Tribes *(Vimukta Jatis)*, Nomadic Tribes, Other Backward Classes, Special Backward Category and Economically Weaker Sections (EWS) for the purpose of admission of students in the departments and institutions of the university.

(3) The university shall adopt the general policy of the State Government in regard to the welfare of various categories of weaker sections of the society and minorities as directed by the State Government, from time to time.

University to be self-financed.

12. Every university established under this Act shall be self-financed. The university shall not be entitled to any financial assistance of any nature from the Government and any student admitted to university shall not be entitled to claim for any type of financial assistance or scholarship or reimbursement of fees from the State Government.

Endowment fund.

13. *(1)* The sponsoring body shall establish an endowment fund for the university with such amount as may be specified by an order issued by the Government.

(2) The endowment fund shall be used as security deposit to ensure that the university complies with the provisions of this Act and rules, Statutes, Ordinances or Regulations made thereunder.

(3) The Government shall have the powers to forfeit, in the prescribed manner, a part or whole of the endowment fund in case the university or the sponsoring body contravenes the provisions of this Act and rules, Statutes, Ordinances or Regulations made thereunder.

(4) Income from endowment fund may be utilized for development of infrastructure of the university, but shall not be utilized to meet the recurring expenditure of the university.

(5) The amount of endowment fund shall be invested by the university until the dissolution of the university, by way of fixed deposit in the Nationalized Bank with Director of Higher Education as joint holder, subject to the condition that the amounts so invested from the fund shall not be withdrawn without the permission of the Government.

General fund.

14. The university shall also establish a fund, which shall be called the general fund to which following shall be credited, namely:-

(a) fees and other charges received by the university;

(b) any contribution made by the sponsoring body;

(c) any income received from consultancy and other works undertaken by the university;

(d) bequests, donations, endowments and any other grants; and

(e) all other sums received by the university.

15. The general fund shall be utilized for meeting all expenses, recurring or non-recurring in connection with the affairs of the university: Application of general fund.

Provided that, no expenditure shall be incurred by the university in excess of the limits for total recurring expenditure and total non-recurring expenditure for the year, as may be fixed by the Board of Management, without prior approval of the Board of Management.

16. The following shall be the officers of the university, namely:- Officers of university.

(a) the President, who shall also be the Chancellor;

(b) the Vice-Chancellor;

(c) Deans of Faculties;

(d) the Registrar;

(e) the Chief Finance and Accounts Officer;

(f) the Controller of Examinations; and

(g) such other persons in the service of the university as may be prescribed by the Statutes to be the officers of the university.

17. *(1)* The President shall be appointed by the sponsoring body for a period of three years, with the approval of the Government in such manner, as may be prescribed by rules. President.

(2) The eligibility criteria for the post of President shall be such as may be prescribed by rules and Regulations.

(3) The President shall be the Head of the university.

(4) The President shall preside over at the meetings of the Governing Body and convocation of the university for conferring degrees, diplomas or other academic distinctions.

(5) The President shall have the following powers, namely:-

(a) to call for any information or record from any officer or authority of the university, relating to the affairs of the university;

(b) to appoint the Vice-Chancellor;

(c) to remove the Vice-Chancellor in accordance with the provisions of section 20;

(d) such other powers as may be prescribed by the Statutes.

18. The President may be removed from his office by the sponsoring body, if it is satisfied that the incumbent,- Removal of President.

(a) is of unsound mind and stands so declared by a competent court; or

(b) has been convicted by a court for any offence involving moral turpitude; or

(c) become an undischarged insolvent and stands so declared by a competent court; or

(d) become physically unfit and incapable of discharging the functions or duties of the office due to protracted illness or physical disability; or

(e) wilfully omitted or refused to carry out the provisions of this Act or has committed breach of any of the terms and conditions of the service contract or any other conditions prescribed by the Statutes, or has abused the powers vested in him or if the continuance of the

President in the office has become detrimental to the interests of the university:

Provided that, the President shall be given a reasonable opportunity to show-cause by the sponsoring body before taking recourse to action under clauses *(d)* and *(e)* for his removal from the said office.

Vice-Chancellor.

19. *(1)* The Vice-Chancellor shall be appointed by the President, from a panel of three persons, fulfilling such eligibility criteria and on such terms and conditions as may be prescribed by Statutes, recommended by the Search-*cum*-Selection Committee constituted as per the rules or Regulations framed by the University Grants Commission in this behalf. The Vice-Chancellor shall, subject to the provisions contained in section 20, hold office for a term of three years:

Provided that, after expiry of the term of three years, the Vice-Chancellor shall be eligible for re-appointment for another term of three years:

Provided further that, the Vice-Chancellor shall continue to hold his office even after expiry of the said term till the new Vice-Chancellor joins his office; however, in any case, this period shall not exceed one year.

(*2*) The Vice-Chancellor shall be the principal executive and academic officer of the university and shall have the powers of superintendence and control over the affairs of the university and shall execute the decisions of various authorities of the university.

(*3*) The Vice-Chancellor shall preside over at the convocation of the university in absence of the President.

(*4*) If, in the opinion of the Vice-Chancellor, it is necessary to take immediate action on any matter for which powers are conferred on any other authority by or under this Act, he may take such action as he deems necessary and shall at the earliest opportunity thereafter, report his action to such officer or authority who would have in the ordinary course dealt with the matter:

Provided that, if in the opinion of the concerned officer or authority such action should not have been taken by the Vice-Chancellor, then such case shall be referred to the President, whose decision thereon shall be final.

(*5*) If, in the opinion of the Vice-Chancellor, any decision of any authority of the university is outside the powers conferred by this Act or Statutes, Ordinances, Regulations or rules made thereunder or is likely to be prejudicial to the interests of the university, he shall request the concerned authority to revise its decision within fifteen days from the date of decision and in case the authority refuses to revise such decision wholly or partly or fails to take any decision within fifteen days, then such matter shall be referred to the President and his decision thereon shall be final.

(*6*) The Vice-Chancellor shall exercise such powers and perform such duties as may be prescribed by the Statutes or the Ordinances.

Removal of Vice-Chancellor.

20. The Vice-Chancellor may be removed from his office by the President if, he is satisfied that the incumbent,—

(*a*) is of unsound mind and stands so declared by a competent court; or

(*b*) been convicted by a court for any offence involving moral turpitude; or

(*c*) becomes an undischarged insolvent and stands so declared by a competent court; or

(*d*) become physically unfit and incapable of discharging the functions or duties of the office due to protracted illness or physical disability; or

(*e*) wilfully omitted or refused to carry out the provisions of this Act or has committed breach of any of the terms and conditions of the service contract or any other conditions laid down by the Statutes or has abused the powers vested in him or the continuance of the Vice-Chancellor in the office has become detrimental to the interests of the university:

Provided that, the Vice-Chancellor shall be given a reasonable opportunity to show-cause by the President before taking recourse to clause (*d*) or (*e*) for his removal.

Deans of Faculties.

21. (*1*) The Deans of Faculties shall be appointed by the President in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(*2*) The Deans of Faculties shall assist the Vice-Chancellor in managing the academic and other affairs of the university and shall exercise such powers and perform such functions as may be prescribed by the Regulations or be entrusted by the President and the Vice-Chancellor.

Registrar.

22. (*1*) The Registrar shall be appointed by the President in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(*2*) The Registrar shall be the Chief Administrative Officer of the university. Subject to the decisions of the authorities of the university, he shall have the power to enter into an agreement, contract; sign documents and authenticate records on behalf of the university. He shall exercise such powers and perform such duties as may be prescribed by the Statutes.

(*3*) The Registrar shall be the Member-Secretary of the Governing Body, Board of Management and Academic Council, but shall not have the right to vote.

(*4*) The Registrar shall be the custodian of the records, the common seal and such other property of the university as the Governing Body may commit to his charge.

(*5*) The Registrar shall exercise such other powers and perform such other duties as may be assigned to him by the Vice-Chancellor, from time to time.

Controller of Examinations.

23. (*1*) The Controller of Examinations shall be appointed by the President in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(*2*) The Controller of Examinations shall be the principal officer-in-charge of the conduct of examinations and tests of the university and declarations of their results. He shall discharge his functions under the superintendence, directions and guidance of the Vice-Chancellor.

(*3*) The Controller of Examinations shall be a full-time salaried officer of the university and shall work directly under the direction and control of the Vice-Chancellor of the university. His appointment shall be for a term of three years and he shall be eligible for re-appointment for a term not exceeding three years. The qualification and experience for the purpose of selection of the Controller of Examinations, shall be such as may be prescribed by the Statutes.

(4) The Controller of Examinations shall be responsible for,-

(a) preparing and announcing in advance the calendar of examinations;

(b) arrangement for printing of question papers;

(c) arrangement for the timely publication of result of examinations and other tests;

(d) taking disciplinary action where necessary against the candidates, paper-setters, examiners, moderators, or any other persons connected with examinations and found guilty of malpractices in relations to the examinations;

(e) reviewing, from time to time, the results of university examinations and forward reports thereon to the Academic Council;

(f) the Controller of Examinations shall exercise such other powers and perform such other duties as may be prescribed by the statutes or assigned to him.

Chief Finance and Accounts Officer.

24. (1) The Chief Finance and Accounts Officer shall be the principal finance, accounts and audit officer of the university.

(2) The Chief Finance and Accounts Officer shall be appointed by the President in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(3) The Chief Finance and Accounts officer shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

Other officers.

25. (1) The university may appoint such other officers as may be necessary for its functioning.

(2) The manner of appointment of other officers of the university, the terms and conditions of service of such officers and their powers and functions shall be such as may be prescribed by the Statutes.

Authorities of university.

26. The following shall be the authorities of the university, namely :-

(a) the Governing Body;

(b) the Board of Management;

(c) the Academic Council;

(d) the Board of Examinations; and

(e) such other authorities as may be prescribed by the Statutes to be the authorities of the university.

Governing Body.

27. (1) The Governing Body of the university shall consist of the following members, namely : -

(a) the President;

(b) the Vice-Chancellor;

(c) five persons, nominated by the sponsoring body out of whom two shall be eminent educationists;

(d) one expert from the field of management or information technology from outside the university, nominated by the President;

(e) two persons, nominated by the State Government;

(f) two representatives of the industries to be nominated by the President; and

(*g*) the Registrar of the university shall be the permanent invitee to the Governing Body but shall not have right to vote.

(*2*) The Governing Body shall be the supreme authority of the university.

(*3*) The Governing Body shall have the following powers, namely:-

(*a*) to provide general superintendence and directions and to control functioning of the university by using all such powers as are provided by this Act and the rules, Statutes, Ordinances or Regulations made thereunder;

(*b*) to review the decisions of other authorities of the university in case they are not in conformity with the provisions of this Act and the rules, Statutes, Ordinances or Regulations made thereunder;

(*c*) to approve the budget and annual report of the university;

(*d*) to lay down the policies to be followed by the university;

(*e*) to recommend to the sponsoring body about the voluntary liquidation of the university if a situation arises when smooth functioning of the university does not remain possible, inspite of all efforts; and

(*f*) such other powers as may be prescribed by the Statutes.

(*4*) The Governing Body shall meet at least thrice in a calendar year.

(*5*) The quorum for meetings of the Governing Body shall be five.

Board of Management.

28. (*1*) The Board of Management shall consist of the following members, namely:-

(*a*) the Vice-Chancellor;

(*b*) two members of the Governing Body, nominated by the sponsoring body;

(*c*) two Deans of Faculties, by rotation, to be nominated by the Vice-Chancellor;

(*d*) three persons, who are not the members of the Governing Body, nominated by the sponsoring body; and

(*e*) three persons from amongst the teachers, nominated by the sponsoring body.

(*2*) The Vice-Chancellor shall be the Chairperson of the Board of Management.

(*3*) The powers and functions of the Board of Management shall be such as may be prescribed by the Statutes.

(*4*) The Board of Management shall meet at least once in every two months.

(*5*) The quorum for meetings of the Board of Management shall be five.

Academic Council.

29. (*1*) The Academic Council shall consist of the Vice-Chancellor and such other members as may be prescribed by the Statutes.

(*2*) The Vice-Chancellor shall be the *ex-officio* Chairperson of the Academic Council.

(3) The Academic Council shall be the principal academic body of the university and shall, subject to the provisions of this Act and the rules, Statutes or Ordinances made thereunder, co-ordinate and exercise general supervision over the academic policies of the university.

(4) The quorum for meetings of the Academic Council shall be such as may be prescribed by the Statutes.

Board of Examinations.

30. (1) The Board of Examinations shall be the principal authority of the university for conducting the examinations and making policy decisions in regard to organizing and holding examinations, improving the system of examinations, appointing the paper–setters, examiners and moderators and also prepare the schedule of examinations for holding examinations and declaration of results. The Board of Examinations shall also oversee and regulate the conduct of examinations in study centers or any center related to the university.

Explanation.– For the purposes of this section and section 44, the expression "schedule of examinations" means a table giving details about the time, day and date of the commencement of each paper which is a part of a scheme of examinations and shall also include the details about the practical examinations.

(2) The Board of Examinations shall consist of the following members, namely :-

(a) the Vice-Chancellor – Chairperson;

(b) Professor of each subject – Members;

(c) one evaluation expert – Co-opted Member;

(d) the Controller of Examinations – Member-Secretary.

(3) The powers and functions of the Board of Examinations shall be such as may be prescribed by the Statutes.

Other authorities.

31. The constitution, powers and functions of other authorities of the university shall be such as may be prescribed by the Statutes.

Disqualification.

32. A person shall be disqualified for being a member of any of the authorities or bodies of the university, if he,-

(a) is of unsound mind and stands so declared by a competent court; or

(b) has been convicted of any offence involving moral turpitude; or

(c) is conducting or engaging himself in private coaching classes; or

(d) has been punished for indulging in or promoting unfair practices in the conduct of any examination, in any form, anywhere.

Vacancies not to invalidate proceedings of any authority or body of university.

33. No act or proceeding of any authority or body of the university shall be invalid merely by reason of any vacancy or defect in the constitution thereof.

Filling of casual vacancies.

34. In case there occurs any casual vacancy in any authority or body of the university, due to death, resignation or removal of a member, the same shall be filled, as early as possible, by the person or body who appoints or

nominates the member whose place becomes vacant and person appointed or nominated to a casual vacancy shall be a member of such authority or body for the residue of the term of such member in whose place he has been so appointed or nominated.

Committees.

35. (*1*) The authorities or officers of the university may constitute committees with such terms of reference for specific tasks to be performed by such committees as may be necessary.

(*2*) The constitution of such committees shall be such as may be prescribed by the Statutes.

First Statutes.

36. (*1*) The First Statutes of the university shall be made by the Governing Body and shall be submitted to the Government for its approval.

(*2*) Subject to the provisions of this Act, and the rules made thereunder, the First Statutes of the university may provide for all or any of the following matters, namely:-

(*a*) the constitution, powers and functions of the authorities and other bodies of the university as may be constituted, from time to time;

(*b*) the terms and conditions of appointment of the Vice-Chancellor and his powers and functions;

(*c*) the manner of appointment and terms and conditions of service of the Deans of Faculties, Registrar and Chief Finance and Accounts Officer and their powers and functions;

(*d*) the manner of appointment and terms and conditions of service of the employees and their powers and functions;

(*e*) the procedure for arbitration in case of disputes between employees, students and the university;

(*f*) the conferment of honorary degrees;

(*g*) the provisions regarding exemption of students from payment of tuition fee and for awarding scholarships and fellowships to them;

(*h*) provisions regarding the policy of admissions and number of seats in different courses including regulation of reservation of seats; and

(*i*) provisions regarding fees to be charged from the students.

(*3*) The Government shall consider the First Statutes, submitted by the university and shall within four months from the date of its receipt give its approval thereon with such modifications, if any, as it may deem necessary.

Subsequent Statutes.

37. (*1*) Subject to the provisions of this Act and the rules made thereunder, the subsequent Statutes of the university may provide for all or any of the following matters, namely:—

(*a*) creation of new authorities of the university;

(*b*) accounting policy and financial procedure;

(*c*) representation of teachers in the authorities of the university;

(*d*) creation of new departments and abolition or restructuring of existing department;

(*e*) institution of medals and prizes;

(*f*) creation of posts and procedure for abolition of posts;

(*g*) revision of fees;

(*h*) alteration of the number of seats in different syllabi; and

(*i*) all other matters which under the provisions of this Act are to be prescribed by the Statutes.

(*2*) The Statutes of the university other than the First Statutes shall be made by the Board of Management with the approval of the Governing Body.

(*3*) The Board of Management may, from time to time, make new or additional Statutes or may amend or repeal the Statutes so made in the manner hereinafter provided in this section:

Provided that, the Board of Management shall not make any Statute or any amendment to the Statutes affecting the status, powers or constitution of any existing authority of the university until such authority has been given an opportunity of expressing an opinion on the proposal, and any opinion so expressed, shall be in writing and shall be considered by the Governing Body.

(*4*) Every such Statutes or addition to the Statutes or any amendment or repeal of the Statutes shall be subject to the approval of the Government:

Provided that, no Statutes shall be made by the Board of Management affecting the discipline of students and standards of instruction, education and examination except in consultation with the Academic Council.

First Ordinances.

38. (*1*) The First Ordinances of the university shall be made by the Governing Body and shall be submitted to the Government for its approval.

(*2*) Subject to the provisions of this Act and the rules or Statutes made thereunder, the Board of Management may make such First Ordinances with the approval of the Governing Body as it deems appropriate for the furtherance of the objects of the university and such Ordinances may provide for all or any of the following matters, namely :-

(*a*) the admission of students to the university and their enrollment as such;

(*b*) the courses of study to be laid down for the degrees, diplomas and certificates of the university;

(*c*) the award of the degrees, diplomas, certificates and other academic distinctions, the minimum qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(*d*) the conditions for awarding of fellowships, scholarships, stipends, medals and prizes;

(*e*) the conduct of examinations, including the terms of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(*f*) fees to be charged for the various courses, examinations, degrees and diplomas of the university;

(*g*) the conditions of residence of the students in the hostels of the university;

(*h*) provisions regarding disciplinary action against the students;

(*i*) the creation, composition and functions of any other body which is considered necessary for improving the academic life of the university;

(*j*) the manner of co-operation and collaboration with other universities and institutions of higher education; and

(*k*) all other matters which are required to be provided by the Ordinances under the provisions of this Act or the Statutes made thereunder.

(*3*) The Government shall consider the First Ordinances submitted by the Vice-Chancellor under sub-section *(1)* and shall give its approval within four months from the date of its receipt, with such modifications, if any as it may deem necessary.

Subsequent Ordinances.

39. (*1*) All Ordinances other than the First Ordinances shall be made by the Academic Council which after being approved by the Board of Management shall be submitted to the Governing Body for its approval.

(*2*) The Academic Council shall either modify the Ordinances incorporating the suggestions of the Board of Management and the Governing Body or give reasons for not incorporating the suggestions, and shall return the Ordinances alongwith such reasons, if any, the Board of Management and the Governing Body shall consider the suggestions of the Academic Council and shall approve the Ordinances of the university with or without such modification and then the Ordinances, as approved by the Governing Body shall come into force.

Regulations.

40. The authorities of the university may, subject to the prior approval of the Board of Management, make Regulations, consistent with the provisions of this Act and the rules, Statutes or Ordinances made thereunder, for the conduct of their own business and of the committees appointed by them.

Admissions.

41. (*1*) Admission in the university shall be made strictly on the basis of merit.

(*2*) Merit for admission in the university may be determined either on the basis of marks or grade obtained in the qualifying examination, for admission and achievements in co-curricular and extracurricular activities or on the basis of marks or grade obtained in the entrance test conducted at State level either by an association of the universities conducting similar courses or by any agency of the State:

Provided that, admission in professional and technical courses shall be made only through entrance test.

(*3*) Seats for admission in the university, for the students belonging to Scheduled Castes, Scheduled Tribes, De-notified Tribes *(Vimukta Jatis)*,

Nomadic Tribes, Other Backward Classes, Special Backward Category and Economically Weaker Sections (EWS) and students with disability, shall be reserved as per the policy of the State Government.

(*4*) Out of the total approved intake capacity, forty per cent. of the seats shall be reserved for the students having domiciled in the State of Maharashtra.

Fees Fixation Committee.

42. (*1*) The university may constitute a Fees Fixation Committee for deciding fees structure for various courses and programmes offered therein. The constitution of, and the procedure to be followed by, the Fees Fixation Committee shall be such as may be prescribed by the Statutes.

(*2*) The Committee shall prepare and finalise fees structure after taking into consideration, whether the proposed fees,-

(*a*) is sufficient for,-

(*i*) generating resources for meeting the recurring expenditure of the university; and

(*ii*) the savings required for further development of the university;

(*b*) is not unreasonable; and

(*c*) does not amount to profiteering.

(*3*) The Government shall have power to review the fees structure of the university and after such review, it may issue directions to the university to amend fees structure, appropriately and the university shall implement those directions.

(*4*) The State Government shall not reimburse any fees or shall not take any financial liability for students belonging to the backward classes admitted into the university.

(*5*) The university shall not charge any fees, by whatever name called, other than that for which it is entitled under this section.

Prohibition of capitation fee.

43. (*1*) No capitation fee shall be collected by or on behalf of the university or by any person who is in charge of, or is responsible for, the management of such institution, from or in relation to any student in consideration of his admission to and prosecution of any course of study or of his promotion to a higher standard or class in such institution.

(*2*) Notwithstanding anything contained in sub-section (*1*), the management may in good faith collect or accept donations in cash or kind, in the prescribed manner, from benevolent persons or organization or public trusts or any other association of persons, for opening of new educational institutions of for creation of endowment fund for award of scholarship, prizes or the like, but while collecting or accepting such donations the management shall not reserve any seats in any educational institution run by it

in consideration of such donations. Where in consideration of accepting such donations any seat is reserved for admission to any student in such institution such acceptance of donation shall be deemed to be collection of capitation fee, within the meaning of clause (*a*) of section 2 of the Maharashtra Educational Institutions (Prohibition of Capitation Fee) Act, 1987.

Mah. VI of 1988.

44. At the beginning of each academic session and in any case not later than 30th June of every calendar year, the university shall prepare and publish a semester-wise or annual, as the case may be, schedule of examinations for each and every course conducted by it and shall strictly adhere to such schedule : Schedule of examinations.

Provided that, if for any reason whatsoever, university is unable to follow this schedule, it shall, as soon as practicable, submit a report to the Government giving the detailed reasons for making a departure from the published schedule of examinations. The Government may, thereon, issue such directions, as it may deem fit, for better compliance in future.

45. (*1*) The university shall strive to declare the results of every examination conducted by it within thirty days from the last date of the examination for a particular course and shall in any case declare the results latest within forty-five days from such date : Declaration of results.

Provided that, if for any reason whatsoever, the university is unable to finally declare the results of any examination within the period of forty-five days, it shall submit a report incorporating the detailed reasons for such delay to the Government. The Government may, thereon, issue such directions as it may deem fit for better compliance in future.

(2) No examination or results of an examination shall be held invalid only for the reasons that the university has not followed the schedule of examinations as stipulated in section 44 of this Act or that the university has failed to declare the results within the period specified in sub-section *(1)*.

46. The convocation of the university shall be held in every academic year in the manner as may be prescribed by the Statutes for conferring degrees, diplomas or for any other purposes. Convocation.

47. The university shall obtain accreditation from the National Council of Assessment and Accreditation (NAAC), Bangalore, within five years of its establishment and inform the Government and such other regulating bodies which are connected with the courses taken up by the university about the grade provided by National Council of Assessment and Accreditation (NAAC) to the university. The university shall get renewed such accreditation at an interval of every five years thereafter. Accreditation of university.

University to follow rules, regulations, norms, etc., of regulatory bodies.

48. Notwithstanding anything contained in this Act, the university shall be bound to comply with all the rules, regulations, norms, etc. of the regulatory bodies and provide all such facilities and assistance to such bodies as are required by them to discharge their duties and carry out their functions.

Annual report.

49. *(1)* The annual report of the university shall be prepared by the Board of Management which shall include among other matters, the steps taken by the university towards the fulfilment of its objects and shall be approved by the Governing Body and copy of the same shall be submitted to the sponsoring body.

(2) The copies of the annual report prepared under sub-section *(1)* shall also be presented to the Government.

(3) The State Government shall cause such report to be laid before each House of the State Legislature.

Annual accounts and audit.

50. *(1)* The annual accounts and balance sheet of the university shall be prepared under the directions of the Board of Management and the annual accounts shall be audited at least once in every year by the auditors appointed by the university for this purpose.

(2) A copy of the annual accounts together with the audit report shall be submitted to the Governing Body.

(3) A copy of the annual accounts and audit report along with the observations of the Governing Body shall be submitted to the sponsoring body.

(4) The copies of annual accounts and balance sheet prepared under sub-section *(1)* shall also be presented to the Government.

(5) The advice of the Government, if any, arising out of the accounts and audit report of the university shall be placed before the Governing Body and the Governing Body shall issue such directions, as it may deem fit and compliance thereof shall be reported to the Government.

Powers of Government to inspect.

51. *(1)* The Government may issue directions to the university to carry out or comply with the provisions of this Act and rules, Statutes or Ordinances made thereunder;

(2) The Government may appoint a Committee to inspect the administration and working of a university, at any time, after giving prior notice of such inspection to ensure proper compliance with the provisions of this Act;

(3) The Government may issue directions to the university for time bound compliance or to rectify the deficiencies of lapses pointed out by the Committee appointed under sub-section (*2*).

(4) For the purposes of ascertaining the standards of teaching, examination and research or any other matter relating to the university, the Government may, after consultation with the Vice-Chancellor, cause an assessment to be made in such manner as may be prescribed by rules, by such person or persons as it may deem fit.

(5) The Government shall communicate to the university its recommendations in regard to the result of such assessment for corrective action and the university shall take such corrective measures as are necessary so as to ensure the compliance of the recommendations.

(6) If the university fails to comply with the recommendations made under sub-section *(5)* within a reasonable time, the Government may give such directions as it may deem fit which shall be binding on the university.

Dissolution of university by sponsoring body.

52. *(1)* The sponsoring body may dissolve the university by giving a notice to this effect to the Government, employees and students of the university, at least one year in advance:

Provided that, dissolution of the university shall have effect only after the last batches of students of the regular courses have completed their courses and they have been awarded the degrees, diplomas or awards, as the case may be.

(2) On dissolution of the university all the assets and liabilities of the university shall, subject to the provisions of any other law for the time being in force, vest in the sponsoring body:

Special powers of State Government in certain circumstances.

53. *(1)* If it appears to the Government that the university has contravened any of the provisions of this Act and the rules, Statutes or Ordinances made thereunder or has contravened any of the directions issued by it under this Act or has ceased to carry out any of the undertakings given under section 5 of this Act, or a situation of financial mis-management or mal-administration has arisen in the university, it shall issue notice requiring the university to show cause within forty-five days as to why an order of its liquidation should not be made.

(2) If the Government, on receipt of reply of the university on the notice issued under sub-section *(1)*, is satisfied that there is a *prima facie* case of contravention of all or any of the provisions of this Act and rules, Statutes or Ordinances made thereunder or of contravention of the directions issued by it under this Act or of ceasing to carry out the undertaking given under section 5 of this Act, or of financial mismanagement or maladministration, it shall make an order of such enquiry as it may consider necessary.

(3) The Government shall, for the purpose of any enquiry under sub-section *(2)*, appoint an inquiry officer or officers to inquire into any of the allegations and to make a report thereon.

(4) An inquiry officer or officers appointed under sub-section *(3)* shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908, while trying a suit in respect of the following matters, namely:-

of 08.

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of any such document or any other material as may be producible in evidence;

(c) requisitioning any public record from any court or office; and

(d) any other matter which may be prescribed by rules.

(5) The inquiry officer or officers, inquiring under this Act, shall be deemed to be a civil court for the purposes of section 195 and Chapter 26 of the Code of Criminal Procedure, 1973. 2 of 1974.

(6) On receipt of the enquiry report from the officer or officers appointed under sub-section *(3)*, if the Government is satisfied that the university has contravened all or any of the provisions of this Act, rules, Statutes or Ordinances made thereunder or has violated any of the directions issued by it under this Act or has ceased to carry out the undertakings given by it under section 5 of this Act, or a situation of financial mis-management and mal-administration has arisen in the university which threatens the academic standard of the university, it shall issue a preliminary order for the liquidation of the university and appoint an administrator.

(7) The administrator appointed under sub-section *(6)* shall have all the powers and be subject to all the duties of the Governing Body and the Board of Management under this Act and shall administer the affairs of the university until the last batch of the students of the regular courses have completed their courses and they have been awarded degrees, diplomas or awards, as the case may be.

(8) After having awarded the degrees, diplomas or awards, as the case may be, to the last batches of the students of the regular courses, the administrator shall make a report to this effect to the Government.

(9) On receipt of the report under sub-section *(8)*, the Government shall, by notification in the *Official Gazette*, issue a final order dissolving the university and from the date of publication of such notification, the university shall stand dissolved and all the assets and liabilities of the university shall vest in the sponsoring body from such date.

Punishment.

54. Any contravention of any of the provisions of this Act shall be an offence and the university as well as officers of the university specified under section 16 shall be punished with imprisonment for a term which shall not be less than three months but which may extend to one year and with fine of not less than rupees fifty thousand which may extend to rupees five lakhs:

Provided that, nothing in this section shall be construed as preventing the Government from initiating any action, whether civil or criminal, for non-compliance of the provisions of this Act including proceedings for liquidation of the university.

Offences by companies.

55. *(1)* Where an offence under this Act, or the rules made thereunder, is committed by a company, every person who at the time when the offence was committed, was in-charge of, and was responsible to the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that, nothing contained in this sub-section shall render any person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section *(1)*, where any offence under this Act or the rules made thereunder, has been committed by a company with the consent or connivance of, or is attributable to or on the part of, any Director, Manager, Secretary or other officer or servant of

the Company, such Director, Manager, Secretary or other officer or servant concerned shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.—For the purposes of this section,—

(*a*) "Company" means a body corporate and includes a trust, a firm, a society, and institution or other association of individuals; and

(*b*) "Director" in relation to,—

(*i*) a firm means a partner in the firm;

(*ii*) a society, a trust, an institution or other association of persons, or body of individuals, means the person who is interested under the rules or bye-laws of the society, trust, institution or other association or body with the management of the affairs of the society, trust, institution or other association or body, as the case may be.

Power to make rules.

56. (*1*) The Government may, by notification published in the *Official Gazette,* make rules to carry out the purposes of this Act.

(*2*) Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in rule or both Houses agree that the rule should not be made, and notify their decision to that effect in the *Official Gazette*, the rule shall from the date of publication of such decision in the *Official Gazette*, have effect only in such modified form or be of no effect, as the case may be; so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

Transitory provision.

57. If the process for establishing self-financed private university as per the existing Government orders or resolutions is completed at a particular stage on or before the date of commencement of this Act then, after commencement of this Act, such process shall be continued from that stage onwards as per the provisions of this Act.

Repeal and savings.

58. (*1*) On and from the date of commencement of this Act,—

Mah. XIII of 2014. (*a*) the Amity University Act, 2014;

Mah. XIV of 2014. (*b*) the Spicer Adventist University Act, 2014;

Mah. II of 2015. (*c*) the FLAME University Act, 2014;

Mah. III of 2015. (*d*) the Ajeenkya DY Patil University Act, 2014;

Mah. XXXVIII of 2015. (*e*) the Sandip University Act, 2015;

Mah. XXXIX of 2015. (*f*) the MIT Art, Design and Technology University Act, 2015;

Mah. XXXV of 2017. (*g*) the Dr. Vishwanath Karad MIT World Peace University Act, 2016;

(h) the Symbiosis Skills and Professional University Act, 2017;	Mah. XXXVII of 2017.
(i) the Vishwakarma University Act, 2017;	Mah. XXXVIII of 2017.
(j) the DSK World University Act, 2017;	Mah. XXXIX of 2017.
(k) the Sanjay Ghodawat University, Kolhapur, Act, 2017;	Mah. XL of 2017.
(l) the D. Y. Patil International University, Pune, Act, 2017;	Mah. LXIII of 2017.
(m) the G. H. Raisoni University, Amravati, Act, 2018;	Mah. XXIX of 2018.
(n) the Chhatrapati Shivaji Maharaj University, Panvel, Act, 2018;	Mah. XXXII of 2018.
(o) the Vijaybhoomi University, Raigad Act, 2018;	Mah. LXXVII of 2018.
(p) the Somaiya Vidyavihar University, Mumbai Act, 2019;	Mah. V of 2019.
(q) the D. Y. Patil University, Pune Act, 2019;	Mah. VI of 2019.
(r) the Sri Balaji University, Pune Act, 2019;	Mah. XII of 2019.
(s) the Ramdeobaba University, Nagpur Act, 2019;	Mah. XIII of 2019.
(t) the MGM University, Aurangabad Act, 2019;	Mah. XXVI of 2019.
(u) the D. Y. Patil Agriculture and Technical University, Talsande, Kolhapur Act, 2020;	Mah. XXXVI of 2020.
(v) the NICMAR University, Pune Act, 2022;	Mah. XXXVI of 2022.
(w) the Dr. P. A. INAMDAR University, Pune Act, 2022;	Mah. XXXVII of 2022.
(x) the Universal Ai University, Karjat Act, 2022;	Mah. III of 2023.
(y) the JSPM University, Pune Act, 2022;	Mah. IV of 2023.
(z) the Pimpri Chinchwad University, Pune Act, 2022;	Mah. V of 2023.
(za) the MIT Vishwaprayag University, Solapur, Act, 2023;	Mah. XXXVIII of 2023.
(zb) the DES Pune University, Pune Act, 2023,	Mah. XXXIX of 2023.

shall stand repealed.

(2) Notwithstanding the repeal of the said Acts,—

(i) any person holding office immediately before the commencement of this Act as Vice-Chancellor of an existing university shall, on such commencement, be the Vice-Chancellor of the corresponding university and shall continue to hold the said office till his term of office as Vice-Chancellor of the existing university would have expired had he continued to be as such unless he ceases to be the Vice-Chancellor by reason of death, resignation or otherwise before the expiry of his term of office as aforesaid and shall exercise all the powers and perform all the duties conferred and imposed on the Vice-Chancellor of the corresponding university by or under this Act;

(ii) every authority of an existing university constituted immediately before the commencement of this Act, shall be deemed to be the corresponding authority of the corresponding university under this Act;

(iii) every person holding office either as an officer or the employee (whether teaching or other employee) of an existing university on the date immediately before the commencement of this Act shall continue to hold office on the same terms and conditions as were applicable to him immediately before such date, and shall exercise such powers and perform such duties as are conferred on them by or under this Act;

(iv) all property, movable or immovable, and all rights, interest of whatsoever kind, powers and privileges of any existing university shall stand transferred to and shall, without further assurance, vest in, the corresponding university and be applied to the objects and purposes for which the corresponding university is constituted;

(v) all benefactions accepted or received by any existing university and held by it immediately before the commencement of this Act, shall be deemed to have been accepted or received or held by the corresponding university under this Act, and all the conditions on which such benefactions were accepted or received or held shall be deemed to be valid under this Act, notwithstanding that such conditions may be inconsistent with any of the provisions of this Act;

(vi) all debts, liabilities and obligations incurred before the commencement of this Act, and lawfully subsisting against any existing university, shall be discharged and satisfied by the corresponding university;

(vii) any will, deed or other documents made before the commencement of this Act, which contains any bequest, gift, term or trust in favour of an existing university shall, on and from the commencement of this Act, be construed as if the corresponding university is named therein instead of the existing university;

(viii) all references in any enactment or other instruments issued under any enactment, to any existing university shall be construed as references to the corresponding university;

(ix) the teachers, who were recognised teachers of the university under the said Acts in respect of any of the existing university immediately before the commencement of this Act, shall be deemed to be recognised teachers of the corresponding university under and for the purposes of this Act and shall continue to be such recognised teachers until fresh recognitions are granted under this Act;

(x) all rules, Statutes, Ordinances or Regulations made under the said Acts in respect of any existing university shall, in so far as they are not inconsistent with the provisions of this Act, continue in force and be deemed to have been made under this Act in respect of the corresponding university or any authority of the university, as the case may be, until they are superseded or modified by the rules, Statutes, Ordinances or Regulations made under this Act;

(xi) all notices and orders made or issued by any authority under any of the said Acts shall, in so far as they are not inconsistent with the provisions of this Act, continue in force and be deemed to have been made or issued by corresponding authority until they are superseded or modified under this Act:

Provided that, no rules, Statutes, Ordinances, Regulations, notices or orders made or issued under any of the Acts repealed by this section and in force immediately before the commencement of this Act, shall be deemed to be inconsistent with the provisions of this Act by reason only that the power to make or issue such rules, Statutes, Ordinance, Regulations, notice or order under this Act vests in a different authority or body or officer, or that the subject matter thereof is permissible only under a different form of subordinate legislation or instrument to be made, under this Act.

Power to remove difficulties.

59. *(1)* If any difficulty arises in giving effect to the provisions of this Act, the Government may, as occasion arises, by an order published in the *Official Gazette*, do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for removing the difficulty:

Provided that, no such order shall be made after the expiry of a period of two years from the date of commencement of this Act.

(2) Every order made under sub-section *(1)*, shall, as soon as may be after it is made, be laid before each House of the State Legislature.

SCHEDULE

Part I

(*See* section 6(4))

Sr. Nos.	Name of existing university.	Name, location and headquarters of corresponding unviersity under this Act.	Name and Address of Sponsoring Body.
(1)	(2)	(3)	(4)
1.	The Amity University established under the Amity University Act, 2014 (Mah. XIII of 2014).	The Amity University, headquarters at Mumbai-Pune Expressway, at Bhatan, Po.-Somathane, Panvel 410 206.	The Ritnand Balved Education Foundation (RBEF), E 27, Defence Colony, New Delhi 110 206.
2.	The Spicer Adventist University, Pune established under the Spicer Adventist University Act, 2014 (Mah. XIV of 2014).	The Spicer Adventist University, Pune, headquarters at Aundh Road, Ganeshkhind Post, Pune, Maharashtra.	The Ashlock Education Society, Pune.
3.	The FLAME University Pune, established under the FLAME University Act, 2014 (Mah. II of 2016).	The FLAME University, Pune, headquarters at Lavale, Taluka Mulshi, Pune-411 041	The Foundation for Liberal and Management Education Society, Pune.
4.	The Ajeenkya DY Patil University, Pune established under the Ajeenkya DY Patil University Act, 2014 (Mah. III of 2016).	The Ajeenkya DY Patil University, Pune, headquarters at Dr. D.Y. Patil Knowledge City, Charholi Budruk, Via Lohgaon, Pune 412 106.	Dr. D. Y. Patil Infra Foundation.
6.	The Sandip University, Nasik established under the Sandip University Act, 2016 (Mah. XXXVIII of 2016).	The Sandip University, Nashik, headquarters at Trimbak Road, at and post Mahiravani, Taluka and District Nashik-422 213.	The Sandip Foundation Mumbai.
6.	The MIT Art, Design and Technology University, Pune established under the MIT Art, Design and Technology University Act, 2016 (Mah. XXXIX of 2016).	The MIT Art, Design and Technology University, Pune, headquarters at Rajbaug, Loni-Kalbhor, Pune.	The Maharashtra Academy of Engineering and Educational Research, Pune.
7.	The Dr. Vishwanath Karad MIT World Peace University, Pune established under the Dr. Vishwanath Karad MIT World Peace University Act, 2016 (Mah. XXXV of 2017).	The Dr. Vishwanath Karad MIT World Peace University, Pune, headquarters at Vishwanath Karad MIT World Peace University, Pune 411 038.	The Maharashtra Academy of Engineering and Educational Research, Pune.
8.	The Symbiosis Skills and Professional University, Pune established under the Symbiosis Skills and Professional University Act, 2017 (Mah. XXXVII of 2017).	The Symbiosis Skills and Professional University, Pune, headquarters at Kiwale, PCMC Area, Off Pune-Mumbai Expressway, Pune.	The Symbiosis Open Education Society.
9.	The Vishwakarma University, Pune established under the Vishwakarma University Act, 2017 (Mah. XXXVIII of 2017).	The Vishwakarma University, Pune, headquarters at Vishwakarma University, S. No. 2/3/4 Laxminagar, Kondhwa (BK), Pune 411 048.	The Bansilal Ramnath Agarwal Charitable Trust.
10.	The DSK World University, Pune established under the DSK World University Act, 2017 (Mah. XXXIX of 2017).	The DSK World University, Pune, headquarters at Survey No. 64/65 Fursungi, Near Loni Toll Naka, Pune-Solapur Road, Pune 412 308.	The DSK World Education Council.

SCHEDULE–*Contd.*

Part I

(1)	(2)	(3)	(4)
11.	The Sanjay Ghodawat University, Kolhapur established under the Sanjay Ghodawat University, Kolhapur, Act, 2017 (Mah. XL of 2017).	The Sanjay Ghodawat University, Kolhapur, headquarters at Sanjay Ghodawat University, Atigre, Taluka Hatkanangale, District Kolhapur, Maharashtra 416 118.	The Sou. Sushila Danchand Ghodawat Charitable Trust is registered as a Public Trust.
12.	The D. Y. Patil International University, Pune established under the D. Y. Patil International University, Pune, Act, 2017 (Mah. LXIII of 2017).	The D. Y. Patil International University, Pune, headquarters at D. Y. Patil International University, Sector-29, Nigdi-Pradhikaran, Akurdi, District Pune, Maharashtra-411 044.	The Dr. D. Y. Patil Pratishthan.
13.	The G. H. Raisoni University, Amravati established under the G. H. Raisoni University, Amravati, Act, 2018 (Mah. XXIX of 2018).	The G. H. Raisoni University, Amravati, headquarters at Amravati, Anjangaon-Bari Road, Amravati 444 727.	The Chaitanya Bahu Uddeshiya Sanstha.
14.	The Chhatrapati Shivaji Maharaj University, Panvel established under the Chhatrapati Shivaji Maharaj University, Panvel, Act, 2018 (Mah. XXXII of 2018).	The Chhatrapati Shivaji Maharaj University, Panvel, headquarters at Old Mumbai-Pune Highway, Near Shedung Toll Naka, Panvel.	The St. Wilfred's Education Society.
15.	The Vijaybhoomi University, Raigad established under the Vijaybhoomi University, Raigad Act, 2018 (Mah. LXXVII of 2018).	The Vijaybhoomi University, Raigad, headquarters at Vijaybhoomi University, at Jamrug, Taluka Karjat, District Raigad, Maharashtra.	The Vijaybhoomi Education Foundation, 447, 4th Floor, 17th Cross, Sector IV, HSR Layout, Bangalore, India 560 034.
16.	The Somaiya Vidyavihar University, Mumbai established under the Somaiya Vidyavihar University, Mumbai Act, 2019 (Mah. V of 2019).	The Somaiya Vidyavihar University, Mumbai, headquarters at Somaiya Vidyavihar University, Vidyavihar (East), Mumbai 400 077.	(i) Somaiya Vidyavihar Society. Somaiya Bhavan, 46-47, Mahatma Gandhi Road, Fort, Mumbai 400 001 ; (ii) K. J. Somaiya Trust. Somaiya Bhavan, 46-47, Mahatma Gandhi Road, Fort, Mumbai 400 001, and (iii) Somaiya Trust. Somaiya Bhavan, 46-47, Mahatma Gandhi Road, Fort, Mumbai 400 001.
17.	The D. Y. Patil University, Pune established under the D. Y. Patil University, Pune Act, 2019 (Mah. VI of 2019).	The D. Y. Patil University, Pune, headquarters at D. Y. Patil University, MIDC Road, Ambi, Taluka Maval, District Pune 410 506.	(i) Rajveer Foundation. Sr. Nos. 124 and 126, D. Y. Patil Technical Campus, Ambi MIDC Road, Maval, Talegaon Dabhade, Maharashtra 410506, and (ii) Dr. D. Y. Patil Educational Academy. Patil Building, Adarsh Nagar, Opp. MIG Colony, Worli, Mumbai.
18.	The Sri Balaji University, Pune established under the Sri Balaji University, Pune Act, 2019 (Mah. XII of 2019).	The Sri Balaji University, Pune, Sri Balaji University, headquarters at Survey No. 66/2-7 off. Mumbai Banglore Baypass, Village Tathawade, Taluka Mulshi, Pune-411 033, Maharashtra.	Sri Balaji Society, D. S. Park 48/2, 16/B, Mohanwadi, Yerawada, Pune-411 006.

SCHEDULE–*Contd.*

Part I

(1)	(2)	(3)	(4)
19.	The Ramdeobaba University, Nagpur established under the Ramdeobaba University, Nagpur Act, 2019 (Mah. XIII of 2019).	The Ramdeobaba University, Nagpur, headquarters at Ramdeobaba University, Ramdeo Tekadi, Katol Road, Nagpur 440 013.	Shri Ramdeo Baba Sarvajanik Samiti, Nagpur. Shri Ramdeo Baba, Kamla Nehru Abhiyantriki Mahavidyalaya, Administrative Building, Ramdeo Tekadi, Katol Road, Nagpur.
20.	The MGM University, Aurangabad establihsed under the MGM University, Aurangabad Act, 2019 (Mah. XXVI of 2019).	The MGM University, Aurangabad, headquarters at MGM University, N-6, CIDCO, Baijipura, Aurangabad 431 003, Maharashtra.	Mahatma Gandhi Mission, 12, Bhagya Nagar, Nanded.
21.	The D. Y. Patil Agriculture and Technical University, Talsande, Kolhapur established under the D. Y. Patil Agriculture and Technical University, Talsande, Kolhapur Act, 2020 (Mah. XXXVI of 2020).	The D. Y. Patil Agriculture and Technical University, Talsande, Kolhapur, headquarters at Gat Number 199 and 86, Talsande, Taluka Hatkanangale, District Kolhapur, Maharashtra-416 112.	D. Y. Patil Education Society, 6th Floor, Arora Tower-9, Moledina Road, Pune.
22.	The NICMAR University, Pune established under the NICMAR University, Pune Act, 2022 (Mah. XXXVI of 2022).	The NICMAR University, Pune, headquarters at Building No./Plot No. 26/1, NIA Post Office, Balewadi, Taluka Haveli, District Pune, Maharashtra 411 046.	The National Institute of Contruction Management and Research, Walchand Terraces, Ground Floor, Opp. AC Market, Tardeo, Mumbai.
23.	The Dr. P. A. INAMDAR University, Pune established under the Dr. P. A. INAMDAR University, Pune Act, 2022 (Mah. XXXVII of 2022).	The Dr. P. A. INAMDAR University, Pune, headquarters at 2390-B, K. B. Hidayatullah Road, Asam Campus, Camp, Pune, Maharashtra 411 001.	The Maharashtra Cosmopolitan Education Society, Pune, 2390-B, K. B. Hidayatullah Road, Asam Campus, Camp Pune.
24.	The Universal Ai University, Karjat established under the Universal Ai University, Karjat Act, 2022 (Mah. III of 2023).	The Universal Ai University, Karjat, headquarters at S. No. 64/1 to 64/27, 66/0 67/0, 68/0, 7/3, Village Kushival, Kushivili, Taluka Karjat, District Raigad-410 021.	The Strive India Education Foundation, 106, Runwal and Omkar Esquare, 1st Floor, Eastern Express Highway, Sion (East) Mumbai 400 022.
25.	The JSPM University, Pune established under the JSPM University, Pune Act, 2022 (Mah. IV of 2023).	The JSPM University, Pune, headquarters at Gut No. 719/1 and 719/2, Wagholi, Taluka Haveli, District Pune, Maharashtra 412 207.	The Jayawant Shikshan Prasarak Mandal, Pune, Survey No. 80, Pune-Mumbai Bypass Highway, Tathawade, Pune 411 033.
26.	The Pimpri Chinchwad University, Pune established under the Pimpri Chinchwad University, Pune Act, 2022 (Mah. V of 2023).	The Pimpri Chinchwad University, Pune, headquarters at Gut No. 44, 46, 48, 49 and 50, State Taluka Maval, District Pune, Maharashtra 412 206.	The Pimpri Chinchwad Education Trust, Sector No. 26, Pradhikaran, Nigdi, Pune-411 044.
27.	The MIT Vishwaprayag University, Solapur established under the MIT Vishwaprayag University, Solapur, Act, 2023 (Mah. XXXVIII of 2023).	The MIT Vishwaprayag University, Solapur, headquarters at the MIT Vishwaprayag University, Solapur, Gut Nos. 66/8, 67, 69, 70, 71, 72, 73/ B/8/1 and 73/3/A, Village Kegaon, Solapur-Pune Highway, Taluka North Solapur, District Solapur, Maharashtra 413 255.	The Maharashtra Academy of Engineering and Educational Research, Pune, S. No. 124, Ex-Servicemen Colony Post office, Paud Road, Kothrud, Pune 411 038.
28.	The DES Pune University, Pune established under the DES Pune University, Pune, Act, 2023 (Mah. XXXIX of 2023).	The DES Pune University, Pune, headquarters at Mukundda s Lohia Academic Complex, BMCC, Shivajinagar, Taluka-Haveli, District-Pune, Pune-411 004.	The Deccan Education Society, Pune, Fergusson College Campus, Gate No. 4, Shivajinagar, Pune 411 004.

Part II

(*See* section 6(*1*))

Sr. Nos. (*1*)	Name, location and headquarters of university. (*2*)	Name and address of Sponsoring Body. (*3*)
1.	The Alard University, Pune headquarters at the Alard University, Pune, Survey No. 47 and 60, Alard Knowledge Park, Marunji, Near Rajiv Gandhi IT Park, Hinjewadi, Pune 411 057.	The Alard Charitable Trust, Pune, Survey No. 47 and 60, Alard Knowledge Park, Marunji, Near Rajiv Gandhi IT Park, Hinjewadi, Pune 411 057.
2.	The SVKM NMIMS Global University, Dhule, headquarters at the SVKM NMIMS Global University, Dhule, S. No. 499/1 to 4-A/1 and 499/1 to 4-A/2, Behind Gurudwara, Mumbai-Agra Higway, Taluka Dhule, District Dhule 424 001.	Shri Vile Parle Kelavani Mandal, SVKM's NMIMS New Buildings, 10th Floor, West Wing, V. L. Mehta Marg, Vile Parle (W), Mumbai 400 056.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG/2009/35523

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष १०, अंक १३(३)] सोमवार, मार्च १८, २०२४/फाल्गुन २८, शके १९४५ [पृष्ठे २, किंमत : रुपये २७.००

असाधारण क्रमांक ३६

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Universities (Establishment and Regulation) (Amendment) Act, 2024 (Mah. Act No. XX of 2024), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XX OF 2024.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 18th March 2024)

An Act to amend the Maharashtra Private universities (Establishment and Regulation) Act, 2023.

Mah. VIII of 2024.

WHEREAS it is expedient to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, for the purposes hereinafter appearing; it is hereby enacted in the Seventy-fifth Year of the Republic of India, as follows :–

1. This Act may be called the Maharashtra Private Universities (Establishment and Regulation) (Amendment) Act, 2024. Short title.

Amendment of section 6 of Mah. VIII of 2024.

2. In section 6 of the Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (hereinafter referred to as "the principal Act"), to sub-section *(1)*, the following proviso shall be inserted, namely :— Mah. VIII of 2024.

"Provided that, the universities specified in Part II of the Schedule on the date of commencement of this Act shall be deemed to have been established on that date.".

Amendment of Schedule of Mah. VIII of 2024.

3. In SCHEDULE appended to the principal Act, in Part II, after entry 2, the following entries shall be added, namely :—

"3. Sanjivani University, Kopargaon headquarters at the Sanjivani University, Kopargaon, Gat No. 24 and 25, Kopargaon, Taluka Kopargaon, District Ahmednagar 423 601.	Sanjivani Rural Education Society, Kopargaon, Taluka Kopargaon, District Ahmednagar 423 601.
4. Dr. D. Y. Patil Dnyan Prasad University, Pune, headquarters at the Dr. D. Y. Patil Dnyan Prasad University, Pune, Sant Tukaram Nagar, Pimpri-Chinchwad, Survey Nos. 180/2/1 and 180/2/2, Taluka Haveli, Pune 411 018 and also locations at Tathwade, Pune, Survey Nos. 87/1, 88, 138/1A, 138/1B, 138/2B and 62/4/3.	Dr. D. Y. Patil Unitech Society, Flat No. 101, Shri Motisagar Apartment, Survey No. 473A, G. G. Thakkar Road, Pune 411 001.".

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष ११, अंक १ (१५)] बुधवार, जानेवारी १, २०२५/पौष ११, शके १९४६ पृष्ठे २, किंमत : रुपये २७.००]

असाधारण क्रमांक १५

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Universities (Establishment and Regulation) (Second Amendment) Act, 2024, (Mah. Act No. XV of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XV OF 2025.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 1st January 2025).

An Act further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023.

Mah. VIII of 2024.

WHEREAS it is expedient further to amend the Maharashtra *Private* Universities (Establishment and Regulation) Act, 2023 ; it is hereby enacted in the Seventy-fifth Year of the Republic of India, as follows :—

1. This Act may be called the Maharashtra Private Universities (Establishment and Regulation) (Second Amendment) Act, 2024. Short title.

Amendment of section 5 of Mah. VIII of 2024.

2. In section 5 of the Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (hereinafter referred to as "the principal Act"), in sub-section (*1*), for clause (*b*), the following clause shall be substituted, namely:— Mah. VIII of 2024.

"(*b*) submit the registered title deeds showing that the sponsoring body either owns or possess a minimum land on leasehold basis for a minimum period of thirty years and is in possession of the said minimum land as per the norms prescribed by rules;".

Amendment of Schedule of Mah. VIII of 2024.

3. In the SCHEDULE appended to the principal Act, in Part II, after entry 4, the following entries shall be added, namely :—

"5.	Atharva University, Mumbai headquarter at S.No. 263, plot No. 8-12, Malad-Marve Road, Charkop Naka, Malad (West), Mumbai 400 095.	Atharva Educational Trust, Atharva Educational Complex, Malad-Marve Road, Charkop Naka, Malad (W.), Mumbai 400 095.
6.	Indira University, Pune headquarter at Indira Tapasya Campus, Survey No. 85/5A and also Locations at Indira Unity Campus, Survey No. 85/5B, Indira Universe Campus, Survey No. 89/2A and SCES Sports Complex, Survey No. 11/1/2, New Pune-Mumbai Highway, Tathwade, Taluka Mulshi, District Pune 411 033.	Shree Chanakya Education Society, Flat No. 1, Runwal Sarita, Plot No. 4, Balaji Park, Baner, Pune 411 007.
7.	Nayanta University, Pune Interim Campus, situated at Survey No. 58 and 59/4, Paud Road, Bavdhan Khurd, Pune 411 021 and permanent campus located at Gat No. 2, Hissa No. 1, Village Varale, Taluka Khed, District Pune 410 501.	Nayanta Education Foundation, H. No. 7-1-27, Ameerpet Road, Leelanagar, Hyderabad, Telangana, India 500 016.".

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष ११, अंक ३५(२)] सोमवार, सप्टेंबर १, २०२५/भाद्रपद १०, शके १९४७ [पृष्ठे २, किंमत : रुपये २७.००

असाधारण क्रमांक ८०

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Universities (Establishment and Regulation) (Amendment) Act, 2025 (Mah. Act No. XLV of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XLV OF 2025.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 1st September 2025).

An Act further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023.

Mah. VIII of 2024.

WHEREAS it is expedient to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, for the purposes hereinafter appearing; it is hereby enacted in the Seventy-sixth Year of the Republic of India as follows :—

Short title.

1. This Act may be called the Maharashtra Private Universities (Establishment and Regulation) (Amendment) Act, 2025.

Amendment of Schedule of Mah. VIII of 2024.

2. In the SCHEDULE appended to the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, in Part II,– Mah. VIII of 2024.

(*i*) in entry at serial number 4 relating to Dr. D.Y. Patil Dnyan Prasad University, Pune, in column (2), for the name, location and headquarters of the said university, the following shall be substituted, namely :–

" Dnyaan Prasad Global University, headquarters at Dnyaan Prasad Global University, Pimpri Campus, Survey Nos. 180/2/1 and 180/2/2, Sant Tukaram Nagar, Pimpri- 411 018 and also locations at Dnyaan Prasad Global University, Tathawade Campus, Survey Nos. 87/1, 88, 138/1A, 138/1B, 138/2B and 62/4/3,Tathawade 411 033 Pimpri-Chinchwad, Taluka Haveli, Pune, Maharashtra." ;

(*ii*) after entry 7 the following entry shall be added, namely :–

" **8.**	The Pillai University, Navi Mumbai headquarters at Dr. K. M. Vasudevan Pillai Campus, Sector 16, Plot Nos. 10, 10A and 21, New Panvel, Navi Mumbai, Taluka Panvel, District Raigad 410 206 and also location at Survey No. 78/32, Chowk Phata, Hatnoli and Jambhivali via Vankal, Taluka Khalapur, District Raigad, 410 206, Maharashtra.	Mahatma Education Society, Chembur Naka, Mumbai 400 071.".

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष ११, अंक ४८(८)] बुधवार, डिसेंबर ३१, २०२५/पौष १०, शके १९४७ [पृष्ठे २, किंमत : रुपये २७.००

असाधारण क्रमांक १२४

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Universities (Establishment and Regulation) (Second Amendment) Act, 2025. (Mah. Act No. LIX of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SUPRIYA DHAWARE,
Draftsman-*cum*-Joint Secretary to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. LIX OF 2025.

(*First published, after having received the assent of the Governor in the "Maharashtra Government Gazette," on the 31st December 2025*).

An Act further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023.

Mah. VIII of 2024.

WHEREAS it is expedient further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, for the purposes hereinafter appearing ; it is hereby enacted in the Seventy-sixth Year of the Republic of India as follows :—

1. This Act may be called the Maharashtra Private Universities (Establishment and Regulation) (Second Amendment) Act, 2025. Short title.

Amendment of Schedule of Mah. VIII of 2024.

2. In the SCHEDULE appended to the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, in Part II, after entry 8, the following entry shall be added, namely :— Mah. VIII of 2024.

" 9.	Jio University, Interim Campus, Building A, Sector-4, Ulwe, Taluka Panvel, District Raigad-410206. Permanent Campus-Pocket 8-2, Sector-8, Dronagiri, Taluka Uran, District Raigad-400702.	Reliance Foundation, Institution of Education and Research Floor 9, Plot 222, East Wing, Maker Chambers IV, J. B. Marg, Nariman Point, Mumbai-400021. ".

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष १२, अंक १७(२)] सोमवार, मार्च २३, २०२६/चैत्र २, शके १९४८ [पृष्ठे २, किंमत : रुपये २७.००

असाधारण क्रमांक ३४

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्राख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधी व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Universities (Establishment and Regulation) (Amendment) Act, 2026 (Mah. Act No. IX of 2026), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. IX OF 2026.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 23rd March, 2026.)

An Act further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023.

Mah. VIII of 2024.

WHEREAS, it is expedient further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, for the purposes hereinafter appearing; it is, hereby, enacted in the Seventy-seventh Year of the Republic of India as follows :—

1. This Act may be called the Maharashtra Private Universities (Establishment and Regulation) (Amendment) Act, 2026. Short title.

Amendment of Schedule of Mah. VIII of 2024.

2. In the SCHEDULE appended to the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, in Part II, after entry 9, the following entry shall be added, namely :— Mah. VIII of 2024.

"10.	Subhadra's Novel Bhosale Private (SNBP) University, Pune, Headquarter's at Gat No. 90, 94, 72/1, Near River Residency, Dehu-Alandi Road, Chikhali, Pimpri Chinchwad, Maharashtra–411 062. Mamurdi Campus- Sai Nagar, Pune-Mumbai Express way, near MCA's International Stadium, Sant Tukaram Nagar, Mamurdi, Dehu Road, Pimpri-Chinchwad, Maharashtra–412 101. Wakad Campus- JQ23+PWX, Shankar Kalat Nagar, Wakad, Pimpri-Chinchwad, Maharashtra–411 057. Rahatani Campus- Survey No. 29/2, Off Rahatani-Pimple Saudagar Road, Near Akashganga Society, Pimpri-Chinchwad, Maharashtra–411 017.	Subhadra's Educational Society, Maharashtra Housing Board, Yerawada, Pune–411 006.".

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष १२, अंक ३९ (३)] सोमवार, जुलै १३, २०२६/ आषाढ २२, शके १९४८ [पृष्ठे ४, किंमत : रुपये २७.००

असाधारण क्रमांक ९९

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Universities (Establishment and Regulation) (Third Amendment) Act, 2026 (Mah. Act No. XXX of 2026), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SUPRIYA DHAWARE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XXX OF 2026.

(*First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 18th July 2026.*)

An Act further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023.

Mah. VIII of 2024.

WHEREAS, it is expedient further to amend the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, for the purposes hereinafter appearing, it is, hereby, enacted in the Seventy-seventh Year of the Republic of India as follows :—

1. This Act may be called the Maharashtra Private Universities (Establishment and Regulation) (Third Amendment) Act, 2026. Short title.

Amendment of section 2 of Mah. VIII of 2024.

2. In section 2 of the Maharashtra Private Universities (Establishment and Regulation) Act, 2023 (hereinafter referred to as "the principal Act"), Mah. VIII of 2024.—

(*i*) in clause (*b*), after the word "academic", the words ",Health Science" shall be inserted;

(*ii*) after clause (*n*), the following clause shall be inserted, namely :—

"(*n-a*) "Health Science Courses" means courses related to medical, dental, ayurveda, homoeopathy, unani, siddha, physiotherapy, occupational therapy, nursing, rehabilitation, paramedical courses and allied health sciences;";

(*iii*) in clause (*u*), after the words "Council of Scientific and Indian Research", the words ",National Dental Commission, Indian Nursing Council, National Commission for Allied and Healthcare Profession, National Commission for System of Indian Medicine, Rehabilitation Council of India, National Commission for Homoeopathy and any other competent regulatory body for health science courses," shall be inserted;

(*iv*) in clause (*zb*), for the words "a degree, diploma", the words "a certificate, diploma, degree, postgraduate degree, fellowship, doctorate, post doctorate" shall be substituted;

Amendment of section 3 of Mah. VIII of 2024.

3. In section 3 of the principal Act, in sub-section (*2*), after clause (*xxii*), the following clause shall be inserted, namely :—

"(*xxii-a*) no objection certificate from the Maharashtra University of Health Sciences as per sub-section (*1*) of section 6 of the Maharashtra University of Health Sciences Act, 1998, in respect of Health Science courses : Mah. X of 1999.

Provided that if no objection certificate is not received by the applicant sponsoring body from the Maharashtra University of Health Sciences within sixty days from the date of application, it shall be presumed that the Maharashtra University of Health Sciences has no objection and in such cases the acknowledgment of the request shall be submitted.".

Insertion of new section 4A in Mah. VIII of 2024.

4. After section 4 of the principal Act, the following section shall be inserted, namely :—

Eligibility for establishment of University for health science courses.

"**4A.** Notwithstanding anything contained in this Act, only the sponsoring body who has a recognized medical college having not less than twenty years' experience in the field of health science education with National Assessment and Accreditation Council (NAAC) Accreditation Grade 'A' and above (Cumulative Grade Point Average (CGPA) 3.01 and above) with Post Graduate Courses in at least fifty per cent. of it's disciplines and operational for at least ten years shall be eligible for making application for establishment of University conducting Health Science Courses under this Act.".

Amendment of section 6 of Mah. VIII of 2024.

5. In section 6 of the principal Act, in sub-section (*5*), for the words "conferment of degree, diploma or certificate", the words "conferment of certificate, diploma, degree, postgraduate degree, fellowship, doctorate, post doctorate," shall be substituted.

Amendment of section 7 of Mah. VIII of 2024.

6. In section 7 of the principal Act, after sub-section (*1*), the following proviso shall be inserted, namely :—

"Provided that, for Universities conducting Health Science Courses, there shall be separate secretary level committee consisting of secretaries of the Higher and Technical Education Department, Medical Education Department, Finance Department and Planning Department.".

Amendment of section 9 of Mah. VIII of 2024.

7. In section 9 of the principal Act, in sub-section (*1*),—

(*i*) in clause (*a*), after the words "Information and Communication Technology", the words and letter ",Health Sciences *i.e.* Medical, Dental, Ayurveda, Homoeopathy, Unani, Siddha, Physiotherapy, Occupational Therapy, Nursing, Rehabilitation, Paramedical Courses and Allied Health Sciences" shall be inserted;

25 of 1961. 30 of 2019. 14 of 2020. 48 of 1947. 21 of 2023. 34 of 1992. 14 of 2021. 15 of 2020.

(*ii*) in clause (*p*), after the words and figures "Advocates Act, 1961", the words and figures "or the National Medical Commission constituted under the National Medical Commission Act, 2019 or the National Commission for Indian System of Medicine constituted under the National Commission for Indian System of Medicine Act, 2020 or the Council constituted under the Indian Nursing Council Act, 1947 or the National Dental Commission constituted under the National Dental Commission Act, 2023 or the Rehabilitation Council of India constituted under the Rehabilitation Council of India Act, 1992 or the National Commission for Allied and Healthcare Profession constituted under the National Commission for Allied and Health Care Professions Act, 2021 or the National Commission for Homoeopathy constituted under the National Commission for Homoeopathy Act, 2020" shall be inserted.

Amendment of section 10 of Mah. VIII of 2024.

8. In section 10 of the principal Act,—

(*i*) in clause (*ii*), for the words "confer degrees, diplomas, certificates, awards, grades, credits and academic distinctions", the words "confer certificates, diplomas, degrees, postgraduate degrees, fellowships, doctorates, post doctorates, awards, grades, credits and academic distinctions" shall be substituted;

(*ii*) in clause (*xvi*), for the words "or certificates", the words ",certificates, diplomas, degrees, postgraduate degrees, fellowships, doctorates or post doctorates" shall be substituted.

Amendment of section 13 of Mah. VIII of 2024.

9. In section 13 of the principal Act, in sub-section (*5*), after the words "joint holder", the words "and in case of Universities conducting Health Science Courses the Director of Medical Education and Research as joint holder" shall be inserted.

Amendment of section 27 of Mah. VIII of 2024.

10. In section 27 of the principal Act, in sub-section (*1*), after clause (*c*), the following proviso shall be inserted, namely :—

"Provided that, in case of the Universities conducting Health Science Courses, out of five persons there shall be two health science experts nominated by sponsoring body.".

Amendment of section 38 of Mah. VIII of 2024.

11. In section 38 of the principal Act, in sub-section (*2*),—

(*i*) in clause (*c*), for the words "the degrees, diplomas, certificates", the words "certificates, diplomas, degrees, postgraduate degrees, fellowships, doctorates, post doctorates" shall be substituted;

(*ii*) in clause (*f*), for the words "degrees and diplomas", the words "certificates, diplomas, degrees, postgraduate degrees, fellowships, doctorates and post doctorates" shall be substituted.

Amendment of section 41 of Mah. VIII of 2024.

12. In section 41 of the principal Act,—

(*i*) in sub-section (*2*), after the first proviso the following proviso shall be inserted, namely :—

"Provided further that, admissions in Universities for Health Science Courses shall be made on the basis of National Eligibility *cum* Entrance Test (NEET) or any other entrance test as declared by the Central or State Government from time to time.";

(*ii*) in sub-section (*3*), after the words, brackets and letters "Economically Weaker Sections (EWS)", the words, brackets and letters ",Socially and Educationally Backward Classes (SEBC)" shall be inserted;

(*iii*) after sub-section (*4*), the following sub-section shall be inserted, namely :—

"(*5*) For the Health Science Courses, the admissions shall be made through a common counselling process as decided by the concerned regulatory body.".

Amendment of section 51 of Mah. VIII of 2024.

13. In section 51 of the principal Act, after sub-section (*6*), the following sub-section shall be added, namely :—

"(*7*) The State Government may,—

(*a*) seek compliance reports from the University;

(*b*) review continuation status based on the concerned regulatory body permissions;

(*c*) restrict admissions in case of withdrawal or suspension of permission by the concerned regulatory body.".

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR SMT. MANISHA KUMBHAR, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, SMT. MANISHA KUMBHAR.

NEET-PG 2026

COMMISSIONRATE, COMMON ENTRANCE TEST CELL, MUMBAI

8th Floor, New Excelsior Building,
A. K. Nayak Marg, Fort, Mumbai - 400 001 (M.S.)
Tel No.:+91-22-22016157/59
Email ID: maharashtra.cetcell@gmail.com WEBSITE: http://www.mahacet.org